

IRAQ:

A displacement crisis

A profile of the internal displacement situation

30 March, 2007

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

Based on its monitoring and data collection activities, the Centre advocates for durable solutions to the plight of the internally displaced in line with international standards.

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OVERVIEW

Iraq: a displacement crisis

More than 727,000 people are estimated to have been internally displaced due to sectarian and generalised violence in Iraq between February 2006 and March 2007. Together with tens of thousands more displaced by ongoing military operations, and more than one million by the abuses of the former regime of Saddam Hussein, this leads to a total of nearly 1.9 million people currently estimated to be displaced within Iraq. In addition, some 2 million Iraqis fled to neighbouring countries as of March 2007.

Four years after the toppling of the former regime, a new wave of violence and human rights abuses has left large numbers of people dead and caused mass population displacement at an unprecedented scale. Sectarian and generalised violence has been acute in mixed areas, particularly in Baghdad and neighbouring Diyala but other provinces have also been affected. Military operations are causing repeated displacement in Anbar province in the west.

The UN has been extremely slow to recognise the humanitarian crisis inside Iraq, whose population has inadequate access to shelter, food, clean water and employment opportunities. The UN Secretary General officially recognised the humanitarian suffering of Iraqis only in March 2007. The complex and large-scale nature of Iraq's internal displacement situation has also drawn only belated international attention. Limited by a number of factors including insecurity, international efforts to assist the internally displaced have been negligible. Local NGOs, and increasingly political parties and militia, are providing protection and assistance to internally displaced people (IDPs).

The displacement situation inside Iraq and its impact on the region has gained importance on the international agenda in early 2007. A review of the current UN operations is taking place and a high-level inter-ministerial meeting is planned for mid-April. Donor interest has also taken off. One concern is that, in terms of donor support, creative efforts to address the situation inside Iraq may be neglected or under-supported since programmes for Iraq's refugees in the region will be easier for donors to access and monitor and for agencies to implement. However, only a relatively small number of people are expected to be able to flee the country, while the number of IDPs is likely to increase. Return for both internally displaced people and refugees is conditional on improvement of the humanitarian and security situation within the country.

Background and main causes

Internal displacements in Iraq are commonly divided into three periods: those occurring before and those occurring after the United States-led invasion that overthrew Saddam Hussein's government in March 2003 and thirdly, those occurring after February 2006. It is increasingly common for the international community to use February 2006 as the date to distinguish between new displacement and "old" displacement (IOM, 24 March 2007). The majority of IDPs were displaced prior to the invasion. Displacement in Iraq up to 2003 has generally had distinctive regional patterns, outlined below. The causes of displacement under the former regime are no longer present, yet many of the people uprooted during that period remain in need of assistance to find durable solutions (UNCT, August 2004).

Central and northern Iraq

Displacement in and around Kirkuk has had particular political sensitivity as the area contains some of Iraq's biggest oilfields and which ethnic group is in the majority there is a key factor in the political bargaining over the relationship between the primarily Kurdish north and the Arab majority of the rest of Iraq. Following the rise of the Ba'ath party in 1968, large-scale internal displacement took place in the centre and north of the country as part of the Iraqi authorities' campaign to neutralise Kurdish aspirations for independence and to strengthen control over some of the world's largest oil reserves. These campaigns involved widespread human rights violations, including the systematic alteration of the ethnic composition of the region.

Before the 1990s, the Iraqi authorities displaced tens of thousands of non-Arabs from Kirkuk and surrounding areas, resettling Arabs in their place under what is referred to as the "Arabisation" campaign. While the Kurds constitute the majority of those displaced, other non-ethnic-Arab Iraqis, including Turkmen and Assyrians, were also forced to flee or to sign a form "correcting their ethnicity" so as to be considered ethnic Arabs (HRW, August 2004). To increase the number of Arabs in the region, incentives, such as free land and houses, many belonging to the evicted Kurds, were offered by the former regime (RI, 21 November 2003; UNCHR, 26 February 1999).

The end of the Iran-Iraq war in 1988 saw an intensification of the atrocities committed against the Kurds. In the course of the "Al-Anfal" campaign, the Iraqi authorities committed mass executions, poisoned entire villages with gas and imposed economic blockades on others (AIJ, December 2002). The genocidal nature of the Anfal campaign differentiates it from the earlier and later Arabisation campaigns (HRW, August 2004). More than 100,000 Kurds are estimated to have been murdered with chemical weapons. During the Anfal campaign the government also deliberately destroyed up to 4,000 Kurdish villages, resulting in massive forced displacements of Kurds. Most were relocated into "collective settlements" within the three northern governorates and some were put into detention camps (USCR 2000, p.187; Dammers 1998, p.181; Fawcett and Tanner, October 2002, pp.8-10; HRW, July 1993).

Another cause of displacement within northern Iraq as well as in areas south of the "green line" was factional Kurdish in-fighting. Iraq was de facto divided after 1991 into two areas, northern Iraq (comprising the provinces of Dahuk, Arbil and Sulaymaniyah) under Kurdish administrative control, separated by the so-called "green line" from the rest of the country, under the control of the central government. This division is still relevant under the new constitution. Following the 1991 Gulf War, the United States imposed a no-fly zone in the north, which established a de facto autonomous Kurdish region in the northern provinces of Arbil, Sulaymaniyah and Dahuk. Fighting for control of these three governorates between the two main Kurdish parties, the Patriotic Union of Kurdistan (PUK) and the Kurdish Democratic Party (KDP), caused the displacement of hundreds of thousands of people in the early 1990s (UNHCR, August 2004; UNCT, March 2005). Incursions and shelling from neighbouring Turkey and Iran, both countries opposed to the creation of a Kurdish state, also caused internal displacement in the north (UNHCR June 2000; USCR 2001).

The UN estimates around 805,500 individuals (141,200 families) were displaced in the north, the majority between 1974 and 1991 (UNHCR, August 2004; UN Habitat, January 2001). In total, more than 680,000 people forced from their homes by the former regime are thought to remain displaced in the central and northern provinces (Cluster F, 11 February 2007).

Southern Iraq

The Marsh Arabs constitute the main group of people forcibly displaced in the south during the 1990s owing mainly to the former regime's campaign to drain the marshland areas. A first stage of displacement occurred with the draining of the central marshes to facilitate movement of military units during the Iran-Iraq war in the 1980s. The marshes underwent further drainage during the 1990s, as part of a campaign against Marsh Arabs who were accused by the authorities of supporting a Shi'a uprising in 1991. The military crushing of the 1991 revolt forced

many Shi'ites to flee to the northern protected areas, into Iran, or deeper into the southern marshlands. The campaign included the use of chemical weapons, shelling and burning of villages, assassinations, contamination of water and police raids; large-scale dam projects also displaced many (Fawcett and Tanner, October 2002, p. 28-30; USCR, 2001). In 1992, the government moved some 4,000 Marsh Arabs to houses along the highway between Basra and Al-Qurna. In the early 1990s, it was believed that 250,000 people lived in the marshes, whereas today it is estimated that the population is less than 20,000 (UNCT, March 2005). Between 100,000 and 200,000 people were estimated to be displaced from the marshland areas (UNHCR, August 2004; UNOHCI, 30 June 2003).

Tens of thousands of people were also displaced from their homes on the border with Iran in the south as a result of the Iran-Iraq war in the 1980s. Today it is estimated that at least 80,000 people are still displaced within Basra province (UNCT, August 2004).

Political and religious persecution has been a further cause of displacement of Shi'a political dissidents in the south. Shi'a support for Iran in opposition to the former government was particularly pronounced in the south but also among some Shi'a in the centre (UNHCR, August 2004; IRIN, 21 May 2004). At least 25,000 were displaced, people that the former government admitted to having expelled from Baghdad in 1998 (Fawcett and Tanner, October 2002, p. 33).

In total, it is estimated that more than 343,800 people were displaced as a result of policies of the former government in the southern provinces (Cluster F, 11 February 2007).

Massive displacement since 2003

Since the fall of the former regime, Iraqis have fled their homes because of sectarian and generalised violence as well as military operations by the US-led intervention forces and their Iraqi allies against insurgents. In the immediate aftermath of the fall of the former government, fighting and military operations were the main cause of displacements, but the balance has now shifted towards sectarian violence. In International Organisation for Migration (IOM) assessments among displaced Iraqis, a majority of those interviewed reported that they had fled their homes because of sectarian violence. The second reason most commonly cited was generalised fear, which included sectarian violence, inter-tribal fighting, fighting between the military and militias or insurgent groups, and military offensives. The third reason for displacement was armed conflict specifically due to military operations (IOM, 2 February 2007).

In addition to these primary causes of displacement, there are indications of prolonged and multiple displacements because of a lack of adequate housing, water, electricity, health services, employment opportunities and education. The widespread destruction of villages by the former government in the southern marshland areas and lack of public services and infrastructure, for example, has prevented return and reintegration in these areas (AMAR, March 2006). Some people also remain displaced because they have not yet been able to reclaim property and land wrongfully confiscated from them under the former government. Still other people remain displaced because they have had their homes destroyed in fighting and military operations after 2003. In addition, many refugees who returned after the invasion have returned to a situation of internal displacement because of the lack of shelter and employment opportunities and deteriorating security (UNHCR, January 2007).

Sectarian-induced displacement

Today, displacement in Iraq is increasingly caused by both targeted and indiscriminate acts of violence which are orchestrated along ethnic and religious lines. Violence is perpetrated by a

number of actors, including radical groups, militias, supporters of the former regime, and groups resisting the presence of foreign troops inside Iraq. The tactics being employed by some militant groups may be viewed as part of a deliberate strategy to redraw the map of Iraq's communities, which is likened to "ethnic cleansing" in the former Yugoslavia. According to a report by Brookings, displaced people view extreme religious fronts – the Office of Muqtada al-Sadr and the Supreme Council for the Islamic Revolution (SCIRI) on the Shi'ite side and the Association of Muslim Scholars (AMS) and the Islamic Party on the Sunni side – as the main drivers of the sectarian displacement (Brookings, 18 October 2006). The US State Department says that the term civil war "accurately describes key elements of the Iraqi conflict, including the hardening of ethno-sectarian identities, a sea change in the character of violence, ethno-sectarian mobilisation, and population displacements" (US DOS, 2 February 2006). These include attacks and reprisals on a daily basis, some with enormous death tolls, such as the Al-Sadr city bombing in November 2006 which killed more than 200 people and wounded more than 250 (RFE/RL, 29 November 2006).

In assessments conducted among displaced Iraqis, IDPs reported a range of triggers for displacement including abductions, assassinations of individuals close to them or family members, threats communicated by telephone or mobile text messages, graffiti on buildings, leaflets distributed in their communities, and rumours. Most people stated that they were forced to flee because attacks specifically targeted them on the basis of their belonging to a certain religion or sect (IOM, 2 February 2007; Brookings, 18 October 2006). In the last months, new tactics have emerged to deliberately intimidate people into fleeing, such as the burning of homes. The sectarian nature of displacements is most evident in the separation of mixed families in a country where intermarriage between Sunni-Shiite communities has traditionally been a common phenomenon (ICG, 27 February 2007).

Sectarian-induced violence and displacement is widely reported to have taken off with the bombing of the Al-Askari shrine in Samarra at the end of February 2006 when the nature of the conflict in Iraq was deemed to have shifted from what was seen as essentially an insurgency against US-led occupation forces in Iraq to a struggle for political and economic power among Iraqis (RFE/RL, 29 November 2006). However, several decisive points have contributed to the polarisation of Iraq's communities and the sectarian violence which has prompted displacement. These are outlined in a report by a think-tank, the International Crisis Group, and include the marginalisation of the Sunni community in the drafting of the constitution ratified in October 2005; the January 2005 elections which handed a victory to a Shi'ite-Kurdish block but led to the exclusion of the Sunni community; the creation by the United States in July 2003 of the Interim Governing Council, a body which was modelled along sectarian lines; and fourthly, the current violence may be viewed as following historical trends set by the nature of the previous regime which brutally suppressed the political movements of the Shi'ite and Kurdish communities. The Crisis Group notes that although "... [t]he potential for outbreak of ethnic and sectarian violence certainly existed in Iraq's past ... nothing suggested it would be the inevitable result of the regime's removal." Rather, the occupation forces exacerbated and hardened ethnic and sectarian identities at the political level in the manner in which they went about creating the institutions of the new state (ICG, 27 February 2006).

There was evidence already during 2005 of growing numbers of Iraqis fleeing Baghdad's neighbourhoods and suburbs, especially mixed areas, to move to places where their community predominated – a pattern which intensified during 2006 and early 2007 (New York Times, 20 November 2005; IDMC, 23 May 2006). Eighty per cent of sectarian violence has occurred within a 55-km radius of Baghdad (UNSC, 11 December 2006). The most volatile of Baghdad neighbourhoods include Dora, Hurriyah, Al Adhamiyah, Khadimiyah, Ghazaliyah, Amariya and Qadisiyah (UNAMI, 16 January 2007). Baghdad and its surrounding towns, especially mixed areas, have witnessed the most severe violence and displacement, but other parts of the country, including Ba'quba in Diyala province; Samarra in Salah al Din provinces; Abu Ghraib in Anbar

province, north Babil, Mosul and Basra in the south, have also been affected. In figures, Baghdad is estimated to host more than 120,000 newly displaced people and there are high concentration of displaced people (more than 50,000) in Kerbala, Babylon, and Wassit provinces (Cluster F, 5 March 2007). An increase in intracommunal violence has also prompted forced displacement, with clashes reported between some Sunni tribes and among predominately Shi'ite rival militia groups in south Iraq (UNSC, 5 December 2006).

Between February 2006 and March 2007, more than 727,000 people were estimated to have been displaced by sectarian violence. Women and children represent over 70 per cent of this population (Cluster F, 5 March 2007). Those at most risk of persecution are Sunnis and Shi'ites who reside in locations clearly dominated by the other group, as well as families in Sunni/Shi'ite mixed marriages (HRW, November 2006). The overwhelming majority of the displaced are from the central and southern governorates – originating mainly from the Shi'ite community followed by the Sunni community. The central and southern governorates also host the majority of the newly displaced. Minority groups have also faced persecution, including members of the Christian Chaldean and Assyrian sects, Yazidis, Shabak, Turkmen, Sabeen-Mandean, and Roma communities. Most Christians and other minorities have moved to areas under the Kurdish Regional Government. Armed groups and militia have threatened and forcibly evicted Palestinians from their homes. Professionals and intellectuals such as academics, teachers, judges and doctors, but also members of the security forces and Iraqis associated with the coalition forces, have been targeted (IRIN, 1 May 2006; UNAMI, 16 January 2007; Cluster F, 5 March 2007; MRI, February 2007).

Military operations

The conflict between the US-led Multi-National Force – Iraq and armed groups persisted in 2006 and early 2007. Yet, population displacements caused by multiple military operations across the country remain largely unreported by the media. Affected areas are often difficult to access and military operations have tended to cause temporary displacements. However, research suggests that people displaced by military operations have been much more likely to be displaced repeatedly. For instance, displaced people were encouraged by the government to return to Iskandariya (northern Babil) and Tal Afar (Nineveh) following military operations only to be displaced again (Brookings, 18 October 2006).

In 2006 and early 2007, military operations continued particularly in Baghdad and in Diyala and Anbar provinces (in particular Ramadi, Fallujah and Heet) (IWPR, 15 June 2006; IRIN, 18 June). Displaced people in Anbar province reported armed clashes as a primary reason for their displacement, as did displaced people surveyed during 2006 in Diyala and Missan provinces (IOM, 2 February 2007). US-led multi-national forces are increasingly carrying out air strikes which lead to more displacement as houses are often destroyed (NCCI, 25 March 2007; IRIN, 16 January 2007).

As of March 2007, it was estimated that approximately 22,400 people remained displaced from military operations – the overwhelming majority in Anbar province (Cluster F, 11 February 2007). Military operations, often including aerial bombing, have been led by the US-led forces with the stated aim of quelling armed insurgency groups. Several hundred thousand people have been forced to flee their homes. Most were able to move back when fighting lessened. However, in many cases people were afraid to go back because of ongoing insecurity, or because they had not received the compensation or reconstruction assistance necessary to restart their lives.

Military operations have caused the most devastation and displacement in western Iraq, in predominantly Sunni areas, where multinational and Iraqi forces say the insurgent strongholds are concentrated. During 2005 and 2006, multi-national and Iraqi forces launched regular military

offensives in several cities and towns in Anbar province, including Husbaya, Hit, Rawa, Haditha, Fallujah, Ramadi and Al Qa'im. Most of these cities and towns already hosted displaced populations from previous military operations (IRIN, 24 February 2005; UNAMI, 27 February 2005; IRIN, 4 July 2006). During the same period, people were displaced because of military operations launched in other parts of the country including in Tal Afar, Karabala, Samarra, Mosul and Kirkuk as well as in areas of Salah al din, Nineveh, Babil and Diyala (UNAMI, 31 August 2005, 18 May 2005, 27 February 2005; IRIN, 28 June 2005, 31 May 2005; ICS, 13 May 2005; NCCI, 17 May 2006).

The displacements occurring in 2005-2006 followed a similar pattern to the previous year. In 2004, military operations and fighting between US-led military forces and Iraqi insurgents caused displacement in the cities of Fallujah, Al Najaf, Kufa, Ramadi, Karabala, Tal Afar and Samarra (UNSC, 3 September 2004; IRIN, 26 July 2004, 23 August 2004 and 4 January 2005; DPA, 20 August 2004; UNAMI, 25 April 2004; UNCT, August 2004). The largest displacement occurred in Fallujah, in November 2004, when almost the entire population of the city fled (an estimated 200,000 people), following fierce battles between coalition troops and insurgents (UNAMI, 13 November 2004; IRIN, 8 November 2004). The November offensive was the second siege of Fallujah, from where 70,000 people had already been forced to flee in April 2004. Three years later, the city of Fallujah has not been rebuilt and more than 300 families (2,000 people) remain displaced (IRIN, 15 January 2007).

During the first months of the US invasion, thousands of people were also displaced in Anbar, Thi'Qar, Basra and Baghdad by air strikes and urban warfare. Across the country, small numbers of people considered to be living in strategic areas by the military were forcibly displaced by the Coalition Forces (UNCT, August 2004).

Figures

There are close to 1.9 million people displaced in Iraq today, according to estimates from IOM and the UN, and several million Iraqi refugees in neighbouring countries (Cluster F, 11 February 2007). The magnitude of the population displacements inside Iraq and in the region have prompted UNHCR to refer to the Iraqi displacement crisis as the "largest population movement since 1948 in the Middle East".

Ongoing movement patterns coupled with difficulty in accessing parts of the country make the issue of numbers in Iraq problematic. Official figures come from the Ministry of Displacement and Migration (MoDM) which registers internally displaced people. UNHCR, the UN Office for Project Services and IOM undertake their own monitoring of population movements. Other organisations, including the International Federation of the Red Crescent (IFRC) and the International Medical Corps have put forth their own estimates. A wide range of numbers has also been floated by political parties and the media.

Tracking and identifying displacements is challenging in Iraq because of the absence of massive population movements and big camps; instead, people are fleeing on a daily basis, often family-per-family and taking refuge in relatives' homes and within host communities (NCCI, 25 March 2007). The lack of security and ongoing fluctuation in the displacement situation prevents access and regular monitoring and different political parties have vested interests in putting out their own estimates of internally displaced people to further their political agendas (Brookings, 18 October 2006). In addition, government figures may underestimate the extent of the internal displacement problem. The Ministry of Displacement and Migration relies in part on figures from the Ministry of Trade, which keeps track of displaced people when they register for food rations, however, many displaced people do not register for reasons including that they lack the necessary documentation required for registration. Multiple patterns of displacement also complicate the obtaining of

figures. A report by Brookings for instance documents other patterns of displacement including night-time displacement (people who sleep in different places to avoid being targeted) (Brookings, 18 October 2006). A further lack of clarity in the figures relates to the causes of displacement. Official figures do not specify the cause of displacement: multi-national and Iraqi military operations, sectarian or generalised violence or other causes. Therefore, the causes of displacement are not always clear (Brookings, 18 October 2006).

Obtaining exact figures on the number of people who remain displaced by the former regime is also problematic as some observers suggest that the current UN figures do not reflect the reality and are based on an outdated 2001 survey by the Human Settlements Programme, UN-Habitat (IDMC report, 23 May 2006; Qandil, 17 May 2006). Monitoring by IOM has however provided an overview of displacement patterns since 2003. As noted above, significant numbers of people who were able to return prior to or following the US invasion, may continue to be in a situation of internal displacement because of lack of housing and basic infrastructure, and destruction especially in areas which have suffered military operations and escalating violence.

A neglected humanitarian crisis

In the context of the International Compact Meeting on 16 March, UN Secretary-General Ban Ki Moon said that "Beyond the political violence and sectarian strife, a humanitarian crisis is stretching the patience and ability of ordinary people to cope with everyday life" (UN News, 16 March 2007). A report by the Secretary-General states that Iraq is on the brink of turning into a full-scale humanitarian emergency if the existing climate of fear, impunity and disorder is not addressed in conjunction with efforts to meet basic needs (UNSC, 7 March 2007).

The UN's acknowledgement that the situation in Iraq has turned into a humanitarian emergency is long overdue. Military operations, increasing levels of generalised violence in Iraq and escalation into a sectarian civil war following years of sanctions and war have led to a continuing deterioration of living conditions of Iraqis. Public health, water and sanitation infrastructure, services and supplies are depleted and do not meet the basic needs of the Iraqi population. According to a study by the World Food Programme, 4 million Iraqis are food insecure and an additional 8.3 million people are at risk of food insecurity if not provided with food rations distributed by the government (WFP, 11 May 2006). School attendance fell by 50 per cent in 2006, according to the Ministry of Education (UNSC, 7 March 2007).

Escalating violence has prompted many Iraqis to live in siege conditions. A state of emergency was first declared in November 2004 and has been extended to different parts of Iraq (with the exception of Kurdistan) on a monthly basis (UNAMI, 16 January 2007). Fear of violence has stopped people from working, going to markets, schools, and clinics. Explicit movement restrictions are also imposed by multi-national and Iraqi troops in areas where military operations are ongoing which limit regular access to local services (UNAMI, 16 January 2007). US-led forces and Iraqi troops have also occupied hospitals and schools, in contravention of international humanitarian law, making access difficult for the civilian population in affected areas (IRIN, 13 February 2007; UNSC, 5 December 2006; UNAMI, 16 January 2007).

Protection concerns and gaps in assistance

The UN and human rights organisations document continuing human rights abuses against civilians, committed by armed groups, criminal gangs, religious extremists, and militias as well as by security and military forces (UNAMI, 16 January 2007). The UN reports a growing sense of impunity for ongoing human rights violations which leads people to take the law into their own hands and rely on action by militias and criminal gangs (UNAMI, 16 January 2007). Violence in

Kirkuk and Mosul is not acute like the violence engulfing south, west and central Iraq, but it is reported by the UN and NGOs to have intensified (UNAMI, 16 January 2007; UNSC, 7 March 2007). The violence has left thousands dead. The Lancet, an independent and authoritative periodical, estimates that 601,027 Iraqi civilians have been killed due to violence, since the invasion of the country in March 2003 (The Lancet, 11 October 2006). This estimate is disputed by the Iraqi and US governments. The Iraqi Ministry of Health reported 150,000 civilian deaths between March 2003 and November 2006 while Body Count reports more than 65,000 civilian deaths in Iraq to date (UNAMI, 22 November 2006; Body Count, March 2007 statistics).

The government has adopted a number of initiatives to curb the violence, including a national reconciliation plan, the Ramadan Declaration and the Mecca Declaration. More recently, a new measure, the Baghdad security plan (Operation Imposing Law) was adopted in February 2007 (UNSC, 7 March 2007). But these have so far had little impact on the violence. The new security plan has met with scepticism inside Iraq, and sectarian conflict is expected to continue in the absence of a political solution to back up security efforts (Al Ahram, 7 March 2007; The Guardian, 12 January 2007). For example, around thousand families (6,000 people) were reported to have returned to their homes in Baghdad in the days following the implementation of the new security plan but most were secondarily displaced because of new attacks on their neighbourhoods and occupation or destruction of their homes (Cluster F, 5 March 2007).

Force and fear have impelled hundreds of thousands of Iraqis to flee to areas where they feel safer, but their options to move freely between governorates are being increasingly circumscribed. Local authorities are deliberately restricting IDP movements by enforcing entry and residence restrictions or closing borders, including in at least eight provinces (Dahuk, Erbil, Sulaymaniyah, Kerbala, Najaf, Muthanna, Thi Qar and Basra). Such restrictions may force displaced people to move to unsafe areas or even if they are able to enter the province, it may lead to increased vulnerability as these families will be unable to access basic services because they are not registered. Local authorities say that restrictions are necessary to reduce the burden produced by the influx of displaced people on the housing and health sectors. They also claim that such measures are necessary for security reasons. In some provinces, entry restrictions are being made on the basis of political and demographic agendas of the authorities. In Erbil for instance, non-Kurds are required to have a Kurdish sponsor to enter and reside in the province. In Kerbala province, local authorities have closed the governorate borders to all IDPs except those originally from the province. IDP settlement has been restricted within certain provinces, as is reported to be the case in Najaf governorate (Ashraq Alawsat, 5 February 2007; Cluster F, 11 February 2007, 5 March 2007; IRIN 13 November 2006; IOM, 2 February 2007).

Many Iraqis have been forced to flee to areas where public services are limited, congested or non-existent. Host communities, extended family and tribes have generally taken in displaced people. But as displacement lengthens, host communities are increasingly finding it a burden to share limited resources with displaced populations – especially in districts with large displaced populations and in areas where military operations have taken place. Rents and real estate prices have risen markedly because of population influxes. As a consequence, local resentment toward IDP communities is on the rise (Cluster F, 11 February 2007; IOM, 2 February 2007). In the Kurdish areas, the absence of Arabic-language schools has presented a significant obstacle for displaced children to attend school (NCCI, 25 March 2007).

Displaced people report that a wide range of their needs are unmet, including shelter, food and employment followed by water, healthcare, legal assistance and education. One of the priority needs identified by displaced people across the country is housing – many displaced people live in temporary housing which makes them extremely vulnerable to homelessness and secondary displacement (Cluster F, 11 February 2007). The majority of displaced people are renting accommodation but with the increase in rents and a lack of regular income or savings face eviction. Significant numbers of displaced people also live in public buildings which are

overcrowded and without electricity, water and sanitation. Smaller numbers of displaced live in transitional settlements or makeshift accommodation and approximately one per cent in camps (Cluster F, 11 February 2007; IOM, March 2007). Some displaced people also face discrimination in accessing housing in areas of displacement; for instance, non-Kurds are prohibited from purchasing property in Erbil province (UNHCR, January 2007).

A new security plan presented by Iraqi Prime Minister Nuri al-Maliki at the end of February 2007 may also result in evictions of internally displaced people. The plan is intended to evict people illegally occupying homes in Baghdad in order to encourage displaced people to return to their homes. It stipulates that people who are occupying the homes of displaced families will be given 15 days to return the properties to the owners or give evidence of permission to be there. But the plan includes no provision for alternative accommodation for illegal occupants, the majority of whom are also internally displaced and no measures to ensure their safety in their neighbourhoods of origin (IRIN, 15 February 2007).

Fears of expulsions among displaced people have also been heightened by a decision of the Iraqi Higher Committee for the Normalisation of Kirkuk in February 2007 which announced the start of a process to relocate Arab families moved to Kirkuk under the Arabisation campaign (IRIN, 7 February 2007). Demonstrations broke out in response to the announcement which is seen as a policy of forced displacement and discrimination. The Committee has however said that relocation and compensation will be voluntary (UNSC, 7 March 2007; IDMC News Alert, 8 February 2007).

In addition to housing, access to food rations is widely reported to be problematic for displaced people due to the slow procedures for transfers and registration with the public food distribution system. The administrative process for transferring a ration card normally requires a displaced person to complete paperwork in the original registration place which was unfeasible for displaced people who fled their homes at short notice. Local authorities in a number of provinces have attempted to ease this requirement by implementing temporary transfer procedures. However, even if they are able to register, displaced people may have to wait two to three months until they start receiving food rations (UNHCR, January 2007). UNHCR found that only slightly more than half the displaced communities surveyed in Erbil and Sulaymaniyah had received food rations (UNHCR, January 2007). Displaced communities also report difficulties accessing food rations because of insecurity, especially in the wake of military operations or in areas under militia control, as well as because of food shortages and backlogs (Cluster F, 11 February 2007; NCCI, 17 May 2006).

Access to potable water and health services is also reported to be more difficult particularly in rural areas with concentrations of displaced communities, for reasons including distance, cost and shortages. In parts of Anbar province, it is reported that displaced families are drinking from rivers which makes them increasingly vulnerable to waterborne diseases (NCCI, 25 March 2007). There has been insufficient maintenance of water and sanitation systems – many of which are dilapidated following years of sanctions and conflict. Additionally, the new arrival of displaced people has created a burden on health centres which lack equipment, medicines and staff (Cluster F, 11 February 2007).

Displaced people have also lost their jobs as a result of flight and as the period of displacement extends, face destitution. Some displaced people report facing difficulties or delays in finding new government positions or obtaining retirement salaries in the province of displacement (Cluster F, 11 February 2007). Financial assistance has been provided by local authorities to displaced people in a number of areas; however, assistance is usually ad hoc and not distributed evenly among displaced communities. Some reports suggest that children are increasingly forced to work and are vulnerable to military recruitment (Brookings, 18 October 2006; Cluster F, 5 March 2007).

Urgent need for creative and flexible response

The Iraqi Ministry of Displacement and Migration bears the responsibility for providing protection and assistance to IDPs but a number of other ministries also do so, including the Ministries of Trade, the Interior and Education (CPA, 8 March 2004). Local authorities at the provincial and district level have also formed IDP committees and deal with registration, shelter and employment of displaced people (Brookings, 18 October 2006). But the government's efforts to provide for the welfare and support of its population have fallen short because of violence and increasingly politicised key line ministries, according to a country study by the Feinstein International Center (FIC).

Despite the worsening situation inside Iraq, the FIC report also found that little attention had been paid to the limited capacity of the international apparatus to respond proportionately to the needs of Iraq's population (FIC, January 2007). The UN's essentially political role in Iraq, its development focus and current structure impair its ability to effectively address the humanitarian needs inside Iraq (FIC, January 2007; UNSC 1546). The ability of the UN mechanism to assist the IDP population has also been seriously impaired by mobility constraints which prompted an almost total reduction of international presence and programmes (FIC, January 2007). The UN Assistance Mission in Iraq (UNAMI) operates from Amman, and has maintained an extremely low profile inside Iraq since the August 2003 bombing of UN headquarters in Baghdad (UNSC, 7 June 2005; UNAMI, 4 April 2005). UNAMI is organised by inter-agency thematic sectors, of which "Cluster F" is responsible for all issues relating to IDPs. Key agencies of Cluster F, such as UNHCR rely on implementing partners – mainly local partners to monitor IDPs and provide assistance.

The international response has furthermore been circumscribed by insufficient funds allocated specifically for humanitarian preparedness and emergency response. The main funding mechanism, the International Reconstruction Trust Fund, lacks flexibility which has meant that despite the increasing humanitarian needs inside Iraq, the mechanism channels the bulk of funds – around \$1.12 billion – to development and reconstruction programmes. Mechanisms within UNAMI to respond to emergencies in Iraq, including an emergency working group and an IDP working group coordinated by the UN, have been constrained by the lack of flexible funding (NCCI, 18 May 2006). Donors are furthermore reluctant to fund projects that are not visible and that cannot be readily monitored (FIC, January 2007).

Local NGOs have been delivering assistance to internally displaced people, often at considerable risk to Iraqi staff, but are unable to meet the overwhelming needs, and face ongoing challenges to access to IDP communities in a diminishing "humanitarian space" (NCCI workshop, February 2007 outlines obstacles and recommendations). NGOs have persistently advocated for the development of a more creative and adaptable operational response to the humanitarian situation in Iraq as well as more flexible funding structures which are a problem for NGOs as well (see eg Turlan and Mofarah, November 2006). For instance, the NGO Coordination Committee in Iraq (NCCI) has for some time urged donors to allocate funds for humanitarian preparedness in order for NGOs to respond more efficiently and called for the creation of an emergency fund to access funds on short notice, neutral funding and improved coordination (NCCI, 18 May 2006, February 2007; NRC/IDMC, 23 May 2006).

Gaps in assistance have meant that many Iraqis are turning to local groups or militias for protection and basic services (UNSC, 7 March 2007; FIC, January 2007). Mosques and Islamic charities, churches and informal community groups have also organised assistance for displaced families (Brookings, 18 October 2006). For example, an assessment by UNHCR in Erbil province found that among the surveyed displaced families, 66 per cent received assistance from religious

institutions (UNHCR, 31 January 2007). Assistance to displaced people has also been provided by US-led multi-national and Iraqi forces – sometimes in the aftermath of military operations which caused displacement – as well as by aid agencies accompanied or “embedded” with the multinational forces (See eg MNF, 6 February 2007; US Government, 25 February 2007; UNAMI, 18 January 2005). This blurring of roles between military and humanitarian has had the consequence of creating an enormous challenge for the international community to establish impartiality and independence in any future humanitarian operations (FIC, January 2007). UNAMI's ability to undertake meaningful humanitarian work inside Iraq has also been impaired by a mandate defined under UN Security Council Resolution 1546 which entails full reliance on multi-national forces for mobility and security – thereby limiting the UN's ability to gain the trust of local communities (FIC, January 2007). This reliance on multi-national forces adds to a general lack of credibility for the UN in Iraq (RI, March 2007).

A revision of the international response to the displacement crisis inside Iraq is currently under way and has also been accompanied by greater media attention to the magnitude of the displacement problem. The UN has launched a number of initiatives in order to review, consult and improve operations in Iraq, including an inter-ministerial conference on the displacement situation inside Iraq and the region planned for April 2007. Donors have also started to respond by increasing funds, for example in response to UNHCR's Supplementary Appeal in January 2007.

The conflict inside Iraq is widely viewed as a regional problem – a situation which if left unaddressed could destabilise the region. The ramifications of the conflict for the region are particularly evident in the flow of Iraqi refugees. Donors and many international organisations have turned their attention to the Iraqi refugee problem.

One concern is that efforts to creatively address the situation inside Iraq may be neglected or under-supported since programmes to assist Iraq's refugees in the region will be easier for donors to access and monitor. The European Commission's humanitarian aid department ECHO, for example, has committed €10 million (\$13m) – of which €6 million (\$8m) is for several million Iraqi refugees in the region and only €4 million (\$5m) for needs within the country – a population estimated in June 2006 to be around 26 million people with wide-ranging humanitarian needs including 1.9 internally displaced people. Return for both internally displaced people and refugees is conditional on improvement of the humanitarian and security situation within the country. Solutions to the displacement crisis will be largely dependent on addressing the roots of the conflict. As a report by the International Medical Corps underlines, a relatively small minority of those forced from their homes are expected to leave the country, evidence that places Iraq's growing crisis of displacement squarely within the country (IMC, January 2007).

CAUSES AND BACKGROUND

Background

Fighting between Kurdish militia and Iraqi government, 1960-1975

- 1960-1975: fighting between Kurdish militia and Iraqi government, as well as between militia, caused the displacement (internally and abroad) of about 600,000 and the forced relocation of 300,000
- In 1974, the Iraqi government unilaterally created the Kurdistan Autonomous Region which excluded the oil wealth of Kirkuk and Khanaqin
- Following autonomy decree the 'Arabization' campaign began in the Kirkuk region replacing Kurds with Arabs moved from the South
- The Kurdish revolt in 1974 led to forced relocation of tribesmen linked to the leader of the revolt

Dammers, 1998, p.181

"In the 1960s, Iraq witnessed several changes of government and fluctuating conflicts in which the Barzani [KDP] and to a lesser extent the Talabani [PUK] militias played a significant role. In 1970, 300,000 people were reported displaced in Kurdistan, the result of fighting between Kurdish militias and the government, as well as between the militias themselves. By 1975, when the government defeated Barzani's KDP, as many as 600,000 were displaced, 250,000 over the border to Iran. The Iraqi government forcibly relocated perhaps 1400 villages and 300,000 people, mainly to 'strategic hamlets' designed to facilitate government containment and control. Along the Iranian border depopulation was almost total, with villages bulldozed to prevent return."

"HRW, 1993, "Introduction"

"In 1970, the Ba'ath Party, anxious to secure its precarious hold on power, did offer the Kurds a considerable measure of self-rule, far greater than that allowed in neighboring Syria, Iran or Turkey. But the regime defined the Kurdistan Autonomous Region in such a way as deliberately to exclude the vast oil wealth that lies beneath the fringes of the Kurdish lands. The Autonomous Region, rejected by the Kurds and imposed unilaterally by Baghdad in 1974, comprised the three northern governorates of Erbil, Suleimaniyeh and Dohuk. Covering some 14,000square miles -- roughly the combined area of Massachusetts, Connecticut and Rhode Island -- this was only half the territory that the Kurds considered rightfully theirs. Even so, the Autonomous Region had real economic significance, since it accounted for fully half the agricultural output of a largely desert country that is sorely deficient in domestic food production.

In the wake of the autonomy decree, the Ba'ath Party embarked on the "Arabization" of the oil-producing areas of Kirkuk and Khanaqin and other parts of the north, evicting Kurdish farmers and replacing them with poor Arab tribesmen from the south. Northern Iraq did not remain at peace for long. In 1974, the long-simmering Kurdish revolt flared up once more under the leadership of the legendary fighter Mullah Mustafa Barzani, who was supported this time by the governments of Iran, Israel, and the United States. But the revolt collapsed precipitately in 1975, when Iraq and Iran concluded a border agreement and the Shah withdrew his support from Barzani's Kurdistan Democratic Party (KDP). After the KDP fled into Iran, tens of thousands of villagers from the Barzani tribe were forcibly removed from their homes and relocated to barren

sites in the desert south of Iraq. Here, without any form of assistance, they had to rebuild their lives from scratch.

In the mid and late 1970s, the regime again moved against the Kurds, forcibly evacuating at least a quarter of a million people from Iraq's borders with Iran and Turkey, destroying their villages to create a cordon sanitaire along these sensitive frontiers. Most of the displaced Kurds were relocated into *mujamma'at*, crude new settlements located on the main highways in army-controlled areas of Iraqi Kurdistan. The word literally means "amalgamations" or "collectivities." In their propaganda, the Iraqis commonly refer to them as "modern villages"; in this report, they are generally described as "complexes." Until 1987, villagers relocated to the complexes were generally paid some nominal cash compensation, but were forbidden to move back to their homes.

The Kurdish Democratic Party (KDP) is led by Masoud Barzani and is dominant in the north of the country, while the Patriotic Union of Kurdistan (PUK) is led by Jalal Talabani and is dominant in the northeast. Barzani is the son of the Kurdish leader Mustafa Barzani while Talabani was one of his lieutenants who split.

Iran-Iraq War and the Anfal campaign against the Kurds 1980-1988

- Eight years of war allowed Saddam Hussein to consolidate his rule in Iraq
- 'Anfal policy,' which began towards the end of the war, resulted in between 50,000 and 200,000 Iraqi Kurds being killed and about 500,000 deported to new 'collective settlements' and detention camps

USIP, 17 February 1999, "The Problem"

"The present regime in Baghdad came to power through a coup in 1968. The coup gave prominence to a young officer in the Ba'ath Party intelligence apparatus named Saddam Hussein. Ahma Hassan al-Bakr served as president and maintained titular power until Saddam deposed him and declared himself president on July 16, 1979. Just more than a year after seizing uncontested control over Iraq, Saddam declared war on Iran. While the goals of the war – reclaiming Iraqi territory conceded in 1975 border negotiations, ending Iranian support for Kurdish separatists in the north, and overthrowing a regime in Tehran that was openly calling for an Islamic revolution inside Iraq among others – can be debated, the gruesomeness of the war that followed cannot. The war produced about 1.5 million casualties during eight years of hostilities, ending in a cease-fire that essentially left prewar borders unchanged.

The Iran-Iraq war was the first time since the interwar years that chemical weapons were used in combat. Probably beginning in 1984, and almost certainly by 1986, Saddam Hussein used chemical weapons in the battlefield against Iranian troops. Such use drew the condemnation of the United Nations in 1986, although such condemnation was muted by international antipathy toward the regime in Tehran.

The eight-year-long war exhausted both countries, but it allowed Saddam to further consolidate his rule in Iraq. The constant war footing allowed an already paranoid regime to more ruthlessly root out its opponents and more loudly proclaim the glories of its leader." When the war wound down, Saddam turned to damping internal divisions in his country and began a campaign against a Kurdish insurgency in the north. In that campaign, Saddam again turned to chemical weapons, using a combination of mustard gas and nerve gas that killed some 5,000 civilians in the town of Halabja in August 1988. As in his war with Iran, Saddam's use of chemical weapons (this time against civilian targets) failed to raise outrage [at the international level]."

HRW, 1993, "Introduction"

"After 1980, and the beginning of the eight-year Iran-Iraq War, many Iraqi garrisons in Kurdistan were abandoned or reduced in size, and their troops transferred to the front. In the vacuum that was left, the Kurdish *peshmerga*--"those who face death"--once more began to thrive. The KDP, now led by one of Barzani's sons, Mas'oud, had revived its alliance with Teheran, and in 1983 KDP units aided Iranian troops in their capture of the border town of Haj Omran. Retribution was swift: in a lightning operation against the complexes that housed the relocated Barzanis, Iraqi troops abducted between five and eight thousand males aged twelve or over. None of them have ever been seen again, and it is believed that after being held prisoner for several months, they were all killed. In many respects, the 1983 Barzani operation foreshadowed the techniques that would be used on a much larger scale during the Anfal campaign."

Dammers, 1998, p.181

"The Iran-Iraq war (1980-88) completed the displacement of much of Iraq's Kurdish population. Towards the end of the war, following increasing collaboration between Iran and Kurdish guerrilla forces, the Iraqi regime pursued its genocidal *Anfal* policy, killing between 50,000 and 200,000, and destroying about 3000 Kurdish villages and hamlets. Their inhabitants – over half a million people – were deported to new 'collective settlements' away from border or mountain areas, or to detention camps in south and west Iraq. Others fled to Iran. Many of these people have been displaced more than once since then."

HRW, 1993, "Introduction"

"Anfal—the Spoils'--is the name of the eighth *sura* of the Koran. It is also the name given by the Iraqis to a series of military actions which lasted from February 23 until September 6, 1988. While it is impossible to understand the Anfal campaign without reference to the final phase of the 1980-1988 Iran-Iraq War, Anfal was not merely a function of that war. Rather, the winding-up of the conflict on Iraq's terms was the immediate historical circumstance that gave Baghdad the opportunity to bring to a climax its longstanding efforts to bring the Kurds to heel. For the Iraqi regime's anti-Kurdish drive dated back some fifteen years or more, well before the outbreak of hostilities between Iran and Iraq."

To view official Iraqi documents on the Anfal policy, please visit the site of the Iraqi Research and Documentation Project, launched in June 1993 and sponsored by the Harvard Center for Middle Eastern Studies (CMES) [[External Link](#)]

For key dates of Iraq's history, please see BBC News Timeline [[External Link](#)]

The invasion of Kuwait and its consequences for Iraq, 1990-1992

- Iraq invaded Kuwait in August 1990
- Coalition of allied forces intervened in Kuwait in January 1991
- Following the cease-fire agreement, under UN SC Resolution 687, Iraq was supposed to destroy certain weapons and to accept international monitoring
- Northern no-fly zone declared by the U.S., France and Britain in April 1991 to provide safe haven for Kurds
- Southern no-fly zone imposed by U.S., British and French forces in August 1992 in an effort to protect Shi'ite Iraqis

USIP, 17 February 1999, "The Problem"

"With Saddam's invasion of Kuwait in August 1990, the perception that Saddam Hussein was a potential ally against an ideologically expansionist Iran – as well as a potential customer for American grain and other products – gave way to a new consensus. Under the revised thinking,

Saddam was seen as threat to stability in the Persian Gulf and to steady oil supplies from that region. [...]

When a coalition of allied forces rolled back the Iraqi invasion of Kuwait in January and February 1991, the UN-imposed cease fire agreement bound Iraq to declare fully to the Secretary-General of the United Nations the 'locations, amounts, and types' of biological and chemical weapons it possessed, as well as similar information regarding ballistic missiles with a range of more than 150 kilometers. Under the agreement, Iraq agreed to destroy such weapons under international supervision, and to accept ongoing international monitoring to ensure that such weapons programs were not revived in the future. Pursuant to that charge, the United Nations created a 'Special Commission,' or UNSCOM, to carry out on-site inspections of declared Iraqi facilities as well as any other sites UNSCOM designated.

The agreement, articulated in United Nations Security council Resolution 687, established similar conditions for whatever nuclear program Iraq might possess, to be monitored by the International Atomic Energy Agency. Only after Iraq completed its responsibilities to fully disclose its programs to develop weapons of mass destruction, destroy prohibited materiel under international supervision, and dismantle any programs to develop such weapons in the future, all to the Security Council's satisfaction, would the United Nations lift the sanctions it imposed in Iraq after its invasion of Kuwait in August 1990."

AFSC, 2000

"In April 1991, the United States, France, and Britain unilaterally declared a 19,000-square-mile area of northern Iraq a safe haven for Kurds and imposed a no-fly zone that prevented Iraqi aircraft from operating above the 36th parallel. U.S. and British warplanes still patrol the skies of northern Iraq, bombing frequently since December 1998. France withdrew from the mission in 1996. No United Nations Resolution supports or calls for a no-fly zone.

A southern no-fly zone was imposed by U.S., British and French forces in August 1992 in an efforts to protect Shi'ite Iraqis. President Saddam Hussein's forces had crushed a Shi'ite uprising soon after the end of the Gulf War in February 1991. In 1996, President Clinton extended the zone in response to Iraqi military intervention in northern Iraq in support of one Kurdish faction against another. The zone now covers the southern third of Iraq, reaching the 33rd parallel, and touches the outskirts of Baghdad."

Iraqi political opposition outside of Iraq remains rife with fracture, 2002

- INC has served as an umbrella group for the opposition movement
- INA is made up of Iraqi exiles and former leaders of the Sunni-dominated military
- Constitutional Monarchy Movement seeks to establish "democratic" monarchy
- KDP and PUK are Kurdish parties controlling the north of Iraq
- SCIRI is a Tehran-base Shi'a group

RFE/RL 16 Aug 02

"[H]istory shows that the Iraqi opposition is rife with fracture. The INC, headed by Chalabi, has served as an umbrella group for the opposition movement. Many U.S. officials, as well as Iraqi opposition leaders have become leery of the INC following rumors of mismanagement in recent years. In addition, Chalabi and Iyad Allawi of the INA have had a tense relationship over the years. The INA is made up of Iraqi exiles and former leaders of the Sunni-dominated military. The INA led the 1996 failed coup attempt against Saddam Husseyn and is thought to still have strong connections to the Iraqi military and Ba'th Party. Sharif Ali bin al-Husseyn's Constitutional Monarchy Movement seeks to re-establish democratic (and, it hopes, monarchial) rule in Iraq.

The PUK and KDP have longstanding rivalries, but have worked together in recent years. They formed a provisional parliament at the beginning of August in an attempt to normalize the situation in northern Iraq and prepare for regional elections. The two Kurdish groups combined have approximately 80,000 militiamen. SCIRI is a Tehran-based Shiite group. Its military wing, the Badr Corps, is made up of former Iraqi officers, soldiers, refugees, and defectors. The group claims to have 10,000 armed men inside Iraq."

For more information on the relations between the various ethnic and political groups which may shape the future of Iraq, please see International Crisis Group (ICG), Oct 02, Iraq Backgrounder: What Lies Beneath [Reference below]

Vulnerable ethnic groups and their relationship to the previous regime, 1998-2002

- Arab Shi'a Muslims constitute a 60-65% majority
- Sunni Muslims (Kurds, Arabs and Turkomans) make up 27-32% of the population
- Christians and Yazidis represent about 3%
- Part of the Shi'a, Kurdish, Christian, Turkoman, "Marsh Arab", Yazidi and "Bidoon" population has had conflicting relations with the Iraqi regime

US DOS, 5 September 2000, sect.I

"While a precise statistical breakdown is impossible because of likely inaccuracies in the latest census (taken in 1997), according to conservative estimates, 97 percent of the population of 22 million persons are Muslim. The (predominantly Arab) Shi'a Muslims constitute a 60 to 65 percent majority, while Sunni Muslims make up 32 to 37 percent (approximately 18 to 20 percent are Sunni Kurds, 12 to 15 percent are Sunni Arabs, and the rest are Sunni Turkomans). The remaining approximately 3 percent consist of Christians (Assyrians, Chaldeans, Roman Catholics, and Armenians), Yazidis, and a small number of Jews.

The Shi'a, though predominantly located in the south, also are present in large numbers in Baghdad and have communities in most parts of the country. Sunnis form the majority in the center of the country and in the north."

Cordesman, November 1998, p.4

"There is no way to know what portions of Iraq's population is loyal to the present regime or loyal to the concept of Iraq as a state – as distinguished from exhibiting primary loyalty to a religious or ethnic group. It is obvious, however, that many Iraqis resent the fact that the present authoritarian regime is controlled by a small group of extended Sunni families. It is obvious that the regime has had to deal with major Kurdish and Shi'ite uprisings, and faces a continuing problem with a separate Kurdish enclave.

It is equally obvious that Saddam's rule on policies designed to divide and paralyze Iraq's ethnic factions while using Iraqi military forces, overlapping and competing Iraqi intelligence and security services, the Ba'ath Party, and paramilitary forces to ensure that they remain under control."

The Shi'ites

US DOS, 5 September 2000

"Although Shi'a Arabs are the largest religious group, Sunni Arabs traditionally have dominated economic and political life. Sunni Arabs are at a distinct advantage in all areas of secular life. The Government also severely restricts or bans outright many Shi'a religious practices. The Government has for decades conducted a brutal campaign of murder, summary execution, arbitrary arrest, and protracted detention against the religious leaders and followers of the majority Shi'a Muslim population [...]."

Cordesman November 1998, p.5

However, "The vast majority of Iraq's Shi'ites remained loyal during the Iran-Iraq War, and probably think of themselves primarily as Iraqi and Arab, rather than as Shi'ites. They may want equality or proportionate political power as Iraqis, but it is far from clear that they have any interest in a separate political entity or any ties to Iran."

The Iraqi Kurds

Cordesman, November 1998, pp.5-6

"Saddam practiced near-genocide against the Kurdish tribes he felt support Iran during the Iran-Iraq War, and has been ruthless in putting down the Kurdish uprisings of 1991 and threatening the Kurdish security zone. Iraq, however, has a total of roughly 3.2 million to 4.3 million Kurds and it is far from clear that a majority of them would choose independence or autonomy [...] if Saddam was no longer in power or if any Iraqi regime made good on a long series of promises to give them more rights and a larger share of Iraq's oil wealth. [...]"

Most of Iraq's Kurds remained loyal to Iraq during the Iran-Iraq War, and only about half of Iraq's Kurds were involved at even the peak of the uprising in 1997. Iraqi Kurdish separatists represent a major force within Iraq, but they do not speak for the Kurds per se. The separatists are also deeply divided into rival factions that are never quite clear as to whether they are seeking rights and faire treatment, autonomy, or nation-hood. Iraqi Kurds also do not share any broad identify with Kurdish groups outside Iraq, and the Talabani faction seems to be the only separatist group that has shown serious past interest in creating a greater 'Kurdistan' that involves Turkish and/or Iranian Kurds."

Al-Qilaa Kurds

Fawcett & Tanner, Oct 02, p32

"This group areis the Kurdish people and their families that fought or supported the Iraqi government during the 1980s destruction of the Kurdish villages and the incarceration of the inhabitants in the collective towns. They left (it's not clear if they fled or were expelled) the North upon the establishment of the Kurdish rule in the North in 1991. To the main population of the Kurds, they are known as the Jash or the Donkeys. Originally from the Aqra area, they fled to the closest city under Baghdad's control, Mosul, where they still reside today. Many of them moved into unoccupied military compounds, (in Arabic al-Qilaa.) Despite having provided such valuable service to the Iraqi authorities in the 1980s, the al-Qilaa Kurds suffer from the same desperate conditions as other displaced in Iraq. They live in overcrowded makeshift accommodations, are discriminated against by official regulations, have little education or health care, and few prospects or hopes for the future. According to Iraqi Red Crescent sources, there are approximately 8,000 displaced families of the al-Qilaa Kurds in Mosul."

The Faili Kurds

Dammers, 1998, p.184

"Faili Kurds, most of whom are Shi'a, form a distinctive group of displaced people in Iraq, many of them twice displaced and now back in their country of origin. Unlike most Iraqi Kurds, until the early 1970s they lived mainly in central and southern Iraq, many of them in Baghdad. At that time, perhaps 130,000 Failis were deported to Iran by the government of Iraq on the pretext that they were not Iraqi citizens, though it fact it was because their loyalty was considered suspect. Most had lived in Iraq for generations, but in Ottoman times had not registered as citizens in order to avoid conscription. Since the 1970s, most of the Faili Kurds have lived in Iran. However, since 1981, some have returned to Kurdish-controlled northern Iraq, where they are not necessarily welcome."

Fawcett & Tanner, Oct 02, pp14-5

"Faili is an Arabic term, given to a group of Kurds from a region of the Zagros Mountains straddling the Iran-Iraq border. Due to the geography of their homeland, the Faili Kurds have family members on both sides of the border. Contrary to the majority of their Kurdish brethren, they are Shi'a. In the nineteenth and early twentieth century, many Faili Kurds began migrating westwards to Iraqi cities, primarily Baghdad, where they took on key commercial, social, and cultural roles. During the 1970s and 80s the regime in Baghdad expelled large numbers of Faili Kurds. In one instance, in the autumn of 1971, up to 40,000 Failis were expelled. In April 1980, shortly after Saddam Hussein seized full powers and just before his invasion of Iran, the 480 wealthiest Baghdadis were summoned to the Chamber of Commerce building. One third of them, found to be Faili Kurds, were swiftly arrested and deported to Iran, with their families following shortly after. Further deportations continued, and the numbers of Faili Kurd refugees estimated to have gone to Iran range from 100,000 up to 300,000. It is not clear how many Faili Kurds remain in Iraq, but according to one account, as of 1997, the expulsions continued."

The Yazidis

UNHCR, June 2000, p.16

"The Yazidis are a Kurmanji speaking group and are exclusively Kurdish. Yazidi beliefs incorporate aspects of several major religions in the region, including Zoroastrianism, Islam, Nestorian Christianity, Judaism and Manichaeism. There are figures of the Yazidi population in Iraq ranging from 30,000 to 120,000 and they live predominately in the Mosul region of Iraq."

US DOS, 25 February 2000, "Respect for civil liberties, c."

"The Constitution does not provide for a Yazidi identity. Many Yazidis consider themselves to be ethnically Kurdish, although some would define themselves as both religiously and ethnically distinct from Muslim Kurds. However, the Government, without any historical basis, has defined the Yazidis as Arabs. There is evidence that the Government has compelled this reidentification to encourage Yazidis to join in domestic military action against Iraqi Muslim Kurds. Captured government documents included in the 1998 Human Rights Watch report 'Bureaucracy of Repression: The Iraqi Government in its own words', describe special all-Yazidi military detachments formed during the 1988-89 Anfal campaign to 'pursue and attack' Muslim Kurds. However, the Government does not hesitate to impose the same repressive measures on Yazidis as on other groups. For example, 33 members of the Yazidi community of Mosul, arrested in July 1996, still are unaccounted for."

The 'Marsh Arabs'

Patrow 2001, pp15-16

"A crucible of civilization, the marshlands have been home to ancient human communities for more than five millennia. The area's inhabitants are commonly known as the Ma'dan or "Marsh Arabs", whose population is estimated to range from 350,000 to 500,000. [...]Ethnically, the population's composition has been heavily influenced by immigrations and intermarriages with the Persians to the east and Arab Bedouins to the west. The Marsh Arabs are Shi'ite Muslims, and their way of life is largely based on the traditions of the Arab Bedouin.[...]"

The Marsh Arabs have evolved a unique subsistence lifestyle that is firmly rooted in their aquatic environment. Most of the Ma'dan are semi-nomadic, but some of them are settled in villages. Their settlements are located on the edges of the marshes, or stand on artificial floating islands that are regularly reinforced with reeds and mud."

Out There News, 2000, "Marshes"

"For thousands of years the salt marshes of southern Iraq have been a unique micro-environment. [...] The marshes lie at the confluence of the Tigris and Euphrates rivers. [...] Successive Iraqi governments had already tampered with the marshes in the way that modern governments often do in developing countries, regarding the hunter-gatherer subsistence lifestyle of the tribes there as being primitive and unworthy of a modern state."

But it was with the start of the Iran-Iraq war in 1980 that wholesale disaster set in. By 1982, Iran had reversed Iraq's original conquest of Iranian lands and the front line surged back across the border into Iraq - including the marshlands. The marsh Arabs of the region were driven out as the Iraqi army sent massive electric charges through the marshes - thousands of invading Iranians were electrocuted like this as they advanced.

That war ended in 1988 but the devastation continued. After Saddam's second defeat in the Gulf War of 1991, rebels rose up against him in the south of the country. When they were defeated, many of them hid in the marshes. The government began to drain the marshes systematically in 1992. Three years later, they had almost finished, creating a desert where the marshland had been. Areas where the water was five foot deep are now bone dry with cracked mud. Less than 10,000 marsh Arabs remain, their traditional lifestyle literally drained away. Those who remain barely eke out a living."

The Assyrians and Chaldeans

Dammers 1998, p.181

"The Assyrian Christian minority of about 250,000 people also lives mainly in Iraqi Kurdistan and has been caught up in the conflict and displacement there, particularly in 1987/8 and 1991."

US DOS, 25 February 2000, Section 5

"Assyrians and Chaldeans are considered by many to be a distinct ethnic group as well as the descendants of some of the earliest Christian communities. These communities speak a distinct language (Syriac), preserve important traditions of Christianity in the east, and have a rich cultural and historical heritage that they trace back over 2,000 years. Although these groups do not define themselves as Arabs, the Government, without any historical basis, defines Assyrians and Chaldeans as such, evidently to encourage them to identify with the Sunni-Arab dominated regime."

The Turkomans

Library of Congress 2001, Chapter 2

"The Turkomans, who are believed to constitute somewhat less than 2 percent of the population, are village dwellers in the northeast living along the border between the Kurdish and Arab regions. A number of Turkomans live in the city of Irbil. The Turkomans, who speak a Turkish dialect, have preserved their language but are no longer tribally organized. Most are Sunnis who were brought in by the Ottomans to repel tribal raids. These early Turkomans were settled at the entrances of the valleys that gave access to the Kurdish areas. This historic pacification role has led to strained relations with the Kurds. By 1986 the Turkomans numbered somewhere around 222,000 and were being rapidly assimilated into the general population."

The taba`iyya iraniyya

Fawcett & Tanner, Oct 02, p15

"Some of the returnees from Iran, expelled just after Iraq's invasion of Iran, are a group of people known as taba`iyya iraniyya, or sometimes, just taba`iyya. According to the scholar Kanan Makiya, after the collapse of Ottoman rule, the inhabitants of the Iraqi mandate were requested by a census to state their 'belonging' (in Arabic *taba`iyya*) as either Ottoman – uthmaniyya – or Iranian – iraniyya. Many reportedly chose *iraniyya* as a means to escape military conscription. These two categories made it through to the modern state of Iraq, where they now show up on every Iraqi's citizenship document. In the late 1970s and early 1980s, the regime painted those carrying *taba`iyya iraniyya* as Iranian fifth columnists, and used the concept as a legal pretext to summarily deport thousands of families."

The 'Bidoon'

Dammers 1998, p.184

"Prior to the Gulf War, the 'Bidoon', most of whom are of Iraqi origin, were stateless residents of Kuwait. Their name is Arabic for 'without' – that is without nationality. They numbered about 250,000 and most had been born in Kuwait, or had lived there for a long time. Since the war around half of them have fled from or been expelled from Kuwait, mostly to Iraq. Though they are refugees, their statelessness, their displacement and their Iraqi connections mean that their status has much in common with that of other 'internally displaced' people. Detailed information on their situation in Iraq is, however unavailable."

Since the Gulf War two Kurdish parties have been controlling northern Iraq, 1991-2004

- In 1991 the cease-fire between Iraqi and Allied forces, which put an end to the Gulf War, was immediately followed by uprisings in the Kurdish north
- Since 1991 regions in the north and northeast of the country have been under the control of Kurdish parties
- The Iraqi government ended the internal economic blockade against northern Iraq in 1996
- The two major Kurdish parties of northern Iraq, KDP and PUK fought intermittently since the Gulf War until 1998 when they agreed to a Washington-brokered peace agreement
- Most of the measures described in the 1998 peace agreement were still not implemented in 2000
- Kurdistan Regional Government (KRG) is recognised by the Law of Administration for the Transitional Period in 2004
- Regions administered by KRG now defined as those governed by the autonomous Kurdistan authorities since late 1991
- Kurdistan regional government will continue to administer as it has done, throughout the transitional period, except in regards to federal law

Dammers, 1998, p.182

"The cease-fire between Iraqi and Allied forces [following the Gulf War] was immediately followed by uprisings in the Kurdish north and Shi'a south of Iraq. Kurdish guerrillas briefly occupied the whole of Iraqi Kurdistan, but the reoccupation of most of the region by Iraqi government troops led to as many as two million people fleeing to Iran, Turkey, and those areas still under Kurdish control. These areas soon included the 'safe haven', initially patrolled by Allied troops, comprising those parts of Iraqi Kurdistan adjacent to the Turkish border. Most of the cross-border refugees later returned to areas under Kurdish (and/or Allied) political control, which expanded greatly following the substantial withdrawal of Iraqi troops in October and November 1991."

UN SC, 5 April 1991

In April 1991, the UN SC Resolution 688 said that the UN SC:

- " 1. Condemns the repression of the Iraqi civilian population in many parts of Iraq, including most recently in Kurdish populated areas, the consequences of which threaten international peace and security in the region;
2. Demands that Iraq, as a contribution to remove the threat to international peace and security in the region, immediately end this repression and express the hope in the same context that an open dialogue will take place to ensure that the human and political rights of all Iraqi citizens are respected;
5. Requests further the Secretary-General to use all the resources at his disposal, including those of the relevant United Nations agencies, to address urgently the critical needs of the refugees and displaced Iraqi population."

USCR, 1997, pp.151-152

"The safe haven zone in northern Iraq, created and maintained by the United States, Britain, and France since 1991 through Operation Provide Comfort, showed signs of collapse throughout the year [1996]. As the two sides fought, the governments of Turkey, Iran, and Iraq each appeared ready and willing to intervene overtly or covertly in an attempt to take advantage of the situation. [...]

On August 31 [1996], [Iraqi] government forces entered the city of Erbil, located within the Kurdish safe haven zone, after being invited in by the KDP, which hoped that an alliance with the government would tip the balance of power in the north against the PUK. After surrounding Erbil with tanks, Iraqi troops and government agents entered the town, searching house to house for suspected opponents of President Saddam Hussein, killing some immediately, arresting others and taking them back to Baghdad. Iraqi troops reportedly looted and vandalized the areas they entered, completely looting 500 schools, according to UNICEF, and ransacking hospitals and municipal buildings. [...]

The penetration of the safe zone by Iraqi troops and fighting between the Kurdish factions created widespread hardship and displacement. [...] Ironically, in some respects the collapse of the safe zone had its benefits for many of the other residents of the north. In addition to international sanctions, northern Iraq had been subjected to an internal blockade from Baghdad. Starting in September [1996], that blockade was eased, and Kurds from the north were able to engage in trade with government-controlled Iraq."

US DOS, 25 February 2000, Section 3

"In northern Iraq, all central government functions have been performed by local administrators, mainly Kurds, since the Government withdrew its military forces and civilian administrative personnel from the area after the 1991 uprising. A regional parliament and local government administrators were elected in 1992. This parliament last met in May 1995. The two major Kurdish parties in de facto control of northern Iraq, the KDP and the PUK, battled one another from 1994 through 1997. In September 1998, they agreed to unify their separate administrations and to hold new elections in July. The cease-fire held throughout the year; however, reunification measures were not implemented and no election was held."

Fawcett & Victor, Oct 02, p7

"The areas of the North under the control of the Kurdistan Regional Government (KRG) are the governorates of Dohuk, Erbil, Suleimanyah and a part of the governorate of Kirkuk. As mentioned earlier, the KRG is an uneasy alliance of the two main Iraqi Kurdish parties. Mas'oud Barzani's KDP administers the northwestern half and the Turkish border, while Jalal Talabani's PUK controls the southeastern half and most of the Iranian border."

HRW December 2000, "Human Rights Developments"

"Despite mediation efforts by U.S. government officials, little progress was made towards the implementation of the provisions of the 1998 Washington Accord. Both sides [KDP and PUK] pledged to normalize relations but continued to maintain separate administrative, legislative and executive structures in areas under their control. On October 22, senior officials from the two parties agreed on a series of measures, including prisoner exchanges, the gradual return of internally displaced people to their homes, and arrangements for the organization of free movement of people and trade between their respective areas. Most of these measures were not implemented."

Iraq Coalition, 8 March, 2004

"Article 53.

(A) The Kurdistan Regional Government is recognized as the official government of the territories that were administered by that government on 19 March 2003 in the governorates of

Dohuk, Arbil, Sulaimaniya, Kirkuk, Diyala and Neneveh. The term "Kurdistan Regional Government" shall refer to the Kurdistan National Assembly, the Kurdistan Council of Ministers, and the regional judicial authority in the Kurdistan region.

(B) The boundaries of the eighteen governorates shall remain without change during the transitional period.

(C) Any group of no more than three governorates outside the Kurdistan region, with the exception of Baghdad and Kirkuk, shall have the right to form regions from amongst themselves. The mechanisms for forming such regions may be proposed by the Iraqi Interim Government, and shall be presented and considered by the elected National Assembly for enactment into law. In addition to being approved by the National Assembly, any legislation proposing the formation of a particular region must be approved in a referendum of the people of the relevant governorates.

(D) This Law shall guarantee the administrative, cultural, and political rights of the Turcomans, ChaldoAssyrians, and all other citizens.

Article 54.

(A) The Kurdistan Regional Government shall continue to perform its current functions throughout the transitional period, except with regard to those issues which fall within the exclusive competence of the federal government as specified in this Law. Financing for these functions shall come from the federal government, consistent with current practice and in accordance with Article 25(E) of this Law. The Kurdistan Regional Government shall retain regional control over police forces and internal security, and it will have the right to impose taxes and fees within the Kurdistan region.

(B) With regard to the application of federal laws in the Kurdistan region, the Kurdistan National Assembly shall be permitted to amend the application of any such law within the Kurdistan region, but only to the extent that this relates to matters that are not within the provisions of Articles 25 and 43(D) of this Law and that fall within the exclusive competence of the federal government."

Aljazeera, 10 January 2004

"Iraq's interim Governing Council has agreed to a federal structure for the country and to enshrine Kurdish self-rule in three northern provinces. The US-appointed body will incorporate the pledges into 'a fundamental law' that will precede national elections in late 2005, council member Judge Dara Nur al-Din said on Friday.

The fate of three more provinces over which the Kurds have claims would be decided later, he added. Nur al-Din, a Kurdish independent who is helping to draft the country's law, said lawmakers had already decided on basic principles for Kurdish self-rule.

'In the 'fundamental law', Kurdistan will have the same legal status as it has now,' he said, referring to the region that has enjoyed virtual autonomy since the end of the 1991 Gulf War."

Iraqi security forces increase pressure on Marsh Arabs in Southern Iraq, 1999-2002

- Marsh Arabs displaced because of plans to eliminate a population outside of central governmental control; increase oil production; and the destruction of a habitat that provides a haven for an armed opposition
- Shi'a revolt against the Iraqi regime erupted following Iraq's defeat in Kuwait

- In 1994, the Iraqi government intensified a pacification campaign it had been directing toward the marsh population since 1989
- Diversion of water from the marshes allowed government forces to penetrate into formerly inaccessible areas
- Iraqi armed forces conducted deliberate artillery attacks against Shi'a civilians and large-scale burning operations in the southern marshes in 1999
- Iraqi security forces reportedly attacked villages in the marshes of Southern Iraq in 2001

Fawcett & Tanner, Oct 02, p32

"The motives behind the Iraqi regime's brutally callous campaign against the Marsh Arabs include the following: the desire to eliminate a population outside of central governmental control; an interest in producing some great engineering feat that is the equivalent of the monumental statues and palaces built to honor Saddam; the aim to generate economic development and increase oil production; and most importantly, the destruction of a habitat that provides a haven for an armed opposition. All these motives, of course, have one underlying objective: to maintain the current regime in power. The regime also guessed correctly that no one would stop it. In 1992, then Parliamentary Speaker Saadi Mehdi Saleh justified the action against the Marsh Arabs: "America wiped the Red Indians off the face of the earth and nobody raised an eyebrow."

Fawcett & Tanner, Oct 02, p30

"By 1985, visible signs of the draining of the marshes were noted in the area of Qurna, close to the confluence of the Tigris and Euphrates, where newly discovered oil fields were ripe for exploitation. In the early 1990s the Iraqi government began an all-out push to finish off the marsh-draining project and, as a consequence, to finish off the Marsh Arabs.

Several events seem to have precipitated the Iraqi government's decision to take these measures at that time. The Iraqis had just come out of two wars, the last of which had left the regime of Saddam Hussein barely holding onto power. One of the clearest threats to his survival were the Shi'a of southern Iraq, who rose against him in the immediate aftermath of the Gulf War. Baghdad, resorting to full military force (including the use of helicopters permitted under the US-dictated cease-fire conditions) and extraordinary brutality, succeeded in quashing the rebellion. But the marshes, inaccessible to Iraqi armor, became a haven for the remaining rebels on the run. Also during the uprising, some groups had attacked the incipient oil field infrastructure in the West Qurna oil field, attacks which Baghdad blamed on the Marsh Arabs. Finally, during the early 1990s, very few personnel from international organizations or companies were present to witness the marsh destruction, due to the war-time evacuation and the imposition of sanctions. This not only allowed the regime to avoid being seen but also allowed it to requisition, without opposition and by Presidential decree, foreign company resources, such as bulldozers and other earth-moving equipment, termed 'idle assets,' to accomplish the task. Massive canals, up to a hundred meters wide and hundreds of kilometers long, were dug, using virtual slave labor and the aforementioned foreign-owned machinery."

USCR, 1995, p.116

"Tensions between the secular, Sunni regime of Saddam Hussein and the Shi'ite populace of southern Iraq erupted into civil war in early 1991, when the Shi'ite revolted in the wake of the Iraqi defeat in Kuwait. The revolt was quickly crushed, with heavy casualties, and many displaced Shi'ites and deserters from the Iraqi army fled into the extensive marshlands between the Tigris and Euphrates river.

The Iraqi government had long viewed the inhabitants of this region, the Marsh Arabs, or Maadan, with hostility. In 1994, the Iraqi government intensified a pacification campaign that it had been directing toward the marsh population since 1989, diverting water from the marshes

and depriving the Shi'ites of food and cover. This allowed government forces to penetrate into formerly inaccessible areas."

Out There News 2000, "Marshes"

"Throughout the marsh areas, dykes as high as six meters have been built to cut off flood waters from replenishing the old marshlands. Between the ancient Tigris and the Euphrates, a manmade river - the Saddam river - now carries the flood waters down to the Gulf. Marsh Arabs used to live by tending buffalo, fishing and hunting in the marshes. With no reeds, there is nothing to feed the water buffalo. There are hardly any fish left in the rivers either. The government claims to be giving land to the Marsh Arabs to cultivate. There is some farming close to the Euphrates and Tigris but many of those farmers are not Marsh Arabs but have come from the towns. The government also seems intent on preventing any rebels entering from Iraq across the water, as they have traditionally been able to do."

UNEP, May 2001

According to a UNEP study carried out in 2001, "[...] about 90% of the marshlands had disappeared by May 2000, with devastating impacts on wildlife and unique human communities that have lived there for millennia."

AI, 24 November 1999, "Introduction"

"Since the beginning of this year [1999] there have been many clashes between the security forces and armed Islamist opposition groups in the pre-dominantly Shi'a Muslim Southern Iraq, especially in Basra, which have reportedly left dozens dead on both sides and have been followed by arbitrary mass arrests and summary executions. It was not until May that the government acknowledged that unrest had broken out in Basra in mid-March. It accused Iran of instigating the troubles since one of the biggest opposition groups is based in Iran. The unrest was sparked off by the killing in suspicious circumstances of Ayatollah Mohammad Sadeq al-Sadr, a prominent Shi'a cleric, in February 1999."

US DOS, 25 February 2000, "Respect for human rights, g."

"As in previous years, the armed forces conducted deliberate artillery attacks against Shi'a civilians and large-scale burning operations in the southern marshes [in 1999]. In 1991 and 1992, the Gulf War allies imposed 'no-fly zones' over northern and southern Iraq respectively. The no-fly zones continued to deter aerial attacks against the marsh dwellers in southern Iraq and the residents of northern Iraq, limiting the Government to ground-based assaults."

CHR, 16 January 2001, para. 37

"The Special Rapporteur received information that armed raids are still being carried out by the Iraqi security forces against villages in the south of Iraq. Reportedly some of these raids, which are aimed at the capture of armed guerrillas and army deserters, have resulted in loss of life, damage to property and searches and arrests without warrant."

INC, 20 May 2001

"Iraqi security forces attacked villages in the marshes of southern Iraq on 15 May resulting in many casualties, according to reports received by the INC [Iraqi National Congress]"

Fawcett & Tanner, Oct 02, p31

"To accelerate the process, the military and special police made raids on marsh settlements, ostensibly in pursuit of rebels, criminals and deserters. Iraqi security forces used napalm and other chemical weapons, shelled and burned villages, assassinated local leaders and other prominent community members, and abducted heads of families. Other tactics employed by Iraqi authorities included the deliberate contamination of water supplies, the poisoning of the fishing grounds, commercial blockades, the denial of aid and the refusal of access to aid agencies."

The tactics of earthworks, drainage, and military action worked hand in hand. As one area was drained, new embankments would be built, giving the authorities vantage points to begin actions against the next set of settlements.

By 1999 the drainage of the marshes was largely complete. The only remaining marsh of any size was the al-Hawizeh marsh that straddles the Iraq-Iran border. This marsh is at least partly intact, as the Iraqis do not control all the sources of water, (it also provides a measure of security from a neighbor they do not entirelywater. According to the Iranians, the Iraqi side of the marsh is now under assault. In September 2002 it was alleged that the Iraqis were burning the reeds in a possible attempt to prepare a military assault on the villages."

Difficult relations between the Iraqi regime and the UN following the Gulf War, 1991-2003

- In Oct 98, Iraq ends all forms of cooperation with the UN Special Commission to Oversee the Destruction of Iraq's Weapons of Mass Destruction (UNSCOM)
- In Nov 02, UN weapons inspectors return to Iraq for the first time since 1998, backed by a tough UN Security Council resolution, which is reluctantly accepted by Baghdad. The resolution threatens serious consequences if Iraq is in "material breach" of its terms

BBC, January 02

"Ceasefire

1991 3 March - Iraq accepts the terms of a ceasefire.

1991 Mid-March/early April - Iraqi forces suppress rebellions in the south and the north of the country.

1991 8 April - A plan for the establishment of a UN safe-haven in northern Iraq, north of latitude 36 degrees north, for the protection of the Kurds, is approved at a European Union meeting in Luxembourg. On 10 April, the USA orders Iraq to end all military activity in this area.

1992 26 August - A no-fly zone, excluding flights of Iraqi planes, is established in southern Iraq, south of latitude 32 degrees north.

1993 27 June - US forces launch a cruise missile attack on Iraqi intelligence headquarters in Al-Mansur district, Baghdad in retaliation for the attempted assassination of US President, George Bush, in Kuwait in April.

1994 29 May - Saddam Hussein becomes prime minister.

1994 10 November - The Iraqi National Assembly recognizes Kuwait's borders and its independence.

Oil-for-food

1995 14 April - UNSC Resolution 986 allows the partial resumption of Iraq's oil exports to buy food and medicine (the "oil-for-food programme"). It is not accepted by Iraq until May 1996 and is not implemented until December 1996. [...]

1995 15 October - Saddam Hussein wins a referendum allowing him to remain president for another 7 years. [...]

1996 31 August - In response to a call for aid from the KDP, Iraqi forces launch an offensive into the northern no-fly zone and capture of Arbil.

1996 3 September - The US extends the northern limit of the southern no-fly zone to latitude 33 degrees north, just south of Baghdad.

1996 12 December - Saddam Hussein's elder son, Uday, is seriously wounded in an assassination attempt in Baghdad's Al-Mansur district.

1998 31 October - Iraq ends all forms of cooperation with the UN Special Commission to Oversee the Destruction of Iraq's Weapons of Mass Destruction (Unscm). [...]

Operation Desert Fox

1998 16-19 December - After UN staff are evacuated from Baghdad, the USA and UK launch a bombing campaign, "Operation Desert Fox", to destroy Iraq's nuclear, chemical and biological weapons programmes.

1999 4 January - Iraq asks the UN to replace its US and UK staff in Iraq.

1999 19 February - Grand Ayatollah Sayyid Muhammad Sadiq al-Sadr, spiritual leader of the Shi'i sect, is assassinated in Najaf.

1999 17 December - UNSC Resolution 1284 creates the UN Monitoring, Verification and Inspection Commission (Unmovic) to replace Unscm. Iraq rejects the resolution.

2000 1 March - Hans Blix becomes executive chairman of Unmovic.

2000 August - Reopening of Baghdad airport, followed by a stream of international flights organised by countries and organisations to campaign against sanctions. The flights are labelled humanitarian missions to comply with UN sanctions.

2000 October - Iraq resumes domestic passenger flights, the first since the 1991 Gulf War. Commercial air links re-established with Russia, Ireland and Middle East.

2001 - Free-trade zone agreements set up with neighbouring countries. Rail link with Turkey re-opened in May for first time since 1981.

2001 February - Britain, US carry out bombing raids to try to disable Iraq's air defence network. The bombings have little international support.

2001 May - Saddam's son Qusay elected to the leadership of the ruling Ba'th Party, fuelling speculation that he's being groomed to succeed his father.

2002 April - Baghdad suspends oil exports to protest against Israeli incursions into Palestinian territories. Despite calls by Saddam Hussein, no other Arab countries follow suit. Exports resume after 30 days.

2002 May - UN Security Council agrees to overhaul the sanctions regime, replacing a blanket ban on a range of goods with "smart" sanctions targeted at military and dual-use equipment.

Weapons inspectors return

2002 September - US President George Bush tells sceptical world leaders gathered at a UN General Assembly session to confront the "grave and gathering danger" of Iraq - or stand aside as the United States acts. In the same month British Prime Minister Tony Blair publishes a dossier on Iraq's military capability.

2002 November - UN weapons inspectors return to Iraq for the first time since 1998, backed by a tough UN Security Council resolution which is reluctantly accepted by Baghdad. The resolution threatens serious consequences if Iraq is in "material breach" of its terms."

UN SC, 8 Nov 2002

"Holding Iraq in "material breach" of its obligations under previous resolutions, the Security Council this morning decided to afford it a "final opportunity to comply" with its disarmament obligations, while setting up an enhanced inspection regime for full and verified completion of the disarmament process established by resolution 687 (1991).

By the unanimous adoption of resolution 1441 (2002), the Council instructed the resumed inspections to begin within 45 days, and also decided it would convene immediately upon the receipt of any reports from inspection authorities that Iraq was interfering with their activities. It recalled, in that context, that the Council had repeatedly warned Iraq that it would face "serious consequences" as a result of continued violations."

2003 January - Chief weapons inspector Dr Hans Blix delivers a harsh report to the UN Security Council, accusing Baghdad of failing to come to a "genuine acceptance" of disarmament." (BBC News 28 Jan 2003)

2003 March – the Executive Chairman of UNMOVIC reports that Iraq has accelerated its cooperation but says inspectors need more time to verify Iraqi compliance.

2003 17 March – following the failure of intensive deliberations among Security Council members on possible next steps to ensure Iraqi compliance, the UK's ambassador to the UN says the

diplomatic process on Iraq has ended; UN Secretary General orders the evacuation of arms inspectors from Iraq; President Bush gives Saddam Hussein 48 hours to leave Iraq or face war.
2003 19 March – UN Secretary General addresses UNSC, expressing regret and disappointment at the imminence of war.

The US-led military campaign in Iraq (2003 -)

UN SC, 22 May 2003

"**2003** 20 March – missiles hit targets in Baghdad, marking the start of a US-led campaign to topple the Iraqi regime. In the following days US and British ground troops enter Iraq from the south and numerous targets are struck in Baghdad and other key cities.

2003 24 March – UN Secretary General calls for "urgent measures" to restore electricity and water in Basra.

2003 25 March – coalition forces cross the Euphrates at Nasiriya.

2003 28 March – UNSC adopts resolution 1472 adjusting the oil-for-food programme, authorizing the Secretary General to use limited OFFP funds for the UN Humanitarian Flash Appeal launched the same day.

2003 1 April – coalition forces are within 45 km of Baghdad.

2003 4 April – power is cut to most of Baghdad.

2003 6 April – coalition forces enter Basra, taking control the next day.

2003 7 April – coalition forces take control of key sites in Baghdad.

2003 9 April – coalition forces sweep into central Baghdad. Widespread looting breaks out.

2003 11 April – coalition forces move to secure Kirkuk oil field.

2003 14 April – the Pentagon says that all major combat operations are probably at an end, following the fall of Tikrit, Saddam Hussein's home town.

2003 22 May - the Security Council decided to: lift trade and financial sanctions on Iraq; extend the "oil-for-food" programme for six months; revisit the mandates of the United Nations Monitoring, Verification and Inspection Commission (UNMOVIC) and the International Atomic Energy Agency (IAEA) at a later date; request appointment of a Special Representative of the Secretary-General; and review implementation of those and other matters within 12 months. Adopting resolution 1483 (2003), by a vote of 14 in favour, with Syria not participating in the voting, and acting under Chapter VII of the United Nations Charter, the Council supported the formation by the people of Iraq with the help of the Authority (the occupying Powers under unified command) and the Special Representative, of an Iraqi interim administration as a transitional administration run by Iraqis, until an internationally recognized, representative government established by the people of Iraq assumes the responsibilities of the Authority"

US-led Coalition Forces handover sovereignty to Interim Iraqi Government (2004 political developments)

- Iraq was occupied by the US led Coalition forces and governed by the Iraqi Governing Council (IGC), a body appointed by the Coalition Provisional Authority
- An interim constitution was agreed to on 8 March by the IGC
- On 1 June 2004, the IGC was dissolved and an interim government was appointed
- The UN Security Council adopts Resolution 1546, which declared that Iraq's occupation would end on 30 June and called for National Assembly elections by 31 January 2005 (8 June 2004)

- On 28 June, 2004 the Iraqi interim government replaces the CPA, formally ending the occupation of Iraq, but the US-led multinational force (around 150,000 troops) continued to exercise control over security-related matters
- Iraq's new ministers of justice and human rights announced emergency security laws on 7 July to help restore safety to the country

AI, 25 May 2005

"At the start of 2004 Iraq was occupied by US-led Coalition forces and governed by the Iraqi Governing Council (IGC), which had been appointed in 2003 by the Coalition Provisional Authority (CPA) headed by Paul Bremer.

On 8 March the IGC agreed an interim constitution. Among its main provisions were that the three Kurdish provinces in the north would remain autonomous, freedom of speech and religious expression would be guaranteed, elections to a National Assembly, mandated to draft a constitution, would be held by January 2005, and at least a quarter of the National Assembly should be women. Many Shi'a clerics, especially Grand Ayatollah Ali al-Sistani, expressed reservations about the interim constitution, in particular provisions allowing for US-led multinational forces to remain in Iraq after the formal end of occupation, the right of three provinces to veto a referendum on a permanent constitution and a three-quarter majority requirement to amend the constitution.

On 1 June the IGC was dissolved and an interim government was announced. Iyad 'Allawi, a Shi'a Muslim, was appointed Prime Minister. Shaikh Ghazi al-Yawar, a Sunni Muslim, was appointed President, a largely ceremonial position.

On 8 June the UN Security Council adopted Resolution 1546, which declared that Iraq's occupation would end on 30 June and called for National Assembly elections by 31 January 2005. The resolution gave the UN a greater role in helping the Iraqis in the political and human rights fields during the transitional period, including the convening of a national conference, held in August, to select a consultative council to advise the interim government, with the power to veto its orders. Resolution 1546 stated that the US-led multinational force would remain in Iraq until the end of 2005 (unless asked to leave earlier by the Iraqi government) with the authority to 'take all necessary measures to contribute to the maintenance of security and stability in Iraq'.

On 28 June, the Iraqi interim government replaced the CPA, formally ending the occupation of Iraq. However, the US-led multinational force of around 150,000 troops continued to exercise control over security-related matters."

UNSC, 8 June 2004

"The members of the Security Council welcome the handover of full responsibility and authority for governing Iraq to the fully sovereign and independent Interim Government of Iraq, thus ending the occupation of the country. The members of the Council reaffirm the independence, sovereignty, unity and territorial integrity of Iraq.

The members of the Security Council reiterate fully resolution 1546 (2004), including the proposed timetable for the political transition, the possibility of an international meeting, and the leading role of the United Nations to assist the Interim Government of Iraq in implementing the political process leading, inter alia, to elections no later than 31 January 2005. The members of the Council call on all Iraqis to implement these arrangements peaceably and in full.

The members of the Security Council reiterate their call to all States and relevant international and regional organizations to support the Interim Government of Iraq in the implementation of this process, and in its efforts to bring economic reconstruction, peace, unity and stability to Iraq."

See the "[Law of Administration for the State of Iraq for the Transitional Period](#)", 8 March 2004 that came into effect in 30 June 2004 and was in effect until the formation of an elected Iraqi government, no later than 31 December 2005

IRIN, 4 January 2005

"IRAQ: Team to gauge possibility of elections, security permitting

The United Nations Secretary-General, Kofi Annan, said on 27 January that the UN would send a team to Iraq to explore the possibility of elections before the transfer of sovereignty as long as the Coalition Provisional Authority (CPA) provided adequate security arrangements. His decision was in response to a request, on 19 January, from both the CPA and the Iraqi Governing Council (IGC) for a UN team to travel to the country to establish whether elections for a transitional national assembly could be held before 30 June, and if not, what alternative arrangement would be acceptable.

IRAQ: UN Secretary-General says elections before 30 June not feasible

United Nations Secretary-General Kofi Annan said on 19 February that elections could not be organised in Iraq before the 30 June deadline for a transfer of sovereignty, a date he said should be 'respected'. The announcement came after a mission to Iraq, led by Special Adviser Lakhdar Brahimi. The UN team concluded that preparations for elections would take a minimum of eight months, to align all the necessary political and technical conditions, including the creation of an independent electoral commission. Annan recommended that a caretaker government should be established between the handover of power from the Coalition Provisional Authority (CPA) and an election.

IRAQ: Interim Iraqi constitution signed

An interim constitution was signed by Iraq's US-appointed Governing Council (IGC) on 8 March, to be implemented when sovereignty is handed over to Iraqis on 30 June and to help pave the way to elections. Under the US plan, an unelected Iraqi government will take over sovereignty on 30 June. An assembly will be elected by the end of January next year and full democratic elections will be held by the end of 2005.

IRAQ: UN envoy lays out plans for future election

Lakhdar Brahimi on 14 April laid out a new plan for an interim government in Iraq as the volatile security situation continued to restrict movement around the country. A 'caretaker' government, to be formed in May, should be led by a prime minister, a president and two vice-presidents, Brahimi said. A 'consultative assembly' should be elected in July to serve alongside the caretaker government.

IRAQ: New interim government sworn in

On 1 June a new interim government was appointed with Sunni Muslim Sheikh Ghazi al-Yawar as president, Iyad Allawi, a Shi'ite Muslim, as prime minister; two deputy presidents and 26 ministers. Lakhdar Brahimi immediately called for Iraqis to appoint a national assembly in July and prepare for elections in January.

IRAQ: UN Security Council approves revised Iraq resolution

On 8 June, the UN Security Council voted unanimously to adopt a revised US and UK-backed resolution, paving the way for Iraqis to assume 'full responsibility and authority'. Kofi Annan welcomed the vote, describing it as a 'genuine expression of the will of the international community'. He pledged the UN would play its part in the next phase of the country's transition from war and occupation.

IRAQ: Violence spreads in run-up to 30 June handover

The week of 21 June saw a wave of violence across Iraqi cities, killing at least 100 people in the run-up to the handover of sovereignty to Iraqis on 30 June. The worst attack was in the northern

city of Mosul, where at least 62 people died and 220 were hurt in a series of car bombings. Other cities targeted included Ramadi and Fallujah west of Baghdad and Baquba northeast of Baghdad along with the capital itself. Iraq's interim prime minister, Iyad Allawi vowed to crush the insurgents responsible for the attacks. The handover of sovereignty came early as Iraq became a sovereign state on 28 June after the scheduled 30 June handover of power took place two days early for security reasons. The handover was initially announced by the Iraqi Foreign Minister Hoshiyar Zebari, speaking after talks with UK Prime Minister Tony Blair at a NATO summit in Istanbul on 28 June.

IRAQ: Emergency security laws announced

Iraq's new ministers of justice and human rights announced emergency security laws on 7 July to help restore safety to the country. An unspecified curfew period, transport controls, restrictions on the assets of suspected terrorists and on licences for weapons are necessary to create peace in the country, Human Rights Minister Baktiar Amin said. Emergency measures approved by Iraq's new interim government would still respect the rights of citizens, he added. With increasing violence in parts of the country, the law was welcomed. Two US-based think tanks estimate that as of 16 June, more than 11,000 Iraqi civilians have been killed by Coalition forces and militant attacks during and since the March 2003 war.

IRAQ: Massive efforts needed on reconstruction

With the passing of the 100th day since Iraq's interim government came to power, officials acknowledged the scale of the task of reconstructing the country but say that some progress is being made. Iraqi Prime Minister Iyad Allawi told the national assembly in Baghdad on 12 October that Coalition forces would remain in Iraq, offering security until the country's own forces were fully trained. He confirmed that elections would be held as scheduled in January 2005, despite the continuing insurgency.

IRAQ: Elections preparations move ahead

Iraq's election preparations continued in early December despite ongoing attacks by insurgents, with an escalation in violence on the 4-5 December killing at least 68 Iraqis. On 6 December interim President Ghazi al-Yawar reaffirmed his support for the planned 30 January election date. Speaking ahead of talks with US President George Bush, Yawar said any delay would prolong Iraqis' agony and increase resentment inside the country. On 8 December, UN spokesman Fred Eckhard said that more than 5,000 candidates had already registered for the elections from 241 parties."

Overview January 30 elections (2005)

- Under the Transitional Administrative Law several elections had to be held simultaneously: the election of 275 representatives to the Transitional National Assembly, 18 governorate councils and the Kurdistan Assembly, by no later than 31 January 2005
- The elections were organized and conducted by Iraqis under the oversight of the Independent Electoral Commission of Iraq
- The Commission was supported by an international electoral assistance team of 43 United Nations experts — 22 in Baghdad, 16 in Amman and 5 at UN Headquarters who provided technical, logistical, financial and administrative assistance
- The Commission accredited 33,141 national observers, 622 international observers and 61,725 agents of political parties and entities to observe the electoral process
- The Commission undertook some special measures due to the security situation including allowing voters from several locations where military operations were conducted, or where security conditions were deemed problematic, to cast their votes in the national election at any polling station in the country

- Also, voters from the Ninewa and Anbar governorates were able to register and vote at any polling station in the country.
- Security measures included the closure of borders and a ban on vehicle movements
- Of the planned 5,243 polling centres, 5,199 were able to open and operate on polling day
- Voter turnout of voters to be 8,550,571, of whom 263,685 voted from abroad of which 94,305 (1.1 per cent of the total) were determined to be invalid
- An open process of complaints and resolutions was formulated and implemented by the Commission
- There were 111 competing political entities and coalitions
- 275 representatives were elected to the National Assembly from a total of 7,785 candidates
- The electoral system resulted in over 31 per cent of seats being awarded to female candidates

UNSG, 7 March, pp. 4-6

“The Transitional Administrative Law required 20 elections to be held simultaneously, for the Transitional National Assembly, 18 governorate councils and the Kurdistan Assembly, by no later than 31 January 2005. The period of December 2004 and January 2005 was therefore critical for making final preparations. The elections were organized and conducted by Iraqis under the oversight of the Independent Electoral Commission of Iraq. In implementing its mandate, the Commission oversaw and directed the work of 1,000 Iraqi core staff and over 20,000 Iraqi temporary electoral workers. The Commission was able to complete all the necessary technical preparations for credible and genuine elections against the background of a fragile political environment and continuing concerns about the security situation.

In fulfilling its task, the Commission was supported by an international electoral assistance team led by the United Nations, which, in addition to 43 United Nations experts — 22 in Baghdad, 16 in Amman and 5 at United Nations Headquarters — included three experts from the European Union, two from the United Kingdom of Great Britain and Northern Ireland, one from Chile, and nine from the International Foundation for Election Systems. The international team provided technical, logistical, financial and administrative assistance to the Independent Electoral Commission throughout the electoral process.

Throughout its work, the Independent Electoral Commission’s guiding principles were transparency and inclusiveness. The Commission accredited more than 2,000 media personnel throughout the country, half of whom were Iraqi, the remainder being international and Arabic media representatives. The Commission also established a media centre in the Iraqi National Convention Centre located within the international zone. The media centre operated from 25 January to 6 February. In addition, the Commission accredited 33,141 national observers, 622 international observers and 61,725 agents of political parties and entities to observe the electoral process. The United Nations actively encouraged the development of election observer groups and established a dedicated project for this purpose.

The uncertain political environment and security conditions necessitated a range of contingencies and special measures. Within the limits of its mandate, the Independent Electoral Commission implemented several special measures to enhance inclusiveness and participation. Voters from several locations where military operations were conducted, or where security conditions were deemed problematic, were able to cast their votes in the national election at any polling station in the country. Also, voters from the Ninewa and Anbar governorates were able to register and vote at any polling station in the country. A final special measure was implemented in the course of polling day, which permitted selected polling centres to remain open longer, if the Commission determined that access had been obstructed or the period of operation affected.

The Independent Electoral Commission worked extensively with national and international security forces. This cooperation allowed for the establishment of a close network and the coordination of resources, which provided a viable security framework for the elections. The security plan put in place, including the closure of borders and a ban on vehicle movements, created a security environment that permitted electoral staff to carry out their work before, during and following election day. Of the planned 5,243 polling centres, 5,199 were able to open and operate on polling day. Available statistical data do not provide conclusive evidence on the impact of security concerns on voter turnout, especially in the light of some political calls for boycotts.

As planned, counting took place immediately after the close of the polls, with the exception of a few centres where security required counting to be undertaken at the governorate level. In the weeks prior to polling day, the Independent Electoral Commission set up a tally centre, assisted by a team of international advisers. Its setting up included the physical arrangement of the centre, hiring of staff, arrangements made with the multinational force for living quarters, work-flow strategies, security management, storage and retrieval of forms, database development and quality-control measures. This process was prepared and conducted in a manner that was transparent and open to observers and the media.

The Independent Electoral Commission provisionally reported the turnout of voters to be 8,550,571, of whom 263,685 voted from abroad. Of all these votes cast, only 94,305 (1.1 per cent of the total) were determined to be invalid. There was a continuous flow of agents and observers, who monitored the tally centre. Observers and agents were also present during the recount process, which included opening and counting a mixed sample of ballot boxes from various governorates at the national headquarters.

The Board of Commissioners of the Independent Electoral Commission has the authority to make determinations on complaints and disputes arising from the elections. An open process of complaints and resolutions was formulated and implemented by the Commission, supported by both Iraqi lawyers and international specialists. The official certification of the vote by the Commission took place on 17 February 2005, after all major complaints had been dealt with; the complaints outstanding that would be decided upon after the certification were assessed to be of such a nature that they could not affect the result. The elections met recognized international standards in terms of organization, regulations and procedures. This demonstrates the professionalism and effectiveness with which the Commission and the thousands of Iraqi election workers, trainers and monitors carried out their work.

From 111 competing political entities and coalitions, the election of 275 representatives to the National Assembly from a total of 7,785 candidates is testimony to the vibrant political environment emerging in Iraq. Moreover, the electoral system resulted in over 31 per cent of seats being awarded to female candidates — surpassing the goal established in the Transitional Administrative Law. The following period of constitutional, legislative and governmental activity will have a strong formative influence on the evolution of political groupings in Iraq and their approach towards the future elections of the transition.”

Further resources:

[Iraqi Interim Government](#)

[Independent Electoral Commission of Iraq](#)

[The Iraqi Election Information Network](#)

[HRW, "Iraqi Elections: Human Rights Concerns"](#)

[IWPR "Iraq Election Focus"](#)

Transitional government and Transitional National Assembly to draft new Constitution (2005)

- The January elections swore in Jalal Talabani as President of Iraq, and Vice Presidents Ghazi al-Yawar and Adel Abdul Mehdi
- The Transitional National Assembly (TNA) was formally inaugurated on 16 March 2005
- The TNA has 275 members, with the United Iraqi Alliance being the political party with the most seats
- One of the key issues facing the political process in Iraq concerns how to ensure adequate and legitimate representation of Arab Sunnis in the Transitional government, a majority of whom did not participate in the elections and who by consequence are under-represented in the TNA
- The transitional government is expected to serve until elections for a new constitutionally elected government by 31 December 2005 (in accordance with the timetable set by UN Security Council Resolution 1546 (2004))
- A Constitution Drafting Committee was established in May 2005 and is expected to draft a permanent constitution by 15 August, although a six-month extension period under the Transitional Administrative Law (timetable of UN Security Council Resolution 1546 (2004))
- The draft Constitution will be voted publically in a general referendum that is to be held no later than 15 October 2005 (timetable of UNSC Res. 1546 (2004))
- The security situation has yet to show any sign of improvement despite political developments

UNSC, 7 June 2005

"During the period under review, the transitional process was focused on the convening of the Transitional National Assembly and its proceedings as well as on the formation of the Transitional Government of Iraq.

Due to delays in reaching agreement on the composition of the Government, it was decided to proceed with convening the Transitional National Assembly on the understanding that efforts for government formation would continue. On 16 March 2005, the Transitional National Assembly was formally inaugurated. After further negotiations, the Transitional National Assembly, on 6 April, elected Hajim Al-Hasani as its President. Hussain Sharistani and Aref Taifour were elected as Vice-Presidents.

The Transitional National Assembly is composed of 275 members and includes the following political entities: United Iraqi Alliance (140 seats), the Kurdistan Alliance List (75 seats), the Iraqi List (40 seats), the Iraqis (five seats), Turkman Iraqi Front (three seats), National Independent Cadres and Elites (three seats), National Union (two seats), Islamic Group of Kurdistan/Iraq (two seats), Islamic Action Organization in Iraq (two seats), National Democratic Alliance (one seat), Al Rafideen National List (one seat), Liberation and Reconciliation Gathering (one seat).

As a result of negotiations on the formation of the Presidency Council, Jalal Talabani was sworn in as President of Iraq on 7 April. Ghazi al-Yawar and Adel Abdul Mehdi were sworn in as Vice-Presidents on the same day.

During the reporting period, one of the key issues between the main political stakeholders was how to ensure adequate and legitimate representation of Arab Sunnis in the Transitional Government, many of whom did not participate in the elections. As a consequence, Sunni Arabs were under-represented in the Transitional National Assembly. Prolonged negotiations between the Kurdistan Alliance and the United Iraqi Alliance, the two political groupings with the largest

number of seats in the new Assembly, resulted in a memorandum of understanding that laid the basis for government formation.

On 28 April 2005, the Transitional National Assembly endorsed the Transitional Government under the premiership of Ibrahim Ja'afari. The Government comprises 32 ministerial and 4 deputy ministerial posts.

The time taken to form the Government presented many opportunities to debate key political and constitutional issues. This was the first occasion for Iraq's political parties to have in-depth discussions and engage in negotiations on critical issues facing the new administration. As the attempts at government formation became protracted, many Iraqis expressed concern about the extent to which the process was focusing on ethnic and sectarian considerations. By contrast, other observers focused on the implications of the ongoing negotiations for the transitional timetable, notably the drafting of the constitution and the manner in which inter- and intra-party agreements might prejudice the Government's necessary freedom to manoeuvre.

The difficulties experienced in allocating posts to satisfy all ethnic and confessional groups in Iraq points to the considerable challenges ahead, particularly with regard to the constitution-making process. Under the timetable established by resolution 1546 (2004), the Transitional Government is expected to serve until elections under a new permanent constitution leading to a constitutionally elected Government by 31 December 2005.

On 10 May 2005, the Transitional National Assembly established the Constitution Drafting Committee. Under the timetable for the political transition, the Committee is expected to write the draft of a permanent constitution by 15 August, unless the six-month extension provided for in the Transitional Administrative Law is invoked. The draft permanent Constitution would then be presented to the Iraqi people for approval in a general referendum to be held no later than 15 October.

The Constitution Drafting Committee is chaired by Sheikh Humaam Al-Hammoudi of the United Iraqi Alliance. Fouad Ma'suum of the Kurdistan Alliance List and Adnan Janabi of the Iraqi List serve as deputy chairs. Fifty-five members of the Transitional National Assembly drawn from the various lists are members of the Constitution Committee. The United Iraq Alliance has 28 members, the Kurdistan Alliance 15 members and the Iraqi List 8 members. Smaller groups have four members on the Committee. These groupings represent Turkman, Assyrian Christians and Yezidis. In addition to the Constitution Drafting Committee, the Assembly has established 27 standing committees to assist it in exercising its legislative and oversight functions.

On 25 May the Constitution Drafting Committee established a subcommittee tasked with identifying mechanisms for making the Constitution-making process more inclusive. The subcommittee is expected to complete its task soon. The Constitution Drafting Committee has also established subcommittees on federalism and human rights. Meanwhile, the Government has formed an Inter-Ministerial Committee on Constitutional Affairs consisting of six Ministers (Justice, Governorate Affairs, Women's Affairs, Culture, Municipalities and Public Works) to be chaired by a Deputy Prime Minister. The Inter-Ministerial Committee has been tasked with supporting the Constitution-making process.

This new phase of Iraq's political transition takes place in a security environment that has yet to show any signs of improvement."

Iraqis adopt new constitution and elect new Parliament (October and December 2005)

- Iraqis adopted a new constitution by referendum on 15 October 2005
- In December 2005, Iraqis voted for a new Parliament, the third national election during the year
- On 19 and 20 December 2005, the Electoral Commission announced partial election results
- 43 Iraqi political parties formed a group to protest against intimidation, ballot stuffing, over-registration, improper apportionment of seats to governorates
- An international monitoring team declared the elections to meet international standards--fair, genuine and transparent
- Compared to the January 2005 election, Sunni Arab voters participated in significantly greater numbers
- The election resulted in 12 political entities and coalitions
- The United Iraqi Alliance will remain the largest political bloc in the Parliament with 128 seats

UNSC, 3 March 2005, pp.1-3

"Following the adoption of the new Constitution by the Iraqi people in the referendum held on 15 October 2005, the December election for a new Parliament, the Council of Representatives, marked the beginning of the last phase of the political transition process set forth in the Transitional Administrative Law and endorsed by the Security Council in resolution 1546 (2004).

The election held on 15 December 2005 was the third major national electoral event in Iraq during the past year. Overall, election day was calm and no major incidents were reported. A total of 307 political entities and 19 coalitions encompassing more than 7,500 candidates representing almost all Iraqi communities and political affiliations entered the contest for the 275 seats in the Council of Representatives. Despite security concerns, voter turnout was high throughout the country. A total of 12,191,133 valid votes were cast in approximately 6,300 polling centres that accommodated over 30,000 polling stations. Of the valid votes, 295,377 were cast abroad and 203,856 were cast in 255 special polling centres for detainees, hospital patients and members of Iraq's security forces. These figures translate into turnout in the January 2005 election, which amounted to approximately 58 per cent.

Compared to the January 2005 election, Sunni Arab voters in the governorates of Ninewa, Salahaddin, Tamim and Al Anbar — the governorates with the lowest turnouts in the January election — participated in significantly greater numbers in the December 2005 election. Several Sunni Arab and tribal leaders encouraged local populations to support the electoral process and in some areas provided protection to polling centres.

Campaigning was robust across the country particularly through the use of television, radio, the press and street posters. While overall levels of violence did not increase in the pre-election period, there were several acts of campaign violence. The Independent Electoral Commission of Iraq received 190 complaints during the period leading up to polling day. The large majority of the complaints related to poster damage, intimidation and aggressive conduct by supporters of political entities. However, some of the complaints referred to acts of a criminal nature including violent attacks resulting in the death of candidates and electoral staff. The Electoral Commission and my Special Representative repeatedly called upon all concerned to refrain from violence and to ensure an environment conducive to full participation in the electoral process.

Under the new electoral law, parties were to present separate lists of candidates for each governorate instead of a single national list as required during the previous election. The lists were subjected to close scrutiny by the De-Baathification Commission as required by the electoral law. As a result, about 200 candidates were disqualified from the election as they did not meet the requirements of the De-Baathification regulations. In accordance with the electoral law,

the Electoral Commission notified election entities and candidates of the decisions of the De-Baathification Commission. In response, some parties replaced disqualified candidates.

Numerous safeguards were established to ensure a fair, genuine and transparent electoral exercise and to discourage attempts at fraud. The Electoral Commission deployed pre-election and post-election auditors as well as field monitors. Audit teams, which included members of the International Electoral Assistance Team, visited Erbil, Kirkuk, Ninewa, Baghdad, Hilla and Babil. Field monitors were deployed in most governorates to assess the implementation and conduct of operations on polling day. In addition, the Electoral Commission accredited over 270,000 political entity agents and more than 130,000 observers, including 949 accredited by international entities and institutions. Accredited observers were able to observe all stages of the electoral process, including the “special voting” on 12 December 2005 for detainees, hospital patients and members of the security forces. More than 3,000 political entity agents and observers were accredited to observe and monitor the out-of-country voting which took place in 15 countries from 13 to 15 December.

The Electoral Commission received a total of 1,980 complaints concerning the December election, of which 58 carried the potential to affect the outcome at a specific polling station. As a result of investigations into these complaints, the Electoral Commission annulled the results of 227 polling stations, issued penalties in 27 cases and dismissed polling staff involved in acts associated with attempts at fraud. The Electoral Commission also fined several political entities and coalitions for breaching electoral regulations.

On 19 and 20 December 2005, the Electoral Commission announced partial election results. In response, 43 parties — mainly belonging to the Iraqi National Front, the Iraqi Accord Front and the National Dialogue Front — formed a group to protest against intimidation, ballot stuffing, over-registration, improper apportionment of seats to governorates and other election-related practices and to lodge complaints against the Electoral Commission. Amid growing protests over the announced partial results, and calls by political parties for an external investigation, the Electoral Commission welcomed the decision of the International Mission for Iraq Elections, an international non-governmental body composed mainly of independent electoral management bodies, to deploy a monitoring team as part of its observation mandate.

The International Mission monitoring team, which included two senior officials from the League of Arab States, was deployed from 1 to 18 January and assessed post-election activities, including the complaints process and audit visits. The International Mission issued its post-election assessment report on 19 January and concluded that the election “generally met international standards”, thus paving the way for the announcement of uncertified results on 20 January. Twelve appeals of the uncertified results were then submitted to the Transitional Electoral Panel. Once those appeals were decided upon, the Electoral Commission on 10 February announced the certified results.

The election resulted in 12 political entities and coalitions, representing a broad political, ethnic and religious spectrum, winning seats in the Council of Representatives. According to the final certified results, the United Iraqi Alliance will remain the largest political bloc in the Parliament with 128 seats. The Kurdish Gathering won 53 seats. The Tawafoq Iraqi Front, an alliance of several parties including the General Conference for the People of Iraq, the Iraqi Islamic Party and the Iraqi National Dialogue, obtained 44 seats. The Iraqi National List won 25 seats, and the Sunni-dominated National Iraqi Dialogue Front gained 11 seats. The Islamic Union of Kurdistan secured 5 seats, and the Liberation and Reconciliation Gathering won 3 seats. The Progressives List gained 2 seats. Finally, the Al-Rafedeen List, the Iraqi Turkoman Front, the Mithal al-Aloosi List for the Iraqi Nation and Al Ezediah Movement for Progress and Reform won 1 seat each.

In conclusion, the election was conducted transparently and credibly. It was an inclusive exercise that succeeded in incorporating all of Iraq's numerous communities and political parties. The fact that it generally met international standards is not a small achievement, given that the election took place against the backdrop of an ambitious timetable and a very challenging political and security environment."

See a draft of the [Iraqi Constitution](#)

See also, IRIN, [Constitution approved despite rejections](#), 1 September 2005

UN approves extension of Multinational Force mandate until December 2007

- In previous resolutions, the multilateral forces' mandate could be terminated at the request of the government constitutionally elected in December 2005
- Resolution 1723 extends the term until end of 2007 with a review of the mandate latest mid June or at the request of the government

UNSC, 28 November 2006

"Responding to a request by the Iraqi Prime Minister, the Security Council today extended the mandate of the multinational force in Iraq until the end of next year, deciding that it should be reviewed at the request of that country's Government or no later than 15 June 2007. The Council also declared that it would terminate the mandate earlier if requested by the Government of Iraq.

Acting under Chapter VII of the Charter, the Council unanimously adopted resolution 1723 (2006) -- submitted by Denmark, Japan, Slovakia, United Kingdom and United States -- which also extended through the end of 2007 the arrangements for depositing proceeds from export sales of petroleum, petroleum products, and natural gas into the Development Fund of Iraq, as well as the arrangements for monitoring the Fund by the International Advisory and Monitoring Board. Also by the text, the arrangements for the monitoring of the Development Fund by the International Advisory and Monitoring Board would be reviewed at the request of the Government or no later than 15 June 2007."

See: [Resolution 1723 \(2006\)](#) adopted by the Security Council at its 5574th meeting on 28 November 2006

[Resolution 1637 \(2005\)](#) adopted by the Security Council at its 5300th meeting, on 8 November 2005

Iraq forms first constitutionally elected government (May 2006)

BBC, 22 May 2006

"After five months of negotiations following December's general elections Iraq's parliament has approved a new government, including members of the main Shia, Kurd and Sunni parties.

The defence and interior remain unfilled, and no head of national security has been appointed. Here is the full list of ministers.

NOURI MALIKI (SHIA) - PM & ACTING INTERIOR MINISTER

Mr Maliki is a stalwart of the Dawa party, the Shia political group that for years led an armed underground resistance to the secular Baathist leadership of Saddam Hussein. Mr Maliki fled the country in 1980 and eventually finding refuge in Syria, returning after Saddam Hussein's overthrow.

BARHAM SALIH (KURD) - DEPUTY PM & ACTING NATIONAL SECURITY MINISTER

An official of President Jalal Talabani's Patriotic Union of Kurdistan since 1998, Mr Salih became prime minister of the PUK-led regional government in January 2001. He survived an assassination attempt at his home in April 2002. He joined the Iraqi transitional government in June 2004 as deputy prime minister for security affairs.

SALAM ZAUBAI (SUNNI) - DEPUTY PM & ACTING DEFENCE MINISTER

Mr Zaubai's political group is part of the main Sunni coalition, the Iraqi Accordance Front. Although from a well-known tribe, he has not been high profile. He heads the Agriculture Engineers Union.

HUSSAIN AL-SHAHRISTANI (SHIA) - OIL MINISTER

Dr Hussein Shahrستاني, a Shia nuclear scientist, was once director of research at the Iraqi Atomic Energy Commission. Whilst director he was imprisoned for possessing a subversive leaflet condemning the repression of Iraqi Shias. He fled Iraq in 1991 after being imprisoned for refusing to work in Saddam Hussein's nuclear programme and worked for human rights organisations in Iran and London thereafter.

HOSHIYAR ZEBARI (KURD) - FOREIGN MINISTER

Mr Zebari was the foreign spokesman for the Kurdistan Democratic Party for more than 10 years. He frequently represented the KDP in meetings with US State Department officials throughout the 1990s. He was born in 1953 in the Kurdish town of Aqrah, but grew up in the mainly Arab city of Mosul. He is a graduate of the University of Essex in the UK.

HASHIM AL-SHEBLI (SUNNI) - JUSTICE MINISTER

Previously appointed human rights minister, he rejected the post after being approved by parliament on 8 May, saying he had not been consulted.

OTHER MINISTERS

Ali al-Shemari (Shia) - Health minister
Khudayer al-Khuzai (Shia) - Education minister
Bayan Jabr (Shia) - Finance minister
Abed Falah al-Sudani (Shia) - Trade minister
Karim Waheed (Shia) - Electricity minister
Fawzi al-Hariri (Kurd) - Industry minister
Latif Rashid (Kurd) - Water resources minister
Bayan Dazee (Kurd) - Housing and construction minister
Yarrub Nazim (Shia) - Agriculture minister
Abed Theyab (Sunni) - Higher education minister
Karim Mahdi (Shia) - Transport minister
Abdul-Samad Rahman (Shia) - Migration minister
Adel al-Assadi (Shia) - Minister of state for civil society affairs
Safa al-Safi (Shia) - Minister of state for House of Representatives' affairs
Jassim Mohammed Jaafar (Shia) - Youth and sports minister
Liwa Semeism (Shia) - Minister of state for tourism and archaeology affairs
Ali Baban (Sunni) - Planning and development cooperation minister
Mohammed Twafiq (Shia) - Communications minister

Mahmoud Mohammed al-Radhi (Shia) - Labour and social affairs minister
Riyad Gharib (Shia) - Municipalities and public works minister
Narmin Othman (Kurd) - Environment minister
Assad Kamal Mohammed (Kurd) - Culture minister
Fatin Abdel-Rahman (Sunni) - Minister of state for women's affairs
Saad Tahir Abid (Sunni) - Minister of state for provincial affairs
Raed Fahmi (Sunni) - Science and technology minister
Wijdan Mikaeil (Christian) - Human rights minister
Rafaa al-Esawi (Sunni) - Minister of state for Foreign Affairs
Akram al-Hakim (Shia) - Minister of national dialogue
Mohammed Abbas Auraibi (Shia) - Minister of state
Ali Mohammed Ahmed (Kurd) - Minister of state
Hassan Rhadi Khazim (Shia) - Minister of state"

"Baghdad security plan" adopted in attempt to end ongoing violence (February 2007)

UNSC, 5 December 2006

"Across many parts of the country an increasing number of Iraqis have been affected by growing violence and insecurity.

A joint effort by the Government of Iraq and the multinational force to stem the rising level of violence under the Baghdad security plan appears to have had very limited success. Control of access to and from Baghdad, curfew extensions and house-to-house cordon and search operations were some of the additional security measures employed to stabilize the capital. Despite those efforts, in large areas of Baghdad and other parts of the country, insurgent and militia activities remain uncontrolled. The most serious recent incidents, such as the mass abduction of some 100 employees of and visitors at the Ministry of Higher Education in Baghdad and the heinous terrorist attacks in Sadr City on 23 November, which left over 200 people dead and scores injured, have deepened public concerns over the ability of the Government to control the security environment."

UNSC, 7 March 2007

"The Baghdad security plan was formally launched on 13 February 2007 in a live televised address by General Qanbar, Commander of Baghdad security plan operations. General Qanbar announced that the launch of the Baghdad security plans would be accompanied by closure of the borders with the Syrian Arab Republic and the Islamic Republic of Iran for a period of 72 hours and the extension of curfew hours in Baghdad. Illegal occupants of real estate property belonging to displaced persons were given 15 days to vacate and return such properties with their assets to their legal owners. Prime Minister Al-Maliki distinguished the new plan from past efforts by highlighting Iraqi control of security operations with United States troop support, the decision to confront all armed groups regardless of religious or political affiliation, and the combination of reconciliation and economic measures."

See also further documents related to the security plan in sources below

Peace efforts

Selected national and regional peace and reconciliation efforts (2006)

- Initiatives include the National Reconciliation Plan adopted by the Prime Minister, a four-point Ramadan accord and the Mecca Declaration, adopted by the Organisation of the Islamic Conference

UNSC, 7 March 2007

"On 16 and 17 December 2006, Prime Minister Al-Maliki hosted a conference of political parties and entities as part of the Government's national reconciliation plan. The event was largely attended by political parties within the national unity government, while those with ties to the Ba'ath Party, the Sadrist bloc, the Iraqiya list of Ayad Allawi, and the Iraqi Front for National Dialogue led by Saleh al-Mutlak did not officially attend. However, numerous members of each group participated in their own personal capacity. The conference concluded with a statement recommending, among other items, the dissolution of militias, the expedited withdrawal of the multinational force, and the re-incorporation of veteran army personnel."

UNSC, 5 December 2006

"The succession of various initiatives to promote national reconciliation both inside and outside Iraq does not appear to have had a significant impact on the scale and nature of the violence in the country. The proliferation of initiatives has led to widespread scepticism about their viability both inside and outside Iraq. The Government has also been unable to supplement its security initiatives with the implementation of projects to improve the delivery of essential services, provide jobs and rebuild socio-economic infrastructure. Institutional capacity limitations have also impeded the ability of the Government to implement the 2006 budget.

[...]

During the period under review, Prime Minister Al-Maliki pushed forward the implementation of his National Reconciliation Plan. Following a conference of tribal leaders in August 2006, he held a meeting with a spectrum of civil society figures and institutions on 16 September. The conference with political leaders, originally scheduled for October, has been postponed several times.

On 2 October, Prime Minister Al-Maliki announced a four-point Ramadan accord, which was supported by major political parties. A key element of the agreement included the establishment of local security committees composed of political, religious, police and army figures. The Prime Minister also initiated direct contacts through his personal representatives with Iraqi opposition groups within Iraq and in Jordan, Egypt and other neighbouring countries.

Reconciliation initiatives in Iraq have been complemented by the efforts of regional actors. On 20 October 2006, Iraqi Shiite and Sunni religious leaders, in a meeting sponsored by the Organization of the Islamic Conference, issued in Mecca a declaration calling for an end to sectarian bloodshed in Iraq. The agreement was welcomed by political and religious leaders both inside and outside of Iraq."

UNSC, 1 September 2006

"On 25 June 2006, the Prime Minister, Nouri al-Maliki, unveiled the National Reconciliation Plan. The 24-point Plan called for a qualified amnesty, the release of detainees, the reform of the legal and judicial systems, the provision of assistance to areas that are prone to violence, the facilitation of dialogue on constitutional and related matters, and the resolution of the problem of militias. The Plan also acknowledged the idea of an Iraqi-led Baghdad peace initiative, emphasized the need for regional support to achieve peace and stability in Iraq, and recognized the efforts of the League of Arab States to convene a conference on Iraqi national accord. The Plan also provided for the establishment of the High Committee for National Reconciliation, which held its first session on 22 July 2006. The composition of the Committee has not yet been finalized owing to a difference in views concerning membership criteria."

Peace initiatives by local communities and local/religious leaders (2006)

UNSC, 7 March 2007

"On 7 February 2007, Grand Ayatollah Ali al-Sistani released a statement that listed commonalities between Shiite and Sunni Muslims, called for unity and coexistence based on mutual respect, and asserted the sanctity of Muslim blood. In addition to denouncing false fatwas made in his name, the Grand Ayatollah declared that it was the duty of all Muslims to reduce tensions caused by political disputes and focus on strengthening ties between the children of the nation of Iraq. On 10 February 2007, dozens of Shia and Sunnis gathered for the re-opening of a Sunni mosque in Shiitedominated Sadr City. A month earlier, on 10 January 2007, a senior Sadrist official concluded an agreement with the Sunni Iraqi Islamic Party to form joint committees in mixed neighbourhoods in Baghdad to cooperate on security and returns of internally displaced persons. In Basra, joint Sunni and Shiite committees were formed in February 2007 to reopen and protect Sunni mosques closed in the aftermath of the attack on the Samarra shrine in February 2006."

Sectarian Violence

Sectarian violence current main cause of displacement (2006-2007)

- Sectarian violence is said to have dramatically increased following attacks on the shrine of Samarra on 22 February 2006
- More than 720,000 people are estimated to have fled their homes due to direct or indirect attacks or violence by insurgents, militias and other armed groups

IDMC Note - March 2007: Sectarian violence is the current largest cause of internal displacement in Iraq. The main affected groups are Shiite and Sunni, however all minorities in Iraq and professional groups, such as doctors and academics have been affected. Refugees, in particular the large Palestinian community in Iraq have faced attacks, causing them to flee their homes, seeking safety within Iraq or outside. A number of extracts from reports documenting sectarian induced displacement are included below. Further reports documenting sectarian-induced displacement can be accessed in the sources below.

For a recent assessment, see "[Iraqis on the Move](#)" a report by the International Medical Corps (January 2007)

Brookings Institution – University of Bern, October 2006

"I will never believe in differences between people. I am a Sunni and my wife is a Shi'a. I received threats to divorce her or be killed. We left Dora [a once-mixed neighborhood in Baghdad] now. My wife is staying with her family in Sha'b [a Shi'a neighborhood] and I am staying with my friends in Mansur [a Sunni neighborhood]. I am trying to find a different house but it's difficult now to find a place that accepts both of us in Baghdad. A young Iraqi artist, Baghdad, June 2006"

"A sharp rise in sectarian attacks, abductions and killings followed the bombing of the holy Shi'a al-Askari shrine in Samarra in February 2006.

On 20 July 2006, as reported by Reuters and other Western media, a spokesman for the Iraq Ministry of Displacement and Migration declared that, in the five months since the Samarra attack, approximately 27,000 families, or 162,000 people, had registered with the Iraqi government for assistance.[...] More recent figures from the Ministry speak of nearly 39,000

families displaced – 234,000 people – since Samarra.[...] Organized bands of armed thugs are targeting people because of the community they belong to, and forcing them to flee.

But the problem did not start with the attack on Samarra. Sectarian strife had been increasing steadily since the beginning of the US occupation of Iraq. Well before 2003, violence against the Shi'a and the Kurds was a central tenet of Ba'thi policies. Internal displacement was a major feature of the Iraq of Saddam Hussein. Because of the Ba'thi regime's uniquely repressive nature, the outside world made little effort to find out what was happening inside. The US-led invasion that overthrew that regime was supposed to bring better things. Instead, displacement is again on the rise in Iraq. And again, little is known about it.

[...]

But sectarian-induced displacement carries special significance. In a country as diverse as Iraq, and as large, it could take on truly appalling proportions were the situation to worsen. Also, as displacement increases and hardens, it in turn further jeopardizes the political process. Finally, the manner in which both the new Iraqi authorities and those nations who maintain significant military forces in Iraq address the problem of sectarian displacement says much about their commitment to pluralism and human rights. Indeed it is an important indicator of whether Iraqis can expect a better future.

NOTE: In Iraq today, the term 'sectarian violence' is a euphemism for Shi'a-Sunni violence. The Kurds are not part of the current explosion in sectarian strife. And while past and future problems involving sectarian violence in Kurdish areas – as well as sectarian violence against Kurds in South and Central Iraq – are not to be discounted, the main source of sectarian displacement are attacks on Sunnis and Shi'a by Shi'a and Sunni radical groups respectively. Thus, the focus of this paper, which is based on both direct and remote research, is the violence between Sunni and Shi'a radical armed groups and the ensuing displacement."

[Click here for the full report by Brookings](#)

UNAMI, 18 July 2006

"Increasing numbers of Iraqis are fleeing their homes since the destruction of Al- Askari Shrine in Samarra, on 22 February, unleashed a wave of sectarian violence across many regions in the country. Approximately 150,000 persons have been displaced by 30 June 2006, according to estimates by the Ministry of Displacement and Migration and partners of the United Nations. The main reasons for such displacement are direct or indirect threats received by individuals, or following attacks to family members or the community in the neighbourhood of origin. Displaced persons find themselves in a condition of vulnerability, lacking many basic rights and competing for limited services, which increase inter-communal animosity in their points of arrival. In turn, this can generate further displacement."

UNAMI, 23 May 2006

"As a result of the pervasive violence, Iraqis continue to leave their areas of residence, either voluntarily or as a result of violence or threats by insurgents, militias and other armed groups. According to figures from the International Organization of Migration (IOM), the number of displaced persons since 22 February 2006 reached 14,307 families, or 85,842 persons. The IOM further reported that most of the Shi'a families are leaving central areas of Iraq (Baghdad, Anbar and Salah al Din) towards southern Governorates (Najaf, Qadissya, Wassit and Kerbala). Sunni families are leaving southern areas and moving towards the Governorates of Baghdad, Diyala and Anbar.

HRO received reports illustrating the dynamics of displacement. Approximately 80 families are now living in tents inside Kut stadium - out of a total of 1,300 displaced families living in Kut originally from Abu Ghraib area in Baghdad. Reportedly, 400 Shi'a families have been displaced from the same area after they received threats through mobile phone calls, letters, written notes

left at their homes and direct threats by armed individuals. Similar methods have been used in most parts of the country intimidating Shi'a and Sunni neighbours into leaving their homes. Over 370 Sunni families left since February this year to Fallujah, Ramadi, and other places in Anbar, as well as Salah al Governorate. The Iraqi Ministry of Displacement and Migration has recorded the arrival of over 500 Shi'a families from Al Anbar, Baghdad and other provinces to Basra in the past few months. Internal displacement is accompanied by increasing displacement of Iraqis seeking refuge outside the country."

UNAMI, 1 January - 28 February 2006, p.4

"[T]he Human Rights Office received reports that a number of Sunni and Shi'a families living in mixed neighborhoods were forcibly evicted from their homes or left voluntarily because of threats of violence from militias, insurgents and other armed groups. Indiscriminate mortar attacks reportedly targeted civilian neighborhoods. Real concerns for their safety prompted some residents to move to areas where they constitute a majority."

IRIN, 17 April 2006

"Up to 35,000 more individuals have been displaced in the past two weeks due to ongoing sectarian violence, said officials from the Ministry of Displacement and Migration.

"Nearly 70,000 displaced Iraqis, especially from the capital, are living in deteriorating conditions," said ministry spokesman Sattar Nawruz.

According to ministry officials, the government is providing displaced families with essential materials, including food and medical supplies. Nevertheless, officials express alarm over a rising rate of displacement in recent weeks. "Families are leaving their homes every day because they're afraid of becoming the next victims of violence," Nawruz pointed out.

[...] Many Shi'ite Muslims, recently displaced from the western Anbar governorate and Baghdad, have taken refuge in southern areas, such as Basra, Najaf and Nassriyah. Numerous Sunni Muslim families, meanwhile, from Baghdad and the country's south, have fled to the cities and villages of Anbar, such as Fallujah, Rawa and Ramadi.

Displaced families complain that sectarian threats are increasing daily. "I have to leave because I received a letter saying that if I don't leave my district – where I've lived for more than 20 years – my family will end up in a cemetery," said Ahmed Shamari, a Sunni Muslim teacher who resides in a majority-Shi'ite district in the capital.

Some of those fleeing violence have avoided the refugee camps being set up for them, fearing that they, too, could become targets of violence. "These displaced people would rather seek shelter with relatives in safe areas or in abandoned schools or government buildings," said a volunteer with the IRCS."

IRIN, 21 March 2006

"The Iraqi Ministry of Immigration and Displacement said on Tuesday that 3,705 families had been displaced in the country, as a result of the ongoing sectarian violence.

It erupted following the 22 February bombing of a Shi'ite shrine, Al-Askariya, in Samarra, some 120 km north of Baghdad.

The attack on the Al-Askariya shrine spawned days of reprisal attacks between the country's two major Muslim sects, the Shi'ites and the Sunnis. At least 400 people were killed and dozens of mosques were damaged and destroyed, according to figures released last week by the Interior Ministry.

Sattar Nawroz, the spokesman for the Ministry of Immigration and Displacement, said that most of the displaced families went to the southern city of Najaf.

About 1,000 families had descended there from Baghdad's restive western neighbourhoods, and from the northern oil-rich city of Kirkuk as well as from Diyala, north-east of Baghdad.

The second largest number of the displaced families, 615, Nawroz added, have fled to the centre of Baghdad, from the capital's western and northern suburbs."

IRIN, 16 March 2006

"Dozens of families in the capital, Baghdad, have been displaced from their neighbourhoods due to the sectarian violence that has come in the wake of the Samarra shrine bombing in February and subsequent attacks.

...

On Thursday, the Ministry of Interior announced that at least 630 people had been killed as a result of sectarian violence since the Samarra bombing.

...

According to the IRCS, more than 300 families from different areas of the capital have been displaced, many of them Sunni residents of majority Shi'ite neighbourhoods.

...

Sunnis are not the only ones to have fled their homes in fear of reprisal. There are also numerous Shi'ite families who prefer to live in deteriorating conditions rather than risk being killed in their majority-Sunni neighbourhoods."

Further reports documenting sectarian induced displacement post February 2006 are included in the sources below."

Some reports of inter communal violence causing displacement (2003-2005)

- Reports from Baghdad's neighbourhoods of Al-Hurriya, Al-Adhamiya, Al-Amriya, Al-Khadhraa, Abu Dsheer, Baghdad Aljedeeda and Al-Dura portray ongoing violence resulting in displacement of individuals and families to other neighbourhoods following threats and killings (2005)
- Similar displacements were reported to and from Basra, Baghdad, Ninewa and Al Anbar (2005)
- Voluntary displacements were also reported, as families expressed that sectarian pressures are too intense to permit them to remain in their neighborhood in Tal Afar, Tarmiya, Basra and other cities in the country (2005)
- AFP reported Shiite Muslims fleeing some areas of the South due to fear of violence by Sunni insurgents (2005)
- IRIN also reported around 350 Assyrian Christians expressing a wish to move to Northern Iraq following attacks on churches (2004)
- The Roma were well treated under the former regime, but since April 2003, around 2000 Roma were forced out of their homes (2003)

UNAMI, 31 October 2005

"The proliferation of armed militias, criminal and terrorist organizations acting with impunity constitutes a major challenge to law and order and a threat to the security of the civilian population. Militias have been accused of kidnappings, extra-judicial executions and carrying out illegal policing and sectarian attacks. It is extremely worrying that some of these crimes are committed by individuals wearing police and military uniforms and using police or military

equipment. In some areas, including Baghdad, sectarian violence increasingly seems to aim at disrupting the traditionally peaceful coexistence of communities. Reports from Baghdad's neighbourhoods of Al-Hurriya, Al-Adhamiya, Al-Amriya, Al-Khadhraa, Abu Dsheer, Baghdad Aljedeeda and Al-Dura portray ongoing violence resulting in displacement of individuals and families to other neighbourhoods following threats and killings. Similar displacements were reported to and from Basra, Baghdad, Ninewa and Al Anbar. There are also voluntary displacements, as families have shared the concern with the Human Rights Office that sectarian pressures are too intense to permit them to remain in their neighborhood. Such displacements have been reported in Tal Afar, Tarmiya, Basra and other cities in the country. There are continuous first hand reports that long term Arab residents are still victims of stigmatization, harassment and arbitrary detention because of their perceived association with "foreign fighters."

IRIN, 3 March 2005

"During Saddam Hussein's rule, gypsies were reasonably well treated and given shelter. But after the 2003 conflict, as people returned to the village, many were forced out and are living in tents or have built mud homes.

[...]

In general, the gypsies are looked down upon by the rest of society and are often found selling alcohol. Some are forced to turn to commercial sex work to earn a living, according to local people.

[...]

In 2003, after the fall of the previous regime, the Medhi army attacked the houses of the gypsies in Diwanya and they cut off the electricity and destroyed the only school there."

UNHCR, October 2005, p. 16

"It is reported that sectarian violence is causing the displacement of hundreds of Shiite Muslims from the 'Triangle of Death' south of Baghdad which includes Sunni-Shiite mixed towns such as Latifiyah, Mahmoudiyah and Yusufiyah and other traditionally mixed areas such as the Dora neighbourhood in Baghdad Governorate, Salman Pak and Al-Madaen in the Governorate of Babil."

AFP, 20 May 2005

"Hundreds of Shiite Muslims are fleeing towns in lawless areas south of the Iraqi capital where killings and kidnappings by a ragtag army of Sunni extremists and tribal gangs have torn mixed communities."

IRIN, 22 November 2004

"[A]n estimated 350 Assyrian Christians families are ready to take matters into their own hands. After two coordinated attacks on Christian churches, one in August against five churches, four in Baghdad, one in Mosul, and another attack in October on up to seven churches, they want to move back to homes in northern Iraq out of fear of further attacks.

Relations between Christians and Muslims in Iraq have been peaceful in the past, although many Christians remained on the edge of Iraqi society. But now, in what is becoming an increasingly segregated Iraq, some feel the Christians, many of whom speak English in the predominantly Arabic-speaking country, are supporting the Coalition forces. As a result, some Christians are keeping their children home this school year, worried that increasing animosity against them makes them a target.

[...]

Some Christians were resettled from the region by former president Saddam Hussein while many others fled during the 1991 Gulf war. There are Christians living throughout Iraq, including a sizeable community in Baghdad - accurate figures are hard to find but various estimates put the number in the capital at somewhere between 20,000 and 50,000.

[...]

There's just one problem: Kurdish Muslims living on the land and in the homes the Christians once occupied in the north, don't want to leave, William Warda, leader of the Assyrian Christian political movement in Baghdad, told IRIN.

Workers at the Ministry of Displacement and Migration told IRIN they were aware of the issue, but had not been able to do anything to deal with it yet. The ministry is discussing building new housing in the region that could be used either for Christians or Kurds, a ministry official, who declined to be named for security reasons, said. United Nations officials in Jordan have also been approached, Warda said.

'Saddam destroyed 200 of our villages in the north and deported the inhabitants,' Warda said. 'We are asking the Kurdish authorities to remove these people. They are pleading that they need more time.'

Al Barwari, a security adviser and the Democratic Party of Kurdistan (PDK) director in Germany, who is currently living in Iraq, said Christians were talking to PDK officials about moving to land in and around Dahuk where Kurds currently live.

[...]

An estimated 60,000 Christians have fled Iraq for Syria and Jordan in recent months because of the unstable security situation, Warda said. About 1.3 million Christians registered for a 1987 census, he said, a number that has now dropped to about 70,000. However, without an official census accurate numbers are difficult to assess. There appears to have been a gradual reduction in the number of Christians in the country over the years as many left for economic reasons. But this has now been accelerated with the recent attacks.

However, other Christians in Baghdad are defiant about the threats, saying Iraq is their home, even if they are a minority."

Further reports documenting sectarian induced displacement prior to 2006 are included in the sources below.

Military Operations

Between 2003 and 2006, displacements primarily due to military operations and fighting (2003-2007)

- As of March 2007, some 22,400 people were estimated to remain displaced from military operations and fighting
- An estimated 15,240 people were displaced as a result of military operations between February and November 2006 according to some reports
- In 2005, thousands of people have been displaced by military raids conducted by the multinational and Iraqi forces, including in al-Qaim, Karabilah, and Haditha
- Also 2005, forced displacement occurred in Ramadi, Mosul and Kirkuk which continue to be monitored by the UN
- Skirmishes with Coalition forces in 2004, particularly in Fallujah, Najaf, Kufa, Karbala and Samarra caused displacement
- In November 2004, over 200,000 people were displaced from Fallujah as a result of a US air strike and fierce fighting in the city

- In April 2004, some 70,000 people fled Fallujah as a result of the siege of the city by Coalition forces
- From March to May 2003, the governorates of Al-Anbar, Thi-Qar and Basra witnessed displacement due to the threat of air strikes and urban war-fare
- Displacements have often been of temporary nature with exceptions, in particular the siege of Fallujah in November 2004 which has resulted in more prolonged displacement
- A small number of people across the country remain have been displaced by Coalition forces for reasons of national security

UNAMI, 22 November 2006

"Some 418,392 people have been displaced due to sectarian violence and 15,240 due to military operations since the attack on the Samarra Al-Askari Shrine on 22 February 2006."

UNHCR, October 2005, p.16

"Military raids are routinely conducted by the MNF/ISF in an attempt to put an end to insurgent activities. They have taken place in Fallujah, Ramadi and Mosul, and more recently in Al-Qaim, Karabilah and Haditha in Western Iraq. These raids, which aim to root out foreign fighters and insurgent support systems, often cause the death and displacement of civilians and the destruction of infrastructure and property."

Selected reports of displacement caused primarily by military operations 2003-2006
Anbar province (2005 - 2006) UNAMI, 16 January 2007 "Military operations continued in Al Anbar Governorate, in particular Ramadi, Fallujah and Heet. Ramadi and Fallujah have seen relatively constant fighting between MNF-I and insurgents in some districts, completely disrupting the functioning of social services and resulting in a high degree of displacement and casualties." UNAMI, July 2005, p.1 "The Governorate of Anbar in the west of the country was the principle focus of emergency humanitarian interventions in July, as a result of fighting shifting first from the city of Al Qa'im to Karabla and then towards the towns of Rawa, Haditha and Heet. Many of the towns and villages in Anbar affected by this recent fighting are recipient locations of internally displaced persons (IDPs) who moved as a result of previous clashes. [...] A recent UNCT NGO partner assessment estimated that over 6,200 families were displaced to over 30 locations in Anbar Governorate in July." UNAMI, November 2005, p.1 "Anbar: The western province of Anbar remained a focus of insecurity and humanitarian need throughout the period. An estimated 7,000 families in the Al Qa'im area were displaced in November due to military operations. Many were temporarily housed in tented camps or in public buildings in neighbouring locations. [...] NGO monitors estimated that the total number of displaced families in Anbar exceeds 11,000. The affected populations require both short term emergency relief but also longer term care and maintenance assistance as a result of successive waves of displacement." UNAMI, September 2005,p.2 "Anbar Update: Insecurity continued to affect the western districts of Anbar Governorate, where according to IOM monitors, over 11,000 families are currently living in displacement. At the beginning of the month, 800 families were displaced from Huseeba, Karabla and Ubaidi. Towards the end of the month, reports suggested an increase in humanitarian displacement around locations such as Sadah near the Syrian border."

UNAMI, August 2005 Update, p.2 "Anbar Update: Military operations continued to affect the western districts of Anbar Governorate with approximately 800 families displaced to 21 different locations."
Ninewa province (2005)
UNAMI, July 2005, p.1 "Further north in the Governorate of Ninewa, the city of Tal Afar and its environs recently experienced significant displacement due to operations in the area."
Husbaya (2005-2006)
IRIN, 9 January 2006 [June 2005:] "US-led offensive "Operation Spear" is launched, the second in the western Anbar governorate, resulting in over 7,000 families being displaced in surrounding areas"
BBC, 6 November 2005 "About 3,500 US and Iraqi troops, backed by tanks and fighter aircraft, moved into Husayba two days ago. A US military official said 36 insurgents and one US marine had been killed in the operation so far. Medics working in the area said a similar number of civilians had died, and thousands had fled their homes. [...] There were reports that cluster bombs had been used, and that 4,000 people had fled the area. On Sunday the US said there were 450 civilian evacuees. [...]The Husayba offensive, known as Operation Steel Curtain, is aimed at blocking what American and Iraqi officials say is a major infiltration route for militants crossing into Iraq."
Hit (2006)
IRIN, 19 January 2006 "Nearly 200 families have been displaced in the western governorate of Anbar as a result of a military offensive launched by US troops backed by the Iraqi Army on 15 December. The operation, dubbed "Koa Canyon," is ostensibly aimed at rooting out insurgents in the Jubbah/Baghdadi region and the city of Hit, 130 km west of the capital, Baghdad."
Haditha (2005)
IRIN, 6 October 2005 ""Nearly 1,000 families have fled their homes in Haditha in western Iraq following the launch of a US-led military operation to hunt down in insurgents in the town in the Euphrates river valley, according to residents in the area. [...] The combined military operation by 2,500 US and Iraqi government troops backed by warplanes began in Hadithi on Tuesday and followed on from a similar offensive against Islamic insurgents in villages near al-Qaim on the Syrian border which began on 1 October. [...] The military operation in Haditha, code-named "River Gate," is a much larger affair and is shaping up to be the biggest military push by US-led forces in the Anbar governorate of western Iraq so far this year. Residents in the district, which is mainly inhabited by Sunni Muslims opposed to the US-backed government in Baghdad, said people had been fleeing from Haditha and the nearby towns of Haqlaniyah and Barwana, following repeated air strikes."
Karabila (2005)
IRIN, 28 June 2005 "Thousands of residents are gradually returning to the town of Karabila, 325 km west of the

capital, Baghdad, after fleeing a heavy US-led attack two weeks ago but for many there is little to go back to.

Nearly 7,000 residents were displaced to the desert near the Syrian border during the fighting, according to the Iraq Red Crescent Society (IRCS). The town, which is home to 60,000 people, showed signs of extensive devastation following the battle, a five day operation which ended on 22 June. Nearly 1,000 residents are still displaced and living in the desert.

[...]

The offensive, named "Operation Spear", was designed to root out insurgent strongholds. According to US forces, about 90 insurgents were killed and others detained for interrogation and they are calling the operation a complete success."

Al Qa'im (2005)

UNAMI, 3 January 2006, p.1

"An estimated 7,000 families in the Al Qa'im area were displaced in November due to military operations."

IRIN, 9 January 2006

"1 October [2005]: A US offensive in the city of al-Qaim, western Iraq leaves more than 3,000 families displaced.

5 October [2005]: Nearly 1,000 families flee their homes in Haditha, 220 km west of Baghdad, following the launch of an offensive against insurgents."

IRIN, 4 October 2005

"More than 900 Iraqi families have fled from the al-Qaim district near the Syrian border to escape a US military offensive against Islamic militants and the exodus is continuing, humanitarian workers in al-Qaim said.

Most of those running to escape the five day-old offensive by 1,000 US troops backed by warplanes have remained within Iraq.

[...]

Residents contacted by telephone said the fighting had been most intense around the villages of Romanna and Karabila. They said US troops were conducting house-to-house searches to hunt down insurgents and dozens of houses and shops had been damaged or destroyed."

IRIN, 2 October 2005

"Thousands of civilians have fled the Iraqi town of al-Qaim near the Syrian border following the start of a fresh US military offensive against insurgents in nearby villages, local government officials said on Sunday.

They told IRIN that about 600 families had abandoned al-Qaim, a small town in the Euphrates river valley, since the offensive began on Saturday. The number of people displaced by the fighting was expected to increase rapidly, they added.[...] The current military operation is code-named "Operation Iron Fist".

ICS, 13 May 2005

"Six month after the last dramatic crisis in Fallujah, the situation is again rapidly worsening in the Al-Anbar governorate, in the region of Qa'im near the Syrian border.

Clashes in Qa'im have started at the end of April, between the Arab fighters of Al-Zarwqawi group Al-Tawheed Wal Jihad and the main local tribe of Albu Mahal. The fighting exploded after the killing of a prominent police officer by the Arab fighters: according to different sources, the violent reaction of the local communities would have been triggered by their willingness to avoid

the replication of a Fallujah-like crisis, with the presence of foreign combatants in a town put under siege by the MNF and the Iraqi army.

Nevertheless the phantom of Fallujah seems to emerge again in the difficult context of the Iraqi crisis», states Daunia Pavone, ICS humanitarian coordinator in Iraq. 'From last Tuesday, the city of Al-Qa'im is surrounded by the US troops and bombings are currently underway in the neighborhoods of Al-Jazeera, Al-Rumana, Al-Obaidi and Al-Karbala'."

UNAMI, 17 May 2005

"Over the past week, the military offensive 'Operation Matador' has resulted in the beginnings of a humanitarian situation requiring immediate response. Although it has been announced that the Operation is concluded, an estimated 2000 families have fled the city, seeking refuge in neighboring towns such as Anah, Rawa, and Al-Ubaydi, or into the surrounding desert in order to escape the fighting. Some Internally Displaced Persons (IDPs) are said to have sought refuge as far away as Fallujah and Baghdad. While some families were able to flee into Syria in the earlier stages of the Operation, the border has now been closed, forcing these families to find a second place of refuge."

Al Jazeera, 17 May 2005

"Thousands of people fled al-Qaim after US warplanes and helicopter gunships pounded the region earlier this week, flattening homes and buildings"

IRIN, 31 May 2005

"More families are reportedly leaving the western Iraqi town of al-Qaim in fear because of fighting, according to local aid agencies.

Hundreds of families remain displaced on the outskirts of the town, 320 km west of the capital, Baghdad, following clashes between US forces and insurgents in the second week of May.

According to the Iraqi Red Crescent Society (IRCS) nearly a thousand families were displaced and living in the desert of al-Jazera'a, west of al-Qaim but were returning when the offensive ended, leaving only 100 families there.

However, aid workers now say that hundreds more have started to flee the town again because of the possibility of another conflict starting in coming days.

'We have indications that fighting might start again in the town of al-Qaim. Maybe it's just a psychological response from the people in the town but many reports from volunteers are saying the same thing,' general secretary of the IRCS, Mazeen Sallon told IRIN in Baghdad."

Ramadi (2005 - 2007)

UNAMI, 17 January 2007

"In Ramadi, about 200 families were reported to have left their houses in November. According to the Ramadi General Hospital, during the first week of November, MNF-I snipers were reported as having allegedly killed 13 civilians. The General Hospital staff reported a severe shortage of medicines, staff and equipment. For several months now, patients have refrained from using the hospital for fear of snipers allegedly placed on the hospital roof, in addition to the military occupation of the hospital garden."

IRIN, 4 July 2006

"Hundreds of families returned to the city of Ramadi, some 110km west of the capital, Baghdad, two weeks after the US military launched an unusually restrained offensive there.

[W]hile about 1,500 families fled Ramadi in advance of the attack, more than 1,000 families have

since returned."

IRIN, 18 June 2006

"Nearly 1,500 families [about 10,000 people] have fled the city of Ramadi, some 115km west of Baghdad, as the newly-appointed government and US-led multinational forces vow to restore stability to the volatile city."

IWPR, 15 June 2006

"People in Ramadi, capital of the western Iraqi province of Anbar, estimate that about 70 per cent of the city's population has fled in the last week, many of them holding white flags for fear of being shot at by Marine snipers.

Residents reported that US troops blasted messages through loudspeakers on June 13, telling them to leave and warning of house-to-house searches for weapons and militants.

The ongoing violence between US Marines and the insurgents, air strikes, and outages in the water, electricity and phone networks have already made life untenable. Ramadi residents say US troops regularly take over houses to fight the insurgents, and combatants on both sides have been seen using rooftops as sniper positions."

IRIN, 18 October 2005

"Two days of US air strikes against insurgents in the western city of Ramadi have caused heavy casualties among the city's civilian population, a doctor and a senior Iraqi government official in Ramadi said. [...] Iraqi officials in Ramadi said more than 1,700 families had fled from the city since US air and ground forces began a big push against insurgents there last week."

IRIN, 24 February 2005

"Residents of Ramadi, the capital of Anbar province some 100 km east of Baghdad, have started to flee the city following the latest offensive launched by US Marines and the Iraqi army.

The military have carried out raids in the province over the past few days in an attempt to crack down on insurgents, with the main focus of operations being Ramadi, a rebel stronghold.

Worried that the offensive could proceed as it did in nearby Fallujah, where the majority of the city's population was forced to flee during a near three-month long campaign, many Ramadi families are taking personal effects and food supplies and heading to relatives' houses in the capital, or to the same camps where residents from Fallujah fled."

UNAMI, 27 February 2005

"The situation in the vicinity of Ramadi was also closely monitored as some families reportedly became displaced as a result of armed conflict along the Euphrates River. In particular, concerns were raised about the impact of military operations and road closures on humanitarian access and the protection of civilians."

UNAMI, 27 February 2005

"Population movement from Ramadi into the surrounding villages was reported by monitors throughout the last two weeks."

Mosul and Kirkuk (2005)

UNAMI, 27 February 2005

"In other parts of the country, insecurity in the areas of Mosul and Kirkuk also led to internal displacements as families reportedly left these areas amidst growing violence and tensions."

UNAMI, 30 January 2005

"Internal displacements throughout the rest of the country, whether due to military operations or ethno-religious tensions, remain a major concern, especially in the areas of Mosul and Kirkuk."
Baghdad and surroundings (2005)

UNAMI, 18 July 2006

"On 13 May 2006 the MNF-I, accompanied by the Iraqi Army, reportedly carried out a military operation in Shakha 1 area, in Al-Latifiya district south of Baghdad. The operation was said to have taken place following an earlier downing of an MNF helicopter in the same area. Seven (7) civilians are said to have been killed while the private vehicle they were traveling in was hit by an air strike."

AFP, 20 May 2005

"Hundreds of Shiite Muslims are fleeing towns in lawless areas south of the Iraqi capital where killings and kidnappings by a ragtag army of Sunni extremists and tribal gangs have torn mixed communities.[...]

The Triangle of Death, which includes flashpoint towns such as Latifiyah, Mahmudiyah and Yusufiyah, is according to unofficial estimates almost evenly split between Shiites and Sunnis."

Najaf (2004)

UN SC, 3 September 2004

"While fighting has been ongoing in several localities in Iraq, the crisis in Najaf was particularly serious in scope and nature and attracted significant attention. The past weeks witnessed an escalation of fighting between an armed militia loyal to Moqtada al-Sadr, Iraqi security forces and the multinational force. Fighting was concentrated in and around Najaf, close to the Imam Ali Shrine and other areas. Several attempts by the Interim Government of Iraq and a delegation from the National Conference to mediate the crisis were unsuccessful. Regional initiatives by Iraq's neighbours to urgently discuss approaches to the resolution of the Najaf crisis were not pursued.

[...]

Of 300,000 persons living in the centre of Najaf, an estimated 25,000 have been displaced during the hostilities, seeking shelter with host families on the outskirts of the city, in mosques or public buildings on peripheral roads north and south of Najaf."

IRIN, 23 August 2004

"Fighting in the holy city of Najaf, about 160 km south of Baghdad has raged for more than two weeks between US forces and Mehdi Army forces loyal to anti-US cleric Moqtada Sadr.

[...]

At least 10,000 families have been displaced by fighting, according to figures from families staying at nearby religious sites. The International Committee for the Red Cross (ICRC) said the number could be as high as 50,000. At least 5,000 people are staying in tents or with relatives in the holy city of Kerbala, 100 km south of Baghdad and 80 km north of Najaf, to escape the fighting, according to the ICRC."

DPA, 20 August 2004

"The International Committee of the Red Cross (ICRC) Friday expressed concern over the situation facing ordinary Iraqi citizens caught in fighting between U.S. and Iraqi forces and 'Mahdi Army' insurgents in the holy city of Najaf.

[...]

Hundreds of families are understood to have fled from the centre of Najaf, where U.S. and Iraqi forces have for two weeks been fighting militia forces loyal to renegade Shiite cleric Moqtada al-Sader; the so-called Mahdi Army."

IRIN, 4 January 2005

"Residents in the southern holy city of Najaf, told to leave the besieged city by US troops,

appeared to be staying with relatives in the nearby city of Karbala, an International Committee for the Red Cross (ICRC) spokesman told IRIN on 11 August. ICRC officials and other aid agencies are sending medical kits and food to the region for civilians trapped in the fighting, said Ahmed al-Rawi, the ICRC spokesman. Fighting intensified after almost a week of clashes between the Mehdi army and US-led Coalition troops in the southern city and in Sadr City, a northeast suburb of Baghdad. Mehdi army fighters are loyal to radical Shi'ite cleric Moqtada Sadr, who was wanted in connection with the murder of a rival. The latest fighting ended a truce brokered to end previous fighting with Mehdi forces in May and June. It appears to have started after US and Iraqi forces surrounded Sadr's home in Najaf.

[...]

Unconfirmed reports suggest between 25,000 and 50,000 people may have been displaced by fighting in Najaf, some 170 km from the capital, Baghdad."

Tal 'Afar (2004-2005)

IRIN, 9 January 2006

"10 September: US and Iraqi forces launch an offensive in the northern city of Talafar, causing over 10,000 families to flee the city.

[...]17 September: The number of displaced from Talafar rises from an estimated 10,000 to 20,000."

IRIN, 11 September 2005

"Thousands of families are fleeing the northern Iraqi city of Talafar, aid workers confirmed, as Coalition forces conduct a military operation against insurgents.

[...]

Heavy bombardment and artillery by gun-ship helicopters as well as street fighting could be seen in the al-Saray area of the city, Iraqi officials said.

The operation in the city, some 80 km east of Mosul city, and near the Syrian border, started on 10 September.

[...]

Based on the last humanitarian report on 10 September, the IRCS said nearly 3,000 families were already displaced in the area between Mosul and Talafar in a village called Abu Maria (Al-Nakhwa)."

UNAMI, September 2005,p.2

"NGO monitors reported that as of 18th September an estimated 5,579 families fled due to fighting in the city with some families moving to locations as far away as Najaf, Karbala and Sadr City in Baghdad."

Aljazeera, 11 September 2005

"Operation Restoring Rights is being conducted to remove terrorists and foreign fighters operating in Tal Afar. This operation is in support of the Iraqi governments efforts to bring safety and security to the citizens of the city," Colonel Billy J Buckner, a military spokesman, said on Sunday."

UNAMI, August 2005, p.2

"The city and surrounding districts of Tal Afar in the northern Governorate of Ninewa were the principle focus of emergency humanitarian interventions in August, as a result of sustained military operations throughout the month. The fighting resulted in significant displacement of civilians, and some reports suggested between 5,000 and 7,000 families were recently displaced from Tal Afar city to surrounding locations."

IRIN, 4 January 2005

"Fighting in the northern city of Tal Afar, thought to be a haven for insurgents, has displaced tens

of thousands of people, aid agencies told IRIN on 13 September. At least 40 people have been killed in the city, which has fallen under insurgent control and is considered a 'no-go' area for US troops, according to news reports. The US Army says the city of 350,000 has become a haven for fighters crossing into Iraq from Syria. Iraqi Red Crescent (IRC) workers have set up 250 tents on the outskirts of the city to help the fleeing residents, Annas al-Azawi, director of the IRC, told IRIN. Many of the city's residents have moved into the tents, while others have moved to relatives' houses in nearby cities, he said."
Al Mahmoudya (2004)
IRIN, 4 January 2005 "Al-Mahmoudya city, about 20 km southeast of Baghdad and the base for British troops recently deployed in the area, is facing medical, food and water needs amid a deteriorating security situation. Some families have begun to leave the city and say that those who remain are risking their lives. Dr Mustafa Aydany from the local hospital told IRIN on 2 November that if serious fighting began they could offer little treatment for the injured. He said a shortage of medicines and emergency materials would mean that most of those injured in any fighting in the city would probably have to be sent to Baghdad. Leaflets have been distributed, forbidding women from leaving their homes without covering their heads with scarves and wearing traditional clothing, and threatening those who ignored such instructions. According to medical officials in the city, two women have been killed because they ignored such instructions. Other orders issued by the insurgents are that no families should leave their homes and that shops, schools and government offices should remain closed. The insurgents warn of a 'new Fallujah' in the city."
Samarrah (2004 - 2006)
IRIN, 19 March 2006 "Hundreds of families have fled the city of Samarra, some 120 km northwest of the capital, Baghdad, after US coalition and Iraqi forces launched the biggest air offensive in the country since 2003. [...] Launched on 16 March, the offensive named 'Operation Swarmer' is the largest air assault since the US invasion of Iraq, involving 650 US troops and some 900 Iraqis with the aim of rooting out insurgents believed to have taken refuge in the area."
IRIN, 9 January 2006 "26 September: Hundreds of families are reported fleeing the city of Samara, some 120 km north of the capital, following a defence ministry announcement that preparations are underway for a coalition offensive against insurgents there."
IRIN, 27 September 2005 "Hundreds of families have started to flee the Iraqi city of Samara, some 120km north of the capital, Baghdad, following a recent Ministry of Defense announcement that preparations had started for an offensive by Coalition forces against insurgents holed up there, officials said. Hamad al-Kashty, governor of Salah al-Din province, said on Monday that nearly 500 families had so far fled the city. Many were presently in the outskirts, particularly around al-Dur, al-Salam, Baghdad and within empty schools and government buildings near the city of Tikrit"
IRIN, 26 July 2004 "Families started leaving the predominantly Sunni Muslim city [Samarrah] two weeks ago in fear that US forces were about to attack, Sheikh Ahmed Abdul Ghafoor al-Samarraie, a Muslim religious leader based in Baghdad, told IRIN. Samarrah residents are known for their loyalty to former President Saddam Hussein. The city is in an area northwest of Baghdad known as the 'Sunni Triangle' where attacks against US troops have been common."
Fallujah (April and November 2004)
IRIN, 4 January 2004 "On 8 November it was reported that thousands of US troops had positioned themselves on the

outskirts of Fallujah as Iraqi Prime Minister Iyad Allawi gave the go-ahead for a major attack to flush out insurgents. Out of a population of 290,000 people the city is now home to around 30,000, Fadhel Youssef, a spokesman for the local governorate, told IRIN. Most of those left are men who have sent women and children to places of safety. Families in the town told IRIN they had no food or clean water and did not have time to store enough to hold out through the impending battle. The city is deserted, shops are closed and there are no people on the streets. As fighting began, agencies started to raise humanitarian concerns. On 11 November Amnesty International (AI) issued a statement saying it was seeking assurances from both the US and Iraqi governments that they will comply with their obligations under international human rights and humanitarian law. It also called on the armed groups in Fallujah to comply with the rules of international law."

UNHCR, 9 November 2004

"UNHCR is extremely concerned at the fate of tens of thousands of people who have fled the city of Fallujah to escape the fierce fighting there.[...] The majority of civilians appear to have left the city, although it is difficult to establish numbers with any certainty."

IRIN, 18 February 2005

"Before and during the battles, two-thirds of the city's population was said to have fled, according to aid agencies."

UNAMI Emergency Working Group, 11 November 2004

The total population of Falluja (pre crisis) is estimated at 300,000 persons. In addition to the identified 249,200 IDPs above, there are an estimated 35,000 IDPs in Baghdad and other areas, with the balance (approx. 50,000 persons, probably mostly men) remaining in Falluja. Please note that the displacement figures above are preliminary estimates. The general profile of IDPs is reported as families."

UNAMI, 25 April 2004

"A lull in fighting in Falluja permitted the MoH to assess the humanitarian situation in the city. As a result of its investigations the MoH adjusted their figures for the number of people killed in the city since April 5th downward from 750 to approximately 360 (there are no official figures recognised by all parties). The MoH also confirmed over 1,000 other casualties. The displacement of Falluja's population remains an issue of concern. NGOs confirm that at least 40% of Falluja's population (estimated between 100,000-150,000 people) may have previously left the city. Many families took refuge in the neighbouring villages, where conditions are often poor and with little or no water, food and essential cooking items. The Iraqi Red Crescent, International Committee for the Red Cross (ICRC) and a number of non-governmental organisations (NGOs) are providing assistance to two IDP camps outside Falluja city."

IRIN, 26 July 2004

"International and local aid agencies launched a massive aid campaign for Fallujah residents in April as fighting caught some residents unaware. At one point, up to 100,000 people were estimated to have fled their homes. Many stayed in a refugee camp in west Baghdad."

IRIN, 22 July 2004

"Following recent air strikes in the Iraqi city of Fallujah, some 30 km west of Baghdad, aid workers are still trying to provide aid and carry out repair work."

A truce was declared there late in April, after weeks of fighting that killed up to 1,000 Iraq insurgents and more than 100 US soldiers, according to statistics from NGOs.

Families who had fled the fighting to stay with relatives, or in a camp in al-Hadhra district in

western Baghdad, went home to assess the damage. Aid agencies at the time thought that up to 100,000 people might have been temporarily displaced. Human Relief Foundation, a local aid agency, estimates that up to 140 homes that were destroyed have still not been repaired.”

Overview

UNCT, August 2004

“Over the last four decades, human rights abuses and various periods of conflict have resulted in many cases of protracted displacement in Iraq, the total number of displaced peaking at over one million persons. The expulsion of people along ethnic lines from their homes has long been a state policy. The 2003 conflict resulting in the fall of the former Government of Iraq and subsequent periodic fighting have resulted in further population movements throughout the country.

[...]

From March to May 2003, the governorates of Al-Anbar, Thi-Qar and Basra witnessed displacement due to the threat of air strikes and urban war-fare. Most moved to near-by rural towns where they lived with host communities or in public buildings. The vast majority returned to their homes immediately after the air strikes to protect their property from looting and squatters. However, a small number of people remain displaced. They are awaiting an improvement of the security situation and the reconstruction of or compensation for their destroyed houses. In addition, a small number of people throughout the country were forcibly displaced by Coalition forces for reasons of national security. In most cases, these IDP families resided in or close to strategic buildings or locations such as airports or military bases.

[...]

Skirmishes with Coalition forces have continued into 2004, escalating into battles in the cities of Fallujah, Najaf, Kufa, and Karbala leading to similar patterns of displacement to those in the 2003 conflict. In April 2004, over 70,000 persons were reported to have fled Fallujah to neighbouring towns as a result of the siege by Coalition forces on the city. Following the end of the fighting, as previously observed, families quickly returned to their homes in Fallujah.

In addition, a group of Kurdish families was displaced during the Falluja crisis.”

UNAMI, 1 March 2005

“Post-election violence sparked an increasing number of 'hotspots' throughout central Iraq with implications for further internal displacements as a result of military operations or ethno-religious tensions. In particular, the situations in Mosul, Kirkuk, and Ramadi were monitored for potential outbreaks of conflict and concerns regarding civilian protection.”

Secondary displacements

Many refugees return to a situation of displacement (2005)

UNHCR, October 2005, p.24

“In addition, many returnees from abroad ended up in internal displacement, largely because of the lack of absorption capacities, ongoing conflicts and property disputes.”

OHCHR, 9 June 2004, p.21

“[B]y April 2004, an estimated 80,000-120,000 persons had returned from, inter alia, the Islamic Republic of Iran, Lebanon and Saudi Arabia. Most of the returns have been unassisted and

spontaneous. It is assumed that many of those who have returned did so to a situation of displacement."

Note: *There are also cases of other non-Iraqi Arabs (mainly Palestinians and Sudanese) who have been living in Iraq for more than two decades being forced to leave their homes due to discrimination by Multinational Forces and Iraqi forces. (For more information, see ["Focus on treatment of foreign Arabs"](#), IRIN, 21 June 2005)*

Local sources say that most Arabs left of their own accord (2005)

- Governor of Kirkuk says most arabs left voluntarily
- Human rights groups say hundreds of Arabs have been driven out during after 2003

Reuters, 23 June 2005

"The new governor of the Iraqi city of Kirkuk, a Kurd, says Arabs have not been driven out of the disputed city and those who have left have done so of their own accord.

"We as the administration in Kirkuk never put any pressure on anyone to leave, but some left because they wanted to," said Abdul Rahman Mustafa Fattah, who was elected governor this week after months of dispute in the ethnically split city council.

"There is no pressure on anyone to leave Kirkuk, but some Arabs, who we also consider as victims of the former regime, decided to go back to their original cities. It was their decision," he told Reuters in an interview this week.

"Also, some of the Kurds and Turkmen who were deported from Kirkuk came back," he added, speaking at his fortified office in the centre of Iraq's northern oil capital.

If anywhere in Iraq is a potential spark for a long-feared but as yet unrealised civil war, it is Kirkuk, a city of around one million people that sits atop some of the country's richest oil fields, about 250 km (155 miles) north of Baghdad.

The city, whose old sections are a charming if crumbling collection of tightly knotted alleyways filled with market stalls, is claimed by three ethnic groups -- Kurds, Arabs and Turkmen, a Turkish-speaking minority.

During Saddam Hussein's rule, Kurds and Turkmen were forceably removed from the city and its outlying areas to make way for poor Arabs from the south, who were promised land and other incentives as part of a process called "Arabisation".

Since Saddam's overthrow in April 2003, displaced Kurds and Turkmen have flooded back to the city, hoping to reclaim property and land.

Human rights groups say hundreds of Arabs have been driven out during the same period and some Turkmen who stayed under Saddam have also left for outlying areas, although security has made it difficult to catalogue the exact number.

Political parties keen to increase their presence in the city have encouraged returns in some cases, although Fattah denied any deliberate policy: "If there was a plan, then all the Kurds who were forced to leave would have been back by now."

Kurds are clear that they would like to make Kirkuk, which lies about 25 km (15 miles) outside the present boundaries of the Kurdish region, the capital of Kurdistan, a goal strongly, even violently, opposed by Arabs and Turkmen.

"NATURALISED CITY"

Earlier this month, Arabs and Turkmen in the city said the police force, which is majority Kurdish, and other Kurdish security forces had arrested hundreds of Arabs and Turkmen on the streets and removed them to jails in the Kurdish region.

The police denied it but U.S. officials said around 200 people had been detained and imprisoned in Kurdistan. They said they were concerned about rising ethnic tensions in the city and had raised the issue with the Kurdish authorities.

The tensions have risen since January, when local elections saw Kurds tighten their political hold.

Many Arabs and Turkmen boycotted the vote, accusing Kurds of bringing more Kurds into Kirkuk to increase their support. In the event, a Kurdish list secured 26 of the council's 40 seats, Turkmen took eight and Arabs and others the remainder.

Disputes over the outcome, which delayed forming the provincial council, were settled this week, even though some Arabs and Turkmen again boycotted. The head of the provincial council is now a Kurd, while the deputy's post is open.

Governor Fattah was elected as part of the same process.

Numbers in Kirkuk are essential because in the coming months, under Iraq's interim constitution, property claims must be resolved, a census held and possibly a referendum conducted on the city's status. The details are set out in the interim charter's Article 58, which is held dear by Kurds.

For Fattah, everything about Kirkuk's future is determined in the interim constitution, which all Iraq's players signed.

"There may be differences on Kirkuk's political views and its future," Fattah says. "But we have the law, it is clear, and says that Article 58 should be implemented to return things the way they were before ... the regime.

"Everyone agrees on the naturalisation of Kirkuk," he said using a term favoured by Kurds to describe their hopes for majority control. "There is a law and everybody agreed on it.

"Everybody signed it."

Return of Kurds cause displacements of Arabs in and around Kirkuk (2003-2004)

- Thousands of displaced Kurds, Turkomans and others began returning to Kirkuk and some other Arabised regions in April 2003 to reclaim their land and homes, most of whom were expelled during Saddam Hussein's regime in the 1980s and 1990s
- Their return caused the displacement of Arab families brought to the region
- Refugees International estimates that around 100,000 Arabs were displaced following the fall of the former regime (November 2003)

- Local authorities say that nearly 16,830 Kurdish families have moved to the city since March 2004 and were living in old government buildings or were camping on the outskirts of Kirkuk, waiting to return to homes they said they had been evicted (May 2005)
- Local sources estimate the number of displaced Arab families to be around 4000
- Many displaced Arabs continue to refuge in military camps around Kirkuk, whereas others have fled to the outskirts of the Southern provinces, also remaining in a situation of displacement
- Turkomen are reported to be leaving the city due to fear of discrimination by the predominantly Kurdish population (May 2005)
- IRIN reports in September 2004 indicate that Arabs continue to be displaced from Kirkuk

UNHCR, October 2005, p. 76

"After the fall of the former regime, Kurdish parties seized control of key positions within Kirkuk's security forces and enabled the return of thousands of displaced Kurds and Turkmen to Kirkuk, thereby causing the displacement of Arabs, who fled out of fear or because of harassment and threats."

Refugee International, 21 November 2003

"The return of Kurds to their former homes has in turn displaced the Arabs living in them. About 100,000 displaced Arabs are living in poor conditions in public buildings or in military camps. The UN reports that inadequate water, sanitation, and shelter, and the presence of unexploded bombs are the main problems they face."

HRW, 3 August 2004

"Since April 2003, thousands of internally displaced Kurds, Turkomans and others have returned to Kirkuk and other Arabized regions to reclaim their homes and lands which have since been occupied by Arabs from central and southern Iraq. These returnees were forcibly expelled from their homes by the government of Saddam Hussein during the 1980s and 1990s.

'Kurds are flocking back to Kirkuk, but the city has little capacity to absorb them,' said Whitson. 'They are living in abandoned buildings and tent camps without running water or electricity supplies, and they face precarious security conditions.'

At the same time, little effort has gone into finding just and durable solutions for the so-called Arabization Arabs who, in their turn, have become the latest victims of internal displacement. Many such families fled their homes during the U.S.-led invasion or were forced to do so subsequently, particularly in rural areas, but have remained in the vicinity in makeshift shelters and without basic amenities. Others living in urban areas, notably Kirkuk, never left and are waiting for their own property claims to be resolved."

HRW, August 2004

"Human Rights Watch researchers who were present in northern Iraq at the time of the fall of Kirkuk found looting and expulsions taking place in rural villages built for Arab settlers just south of Kirkuk. In early April 2003, about 2,000 members of the al-Shummar tribe had been evicted by force from the villages of al-Muntasir, Khalid, al-Wahda, Umar Ibn al-Khattab, and Sa'ad, where they had been resettled in 1973 on agricultural land seized from Kurds. The Arab families told Human Rights Watch that they had been forced to abandon their homes at gunpoint by armed Kurds, and ordered to leave possessions such as cars, tractors, and household goods behind. 'They would have killed us if we hadn't left,' one elderly Arab woman explained. When Human Rights Watch visited the area again later that month, it found the village of al-Muntasir abandoned and ransacked, and some of the homes had been spray-painted with the names of Kurds to whom the Kurdish authorities had apparently given permission to return. A PUK official in the

nearby town of Daquq explained that his party had adopted the policy that all persons resettled by the government in the north should return to their original homes.¹²¹ Senior PUK leaders denied that they were implementing a forced expulsions policy and said they would take measures to prevent further abuses."

IRIN, 23 September 2004

"There are reports of the continuing displacement of Arabs from Kirkuk in the north of Iraq, many of whom are living around old military bases 10 km north of the city, according to local aid agencies.

Others have taken refuge in abandoned schools inside Kirkuk or in small villages after being forced out by the Kurds.

'The Kurds have been forced by Kurdish officials to return to the city before a national census takes place in October 2005,' officials of the Islamic Arabic Union in Iraq told IRIN in Kirkuk. The organisation is helping the displaced by providing food, but say that much more aid is needed.

[...]

The International Committee of the Red Cross (ICRC) said there were difficulties in assisting the displaced Arabs since they were widespread and their numbers were not known. 'This situation should be taken care of by the government as soon as possible,' Ahmed Rawi, an ICRC spokesman, told IRIN in Baghdad.

[...]

The Kurdish government says its aim is to ensure a favourable ethnic balance before the start of a national census and a planned referendum on Kirkuk's future, to be held in early 2005 as part of the national election.

[...]

There are reports that Kurds are moving back to the city and are waiting for houses in tents, in the hope that houses are being vacated.

'There were more than 800 here but every day dozens more are arriving,' Kharish Rozbayani, who deals with resettlement issues under the Patriotic Union of Kurdistan party, told IRIN in Kirkuk. 'More than 250,000 Kurds were forced to leave here for the sake of Saddam's inspiration of independence, and we are preparing to get our rights to return to our land,' Rozbayani said. 'We are from Kirkuk and we are back now,' he added.

Many of the displaced Arabs have gone to live with relatives in southern Iraq, particularly Nasiriyah and Basra, but others who don't have a place to go are living in unused or damaged buildings, according to some humanitarian organisations.

Their living conditions are said to be bad due to the absence of sanitation and potable water. Some Arabs claim they didn't have time to move their belongings as the Kurds pushed them out. 'Saddam forced us to go in and now the Kurds have forced us to leave, and we didn't get anything but suffering for our family,' Ahmad Abo-Abdu, 55, whose displaced family now lives at the military base near Kirkuk city, told IRIN.

Arab leaders in Kirkuk claim that some people refusing to vacate their houses have been abducted by Kurds. 'The [political] parties are pushing the population back and trying to kick out the Arabs,' Mohammed Khalil al-Jaboury, 38, an Arab city council member, told IRIN. He added that the local authorities in Kirkuk were not doing anything to help them and had made false promises."

Shelling and incursions

Alleged shelling from Iran causes Kurdish families to flee (2006)

- IRIN reported 200 families were forced to flee
- AFP reported dozens of families fled
- Iran neither denied nor confirmed having shelled areas in Iraq
- Reports suggest that all families were able to return to their homes

UNAMI, 18 July 2006

“ In Sulaymaniya, approximately 200 families were said to have fled their shelters after skirmishes, on 1 May, between Iranian troops and Iranian Kurdish elements allegedly operating from the Iraqi territory. It is reported that all families have subsequently returned to their homes.”

IRIN, 2 May 2006

“About 200 families fled their homes on the Iraq-Iran border on Monday as Iranian forces shelled areas used by Iranian-Kurdish rebels, according to Kurdish officials.

“The shelling began on Sunday and continued until Monday morning,” said Azad Waso Hassan, member of the Patriotic Union of Kurdistan, which controls the area. [...]

Hassan added that about 1,500 people from several villages in and around Sulaimaniyah, some 260km north-east of Baghdad, had been forced to flee as a result of the violence.

“Bombs shook our houses that night; we thought we wouldn’t see the sun again,” said Qader Ali, a 43 year-old farmer forced to flee his home along with five family members. “We suffered under Saddam, and continue to suffer now – the government must do something to help us,” added Ali, who is currently staying at his brother's house in a nearby village.

According to Hassan, more than 180 artillery rounds were fired into the area, many of which landed near the Iraqi village of Haj Umran outside of Erbil, roughly 5km inside Iraqi territory. No casualties were reported in either attack. Iranian forces reportedly launched a similar artillery barrage in the area on 21 April.

Kurdish rebels have recently staged attacks against Iranian army and Revolutionary Guard positions from territory in Iraq. In response, Teheran has reportedly massed troops on the border, near the mountainous areas close to Haj Umran, which has been used in the past by anti-Iranian fighters thought to be linked to the militant Turkish Kurdistan Workers' Party, or PKK.

The Iraqi Red Crescent Society (IRCS), meanwhile, has said it has no specific reports about those displaced by the shelling. “But we have sent blankets, food and other things to help these families,” said IRCS Director Dr Saad Haqi.”

AFP, 1 May 2006

“Iranian forces shelled Kurdish rebel positions in Iraq for the second day, forcing dozens of Kurdish families to flee.

“The Iranians shelled PKK positions from 9 pm (1700 GMT) on Sunday until 5 am (0100 GMT) on Monday,” Rustom Judi, a leader of the rebel Kurdistan Workers' Party (PKK) in Iraq's northern province of Sulaimaniyah, told AFP.

"Dozens of families were forced to leave their homes," he said Monday.

"We have casualties," he added, but did not provide further details. Iranian troops targeted positions around the villages of Laradu, Rushga and Qalaa Tuka about 190 kilometers (118 miles) north of Sulaimaniyah in the region's rugged mountains, Judi said.

On Sunday, Iraq's defence ministry said Iranian forces had entered Iraqi territory and shelled PKK positions over a period of 24 hours. Iran on Monday refused to confirm or deny its troops had crossed into Iraqi soil.

"I do not confirm the entry of our forces into the territory of neighbouring countries, notably Iraq," government spokesman Gholam Hossein Elham told reporters.

"We have security cooperation accords with neighbouring countries and we act within the framework of these accords. There is no cause for concern over this kind of thing with neighbouring countries," he said.

On April 20, Iranian shelling killed at least two people and injured 10 others in Iraq, the PKK said, while a group linked to the rebels, Pejak, killed four fighters inside Iran in weekend violence.

Iran is bound by treaty with Turkey to fight the outlawed PKK, which has waged a 15-year insurgency against Ankara for self rule in Turkey's mainly Kurdish southeast.

In return, Turkey has pledged to fight the Iranian armed opposition group, the Iraq-based People's Mujahedeen."

Difficult to assess extent of internal displacement caused by US and British bombing raids (2000)

- Since the end of 1998 US and UK forces have been carrying out regular strikes on Iraqi targets inside the no-fly zones
- The extent of internal displacement caused by U.S. and British bombing raids could not be determined

AI 24 November 1999, "Background"

Since the end of December 1998 US and UK forces have been carrying out regular strikes on Iraqi targets inside the two air exclusion zones in northern and southern Iraq. These zones, north of the 36th parallel and south of the 33rd parallel, were imposed by allied forces at the end of the Gulf War in 1991 and were intended to protect Iraq's Kurdish and Shi'a Muslim population. These strikes have reportedly resulted in the deaths of dozens of civilians and the destruction of civilian property and left many more injured."

Reuters, 17 December 1998

"The United States and Britain said the attacks were launched after Baghdad refused to cooperate with the inspectors, who are charged with ridding Iraq of its weapons of mass destruction."

USCR 2000, "Southern Iraq"

"The extent of internal displacement caused by U.S. and British bombing raids could not be determined, but such raids continued in the skies over southern Iraq throughout 1999. By mid-August, 134 Iraqis had reportedly been killed by bombing raids. Press reports indicated that this

figure includes civilians, such as 11 members of one family who were killed in Jassan, 125 miles southeast of Baghdad on August 17."

Turkish, Iraqi and Iranian incursions all caused internal displacement in the north (1998-2002)

- Turkey incursions against the PKK (Kurdistan Workers' Party, based in Turkey) and fighting between the PKK and the KDP (Kurdish Democratic Party, based in northern Iraq)
- On a smaller scale, guerrillas of the KDPI (Kurdish Democratic Party of Iran) have been bombarded by Iranian troops, generating displacement of both Iranian and Iraqi Kurds
- Iraqi incursions into northern Iraq despite no-fly zone reported in 2000 and 2001

Graham-Brown, April 1998, "Conflicts Intersect"

"In northern Iraq the causes of internal displacement are complex: they include Turkish military incursions, PKK activity, internal conflict between Iraqi Kurdish political parties, and deportations of Kurds and Turcomans from government-controlled areas of Iraq. "

Turkish incursions against the PKK (Kurdistan Workers' Party)

Dammers, 1998, p.183

"Despite increasing hostility for the KDP [Kurdish Democratic Party], guerrillas of the PKK (Kurdistan Workers' Party), which pursues a separatist guerrilla war in Turkey, have established bases in northern Iraq. These have been the target of frequent Turkish bombardments and incursions, with major invasions taking place in October 1992, March 1995, June 1996, May 1997 and September/October 1997. Fighting between the PKK and KDP has continued intermittently since 1995, and was a significant factor in the displacement of late 1997."

UNHCR June 2000, p.5

"The Turkish army signed an agreement with the KDP in May 1997, reportedly to use its forces as a border police. The truce of 1998 between the PUK and the KDP further came under strain since several thousand PKK fighters moved back into Northern Iraq in 1999, after withdrawing from South-Eastern Turkey, disestablishing the political and military balance in the area. However, there are no reports of renewed alliance between the PUK and the PKK. A prominent member of the KDP has referred to the PKK as a terrorist organization who is responsible for the massacre of Kurdish villagers along the border with Turkey.

Turkey continues raids into Iraqi Kurdistan in search of Kurdish rebels and this in turn has led to Iran to search for Kurdish organizations in Northern Iraq to use as proxies. Iran, Turkey, Syria and the Government of Iraq are all opposed to the creation of a Kurdish state."

HRW, December 2000, "Human Rights Developments"

"Further incursions [by Turkey's armed forces into northern Iraq] were carried out in April, May, and August 2000, resulting in one case in the killing of thirty-eight Iraqi Kurdish civilians."

Iranian incursions and the KDPI

Dammers, 1998, p.183

"A parallel situation, though on a smaller scale, has existed on the Iranian border, with guerrillas of the Kurdish Democratic Party of Iran (KDPI) being bombarded by Iranian troops, generating displacement of both Iranian and Iraqi Kurds. Iranian conflict with its own Kurdish separatists has not, however, precluded cooperation between Iran and the PUK, especially when the rival KDP has allied itself with the Iraqi or Turkish governments. Indeed, the events of 1997 generated common interest between the KDP, Iraq and Turkey on the one hand and the PKK, PUK and Iran on the other, which proved quite capable of translating into unlikely alliances on the ground."

Iraqi troops incursions into Northern Iraq

RFE/RL 8 December 2000

"Iraqi military forces have entered areas lying north of the 36th parallel, a reliable Kurdish source in Irbil has told London's 'Al-Sharq Al-Awsat' on 10 November [2000]. The paper noted that Iraqi forces are forbidden from entering these regions which have been subject to British and American patrols of the no-fly zone for the past nine years. This latest encroachment reportedly took place in a village in the Irbil plain close to the area which separates the governorate of Ninaweh from the Kurdish regions outside of Baghdad's control.

The Kurdish source said government forces 'came to the edge of the village where they dug trenches and set up fortifications. The soldiers began intimidating the people of the village to force them to abandon it.' In the preceding year, Iraqi forces had crossed the demarcation line at the village of Unwaynah, between Irbil and Ninawah, and also shelled the villages and areas along the line."

HRW, 2002

"Iraqi troops were deployed to the northern region on several occasions, apparently with the aim of launching armed attacks on Kurdish-controlled territory. In mid-June, the government deployed tanks, armored personnel carriers, artillery and infantry units south of Arbil, coinciding with efforts by the U.K. and the U.S. to restructure the economic embargo imposed on Iraq and to impose "smart sanctions." Government troops clashed with PUK forces in the Kifri region on September 9 [2001], and in early October they reportedly entered and occupied the village of Sadawa, south-west of Arbil. The KDP said that repeated artillery bombardment of some thirty front-line villages by government troops had resulted in the displacement of their inhabitants."

Clashes between Kurdish factions

Kurdish in-fighting has caused internal displacement in the North (1998-2002)

- Displacement of Kurdish families in northern Iraq due to clashes between PUK and Islamic opposition (2001-2002)

Dammers 1998, p.182

"Since 1994, displacement has most commonly followed conflict between the two main Kurdish parties, the KDP and the PUK, usually along the border between their respective territories: in and around the city of Arbil and along a fluctuating front line from Arbil to the Iranian border. People identified with one party (an identification generally based on clan loyalty rather than ideology) living in territory controlled by the other feel highly vulnerable and have frequently been displaced."

Anfal Campaign

The 1988 Anfal Campaign

- The Anfal campaign followed the 1980 Iran/Iraq war
- Under the direction of Ali Hassan al-Majid, a cousin of Saddam Hussein, chemical weapons were used against Kurds in northern Iraq

- The Anfal campaign reached genocidal proportions, around 100,000 Kurds were murdered
- Also in the context of Anfal, the Iraqi government destroyed between 3000 and 4000 Kurdish villages and towns displacing hundreds of thousands of Kurds
- It is believed that some were settled in government controlled settlements while others were deported to southern Iraq or fled to neighboring countries

HRW, August 2004

"During the 1980-88 war between Iraq and Iran, the Kurdish *Peshmerga* reconstituted itself, with backing from Iran. Towards the end of the Iran-Iraq war, from February 23 until September 6, 1988, the Iraqi government launched its Anfal campaign against the Kurds, under the direction of 'Ali Hassan al-Majid, a cousin of Saddam Hussein who earned the nickname 'Chemical Ali' for his use of chemical weapons against Kurds in northern Iraq. The Anfal campaign reached genocidal proportions, resulting in the 'disappearance' of some 100,000 Kurds, whose bodies are now being recovered in mass graves located across Iraq. During the Anfal campaign, the Iraqi government destroyed between 3,000 and 4,000 Kurdish villages and towns, displacing hundreds of thousands of Kurds. Some of the displaced Kurds were settled in army-guarded 'collective settlements,' while others were deported to southern Iraq or fled to neighboring states, notably Iran. The Anfal operation devastated Iraqi Kurdistan, leaving the entire region in ruin and a large proportion of the population displaced.

The genocidal nature of the Anfal campaign made it drastically different from the earlier and later Arabization campaigns. However, for the displaced Kurds, the impact of the Anfal campaign was similar. After the 1991 Gulf War (see below), Kurdish villagers displaced during the Anfal campaign were able to return to many destroyed villages that were within the zone controlled by Kurdish forces. However, some villages destroyed during the Anfal fell outside that zone – for example parts of Makhmour district – and displaced Kurds were unable to return to those areas."

See also, [Ali Hassan al-Majid and the Basra Massacre of 1999, HRW, February 2005](#) and the ["Anfal Campaign" maps](#)

Military incursions and political persecution in the south

Efficient forced displacement: a policy of the Iraqi Government (2002)

- Expulsions from homes has been used as a punishment, to obtain economic resources or undermine political opposition
- Overwhelming force used to achieve expulsions and destroy villages, but more bureaucratic methods used if villages used for Arab inhabitants

Fawcett & Tanner, Oct 02, p1

"In Iraq, the expulsion of people from their homes has long been state policy. Expulsions have been undertaken to punish and subdue recalcitrant populations. To this end, genocidal acts have taken place against the Kurds in the 1980s and against the Marsh Arabs in the 1990s. On other occasions, expulsions have been part of a strategy to secure valuable economic resources, as with the on-going 'Arabization' campaign against the Turkmen, Kurds, and Assyrians. Expulsions have also been used to undermine the growth of political opposition as with the Shi'a in the south, or to forestall a fifth column as with the *taba'iyya*, those thought to be sympathetic to Iran, at the beginning of the war in 1980. In Iraq, over the last thirty years, there has never been a time when one group or another was not being expelled from their homes.

The tactics used to accomplish the expulsions have included the use of overwhelming force, with the full-fledged deployment of infantry, armor and weapons of mass destruction, backed up by village demolition crews. In cases where the regime wished to retain physical infrastructure and merely change the identity of the inhabitants, more bureaucratic processes were used and continue to be used, such as regulations imposing national or religious restrictions on land ownership, employment, access to health and education, and humanitarian assistance. Carefully planned and executed expulsion operations sometimes occurred virtually overnight, with large numbers of people on the run, with only the clothes on their backs. Another method of expulsion, a slower, albeit surer, one which we will examine more closely below, were large-scale construction projects that radically altered the environment – the draining of the southern marshes is the prime example – in order to accomplish military, political, or even economic goals. Indeed, the expulsion of the Marsh Arabs can be viewed as a form of development-induced displacement – beneath what used to be marshland lie some of the world's largest untapped oil fields."

Marsh Arabs forcibly displaced from the traditional marshlands (1980-1990s)

- During the Iran-Iraq war in the 1980s, many Marsh Arabs were forced to flee due to military operations and the presence of Iranian soldiers in the marsh area
- Others were forced to flee in the 1990s for political reasons, many Marsh Arabs perceived to be allied with Shi'a opponents of the former regime
- Since 1992, the government forcibly resettled some 4,000 Marsh Arabs to houses along the highway between Basra and Al-Qurna
- In 1991, it was believed that some 250,000 people were living in the Marsh area, today it is estimated only 10,000-20,000 remain
- Human Rights Watch believes that many of the acts of the Iraqi government's systematic repression of the Marsh Arabs constitute a crime against humanity
- Displacement was used as a strategy to punish and subdue recalcitrant populations, to secure valuable economic resources and to undermine the growth of political opposition
- In the Marsh area, government forces have burned and shelled villages, and built dams to divert water from the marshes to depopulate the area
- Population in the Marsh area had to submit to compulsory resettlement within Iraq, leave the country, or remain in the drained marshlands, deprived of their water-based means of livelihood
- UNEP study: experts predict that unless urgent action is taken to reverse the trend and rehabilitate the marshlands, the entire wetland system is likely to be lost within three to five years

UN Cluster 8 on IDPs and Refugees and UNCT August 2004

"Tensions between the former Government (largely Sunni) and the majority Shi'a population often mirrored the events in the north. There were numerous confrontations between the Government and the Shi'a population culminating in the 1991 Shi'a uprising following the Gulf War. The military crushed the revolt forcing many Shi'a to flee to the northern protected areas, into Iran, or deep the southern marshlands. In 1992 the Government implemented a housing programme to move some 4,000 Marsh Arabs to houses along the highway between Basra and Al-Qurna. The forced resettlement policy allowed the marsh drainage programme to begin. The Government ordered the destruction of the southern villages and had dams built to divert water from the marshes allowing the army to infiltrate areas where many Shi'a had found refuge.

Over ninety percent of the Marshlands were destroyed by the project creating a socio-environmental catastrophe of epic proportions. Along with the destruction of the marshes, the livelihood and homes of the people were destroyed. In 1991, it was believed there were 250,000 people living in the Marshes. Today it is estimated a mere 10,000-20,000 remain. Most have established makeshift settlements at or near their original marsh locations and a minority have resettled in and around the towns. Marsh Arab IDPs have been located as far north as Baghdad, however the numbers decline significantly as distance increases from the marshlands.

Differing opinions exist regarding durable solutions for the Marsh Arabs. The older generation want to see the marshes re-flooded to allow a return to their traditional way of life. The younger generation wants to have stable employment, secure agriculture and better access to services, and question a return to their traditional lifestyle. This remains to be a major national challenge which requires a comprehensive policy and national strategy led by the Iraqis and supported by the international community including the United Nations.”

HRW, January 2003, p2
“Population & Tribes

With an estimated population of 200,000 – 300,000 persons the Marsh Arabs are divided into a large number of tribes and further sub-divided into clans [...]. For the areas visited during this assessment, information on the tribe concentrations and an estimate of number of families was collected. The average family size was found to be 10 persons. It is worthy of note as the marsh dwellers live in extended family structures, a household often includes two to four families.

The Destruction of the Mesopotamian Marshlands [1]

Historically the Mesopotamian marshlands have constituted an integral part of south-west Asia's largest river system, which is centered on the Tigris and the Euphrates. However, since the 1950's the basin's ecology has been fundamentally altered by the construction of dams and drainage schemes (including major projects in Turkey, where the Tigris rises), which have substantially reduced the water supply and eliminated the flood pulses that have historically sustained the wetland ecosystems in the lower basin. Following the end of the Iran-Iraq War, the diking and diversion of Euphrates waters into the canal originally intended solely for saline irrigation waters greatly accelerated the drying out of the Al Hammar marshes to the north-west of Al Basrah [...]. A large swathe of the Central Marshes was drained to facilitate the movement of military units during the Iran-Iraq War and in 1992 a major drainage project was initiated in this region. In parallel, the marshlands hold almost 50% of the total proven oil reserves in Iraq. According to UNEP both the Al Hammar and the Central Marshes no longer exist. By 1994, following the canalization of the two main Tigris tributaries replenishing the Al Hawizeh marshes, these were drying out quite rapidly – the same year the Iraqi government intensified its campaign against the Marsh Arabs and dissidents who had been taking refuge in the inaccessible marshlands. The above drainage projects and the coincidental impoundment of the Ataturk Dam (which reduced the flow of the Euphrates to an all-time low) caused extensive areas of the marshlands to disappear completely, to be replaced by bare land and salt crusts which are incapable of supporting traditional Marsh Arab society, the existence of which has, from time immemorial, been entirely dependent on the wetland ecosystem. In 1973 the marshlands covered an area of 8,926 km², extending to 20,000 km² during seasonal inundation of land. By the year 2000 this had been reduced to just 1,297km². Although they are regarded as a semi-nomadic people, many Marsh Arabs had settled in villages located on the edges of the marshes or on artificial floating islands in the wetlands themselves. Their main income-generating activities were fisheries, livestock breeding, hunting and woven reed mats which were sold in markets throughout Iraq.

Displacement of the Marsh Arabs

During the Iran-Iraq war (1980-88) the marshes, particularly the Al Hawizeh Marshes (lying to the south-east of Al Amarah) became a front-line combat zone and many of the Marsh Arabs were forced to flee both the encroaching Iranian soldiers and the military operations of their own troops, which included the electrification of the marsh waters. In 1991, in the immediate aftermath of the Gulf War, some Marsh Arabs joined in an uprising by southern Shi'a against the Iraqi regime. This uprising was brutally suppressed, many Marsh Arabs, and other Shi'a who had taken refuge amongst them were killed and their villages destroyed. As the marshlands began to dry out in the early 1990's the Marsh Arabs began to flee in even greater numbers. During the 1990's the government also instituted a policy of forced resettlement, moving many Shi'a from the southern marshlands to replace the Kurds, Turkomen and Assyrians who had been expelled from the major northern cities.

Current Situation

Whether the traditional marshland environment and society can ever be recreated is the subject of some debate. In the meantime, the most Marsh Arabs continue to endure the privations suffered by all vulnerable peoples within this desperately poor country. Today few Marsh Arabs (perhaps only 10,000) are living in their traditional marshlands, less than 10% of which can now sustain their traditional way of life. Estimates of the number of internally displaced Marsh Arabs range from 100,000 to 200,000 and up to 100,000 are believed to have left the country as refugees, of which 40,000 are currently in Iran and have been known to cross back and forth over the border." (UNOCHI, June 2003)

"Human Rights Watch believes that many of the acts of the Iraqi government's systematic repression of the Marsh Arabs constitute a crime against humanity. The crimes were committed as part of a widespread and systematic attack against the civilian population of the Marsh Arabs during the decade of the 1990s. The attack involved the multiple commissions of acts in furtherance of state policy. The underlying crimes include:

- Murder of thousands of unarmed civilians following the abortive March 1991 uprising, through summary execution and the indiscriminate bombardment and shelling of residential areas in towns and villages in the vicinity of Basra, al-Nasiriyya, al-'Amara and across the marshes region;
- Forcible population transfer—coercive expulsion of part of the Marsh Arab population from their native villages to settlements on dry land on the outskirts of the marshes and along major highways to facilitate government control over them;
- Arbitrary and prolonged imprisonment of thousands who had been arrested during and in the aftermath of military bombardment of residential areas in the marshes, including civilians and others suspected of anti- government activities;
- Torture of Marsh Arab detainees held in government custody, in order to extract information from them, as punishment, and as a means to spread fear among the local population;
- Enforced disappearances of many of the Marsh Arabs arrested during the 1990s, whose fate and whereabouts remain unresolved to date;
- Persecution of the Marsh Arabs through the intentional and severe deprivation of their fundamental rights on the basis of their religious and political identity as a group."

Footnote

[1] Information in this section was paraphrased from the UNEP Report 2001: The Mesopotamian Marshlands; The Demise of an Ecosystem. Oil comment: Human Rights Watch, "The Iraqi Government Assault on the Marsh Arabs." January, 2003.

UNEP, April 2003

"The entire Marsh Arab community has suffered huge social and economic upheaval as a result of the marshlands' destruction, with about 40,000 people forced to flee to southwest Iran and hundreds of thousands internally displaced within Iraq. The impact on biodiversity has also been catastrophic. A new study conducted by UNEP indicates that, of the remnant wetlands surviving

in 2000, one-third had disappeared by 2002. UNEP experts predict that unless urgent action is taken to reverse the trend and rehabilitate the marshlands, the entire wetland system is likely to be lost within three to five years. This will only be feasible through regional cooperation."

USCR 2000, p.188

"The Iraqi government has long been openly hostile to the Marsh Arabs, or *Maadan*, people living in the marshlands between the Tigris and Euphrates rivers in a triangle-shaped region formed by the cities of Amarah, Basra, and Nasiriyah. Following the suppression of the 1991 Shi'a uprising in southern Iraq, many opponents of the Baghdad regime fled to the marshes, and the Iraqi government intensified a pacification campaign it had been directing toward the *Maadan* since 1989.

Since 1991, government forces have burned and shelled villages, and built dams to divert water from the marshes to depopulate the area. Repressive policies in 1999 included diverting water from the marshes and denying food rations to thousands of people allegedly associated with opposition groups."

AMAR, 21 May 2001, p.6

"The construction of dams, forcible migration of communities, the draining of the Marshlands that was carried out in the 1990s was an extension of earlier trends. However an obsession for security drove the agenda. By depopulating the Marshlands, by reducing the area to desert, the region was no longer able to provide a sustainable refuge for dissidents. Saddam Hussein was able to impose his own will on the refractory people of the Marshlands. The drainage was carried out with no regard to international obligations concerning water rights or the environment. [...] The Marsh Dwellers had limited options. Like hundreds of thousands of other Iraqis they could submit to compulsory resettlement in an environment not their own. Or they could leave the country as refugees, as about 200,000 did. Or they could remain in the drained Marshlands, deprived of their inherited water-based means of livelihood."

See also: [The AMAR International Case Study: The Marsh Arabs of Southern Iraq Conference, May 2006](#)
[Crimes of War Project, "The Iraqi Marshlands: A Pre-war perspective"](#)

"Arabization" policy

The "Arabization" policy of the former regime (1970s-1990s)

- Mainly from the 1970s and onward, Iraqi administrations displaced hundreds of thousands of ethnic Kurds, Turkomans, and Assyrians from Northern Iraq, repopulating the region with Arabs from central and southern Iraq, a policy known as "Arabisation"
- Arabisation was carried out to gain government control of valuable oil resources
- By the late 1970s, the Iraqi government had forcibly evacuated as least a quarter of a million Kurds from areas bordering Iran and Turkey and the inhabitants relocated to settlements in army-controlled areas of Iraq Kurdistan
- The majority of the displaced Kurdish population were expelled or fled to the Kurdish Autonomous Region,
- Others were resettled in the large-scale 'complexes' or 'collective villages' built by the Iraqi government
- Some were forcibly settled far away in central and southern Iraq

- The government used military force and intimidation primarily but also legal means, invalidating property deeds of the displaced Kurds
- The government nationalized the agricultural lands, making them the property of the Iraqi state
- Arab farmers and their families were resettled in the formerly Kurdish areas
- The majority of Sunni Arabs from the al-Jazeera desert seem to have moved to the north voluntarily or with minimal coercion
- A small number of Shi'a tribes who were moved to the north appear to have been largely forced
- In the 1990s the Iraqi government focused its Arabization efforts on the oil-rich city of Kirkuk and its surrounding area
- Kurds, Turkomans, and Assyrians came under constant pressure to sign 'ethnic identity correction' forms relinquishing their ethnicity and registering officially as Arabs

See also Noori Talabany, [Iraq's Policy of Ethnic Cleansing: Onslaught to Change National/Demographic Characteristics of the Kirkuk Region](#) (1999) .

HRW, August 2004

"Since the 1930s, but particularly from the 1970s onwards, successive Iraqi administrations have forcibly displaced hundreds of thousands of ethnic Kurds, Turkomans (a Turkish-speaking Iraqi minority), and Assyrians from northern Iraq, and repopulated the area with Arabs moved from central and southern Iraq.[2] This policy, known as 'Arabization' (*ta'rib*) was conducted in order to consolidate government control over the valuable oil resources and arable lands located in northern Iraq. The massive forced displacement of Kurdish families from northern Iraq is not synonymous with Arabization, as armed conflict and the genocidal Anfal campaign of 1988 also accounted for large numbers of displaced Kurds. But even when Kurds were displaced by armed conflict or the Anfal campaign, the Iraqi government often ensured that their displacement became permanent and brought in Arab settlers to take over their homes. For the hundreds of thousands of Kurds displaced from their homes by Arabization, armed conflict, and genocide in Iraq, their continued displacement represents a crime that must be redressed.

The first massive wave of forced displacement in northern Iraq followed the 1974 unilateral declaration by the Iraqi government of a Kurdistan Autonomous Region covering the northern governorates of Arbil, Sulaimaniyya, and Dohuk. The area comprised some 14,000 square miles but included only half of the land area claimed by Iraq's Kurds, and excluded the oil-rich lands around the city of Kirkuk. In the wake of the 1974 autonomy decree, the Ba'th Party embarked on the Arabization of the oilproducing areas around Khanaqin, evicting Kurdish farmers and replacing them with Arab tribal families from southern Iraq. Tens of thousands of villagers from the Barzani tribe were also forcibly removed from their homes following the collapse in 1975 of the Kurdish revolt, led by Mulla Mustafa Barzani. The villagers were relocated to barren sites in the southern deserts, where they had to rebuild their lives from scratch. By the late 1970s, the Iraqi government had forcibly evacuated as least a quarter of a million Kurdish men, women, and children from areas bordering Iran and Turkey. Their villages were destroyed to create a *cordon sanitaire* along these sensitive frontiers, and the inhabitants relocated to settlements built for that purpose located on the main highways in army-controlled areas of Iraq Kurdistan.[3]

The scale of the displacement of Kurds in the north during the mid-1970s was immense, displacing the entire Kurdish population from an area reaching from the town of Khanaqin, close to the Iranian border, to the Syrian and Turkish border areas around Sinjar. Many Kurdish villages were bulldozed, and new Arab settlements were built nearby. The bureaucratic nature of the Iraqi state makes it possible to reconstruct the scale of the displacement, as many of the landownership records of the pre-Arabization period still exist. The decrees passed by the Ba'th

government in implementation of its Arabization policy also exist, as do detailed records of the Arab families that were brought to inhabit the vacated areas. An official of the Agricultural Department in Shaikhan district, located in Mosul governorate (renamed Nineveh by the Iraqi government), listed forty-six originally Kurdish and Yazidi villages that had been Arabized in the 1970s.[4]

Tens of thousands of displaced men, women, and children fled into Iran. Most returned to Iraqi Kurdistan after the establishment of Kurdish self-rule in the aftermath of the 1991 Gulf War, but were unable to return to their original villages located outside Kurdish-controlled areas. The majority of the displaced Kurdish population were expelled or fled to the Kurdish Autonomous Region, or were resettled in the large-scale 'complexes' or 'collective villages' built by the Iraqi government. Others were forcibly settled far away in central and southern Iraq, often in majority Sunni towns that formed the backbone of support for Ba`th Party rule. When Human Rights Watch researchers visited the Sunni towns of al-Ramadi and al-Falluja in April and May 2003 respectively, they found entire neighborhoods of desperately poor Kurds who had been forcefully displaced from their homes in the north since the mid-1970s, and had never been allowed to return home.

[...]

The Repopulation of the North with Arab Tribes

The methods used by the Iraqi government to effect the forced displacements of the 1970s and 1980s involved first and foremost military force and intimidation: entire Kurdish villages were completely depopulated and bulldozed by Iraqi forces. But the Iraqi government followed up the brutality with legal decrees aimed at consolidating the displacement. First, the property deeds of the displaced Kurds were invalidated by legal decree, most frequently without compensation or with nominal compensation. The

Iraqi government nationalized the agricultural lands, making them the property of the Iraqi state.

The Iraqi government simultaneously embarked on a massive campaign to resettle the formerly Kurdish areas with Arab farmers and their families, thus completing the Arabization process. The Iraqi government did not have to look far for eager recruits for its Arabization campaign: located southwest of Mosul was the large al-Jazeera desert, home to hundreds of thousands of loyalist nomadic Sunni Arab tribesmen. Enticed with free, irrigated land, and encouraged by their tribal shaikhs, the al-Jazeera tribesmen abandoned their hard lives in the desert and moved north en masse.

One elderly Arab tribesman from the al-Hadidi tribe recounted how his family and other tribesmen had moved north in late 1974 to be resettled in an emptied Kurdish village:

We went to Hin Djok at the end of 1974, October or November. Before this, we used to live like shepherds with our sheep, south of Mosul. We had no lands, and we used to take our sheep [grazing in the desert.] In 1974, the government came and asked if we wanted lands in the north. We were very grateful and voluntarily went to the north. We built our own houses, all of our families built new houses, and we also dug water wells. Each farmer got sixty dunums⁵ of irrigated land.[6]

Another elderly Arab tribesman from the al-Hadidi tribe explained how forty-seven families from his tribe went to the Kurdish village of Khani Siddiq in 1975:

We went to Khani Siddiq in 1975. Before, we were living from place to place in the al-Jazeera desert, in our tents. We owned no land. The government came to us and said they would take us to villages in the north. The government kicked out the Kurds and gave them compensation, and then brought us. The government didn't force us to go to the north. They came and asked us if we had lands and we said no. They said that if anyone wanted to the north, they would take us. We were very happy to go to the north because we had no irrigated lands in the south. There were

little houses in the village. We reconstructed those houses and built some new ones. They gave us sixty dunums each, but this was different in each village.[7]

The process by which Arabs came to the north was remarkably similar throughout the vast region the Iraqi government repopulated with Arabs, stretching from Khanaqin near the Iranian border to Sinjar near the Syrian border. 'Alaiwi Sanur Hamid al-Sayeh, an elderly Arab farmer who moved with about thirty Arab families to the village of Suhaila near the Syrian border in 1974, described his move in nearly identical terms to the version given by the al-Hadidi tribesmen above, who settled in Shaikhan district hundreds of miles away:

We came to Suhaila in 1974. We came from Salahuddin governorate, from the al-Jazeera desert. The government and the Ba`th moved us from al-Jazeera to this village. The government came to us, and announced that there were lands in these villages, and if we wanted to register [for land], we could. We registered, and one day they brought vehicles to transport us. Before this, we were living like bedouin in tents. They assigned each farmer 100 dunums.[8]

The shaikhs of the Arab tribes of the al-Jazeera desert—the area from which the largest number of Arab settlers came—confirmed this version of events in interviews with Human Rights Watch. According to Shaikh Nawwaf Hawwaz al-'Atmi al-Shummar, a leader of the al-Shummar tribe in the north, Iraqi government representatives came to the al-Jazeera desert in 1974, asking them to move north: 'The government came to us and told us to go live there [in the north], saying they would give us some land, just to protect the oil fields. We went to live in seven villages, each with 100 to 150 families.' [9] Shaikh Mustafa Ahmad al-Warsan, the head of the large al-Hadidi tribe that settled dozens of Kurdish villages in the north, gave a similar explanation:

Prior to the 1970s, the Arabs of our tribes used to live in the al-Jazeera desert, and none of them used to own any land. Or they lived in villages that belonged to other people and worked their land [as sharecroppers]. The people who lived in the al-Jazeera desert lived in temporary settlements [i.e. tents] because there was no water there, so their life depended on the rain. The land in the al-Jazeera doesn't belong to anyone [individually], so some people used 500 dunums, others 1,000 dunums. ...The government announced [in the mid-1970s] to all the tribes in the al-Jazeera that there were irrigated lands in the north. Most of the people went north because of these lands. It was different from village to village—some farmers received twenty dunums, others thirty. This depended on the size of the village and the number of people who went to the village. ...The agreement they gave us was that we had rental contracts with the government. Each farmer had a contract and we used to pay a rent rate every year. This contract was renewed annually.[10]

Shaikh Mustafa made a point of crucial relevance to the resolution of the property disputes in the north, namely that the majority of Arabs who came to the north to resettle rural villages were not given title to the land they farmed, but rather worked under annual rental contracts. While the rights of these Arab farmers, who built their homes on the land and often lived there for decades, should not be minimized, at the same time it is of legal relevance that most Arabs were never made the actual owners of the land taken from the Kurds—a situation different from the urban Arabization of Kirkuk, where the Arabs who came to the area were given full title to the land.

Human Rights Watch interviewed dozens of Arab families and Arab tribal leaders who ventured to the north under the Arabization campaign, and the majority of those interviewed clearly stated that they had come to the north by choice, after being offered lucrative irrigated land by the government. Some stressed, however, that their desperate economic situation in the al-Jazeera desert gave them little choice. Shaikh Hamdi Idbis Hussain, head of the al-Luhaib tribe, explained why he decided to accept a government offer to settle formerly Kurdish villages in the Makhmour district in the mid-1990's: 'We went there because the members of my tribe are very poor and had no land. Most of them used to live on just one meal a day.' [11] An Arab farmer who had resettled

from the al-Jazeera desert to the village of Shamarash in Shaikhan district stressed that he had little choice in the move: 'We moved because there was an order from the government to move to this village. Whether I was happy or unhappy, I had to obey that order. During the last regime, if the government gave an order to the people to do something, they had to obey.'[12]

While the majority of Sunni Arabs from the al-Jazeera desert appear to have moved to the north either voluntarily or with minimal coercion, a small number of Shi'a tribes who were moved to the north appear to have come under much greater pressure to do so. For example, the government in 1975 ordered some 150 families from the Shi'a al-Shuraifi tribe to leave their ancestral home in al-Nassiriyya and to resettle in Khanaqin. Their ancestral lands were then given away to other tribes, and they were registered as residents of Khanaqin. The al-Shuraifi leadership claims they were moved against their will and lost their ancestral lands because they refused to join the Ba'th Party and were suspected of being sympathetic to the outlawed Islamic Da'wa and Iraqi Communist parties.[13]

Another Shi'a tribe from the south, the Albu Mahmoud tribe from Kut, also claimed to have been similarly forced to resettle in Khanaqin in 1975: 'We were displaced by the government in 1975 to Khanaqin, because they wanted to take us to the Kurdish areas. We were forced to go to the north: They displaced us to replace the Kurds.'[14] A third Shi'a tribe, the al-Fahd from Kut, also claimed to have been forced to go north, 'because of the ethnic cleansing of the Kurds.'[15] Altogether, Human Rights Watch found about 450 Shi'a families who claimed to have been forcefully resettled by the Iraqi government to Khanaqin. Following the March 2003 war, they were evicted by the original Kurdish owners and were living in abandoned government buildings when Human Rights Watch met them.

The Arabization of the Kirkuk Region

Following the failed 1991 uprisings, the Iraqi government focused its Arabization efforts on the oil-rich city of Kirkuk and its surrounding area. Kurds, Turkomans, and Assyrians came under constant pressure to sign 'ethnic identity correction' forms relinquishing their ethnicity and registering officially as Arabs. [20] Non-Arabs were also required to become members of the Ba'th Party, and to serve in 'volunteer' militias such as *Jaysh al-Quds* (Jerusalem Army) or the *Fida'iyyi Saddam* (Saddam's Martyrs, often referred to in Western media as the Fedayeen). Families that refused to comply were issued formal expulsion orders requiring them to leave their homes and move to Kurdish-controlled areas. The government of Iraq displaced approximately 120,000 persons from Kirkuk and other areas under government control from 1991 to 2000 in furtherance of its Arabization campaign. [21] Arab families were given financial incentives to move north, and the Iraqi government embarked on housing construction projects to bring more Arab families north in order to change the demographic make-up of the north."

[Footnotes]

2 For a historic overview of Iraq's Arabization policies, see Noori Talabany, *Iraq's Policy of Ethnic Cleansing: Onslaught to Change National/Demographic Characteristics of the Kirkuk Region* (1999) [...].

3 Human Rights Watch, *Iraq's Crime of Genocide: The Anfal Campaign Against the Kurds*, New Haven and London, 1995.

4 Human Rights Watch interview with Haji Muhammad Ya'qub Hussain, assistant to the director of the Agriculture Department of Shaikhan, June 10, 2003.

5 The dunum is a Middle Eastern unit used for measuring land areas, dating back to the Ottoman period. The actual size of a dunum varies among Middle Eastern countries. An Iraqi dunum is equivalent to 2,500 square meters.

6 Human Rights Watch interview with Sulaiman Muhammad Ibrahim al-Hadidi, June 6, 2003.

7 Human Rights Watch interview with Muhammad Hassan 'Alawi al-Hadidi, June 7, 2003.

8 Human Rights Watch interview with 'Alaiwi Sanur Hamid al-Sayeh, June 21, 2003.
 9 Human Rights Watch interview with Shaikh Nawwaf Hawwaz al-'Atmi al-Shummari, June 7, 2003.
 10 Human Rights Watch Shaikh Mustafa Ahmad al-Warsan, June 8, 2003.
 11 Human Rights Watch interview with Shaikh Hamdi Idbis Hussain, June 7, 2003.
 12 Human Rights Watch interview with 'Ali Dabas Ibrahim al-Hadidi, June 6, 2003.
 13 Human Rights Watch interview with Shaikh 'Ali 'Aziz al-Shuraifi, May 11, 2003; Human Rights Watch interview with Muhsin Murshid Shulfat, May 9, 2003; Human Rights Watch interview with Karim Khudair Buwajid, May 9, 2003.
 14 Human Rights Watch interview with Sayyid Bashir Saleh Taher, May 11, 2003.
 15 Human Rights Watch interview with 'Ali Tajir, May 10, 2003.
 20 *Tashih al-qawmiyya* has frequently been referred to as "nationality correction" but "ethnic identity correction" is more accurate.
 21 See Human Rights Watch, *Iraq: Forcible Expulsion of Ethnic Minorities* (New York: Human Rights Watch, March 2003). See also, The Iraq Foundation, "Ethnic Cleansing in Kirkuk," January 26, 2001, (concluding that "the deportation of Kurds and Turkomans from areas under government control, and particularly from the Kirkuk governorate, has left over 100,000 people from northern areas homeless and destitute."); UNHCR/ACCORD, 6th European Country of Origin Information Seminar, November 14, 2000, p. 57 (stating that "an estimated 100,000 people...were deported from government-controlled areas, especially from Kirkuk, Khanaqin, and Mosul. They were sent to Northern Iraq for several reasons, yet the majority of them were accused of having affiliations with the opposition parties in the north or abroad. Being a Kurd or Turkmen also sufficed as a reason.").

Non-conflict induced displacement

Flooding has also caused displacement (2006)

- More than 5,000 people displaced in March 2004 by flooding in the Marshlands area
- Around 36,000 people (6,000 families) displaced due to flooding in the south in February 2006
- 100 families were displaced by floods in January 2006

UNAMI, December and January 2006, p.2

"In mid January approximately 100 families were displaced from their houses in Basrah Governorate as a result of floods"

IRIN, 21 February 2006

"Nearly 6,000 families forced to leave their homes in the wake of heavy flooding in northern and southeastern Iraq earlier this month remain displaced, mostly due to the destruction of their houses.

"The devastation by heavy rains of hundreds of houses countrywide has worsened the situation and prevented families from going back, forcing them to stay in improvised camps or with relatives in safe areas," said Ferdous al-Abadi, spokeswoman for the Iraq Red Crescent Society (IRCS).

Nearly 150 houses in Missan governorate and 75 in Salahuddine and Diala governorates have been totally destroyed by the flooding, while more than 900 homes have been partially damaged countrywide, according to the IRCS. Continuous rains, which fell for over two weeks in the first half of February, finally stopped last week.

According to al-Abadi, a total of 7,500 families were displaced in different areas of the country when flooding began on 5 February, with some 1,500 returning to their homes in northern areas where the fall was less heavy. "Around 1,000 families are still staying in camps improvised by the IRCS," she said, adding that the relief effort had been facilitated by the "good relationship between tribes" in the north of the country.

The IRCS has received supplies – including medicines, food parcels, blankets and heaters – from a number of aid organisations, which are expected to last for a month. Nevertheless, the organisation is also calling on the government to find a speedy solution for people whose homes were destroyed. "We call on the Iraqi government to address the problems of the displaced and offer help," al-Abadi said."

UNCT, August 2004

"Floods in the lower southern Governorates of Missan, Thi'Qar and Muthana are an almost annual occurrence when the waters of the Euphrates rise. The former Marshlands would normally expand in size during the flood season absorbing most of the floodwaters. However, since the drainage of the marshes, populations now settled on dry marsh lands often find themselves displaced by the rising waters.

In March 2004, the grid of dykes set up to drain the marshes broke in several locations resulting in the displacement of over 5,000 persons and threatened to displace a further 10,000 people."

POPULATION FIGURES AND PROFILE

Global figures

More than 727,000 newly displaced from their homes due to increase in violence (as of March 2007)

- More than 727,272 people are estimated to have been displaced escalating violence in 2006 (as of March 2007)

NRC/IDMC Note: The figures for the number of people displaced as a result of sectarian and generalised violence which began at the end of February 2006, sparked by the bombing of the Al Ashkari shrine, continue to increase. Estimates in the first months of 2007, suggest that more than 727,000 people have been displaced in the last year (Cluster F, March 2007). All figures should be taken with caution, given that displacement is ongoing and monitoring of population movements is complicated by the poor security situation.

Cluster F, 5 March 2007

727, 272 estimated total individuals displaced since February 2006

UNAMI, 22 November 2006

"The numbers of displaced persons continued to grow steadily, primarily as a result of sectarian and criminal violence. Some 418,392 people have been displaced due to sectarian violence and 15,240 due to military operations since the attack on the Samarra Al-Askari Shrine on 22 February 2006."

UNHCR, 8 January 2006

"UNHCR estimates there were 1.7 million Iraqis displaced internally by end-2006. While many were displaced before 2003, increasing numbers are fleeing the escalating sectarian, ethnic and generalized violence. UNHCR believes that in 2006 some 500,000 Iraqis fled their homes for other areas inside Iraq and that internal displacement is continuing at a rate of some 40,000 to 50,000 a month"

UNHCR on UN Figures as of November 2006

"Since the February 2006 Samarra bombings UNHCR, as Cluster Coordinator for displaced groups inside Iraq [1], estimates some 425,000 Iraqis to have been recently displaced. [2]"

[Footnote1] Cluster F (Refugees, IDPs & Durable Solutions) in Iraq consists of UNHCR (lead agency), IOM (deputy), UNAMI, UNOPS, UNICEF, UN-HABITAT, WHO, UNEP, ILO, UNIDO, WFP, UNDP, OHCHR and FAO.

[Footnote 2] Based on estimates by Iraq's Ministry of Displacement & Migration (MoDM), the Kurdish Regional Government (KRG) and Cluster F partners.

IOM/MODM Figures as of 25 September 2006

177, 354 newly displaced as a result of threats linked to religious orientation, including abductions, assassinations and threats to life, as well as an increase in generalised violence

IOM/MODM Figures as of 22 May 2006

81, 000 people displaced by sectarian violence

IOM/MODM Figures as of 17 May 2006

Following are numbers of displaced as per reports received from monitoring partners since 22 February 2006(details per governorate further below). As displacements are occurring continuously, these tables are not complete and IOM is updating the figures on a continuous basis.

Origin	Displaced to	No. of Families
Baghdad, Anbar, Salah al-Din	Basra	71
Baghdad, Salah al-Din, Babylon, Tameem, Anbar, Diyala	Thi-Qar	440
Tameem, Baghdad, Diyala, Salah al-Din, Anbar,	Kerbala	610
Sha'ab, Dawra, Nahrawan	Baghdad/Tarmiya	96
Baghdad, Thi-Qar, Babylon, Kerbala, Missan, Basra	Anbar	2,554
Diyala, Baghdad, Salah Al-Din, Anbar, Wassit, Babylon, Kirkuk, Ninewa,	Baghdad (various locations)	2,620
Baghdad, Diyala (Baquba, Muqdadiya), and Salah Al Din	Diyala	976
Anbar, Baghdad, Salah al-Din, Baghdad, Ninewa	Najaf	1392
Bagdad (Al Madaen, Al-Nahrawan, Abu Ghraib, Dora and Abu Desher)	Qadisya	200
Various	Wassit	1393
Various (see report below)	Babylon	410
Iraq/Ninawa/ Talafar	Ninewa	319
Samarra, Salah al-Din	Tikrit (27 families) Baghdad (18 families) Thra'a Dijlah (17 families)	62
Salah Al-Din / Beiji	Salah al-Din / Tooz	38
Basra, Thi Qar, Kerbala	Salah al-Din	279
Northern, southern and western parts of Baghdad in particular Abugreb, Aldora and Mahmodiyah	Muthanna	463
Northern, southern and western areas of Baghdad mainly Abugreb, Dora and	Miss	850

Mahmodiyah	an*	
	Ta me em	
Total IDP families		12,773

Total number of individuals, based on 6 individuals per family, is **76,638**.

*Total as per a combination of MoDM and IOM partner information

UNHCR (Cluster F), 26 April 2006

Newly displaced in Iraq

Governorate	22/Mar	26/Mar	27/Mar	30/Mar	4/Apr	5/Apr	6/Apr	11/Apr	12/Apr	16/Apr	17/Apr	18/Apr
Kirkuk		49	49	49	49	49	85	85	98	85	124	124
Ninewa	535	535	535	535	535	535	535	535	535	535	535	535
Anbar	800	800	800	800	800	800	864	864	1,223	1,223	1,223	2,269
Baghdad	761	781	781	781	781	1,000	3,598	3,598	3,598	3,598	3,598	3,598
Dyala	436	629	629	629	629	629	750	750	993	993	1,163	1,163
Salah Al-Din	1	73	73	73	230	230	356	356	802	356*	1,102	1,423
Babylon (Al-Hela)	300	300	300	330	350	350	450	450	450	450	450	450
Basra	20	46	189	175	230	250	280	350	350	450	535	450
Kerbala	350	389	389	389	706*	706*	400	400	400	1,398	1,393	1,393
Missan (Amara)	63	66	66	355	160	320	320	320	320	515	517	517
Najaf	1,000	1,250	1,250	1,250	1,250	1,250	1,600	1,600	1,600	1,600	1,600	1,600
Qadissiyah (Dewanlia)	220	250	250	400	400	400	410	410	410	410	410	420
Samawa (Muthanna)	175	421	447	457	575	575	606	606	635	708	722	722
Thi Qar (Nassiriyah)	430	450	450	675	700	700	840	711	711	1,020	1,250	1,250

Wasit (Kut)	213	215	312	300	360	360	316	324	324	350	354	354
	5,30 4	6,25 4	6,52 0	7,19 8	7,0 49	7,4 48	11,4 10	11,3 59	12,4 49	13,3 35	14,9 76	16,26 8

* These figures need clarification.

(Source: MoDM, but IOM and implementing partners for Ninewa and Anbar)

Total displaced families: 16,268

Approximate **number of individuals** (6 per family): 97,608

Main reasons for fleeing: direct or indirect threats, attacks

Sects: Both Shiites and Sunnis are fleeing.

Movements:

Most of the Shiites are fleeing Central Governorates (mainly Baghdad, Anbar and Salah al Din) towards Southern Governorates (mainly Najaf, Qadissya, Wassit and Karbala).

Sunnis are moving towards the Governorates of Baghdad, Dyala and Anbar from Southern Governorates.

It is important to note that there is also a high intra-governorate movement, particularly in the Governorates of Baghdad and Dyala (Shiites and Sunnis), and inter-governorate movement within the Central Governorates, from Dyala and Anbar to Baghdad (Shiites).

Trends: Displacement is continuing.

Governorates: Governorates with the highest numbers of displaced families are Baghdad, Najaf, Dyala, Salah al Din, Wasit, Thi Qar and, according to information from IOM, Anbar."

Total internally displaced population is estimated to be close to 1.9 million (as of March 2007)

- It is estimated that there are over 1,884,048 million internally displaced people in Iraq today (figure as of February 2007)
- All figures should be approached with caution given that monitoring is complicated by ongoing insecurity and displacement
- The figure is an accumulated figure

IDMC/NRC Note on the figures as of March 2007: The overall figure of internally displaced people in Iraq is estimated to be close to 1.9 million. The majority of the displaced were displaced over 20 years. Some observers note that the overall figure is based on a survey undertaken by UN Habitat in 2001 and may not take into consideration the considerable population movements which occurred since then, including significant population returns in 2003. However, IOM has monitored population movements in Iraq since 2003. Registration and monitoring is complicated by the poor security situation. Four years since the fall of the former government, in the context of the ongoing conflict military operations and sectarian violence have been main causes of displacement. In the last year, a rise in sectarian violence has become the main cause of internal displacement in Iraq. It is estimated that more than 727,000 people have been displaced by sectarian violence since February 2006 and more than 22,380 people displaced by military operations. For further information on figures of new displacement, click [here](#).

Cluster F, 5 March 2007

Governorate	Pre 2003	2003-2005	Pre 2006	Newly displaced (Post Samara)	New IDPs (mil. op.)	Total 2006
Dahuk	22,452	22	22,474	6,751		6,751
Erbil	32,737	76	32,813	4,110		4,110
Sulaymaniyah	50,430	35	50,465	4,939	52	4,991
Total North	105,619	133	105,752	15,800	52	15,852
Ninewa	1,947	4,625	6,572	6,105		6,105
Kirkuk	184	1,068	1,252	1,072		1,072
Anbar	612	1,593	2,205	6,955	3,259	10,214
Baghdad	2,281	1,586	3,867	20,000		20,000
Diyala	2,392	3,453	5,845	7,530		7,530
Salah al-Din	360	3,006	3,366	7,500		7,500
Total Centre	7,776	15,331	23,107	49,162	3,259	52,421
Babylon	654	821	1,475	9,000		9,000
Basrah	15,494	284	15,778	4,300		4,300
Diwaniya	222	932	1,154	3,100		3,100
Kerbala	17,490	1,328	18,818	8,607		8,607
Missan	18,465	406	18,871	4,820		4,820
Muthanna	424	437	861	1,712		1,712
Najaf	3,833	160	3,993	7,151		7,151
Thi-Qar	657	3,569	4,226	5,318		5,318
Wassit	70	1,232	1,302	8,931		8,931
Total South	57,309	9,169	66,478	52,939	0	52,939
Total families	170,704	24,633	195,337	117,901	3,311	121,212
Estimated total individuals	1,024,224	147,798	1,172,022	707,406	19,866	727,272
Before 7 Feb 07				689,640	22,386	712,026

UNHCR, January 2007

"UNHCR projects that the number of internally displaced Iraqis now totals over 1.7 million, with 500,000 of the total displaced since the Samarra bombings in February 2006"

UNHCR, November 2006

"UNHCR estimates that there are at least 1.6 million Iraqis internally displaced with at least another 1.6 – 1.8 million in neighbouring states. The figures in the immediate neighbouring

countries are still imprecise but UNHCR estimates that there are some 700,000 Iraqis in Jordan, 500,000 – 600,000 in Syria, 100,000 in Egypt, 20,000 to 40,000 in Lebanon, 54,000 in Iran and tens of thousands more within the region and further a field. Beyond the mass exodus, which has already occurred, population movements show no sign of abating.”

UNAMI, 27 June 2006

“The United Nations Assistance Mission for Iraq (UNAMI) is concerned over the recent upsurge in violence since the end of February which has led to significant population movements in different parts of the country.

It is estimated that 1.3 million individuals are displaced inside Iraq, nearly five percent of the country’s total population. While many were displaced as long ago as the early 1980s, the last four months of increasing violence and relentless sectarian tensions have resulted in the displacement of a further 150,000 individuals. In the last fortnight alone, 3,200 families have fled Ramadi to neighbouring towns as a result of the military operations there.

Displacement is not a phenomena exclusive to any specific region, ethnicity or creed. Indeed, displacement since the 22 February bombing of the Samara shrine has equally affected all of Iraq’s diverse communities on a nationwide basis. In an effort to support the Iraqi government in meeting the emergency needs of those displaced, the United Nations and its partners have distributed assistance to over 12,500 of the most vulnerable recently displaced families.

While addressing the immediate needs of Iraq’s internally displaced is critical, UNAMI stresses the need to focus on developing mechanisms to allow for the safe and dignified return of displaced Iraqis to their homes. Achieving this will be central to Iraq’s long-term stability.”

Total figure estimated in December 2005 based on IOM and UNOPS monitoring: 1,200,000 Internally Displaced Persons (Source: UNHCR, April 2006)

NRC/IDMC Note: The total figure is an accumulated figure. UNHCR, IOM and UNOPS monitor IDP and returnee movements, however monitoring activities are restrained by ongoing insecurity and ongoing displacement. The 1,200,000 does not include some 80,000 people newly displaced by sectarian violence (as of May 2006).

UNCT, September 2005

based on monitoring by IOM and UNOPS the total figure was estimated to be 1,330,476 individuals (221,746 families)

see chart below

Northern Governorates	Post 1991	Pre 1991	Sub-total IDPs
Dohuk	1,103	22,184	23,287
Erbil	6,249	24,377	30,626
Sulaymaniyah	1,956	48,560	50,516
Sub-total 1	9,308	95,121	104,429
Centre Governorates	Post 2003 Conflict	Pre 2003 Conflict	Sub-total IDPs
Ninewa*	4,970	2,655	7,625
Salah Al Din	3,103	359	3,462
Tameem	1,241	248	1,489
Diyala	6,653	2,351	9,004
Anbar	8,847	543	9,390
Baghdad*	1,930	2,176	4,106
Sub-total 2	26,744	8,332	35,076

Southern Governorates	Post 2003 Conflict	Pre 2003 Conflict	Sub-total IDPs
Babylon	731	1,238	1,969
Kerbala	998	17,512	18,510
Najaf	505	7,300	7,805
Wassit	1,232	70	1,302
Qadissiya	776	675	1,451
Missan	566	18,763	19,329
Muthanna	437	424	861
Basrah	451	28,098	28,549
Thi'Qar	220	2,245	2,465
Sub-total 3	5,916	76,325	82,241
Grand Total	41,968	179,778	221,746

IOM Monitoring, September 2005

UNHCR, August 2004

"In the North, there are, among others, the Kurds, Turkmen and Assyrians who were victims of both the "Arabization" and Anfal campaigns, the Kurds who were displaced as a result of the war between the main two Kurdish parties (the PUK and KDP), and Iraqis of different ethnic and religious backgrounds who opposed the former regime and had to flee their governorates.

The UN estimates that a total of 805,505 individuals (141,234 families) were displaced in the three northern governorates over a thirty- year period. The majority of this group (approximately

74%) were displaced between 1974 and 1990, while the remaining (approximately 26%) were displaced post 1990. 42% of the IDPs originate from former Government of Iraq controlled areas and were primarily displaced as a result of expulsions carried out by the former regime that aimed to change the ethnic balance of the population in resource-rich regions such as Kirkuk.[4] The remaining 58% originate from within the three semi-autonomous Kurdish areas (Dahuk, Erbil, Sulaymaniyah), displaced primarily as a result of inter-Kurdish fighting.

Cause	Period	Percentage
Expelled as part of the Arabization campaign	1974-1987	46%
Victims of the Anfal campaign	1988	28%
Expelled due to the Arabization campaign	Early 1990	7%
Returnees from Iran unable to return to place of origin in GoI territory	Early 1990	5%
Displaced as a result of fighting between PUK and PDK	Early-mid 1990's	9%
Displaced as a result of conflicts with PKK	1980s and early 1990s	2%
Others		2%

[Footnote 4] This campaign has commonly become known as the Arabization campaign in which the GOI expelled Kurds, Turkomen and Assyrian populations from areas rich in resources and resettled Arabs from the south to the same areas."

IRIN, 7 February 2005

"Iraq and accurate statistics,' said one senior Iraqi official in Kirkuk, 'are two entirely different things.' Nowhere is this truer than when it comes to internally displaced persons (IDPs) in northern Iraq. Officially, 20 years of village clearances, Arabisation campaigns in ethnically mixed areas and a Kurdish civil war have forced around 800,000 people - out of a total population of four million - to leave their homes. A UN-Habitat survey of October 2000 put the total at 805,505, not including IDPs who had fended for themselves and disappeared into the general population.

However, some experts suggest that such figures need to be viewed with skepticism, for several reasons. The word IDP summons up images of dire poverty and tarpaulin. While living conditions in the collective towns built by Saddam Hussein at Binaslaw near Arbil or Shorj near Sulaymaniyah are far from good, they are not significantly worse than in towns under central government control until 2003 that were left untouched by the former regime."

UNHCHR, 9 June 2004

"The pre-conflict estimate that as many as 800,000 persons were internally displaced throughout Northern Iraq and an additional 100,000 to 300,000 persons were displaced in the center and south. However these are estimates and obtaining reliable figures has not been possible in the post-conflict climate."

UN OCHA, 5 January 2004

"With an estimated 900,000 internally displaced people (IDPs) in Iraq, humanitarian organisations are putting the emphasis on providing proper shelter in the coming year for homeless people uprooted by the troubles that have plagued the country not only over the past year but the past few decades. [...]While there are no current accurate statistics at present, based on pre-war

figures, the largest population of between 600,000 and 800,000 IDPs are living in the north with up to an estimated 100,000 in the south and centre, many with limited access to basic facilities. Prior to the second Gulf War a UN Habitat survey found that 40 percent of the displaced had no access to health care and that only some 57,000 people were living in adequate housing.

With some signs of IDPs returning following the fall of Saddam Hussein, as of the beginning of June 2003, the International Organisation for Migration (IOM) has confirmed up to 40,000 registered IDPs in the south and central governorates, with other sources suggesting up to 75,000. Aid agencies say that although some IDPs have returned home it is very difficult to establish exact figures due to a lack of staff on the ground because of insecurity."

At least 40,000 people displaced as result of the US led invasion (as of June 2003)

- IOM preliminary numbers 2 June 2003: 40,000 IDPs in Southern/Central areas
- Other sources report as many as 80,000 new IDPs
- Ongoing uncertainty of numbers and needs

IOM, June 2003

IOM reported numbers of *new* IDPs per district by NGO governorate focal points (GFP), 2 June 2003:

Governorate	GFP	No of IDPs	Total population
Al Anbar	LWF	1,747	1,271,000
Ninawa	WVI	3,383	2,521,000
Al-Ta'meem	NRC	15,600	881,000
Salahadin	CONCERN	50	976,000
Diyala	DRC	1,922	1,271,000
Baghdad	PU	96	6,500,000
Babylon	NRC	0	1,409,000
Al-Muthanna	ACTED	0	570,000
Al-Basrah	SCUS	2,808	570,000
Maysan	Ockenden	12,000	848,000
Wasit	MCI	2,350	939,000
TOTAL NO IDPs:		39,956	

Ongoing uncertainty over number and needs of IDPs

IRIN, 23 May 2003

"(...) the exact number of internally displaced persons (IDPs) continues to elude aid workers, This week, however, a clearer picture of the situation in southern and central Iraq shed some light on the scope of the problem. Chris Petch, the deputy programme manager for IDPs in Iraq for the International Organisation for Migration said initial reports from 12 of the 92 southern and central districts identified 58,000 IDPs, but other unconfirmed reports could mean that this number was actually over 80,000. Those IDPs who had been identified were in real need of assistance, he added. Ongoing uncertainty over the number and needs of the IDP population have been attributed to ongoing displacement in some places and confusion among the local population of what constituted an IDP."

Assessing IDPs in the south

IRIN, 20 May 2003

"A clearer picture of the number of internally displaced persons (IDPs) in southern and central Iraq is emerging as initial data begins to come in. Chris Petch, the deputy programme manager for IDPs in Iraq for the International Organisation for Migration (IOM), told IRIN that while there were still large areas of the country to be covered and assessed, it was clear there were many thousands of Iraqis who had shifted from their homes during the war and had not yet returned. IOM is the lead agency for IDPs in the south and centre of the country.

And while the numbers were not as great as had been predicted or feared before the war, those IDPs who had been identified were in real need of assistance. Initial reports from 12 of the 92 southern and central districts had identified 58,000 IDPs, but other unconfirmed reports could mean that this number was actually over 80,000, Petch said. He said one of the big problems in trying to accurately assess the scale of the problem was that the situation was very complicated and constantly changing. For example, IOM had received a report of 50,000 IDPs camped near the Iranian border, but when they investigated, found only 2,000.

By contrast, in another case there was a report of up to 50,000 IDPs in one location during the war, but IOM now knows there were close to 100,000 people there at the time. Petch said it was a very fluid picture, and security concerns meant that NGOs had been unable to reach into many areas until now to check on the problem. Numbers could fluctuate every day in an area, with displacement still going on in some places, but he hoped to obtain a clearer picture of the problem within a month. One of the current problems was that some areas were not deemed safe to travel to, such as the region around Tikrit, about 150 km northwest of Baghdad. However he was confident that IOM had access to enough resources to cope with the IDP situation whatever the final figures turned out to be."

Peter Nuttall, a team leader for the Irish NGO, GOAL, which is helping with IDP assessments in the southern governorate of Dhi Qar, told IRIN it had only been in the last two weeks that they had begun locating IDPs. He said this was in part due to misunderstandings among Iraqis about what constituted an IDP, but better information was now coming in. For example, GOAL staff had found four families living in the back of a building, and when locals were asked where they had come from, staff were told they were just poor people. It transpired, however, that the families had been renting houses which had been destroyed, thereby turning them into IDPs. Nuttall said GOAL was continuing its work and would have a clear picture of the overall situation in the area within a few weeks.

Another NGO involved in the IDP assessments, the Lutheran World Federation (LWF), said it had completed its assessment in the Al-Anbar Governorate west of Baghdad. Its programme coordinator, John Damerell, told IRIN the security situation, including an armed attack on two of its vehicles, meant it had been unable to visit all areas or complete its work. While unable to give definite figures, he said the number of IDPs remaining in Al-Anbar was not appreciable, although there would still be several thousand. He added that the plight of those found was not deemed to be chronic, and they all intended to go home as soon as possible. Most IDPs had stayed with families or friends, or been put up by benevolent locals, including one hotel which had opened its doors to them and accommodated them gratis. Damerell stressed that all the information LWF had received pointed to the number of IDPs having been much greater when the fighting was still in progress. However, when looting broke out, many people quickly returned to their homes in places such as Baghdad to try and protect their possessions, he said"

HCI, 6 May 2003

"In order to ascertain the trend for old caseload IDPs who left their homes prior to the conflict to return to their places of origin, UNOPS launched a survey on 5 May in Erbil and Sulaymaniyah. Of the new IDPs caseload, only 17 persons remain in one site in Dahuk. UNOPS reported that local authorities are assisting the return of IDPs previously settled in the Arab Singles Camp in

Dahuk to their places of origin in centre/south of Iraq. As of 6 May, 6 persons are still in the camp.”

UNOPS-IDP SitRep 5 May 2003

“The old caseloads of IDP, who predate the recent conflict, are continuing to return to their places of origin in the centre and south but this return is going on at a very slow pace. In this regard, UNOPS-IDP is launching a survey on the trend for the old IDP to return to their places of origin in the centre and south. Following a two-day training course on how to conduct this assessment and the form to be used, this survey was launched in Erbil and Sulaymaniyah today. In Erbil the survey started in the public shelters and in Sulaymaniyah it was completed in 5 randomly selected locations today (5 May 2003). It is expected that the survey should be concluded in these two governorates over the coming three days. In Dahuk, the project has engaged in the necessary contact and coordination with the Governor's office and the Internally Displaced Persons Liaison Office to obtain their support in carrying out the survey and it is anticipated that the survey will therefore commence shortly.

Virtually all the caseload of new IDP, who resulted from the recent conflict, have returned to their places of origin whether they originated from the northern governorates or from the centre and south.”

IOM 13 May 2003

“As humanitarian workers begin to gain access to Iraq, IOM is starting to build up a picture of the number of internally displaced people (IDPs) in the south and center of the country, based on assessment missions carried out by NGO partners. Reports from the Lutheran World Federation, ACTED, Save the Children, the Danish Refugee Council, Ockenden International and Mercy Corps have already identified some 58,000 IDPs in just 12 districts partially assessed. To date the NGOs have visited only 40 of 4,082 settlements identified in the south and center of the country. Of the IDPs they have identified, about half are living in abandoned public buildings, a quarter are staying with host families and a quarter living rough in tents or in the open. Unconfirmed media and other reports that have already identified a further 82,000 IDPs in various locations are under investigation. World Vision International, IOM's partner in the northwestern governorate of Ninewa, is currently investigating media reports of another 10,500 IDPs in public buildings in Mosul.

The task of identifying and assessing the needs of IDP populations throughout Iraq - a country the size of France - is labour intensive and time consuming, and with the ongoing lack of security, can be dangerous. The risks were underlined last week when two vehicles belonging to the Lutheran World Federation (LWF), IOM's partner NGO in the western Al Anbar governorate, were forced off the main road and robbed by gunmen 100 km west of Baghdad near Ar Ramdi. LWF staff, who were shocked but unhurt in the attack, believe that there still may be as many as 30,000 IDPs in Al Anbar. Large numbers of people fled Iraq's cities to the Al Anbar towns of Ar Ramdi, Hit, Hadita and An'Nah during the bombing, but many subsequently returned to Baghdad and other cities. Elsewhere in the country, Premiere Urgence, IOM's partner NGO in Baghdad governorate, believes that there may be as many as 35,000 IDPs in and around the city. The Danish Refugee Council (DRC), IOM's partner in Diyala, says that there are an estimated 50,000 IDPs in governorate, which borders Iran. DRC has already assessed their food and other needs. Ockenden International, IOM's partner in neighbouring Maysan governorate to the south, has identified an estimated 12,000 IDPs staying with host families in Al Amrah.

Ockenden has already assessed their non-food needs, which IOM will meet with items donated by the USAID's Office for Disaster Assistance (OFDA) and already positioned inside Iraq. Mercy Corps, IOM's partner in Wassit governorate, reports some 2,000 IDPs in camps in Badreh. IOM led an assessment mission to Badreh from Iran on April 14th. Save the Children, IOM's partner in Basrah governorate, where IOM deployed permanent international staff last weekend, reports

about 190 IDPs in public buildings in Umm Qasr and Al Zubair. IOM, at the request of the UN and under the overall responsibility of the UN Humanitarian Coordinator for Iraq, is coordinating the efforts of NGOs and others in registering IDPs, managing camps, distributing non-food items, and eventually helping people to return to their homes. Its network of 15 governorate focal point (GFP) NGOs use a standardized, IOM-designed framework, database and reporting structure to target assistance at the most vulnerable IDPs. Under the programme, which is supported by USAID's OFDA, IOM also provides limited funding to GFP NGOs to support their activities."

700,000 to 1 million internally displaced persons in 2001 (2002)

- Estimated number of internally displaced persons is very difficult to assess because of lack of reliable sources
- A survey by UN Habitat estimated the number of IDPs in northern Iraq at 805,000 in Oct 2000
- PUK and KDP officials reported that 119,000 IDPs in the North were expelled from government-controlled to Kurdish controlled areas
- USCR estimated the total number of displaced at 700,000 for 2001

HRW, Dec 1999

"A preliminary survey carried out in northern Iraq by the U.N. Centre for Human Settlements (Habitat) estimated the number of internally displaced persons at 805,000 by the end of October 2000, comprising 23 percent of the population. [...]

A major factor in the rising number of internally displaced persons was the government's continued expulsion of Kurds and Turkmen from their homes in Kirkuk, Tuz Khormatu, Khaniqin, and other districts as part of its "Arabization" program. Most were expelled to areas controlled by Kurdish opposition forces and a smaller number to central and southern Iraq. According to PUK officials, those expelled between January 1991 and December 2000 and resettled in areas under its control totaled 93,888, while some 25,000 others expelled during the same period were resettled in KDP-controlled areas. Scores more were reportedly expelled between January and March, particularly from the Tuz Khormatu area. In August and September, Kurdish opposition sources said the government was intensifying the rate of resettlement of Arab families in areas from which Kurds and Turkmen had been expelled, including the Lailan, Shwan, and Qara Hanjir districts of Kirkuk."

See the [UN-Habitat Survey](#)

USCR estimate: 700,000 as of End of 2001

USCR, 2002

"The estimated 600,000 internally displaced persons in the three northern governorates of Dohuk, Erbil, and Suleymaniya included not only long-term internally displaced persons and persons displaced by Kurdish factional infighting, but also more than 100,000 persons, mostly Kurds, Assyrians, and Turkomans, more recently expelled from central-government-controlled Kirkuk and surrounding districts in the oil-rich region bordering the Kurdish-controlled north. At least another 100,000 persons were internally displaced elsewhere in Iraq, mostly in the southeastern marshlands."

UNEP estimate of IDPs in Southern Iraq in 2001

Patrow, 2001, pp 33-34

"According to the UN Environment Program, "Of the 95,000 southern Iraqis who sought refuge in Iran since the end of the Gulf War in 1991, an estimated 40,000 are Marsh Arabs. The fate of those who stayed inside Iraq remains poorly documented, but an estimated 200,000-250,000 are considered to be internally displaced."

End of Year	Conservative estimated number of IDPs	Source
2001	700,000	USCR 2002
2000	700,000	USCR 2001, p.6
1999	900,000	USCR 2000, p.6
1998	1,000,000	USCR 1999, p.6
1997	900,000	USCR 1998, p.6
1996	900,000	USCR 1997, p.6
1995	1,000,000	USCR 1996, p.112
1994	640,000	USCR 1995, pp.115-116

Geographical distribution

Upper south: Wassit, Qadissiyah, Najaf, Babylon, and Kerbala (2007)

- Most newly displaced people in Wassit, Qadissiyah, Najaf, Babylon, and Kerbala originate from Baghdad

Cluster F, 11 February 2007

Governorate	Pre 2003	2003-2005	Pre 2006	Newly displaced (Post Samara)	Newly displaced (military ops)	Total 2006	Total displaced families	Total displaced individuals
Babylon	654	821	1,475	8,400		8,400	9,875	59,250
Qadissiyah	222	932	1,154	2,800		2,800	3,954	23,724
Kerbala	17,490	1,328	18,818	8,452		8,452	27,270	163,620
Najaf	3,833	160	3,993	7,100		7,100	11,093	66,558
Wassit	70	1,232	1,302	8,698		8,698	10,000	60,000

IOM, 2006

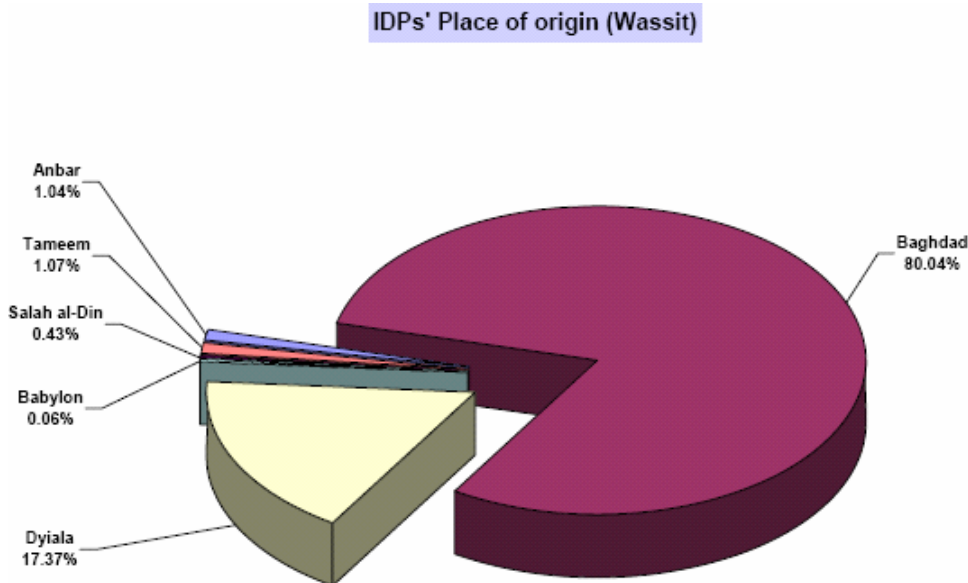
Wassit:

Total displaced: As of the reporting date (November 11), 3,281 IDP families were identified and assessed. The apital/district of Kut has the highest number of IDPs (1,861, or 57% of those displaced). Al- uwaira district hosts 791 families (24%), Al-Hai has 316 families (10%), Al-Na'maniya has 274 8%), and Badra has 39 families (1%).

[...]

Places of Origin: The majority of post-February IDPs in Wassit (80% or 2,626 families) were displaced from Baghdad. Violence and crime are forcing many IDPs to flee from Baghdad, and Wassit, being very close to Baghdad governorate, is a popular destination for these IDPs. The remaining IDP families are mostly leaving the central governorates. The percentages from each of the governorates are as follows:

Baghdad: 80%
 Diyala: 17%
 Anbar: 1%
 Tameem: 1%
 Salah al-Din: less than 1%
 Babylon: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

1,870 IDP and IDP returnee families were assessed by IOM before February 22. Most of these families were affected by the hostilities in April 2003 between the MNF and local militias throughout the southern part of the country.

While only marginally affected by the displacement of the Marsh Arabs resulting from the drainage of the Marshes, after 2003, Wassit governorate also experienced incoming flows of IDPs pushed south by the reversal of the Arabization campaign in the center governorates.

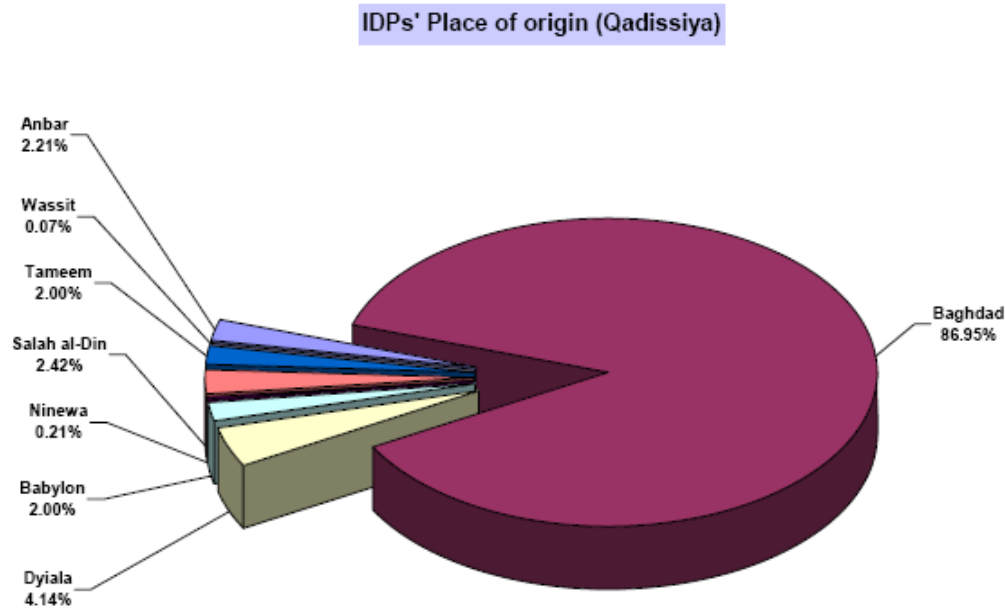
Qadissiyah

Total displaced: As of the reporting date (November 14), 1,448 families were identified and assessed. The capital, Diwaniyah, has the highest number of IDPs (781, or 54% of the displaced). Hamza has 267 families (18%), Al-Shamiya hosts 216 families (15%), and Afaq has 184 families (13%). [...]

Places of Origin: A large majority of IDPs in Qadissiya fled from Baghdad, with other families moving from other overnorates in the center of Iraq. The percentages from each of the governorates are as follows:

Baghdad: 87%
 Diyala: 4%
 Anbar: 2%
 Salah al-Din: 2%

Babylon: 2%
 Tameem: 2%
 Wassit: less than 1%
 Ninewa: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

A total of 1,357 IDP and IDP returnee families were assessed by IOM prior to February. Of the IDPs, 932 were displaced after the 2003 conflict began, and 222 were displaced before 2003. The IDP returnees are Arabs returning to the south from the central region as a result of reverse Arabization, and the consequent return of Kurdish and Turkmen families to Diyala and Tameem. Not all of the IDP returnees were able to return to the place of origin, and some remain in displacement.

Also characteristic of the governorate has been the short-term periodical displacement of families due to the waves of armed violence, which have been directly or indirectly affecting Qadissiya since 2003. Although usually these displacements do not result in chronic displacement and are sometimes contained within a few kilometers from IDP homes, these movements exist and occur whenever there are military conflicts, either in Qadissiya or in neighbouring governorates like Najaf.

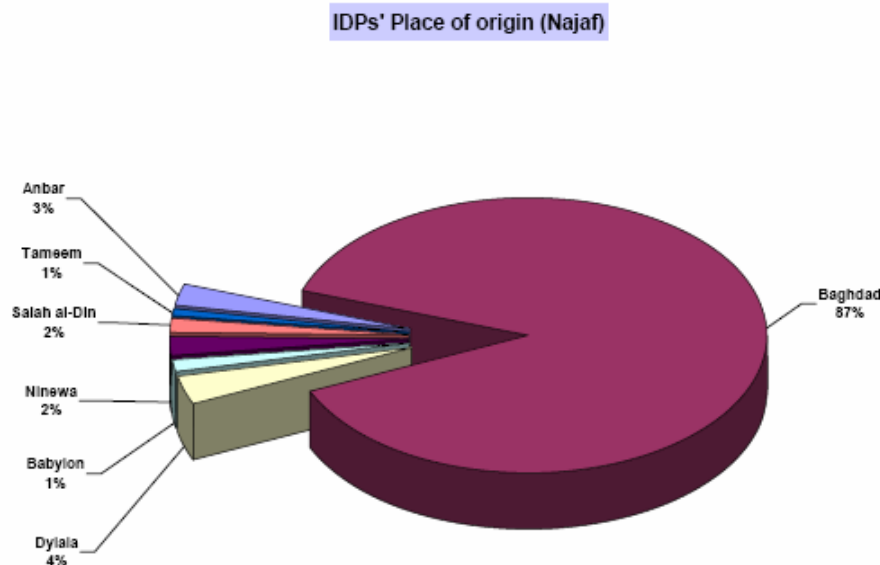
Najaf

Total displaced: As of the reporting date (November 10), 1,910 families were identified and assessed. The district with the highest number of IDPs is Najaf district, with 1,150 IDP families (60% of those displaced). Kufa has 586 IDPs (31% of the displaced) and Al-Manathera has 174 (9% of the displaced).

Places of Origin: A large majority of IDPs in Najaf fled from Baghdad, with other families moving from other governorates in the center of Iraq. The percentages from each of the governorates are as follows: Baghdad: 88%

Anbar: 3%

Diyala: 4%
 Salah al-Din: 2%
 Ninewa: 2%
 Babylon: 1%
 Tameem: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

Before February 22, the total number of IDP families IOM monitored in Najaf was 3,993. Around 160 post-2003 conflict IDPs and 3,833 pre-2003 conflict IDP families resided in Najaf before the newly-displaced arrived. Most of these IDPs were from Basrah, Thi-Qar and Missan. The majority lived in Najaf city and the remainder lived on farms in the surrounding countryside. Some of them occupied buildings or lands belonging to the government.

The majority of the displaced in Najaf came to Najaf prior to the 2003 conflict. The primary reasons for their displacement were the Iraq/Iran war, human rights violations, the draining of the marshes and drought.

Babylon

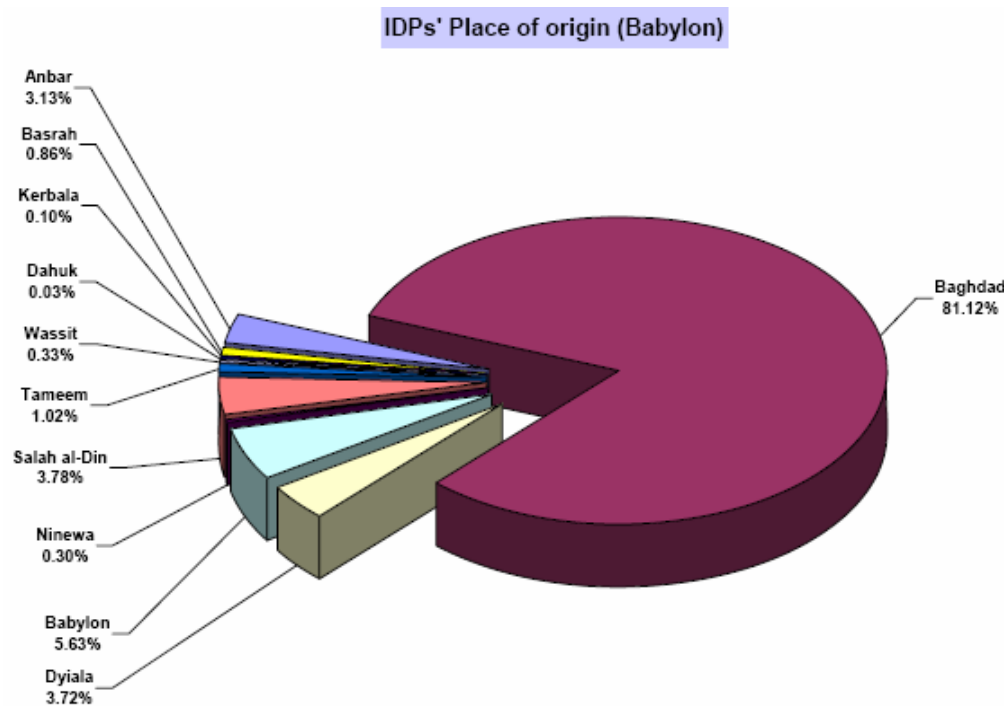
Total displaced: As of the reporting date (December 14), 3,041 families were identified and assessed in Babylon. They have been displaced to the center and south of Babylon, and the majority of these recently isplaced ive in the capital of Hillah. As the capital of the governorate, this city offers more possibilities of employment, places to live or occupy, and more services. 1,685 families (55%) live in Hillah, 972 families (32%) live in Hashimiya, 306 families (10%) live in Al-Musayab, and 105 families (3%) live in Al-Mahawil.

Places of Origin: Due to Babylon's proximity to Baghdad, the majority of IDPs come from Baghdad. Babylon is a logical place to flee, since it is close to these IDPs' place of origin, so potential return and watching over property are facilitated. In addition, since Babylon is predominantly Shia Muslim, Shia IDPs from mixed communities in Baghdad are moving to this area.

The remaining IDPs come from governorates all over the country, which is unique to Babylon.

The breakdown is as follows:

Baghdad: 81%
 Babylon: 5.6%
 Salah al Din: 3.8%
 Diyala: 3.7%
 Anbar: 3%
 Tameem: 1%
 Basrah: 1%
 Dahuk: less than 1%
 Kerbala: less than 1%
 Ninewa: less than 1%
 Qadissiya: less than 1%
 Wassit: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

IOM identified 1,475 IDP families in Babylon prior to February 22. Of these, 821 were displaced after the 2003 conflict, and 654 families were displaced before the conflict.

The pre-2003 IDPs primarily originated from Basrah, Missan, Thi-Qar, and Qadissiya due to the Iraq-Iran war, the 1991 conflict and political discriminations during the previous regime's rule. The majority of these IDPs resides in mud huts in collective towns and are well integrated into the surrounding area.

Most post-2003 IDPs arriving in Babylon before February 22 were displaced due to sporadic acts of violence in Baghdad, mainly in Dora and Abu Graib districts, where insurgent activities and military offensives forced families to leave."

Kerbala

"Total displaced: As of the reporting date (November 20), 1,968 families were identified and assessed. The capital, Kerbala city, has the highest number of IDPs (1,415, or 72% of the displaced). Al-Hindya as 387 families (19%), and Ain Al-Tamur hosts 166 displaced (10%).

Places of Origin: IDPs in Kerbala fled from many different governorates, the majority came from the center and north of Iraq, especially from Baghdad. These families left mixed communities and fled to the homogeneous communities in Kerbala, which are primarily Shia Muslim.

The percentages from each of the governorates are as follows:

Baghdad: 63%

Diyala: 20%

Anbar: 10%

Ninewa: 4%

Salah al-Din: 2%

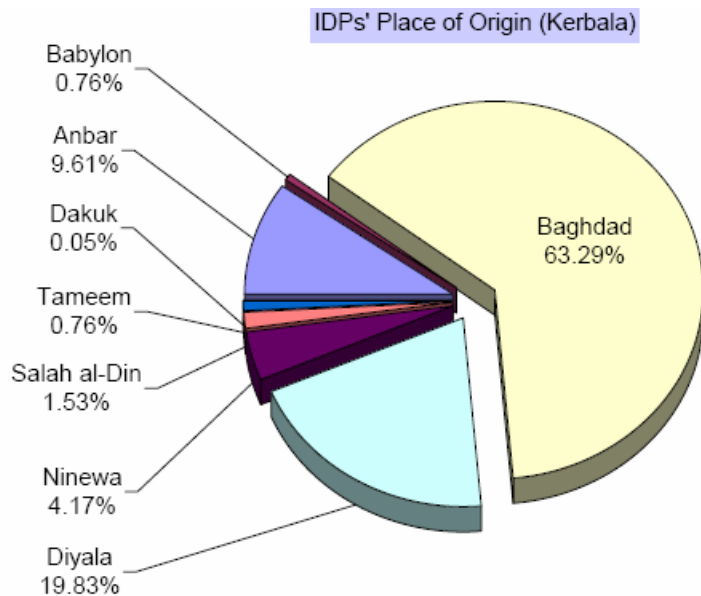
Babylon: less than 1%

Tameem: less than 1%

Babylon: less than 1%

Dahuk: less than 1% (only one family)

Those 13 families who fled from Babylon (a Shia Muslim-dominated governorate) were Shia Muslim. The Turkmen families in Kerbala are Shia Muslim and fled to Kerbala from Ninewa.



Outline of Already-Existing IDP Population (pre-February 22, 2006)

IOM assessed a total of 18,818 IDP families before February 2006, a large number considering its small geographical coverage. The majority of these is pre-2003 conflict IDPs (17,490), and a smaller percentage is post-2003 IDPs (1,328 families).

Displacement in Kerbala began in the 1980s. Most displaced were from the south from Basrah, Missan, Thi-Qar, and more recently from Diyala, Kirkuk/Tameem, Falluja in Anbar, and Ninewa. Kerbala governorate more recently witnessed an increase in the number of the displaced on account of the steady displacement from Telafar region in Ninewa. Kerbala is also one of the few safe-havens that accommodated displaced Shia populations fleeing the south for varying reasons

during the widespread displacements caused by the former regime throughout the 1980s to 2003."

Lower south: Basrah, Thi'Qar, Muthanna and Missan (2007)

- Most newly displaced people within Basrah and Thi Qar originate from from Baghdad and Salah al Din
- A majority of newly displaced people in Muthanna and Missan are from Baghdad

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Governorate	Pre 2003	2003-2005	Pre 2006	Newly displaced (Post Samara)	Newly displaced (military ops)	Total 2006	Total displaced families	Total displaced individuals
Basrah	15,494	284	15,778	4,300		4,300	20,078	120,468
Missan	18,465	406	18,871	4,820		4,820	23,691	142,146
Muthanna	424	437	861	1,712		1,712	2,573	15,438
Thi-Qar	657	3,569	4,226	5,318		5,318	9,544	57,264

IOM, 2006

Basrah

Total displaced: During the reporting period (May 5 to October 10), 801 families were identified and assessed.

Their current districts of displacement within Basrah are Basrah city (with 378 families, this governorate has the most displaced), Abu Al-Khaseeb (94 families), Al-Midaina (123 families), Al-Qurna (38 families), Al-Zubair (152 families), Fao (3 families), and Shatt Al-Arab (13 families).

Places of Origin: The majority of IDPs in Basrah were displaced from Baghdad and Salah al Din. The percentages of each of the governorates are as follows:

Baghdad: 43%

Salah al-Din: 32%

Anbar: 14%

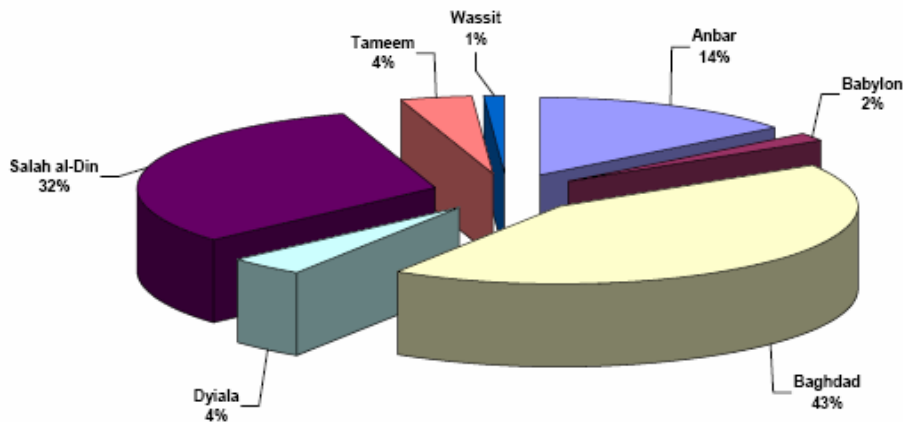
Diyala: 4%

Tameem: 4%

Babylon: 2%

Wassit: 1%

IDPs' Place of origin (Basrah)



Outline of Already-Existing IDP Population (pre-February 22, 2006)

Before February 22, there are 16,869 IDP families residing in Basrah (pre- and post-2003 and IDP returnee). The IDP families were for the most part displaced before the 2003 conflict, or IDP returnees. IDPs were found in all the districts throughout Basrah governorate, however, the majority of IDPs were located in the district of Basrah center. Basrah City hosts the largest portion of the post-2003 conflict IDPs, while Al-Qurna and Al-Midaina hold the Marsh Arab concentrations. The majority of pre-February 22 IDPs were living in public buildings or are mixed with the host communities. The displacement flows experienced by Basrah in the past two decades revolve mainly around the marshlands covering the northern part of the governorate along the Tigris and Euphrates Rivers. Until the 1980s, these lands until were populated by an estimated 250,000 Marsh Arabs, whose livelihood means, mainly fishing and agriculture, relied on the marshlands. Due to their proximity to Iran and the Shia factions, the Marsh Arabs had been perceived by the Sunnicontrolled government circles in Basrah and Baghdad as a potential threat to their power. As such, they were the target of persecution campaigns, especially in the aftermath of the 1991 failed Shia uprising against Saddam's regime, when they were suspected of hiding Shia militants. The most serious assault to the survival of the Marsh Arabs, however, has been represented by the drainage of 90% of the marshes promoted by Saddam in the 1990s. The drainage operations destroyed the ecosystem necessary for the socio-economic existence of the Marsh Arab families, forcing them to leave their homes looking for refuge either in the outskirts of Basrah or in the streams of land neighbouring the marshes.

Wars have also had a large impact on displacement patterns in Basrah, where the Iraq/Iran war in the 1980s led to the relocation of thousands of persons from the front lines and in areas used by the military for launching attacks on Iran. The 1991 Gulf war also created instability in the region with many more displaced and fleeing the governorate in fear for their lives.

Thi Qar

Total displaced: During the reporting period (May 15 to September 15), 1,377 families were identified and assessed. Their current districts of displacement within Thi-Qar are Al-Chibayish (60 families), Al-Rafa'i (314 families), Al-Shantra (268 families), Nasiriyah (with 373 families, this district has the most families), and Suq Al-Shoyokh (362 families).

Places of Origin: Their places of origin are as follows:

Bagdad: 66%

Salah al-Din: 11%

Anbar: 10%

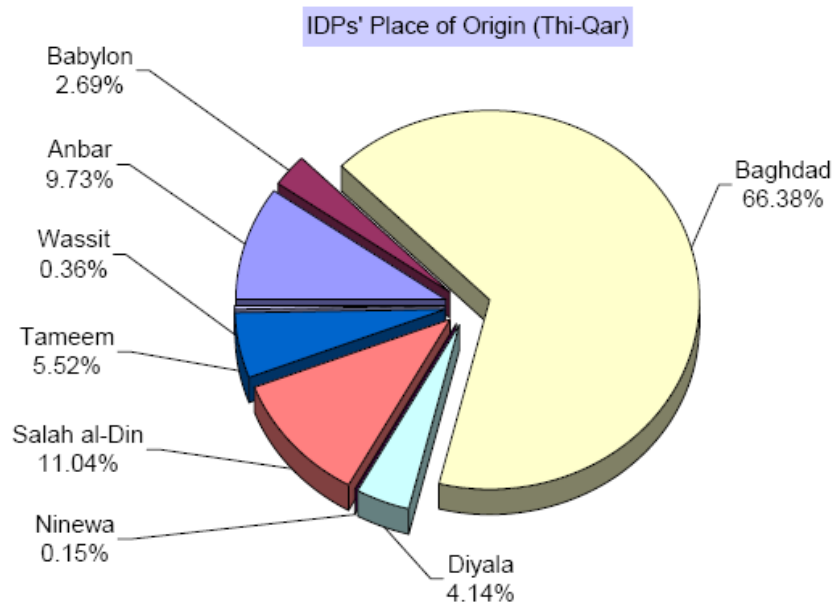
Tameem: 6%

Diyala: 4%

Babylon: 2%

Ninewa: less than 1%

Wassit: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

Before February 22, Thi-Qar already hosted a total estimated 7,042 IDP families (pre-2003, post-2003, and IDP returnee). Of those, the greatest numbers of IDPs were displaced after the 2003 conflict. Movement to Thi-Qar since 2003 was due to the proliferation of armed militias, criminal and terrorist organizations, especially in the center of Iraq, and due to religious discrimination. Many IDPs who had left Thi-Qar Governorate during the 1990s to escape the repercussions of Saddam's regime following the failed Shia uprising in 1991 tried to move back to their original homes after the overthrow of Saddam's government in 2003. They returned from their place of usual residence in Kerbala, Baghdad, Babylon, Diyala, Kirkuk and Basrah. Many IDP Returnees do not have their own land and are coming back to the southern areas where they have previously lived in villages as sharecropping farmers. IDP Returnee families were living in public buildings; schools, police and military compounds; and some were living with their relatives in the cities.

Muthanna

Total displaced: As of the reporting date (November 7), 778 families were identified and assessed. IDPs were found residing in Al-Rumaitha (398 families, 51% of the displaced) and Al-Samawa (380 families, 49% of the displaced). At the time of the assessments, IDPs were not found in the remainder of the governorate. This might be due to the rural nature of the rest of Muthanna, where lack of infrastructure and services discourage IDPs from settling there.

Places of Origin: IDPs in Muthanna tend to be fleeing south mixed communities in the central governorates, mostly from Baghdad. The percentages from each of the governorates are as follows:

Baghdad: 69%

Anbar: 21%

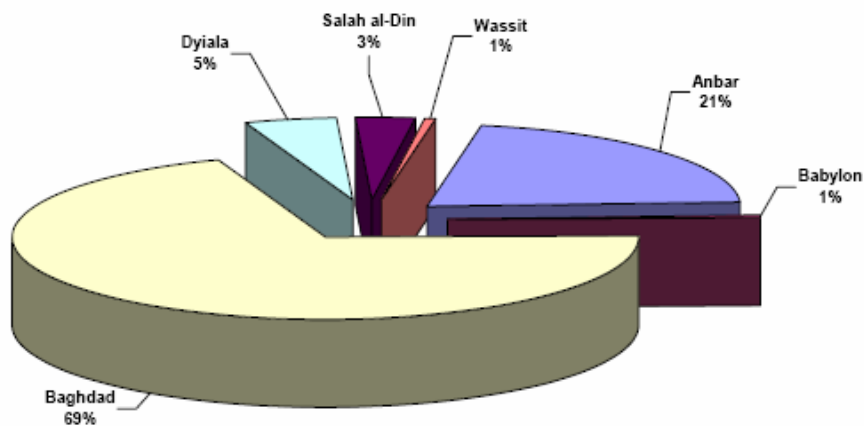
Diyala: 5%

Salah al-Din: 3%

Babylon: less than 1%

Wassit: less than 1%

IDPs' Place of origin (Muthanna)



Outline of Already-Existing IDP Population (pre-February 22, 2006)

A total of 1,200 IDP and IDP returnees were identified in Muthanna Governorate through IOM's monitoring carried out before February 22. The IDP profile of Muthanna is characterized by the presence of two main caseloads: Arab Shia families displaced for political reasons by the former Iraqi regime, and Marsh Arabs who fled from their residences after the drainage of the marshes carried out by Saddam during the 1990s. As far as this latter group is concerned, the drainage operations, which resulted into an ecological catastrophe, deprived them of their houses and livelihood means.

Missan

Total displaced: As of the reporting date (December 4), 2,120 families were identified and assessed. The capital, Amarah, has the highest number of IDPs (962 families, or 45% of the displaced). As the largest city, Amarah offers more employment and housing opportunities, so it has attracted the most IDPs. Qal-at Saleh has 356 families (17%), Al-Mejar Al-Kabi hosts 315 families (15%), and Al- Kahla has 204 families (10%), Ali Al-Gharbi has 168 families (8%), and Al-Maimouna hosts 115 families (5%).

Places of Origin: A large majority of IDPs in Missan fled from Baghdad, with other families moving from other governorates in the center of Iraq. This supports the trend that IDPs (especially Shia Muslims) are moving from religiously-mixed communities in the center and north to religiously-homogenous communities in the south.

It is interesting to note that many of the recent IDPs were originally from Missan, especially those recently displaced from Baghdad. They left Missan to go to Baghdad and other governorates in search of economic opportunities and had settled in these various governorates.

The percentages from each of the governorates are as follows:

Baghdad: 87%

Salah al-Din: 6%

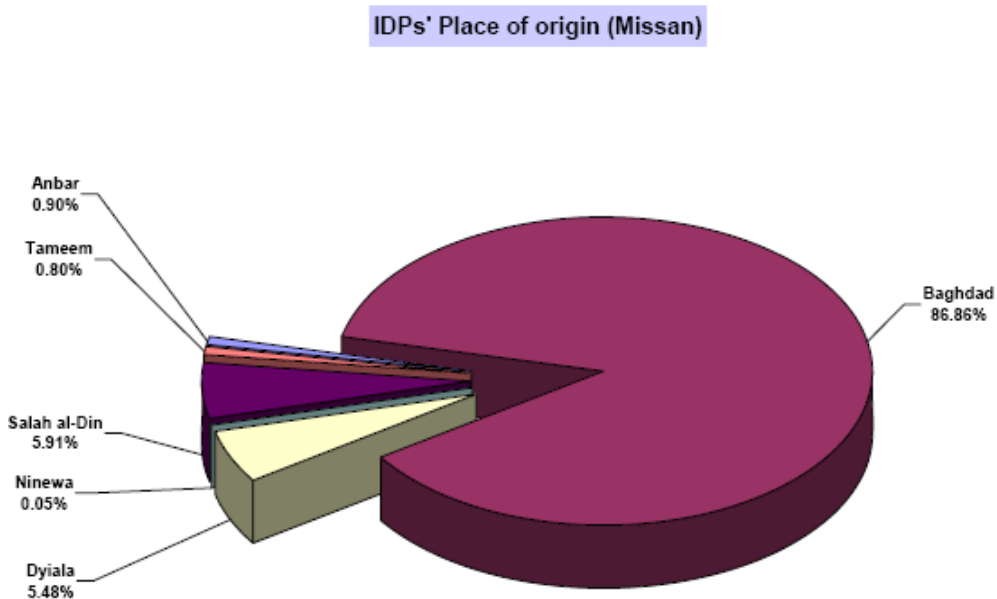
Diyala: 5%

Anbar: 1%

Tameem: 1%

Wassit: less than 1%

Ninewa: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

Missan experiences one of the highest number of pre-2003 conflict IDPs. IOM identified 18,465 families prior to February 2006. An addition of 406 post-2003 conflict families and 8,796 IDP returnees brings the total IDP population to 27,667.

The reasons for displacement are primarily conflict and political and religious discrimination. In the case of Missan, most of the displacement happened from rural areas or remote towns to urban/central areas. The IDPs imported with them their own scale of values/traditions that are quite different from those of the host community, sometimes creating tension with host communities.

Missan experienced the brunt of the Iraq/Iran War in the 1980s, witnessing several waves of displacements, the majority of which were intra-governorate but to a lesser extent shared with Basrah.

An important portion of Missan was covered by the marshlands, drained during the 1990s by the former regime. This explains why most of the IDPs located in Missan are along its southern regions with indigenous Marsh Arabs choosing to remain close to the edges of their former home.

For the Marsh Arabs, the priority is the possibility to have agricultural land so that they can go back to their usual activities (fishing, hunting, agriculture).

Basrah

Total displaced: During the reporting period (May 5 to October 10), 801 families were identified and assessed.

Their current districts of displacement within Basrah are Basrah city (with 378 families, this governorate has the most displaced), Abu Al-Khaseeb (94 families), Al-Midaina (123 families), Al-Qurna (38 families), Al-Zubair (152 families), Fao (3 families), and Shatt Al-Arab (13 families).

Places of Origin: The majority of IDPs in Basrah were displaced from Baghdad and Salah al Din. The percentages of each of the governorates are as follows:

Baghdad: 43%

Salah al-Din: 32%

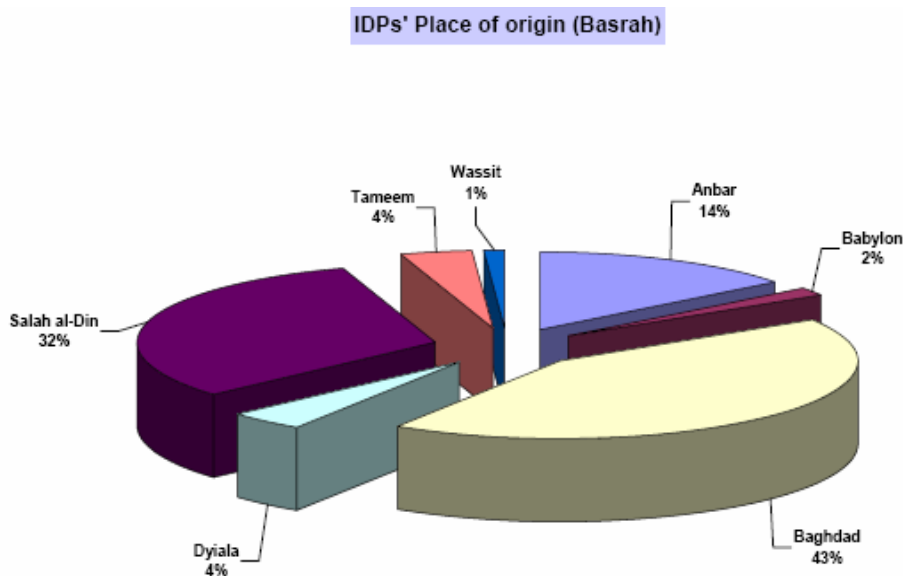
Anbar: 14%

Diyala: 4%

Tameem: 4%

Babylon: 2%

Wassit: 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

Before February 22, there are 16,869 IDP families residing in Basrah (pre- and post-2003 and IDP returnee). The IDP families were for the most part displaced before the 2003 conflict, or IDP returnees. IDPs were found in all the districts throughout Basrah governorate, however, the majority of IDPs were located in the district of Basrah center. Basrah City hosts the largest portion of the post-2003 conflict IDPs, while Al-Qurna and Al-Midaina hold the Marsh Arab concentrations. The majority of pre-February 22 IDPs were living in public buildings or are mixed with the host communities. The displacement flows experienced by Basrah in the past two decades revolve mainly around the marshlands covering the northern part of the governorate along the Tigris and Euphrates Rivers. Until the 1980s, these lands until were populated by an estimated 250,000 Marsh Arabs, whose livelihood means, mainly fishing and agriculture, relied on the marshlands. Due to their proximity to Iran and the Shia factions, the Marsh Arabs had

been perceived by the Sunnicontrolled government circles in Basrah and Baghdad as a potential threat to their power. As such, they were the target of persecution campaigns, especially in the aftermath of the 1991 failed Shia uprising against Saddam's regime, when they were suspected of hiding Shia militants. The most serious assault to the survival of the Marsh Arabs, however, has been represented by the drainage of 90% of the marshes promoted by Saddam in the 1990s. The drainage operations destroyed the ecosystem necessary for the socio-economic existence of the Marsh Arab families, forcing them to leave their homes looking for refuge either in the outskirts of Basrah or in the streams of land neighbouring the marshes.

Wars have also had a large impact on displacement patterns in Basrah, where the Iraq/Iran war in the 1980s led to the relocation of thousands of persons from the front lines and in areas used by the military for launching attacks on Iran. The 1991 Gulf war also created instability in the region with many more displaced and fleeing the governorate in fear for their lives.

Thi Qar

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Places of Origin: Their places of origin are as follows:

Bagdad: 66%

Salah al-Din: 11%

Anbar: 10%

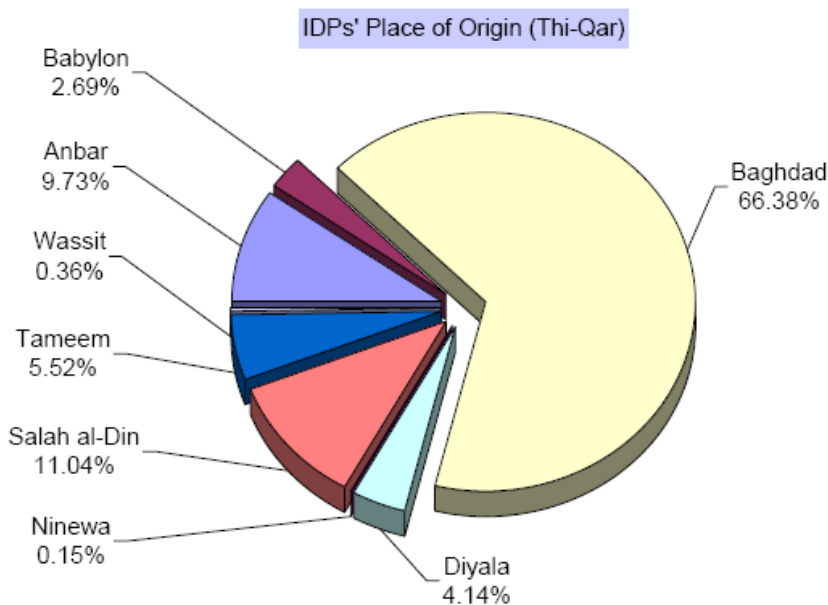
Tameem: 6%

Diyala: 4%

Babylon: 2%

Ninewa: less than 1%

Wassit: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

Before February 22, Thi-Qar already hosted a total estimated 7,042 IDP families (pre-2003, post-2003, and IDP returnee). Of those, the greatest numbers of IDPs were displaced after the 2003

conflict. Movement to Thi-Qar since 2003 was due to the proliferation of armed militias, criminal and terrorist organizations, especially in the center of Iraq, and due to religious discrimination. Many IDPs who had left Thi-Qar Governorate during the 1990s to escape the repercussions of Saddam's regime following the failed Shia uprising in 1991 tried to move back to their original homes after the overthrow of Saddam's government in 2003. They returned from their place of usual residence in Kerbala, Baghdad, Babylon, Diyala, Kirkuk and Basrah. Many IDP Returnees do not have their own land and are coming back to the southern areas where they have previously lived in villages as sharecropping farmers. IDP Returnee families were living in public buildings; schools, police and military compounds; and some were living with their relatives in the cities.

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Places of Origin: IDPs in Muthanna tend to be fleeing south mixed communities in the central governorates, mostly from Baghdad. The percentages from each of the governorates are as follows:

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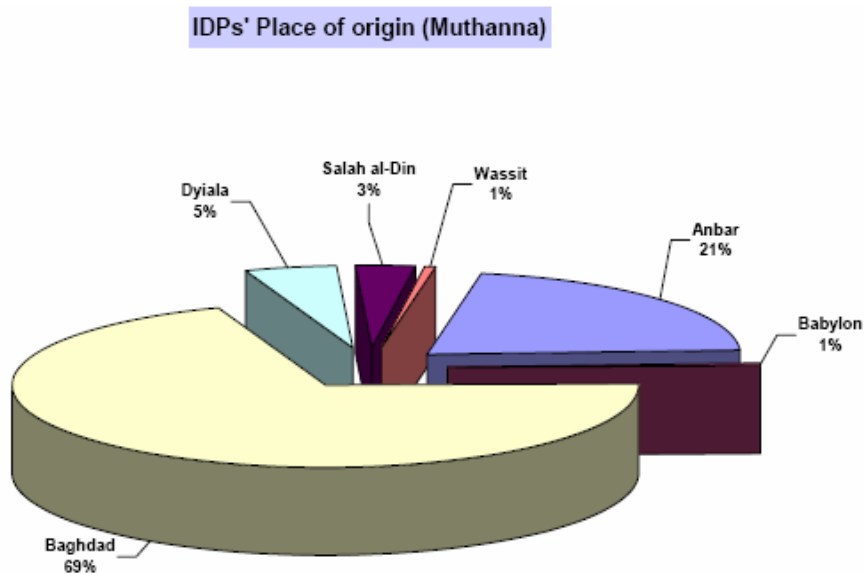
Anbar: 21%

Diyala: 5%

Salah al-Din: 3%

Babylon: less than 1%

Wassit: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

A total of 1,200 IDP and IDP returnees were identified in Muthanna Governorate through IOM's monitoring carried out before February 22. The IDP profile of Muthanna is characterized by the presence of two main caseloads: Arab Shia families displaced for political reasons by the former Iraqi regime, and Marsh Arabs who fled from their residences after the drainage of the marshes

carried out by Saddam during the 1990s. As far as this latter group is concerned, the drainage operations, which resulted into an ecological catastrophe, deprived them of their houses and livelihood means.

Missan

Total displaced: As of the reporting date (December 4), 2,120 families were identified and assessed. The capital, Amarah, has the highest number of IDPs (962 families, or 45% of the displaced). As the largest city, Amarah offers more employment and housing opportunities, so it has attracted the most IDPs. Qal-at Saleh has 356 families (17%), Al-Mejar Al-Kabi hosts 315 families (15%), and Al- Kahla has 204 families (10%), Ali Al-Gharbi has 168 families (8%), and Al-Maimouna hosts 115 families (5%).

Places of Origin: A large majority of IDPs in Missan fled from Baghdad, with other families moving from other governorates in the center of Iraq. This supports the trend that IDPs (especially Shia Muslims) are moving from religiously-mixed communities in the center and north to religiously-homogenous communities in the south.

It is interesting to note that many of the recent IDPs were originally from Missan, especially those recently displaced from Baghdad. They left Missan to go to Baghdad and other governorates in search of economic opportunities and had settled in these various governorates.

The percentages from each of the governorates are as follows:

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Salah al-Din: 6%

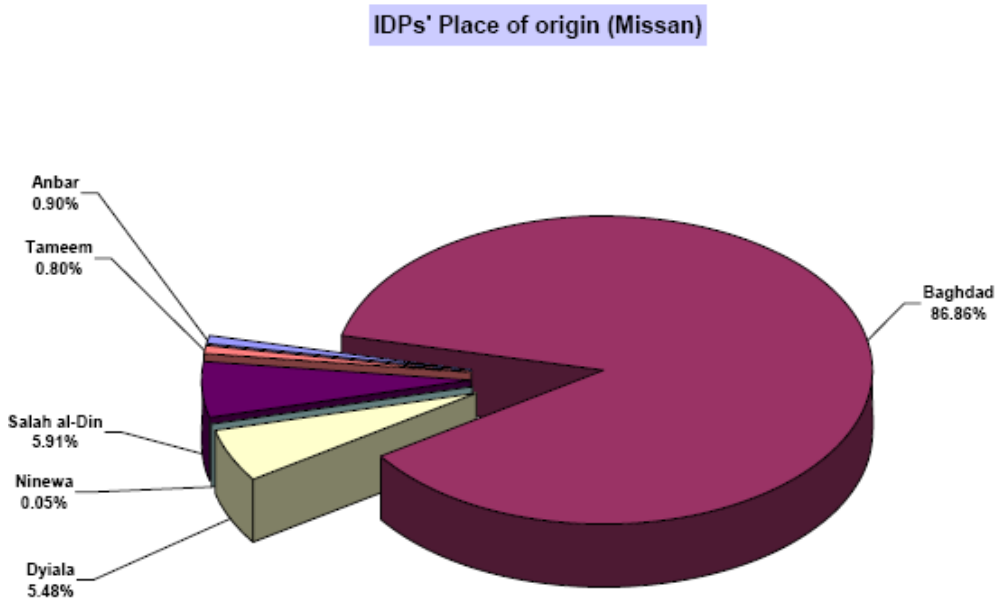
Diyala: 5%

Anbar: 1%

Tameem: 1%

Wassit: less than 1%

Ninewa: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

Missan experiences one of the highest number of pre-2003 conflict IDPs. IOM identified 18,465 families prior to February 2006. An addition of 406 post-2003 conflict families and 8,796 IDP returnees brings the total IDP population to 27,667.

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Missan experienced the brunt of the Iraq/Iran War in the 1980s, witnessing several waves of displacements, the majority of which were intra-governorate but to a lesser extent shared with Basrah.

An important portion of Missan was covered by the marshlands, drained during the 1990s by the former regime. This explains why most of the IDPs located in Missan are along its southern regions with indigenous Marsh Arabs choosing to remain close to the edges of their former home. For the Marsh Arabs, the priority is the possibility to have agricultural land so that they can go back to their usual activities (fishing, hunting, agriculture).

Centre: Salah Al Din, Ninewa/Mosul, Tameem/Kirkuk and Diyala (2007)

- The majority of newly displaced IDPs in Salah al-Din, Ninewa/Mosul and Tameem/Kirkuk originate from Baghdad
- The majority of newly displaced in Diyala are from within Diyala or from Baghdad

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Governor ate	Pre 2003	2003- 2005	Pre 2006	Newly displace d (Post Samara)	Newly displace d (military ops)	Total 2006	Total displaced families	Total displaced individuals
Ninewa	1,947	4,625	6,572	6,105		6,105	12,677	76,062
Kirkuk	184	1,068	1,252	1,072		1,072	2,324	13,944
Diyala	2,392	3,453	5,845	7,530		7,530	13,375	80,250
Salah al- Din	360	3,006	3,366	7,500		7,500	10,866	65,196
Total Centre	7,776	15,331	23,107	49,328	3,679	53,007	76,114	456,684

IOM, 2006

Salah Al Din

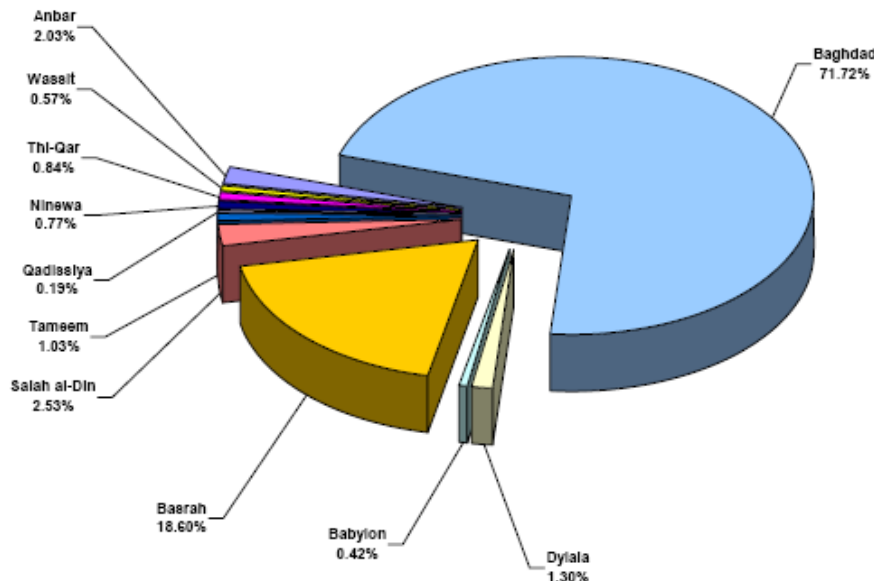
Total displaced: As of the reporting date (November 16), 2,615 families were identified and assessed. Their current districts of displacement within Salah al-Din are Tikrit (870 families, 33% of the displaced), Balad (724, 28% of the displaced), Baiji (421 families, 16% of the displaced), Al-Daur (340 families, 13% of the displaced), Al-Shirqat (149 families, 6%), Samarra (82 families, 3%) and Tooze (29 families, 1%).

Places of Origin: As with other governorates in the area, the majority of IDPs in Salah al-Din were displaced from Baghdad, although IDPs have fled from all over the country, many fleeing from as far away as Shia-dominated Basrah in the south.

The percentages from each of the governorates or origin are as follows:

Baghdad: 72%
 Basrah: 19%
 Salah al-Din: 3% (displaced within the governorate)
 Anbar: 2%
 Kirkuk: 1%
 Diyala: 1%
 Ninewa: less than 1%
 Babylon: less than 1%
 Qadissiya: less than 1%
 Thi-Qar: less than 1%
 Wassit: less than 1%

IDPs' Place of origin (Salah Al-Din)



Outline of Already-Existing IDP Population (pre-February 22, 2006): There are currently 3,366 pre- and post-2003 conflict IDP families and 1,070 IDP Returnee families (for a total of 4,436 families) in Salah al-Din. The majority of the IDPs in Salah al-Din were displaced after the 2003 conflict.

The pre-February 2006 IDP population belongs to three ethnic groups: Arabs, Kurds and Turkmen. The Arabs constitute a majority, around 75%. Most Arab families were displaced after 2003 from Tameem/Kirkuk Governorate due to forced recovery of property and ethnic discrimination. The remaining was displaced within Salah al-Din Governorate. The displaced Arabs are found in all the districts, though mainly are concentrated in Tikrit, Al Daur, Baiji and Al

Shirqat. The other main caseload in the governorate is the Kurdish IDP Returnees who constitute 22% of the displaced population and are all located in Tooze district. The remaining 3% of the total IDP population is Turkmen, mainly refugee returnees.

Ninewa/Mosul

Total displaced: As of the reporting date (November 20), 2,790 IDP families were identified and assessed. Their current districts of displacement within Ninewa are Tilkaif (1,101 families, 39%), Al-Hamdaniya (974 families, 35%), Mosul (625 families, 22%), Al-Shikhan (43 families, 2%). Recently-displaced IDPs are concentrated in these four districts because Tilkaif and Al-Hamdaniya have large Christian populations, so Christian IDPs are fleeing to these two districts, and Mosul, as the capital and location of regional authorities and NGOs who can provide assistance, attracts a lot of IDPs.

Places of Origin: As with other governorates in the area, the majority of IDPs in Ninewa were displaced from Baghdad, and some have fled from as far away as Shia-dominated Basrah in the south.

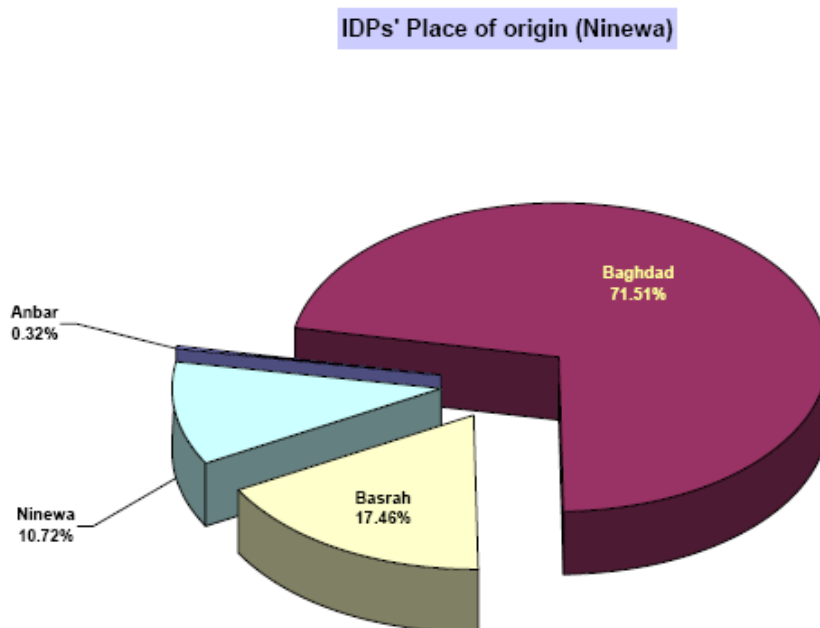
The percentages from each of the governorates of origin are as follows:

Baghdad: 72%

Basrah: 18%

Ninewa: 11% (displaced from within the governorate)

Anbar: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006): Prior to February 22, IOM identified a total of 6,572 pre- and post-2003 IDP families and 5,137 IDP returnee families, for a total of 11,709 families. Of these, the majority of the IDPs were displaced after the commencement of conflict in 2003.

During July 2005, there was a massive displacement of Turkmen from Telafar city due to generalized violence among the two Muslim factions and skirmishes between these factions and

the Multi-National Forces and Iraqi Forces. After two months of displacement, most of these newly-displaced people started to return to their homes in spite of restrictions of movements, a precarious security situation and disruption of the local economy. Nowadays, the majority of the population in Telafar continues to face many security problems and difficulties in resuming their life.

At the beginning of August 2006, it was reported that local authorities in Mosul issued a decision that IDPs displaced from Telafar (both pre- and post-February 22) must return to their homes by August 20. It was reported that police forces even visited IDP communities in order to exert pressure on them to depart Mosul. However, many IDPs have integrated into the local community and have plans to settle in Mosul, so did not take the initiative to return to Telafar. The issue has not been followed up by the local authorities.

Regarding IDP returnees, the majority have not been able to reintegrate due to the poor conditions of their houses and a lack of basic essential services (water, electricity, health, and transport), leading to continuous movements of this population to other places looking for better living conditions and services.

Tameem/Kirkuk

Total displaced: As of the reporting date (November 4), 695 families were identified and assessed. Their current districts of displacement within Kirkuk are Kirkuk City (502 families, 72% of the displaced), Daquq (156 families, 22% of the displaced), and Al-Hawiga (37 families, 5% of the displaced).

Places of Origin: The majority of IDPs in Kirkuk were displaced from Baghdad. The percentages from each of the governorates are as follows:

Baghdad: 48%

Salah al-Din: 22%

Kirkuk: 15%

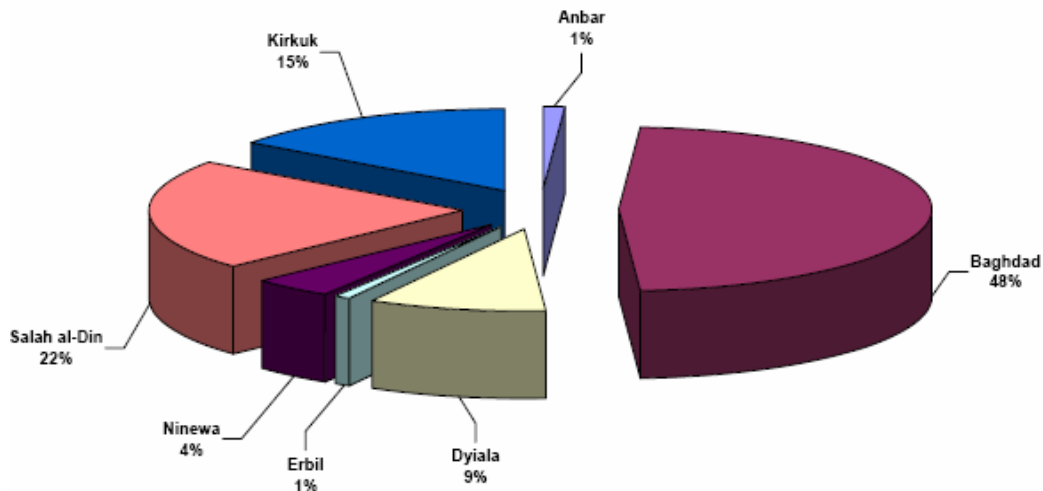
Diyala: 9%

Ninewa: 4%

Anbar: 1%

Erbil: 1%

IDPs' Place of origin (Tameem/Kirkuk)



Outline of Already-Existing IDP Population (pre-February 22, 2006)

Before February 22, IOM monitored 22,653 IDPs (pre-2003 IDPs, post-2003 IDPs, and IDP returnees). The displacement and return dynamics in Kirkuk are among the most complex in Iraq. This is mainly due to the varying groups present in the area and the long history of displacement of the Kurds and Turkish populations as part of the Anfal and Arabization campaigns throughout the past thirty years, whereby these groups were replaced with Shia Arabs from the south, and some Sunni populations from the center.

With the fall of the former regime in 2003, the reversal of forced displacement policies (Anfal and Arabization) led to the return of thousands of Kurdish and Turkmen IDP families to Kirkuk, and specifically to Kirkuk City. This in turn led to the displacement of thousands of Arab families who were settled in Tameem by the former regime. It is reported that although some of the Arabs were forcibly pushed from their homes, others fled in fear.

Diyala

Total displaced: As of the reporting date (December 14), 3,404 families were identified and assessed. The majority of these IDPs were displaced to or within Baquba, the capital and most unstable city in Diyala. Baqubah hosts 1,630 families (48% of those assessed), Baladrooz hosts 789 families (23%), Al-Muqdadiya has 395 families (12%), 311 (9%) live in Al-Khalis, 262 live in Khanaqin (8%), and 17 families live in Kifri (less than 1%).

Places of Origin: IDPs in Diyala come from numerous governorates, mainly those in the center and a couple in the south, namely Basrah and Babylon. The majority were displaced from within Diyala or from Baghdad, with a few coming from other locations.

The percentages from each of the governorates of origin are as follows:

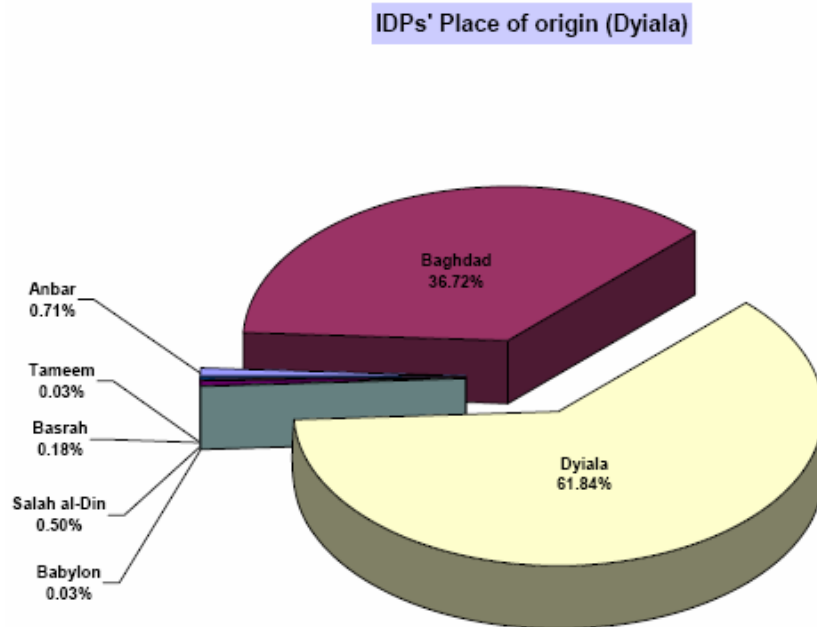
Diyala: 62%

Baghdad: 37%

Anbar: less than 1%

Basrah: less than 1%

Babylon: less than 1%
 Salah al Din: less than 1%
 Tameem: less than 1%
 (see chart below)



Outline of Already-Existing IDP Population (pre-February 22, 2006)

IOM assessed a total of 9,100 IDPs displaced before February. This number can be broken down into 6,691 families displaced post-2003 and 2,409 families displaced pre-2003. The secondary displacement population is by far the largest caseload in Diyala. Many families decided to remain in their current place in Diyala and spontaneously began to set up self-built settlements, often mud houses. One of the main concerns is land tenure. In the north of Diyala, the number of IDP returnees has increased consistently in past months, up to an assessed number of almost 3,000 families. Many of these families are originally from Khanaqin, some of whom decided to return upon deterioration of security or military operations in their place of residence, such as Fallujah, Ramadi, Baghdad, Samarra, and Babylon. Many families displaced before 2003 have integrated well in their current location.

Baghdad and Anbar (2007)

- Most newly displaced people in Baghdad originate from within the governorate itself
- Most newly displaced in Anbar originate from within Anbar, with the second largest group coming from Baghdad

Cluster F, 11 February 2007

Governorate	Pre 2003	2003-2005	Pre 2006	Newly displaced (Post 2003)	Newly displaced (Pre 2003)	Total 2006	Total displaced families	Total displaced individuals

				Samara)	(military ops)			
Anbar	612	1,593	2,205	7,121	3,679	10,800	13,005	78,030
Baghdad	2,281	1,586	3,867	20,000		20,000	23,867	143,202

IOM, 2007

Baghdad

Total displaced: During the reporting period (May 5 to September 30), 4,083 families were identified and assessed. Their current districts of displacement within Baghdad are Al Resafa (with 2,264 families, this governorate has the most displaced), Karkh (581 families), Mada'ain (431 families), Taji (309 families), and Tarmia (494 families).

Places of Origin: By far the majority of IDPs located in Baghdad were displaced from within the Baghdad governorate itself. Since Baghdad, especially Baghdad City is the host to numerous mixed communities, there is constant movement from pockets of mixed communities, where threats are greatest against minorities, to homogeneous areas.

The percentages from each of the governorates are as follows:

Within Baghdad: 85%

Diyala: 9%

Anbar: 4%

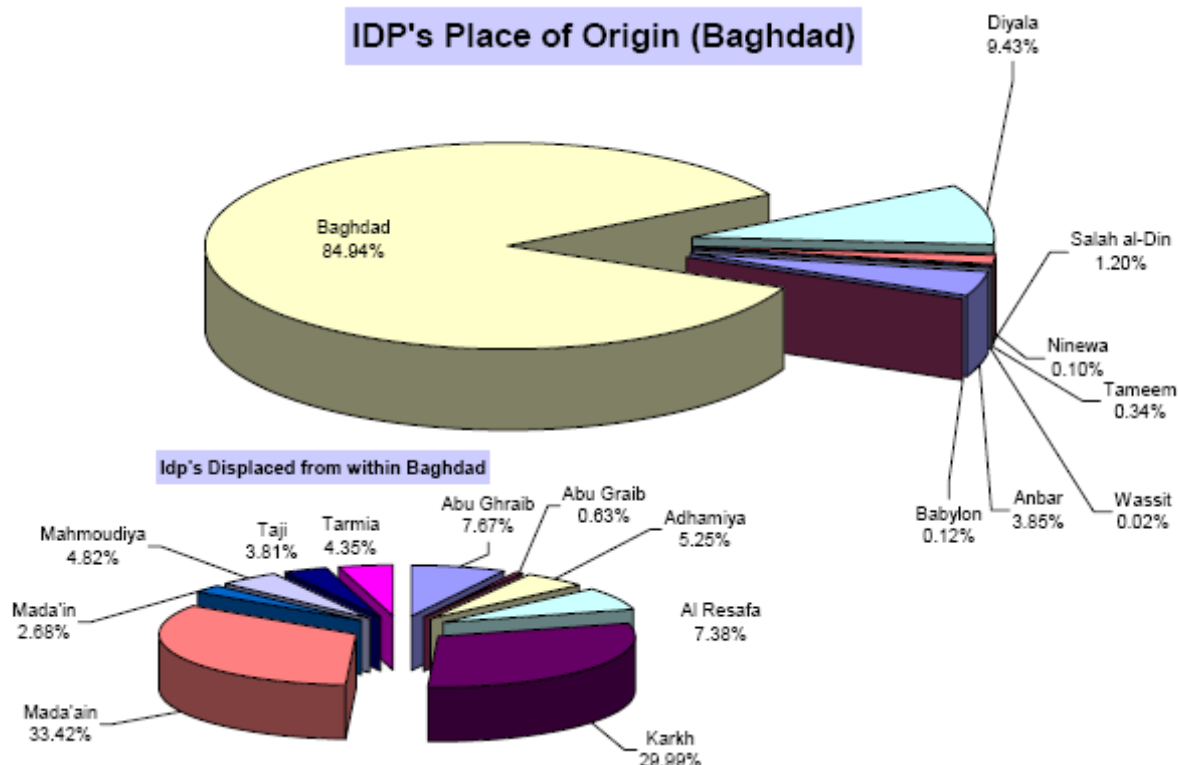
Salah al-Din: 1%

Tameem: less than 1%

Babylon: less than 1%

Ninewa: less than 1%

Wassit: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

IOM monitored 4,192 IDP and IDP returnee families in Baghdad before February 22, 2006. Until September 2004, IDPs in Baghdad were small in number in the capital city. Much of the population movement in Baghdad focused around urban and rural poor who either were looking for employment opportunities or used the vacuum created by the lack of law and order following the conflict in 2003 to camp in public buildings and receive assistance. The genuinely displaced were few and mainly persons whose houses were damaged or destroyed during the 2003 conflict or who fled persecution in the south before 2003. The IDPs have been scattered throughout the city, mixed with urban poor in public buildings, many under threat of eviction. A large change in these dynamics occurred in October 2004 when the military offensive on Fallujah led to the displacement of over 12,000 families into Baghdad over the course of two weeks. Reconstruction efforts and attempts to revive basic services encouraged the return of the majority of the displaced families.

Anbar

Total displaced:

As of the reporting date (November 20), 3,378 families were identified and assessed. These IDPs live in Heet (1,430 families, 42% of the displaced), Falluja (675, 20% of the displaced), Ana (490 families, 15% of the displaced), Ramadi (423, 13% of the displaced), Haditha (200 families, 6% of the displaced), Al-Rutba (110 families, 3%), Al-Ka'im (39 families, 1%) and (11 families, less than 1%) did not provide an answer.

Places of Origin:

69% of the IDPs interviewed were displaced from within Anbar (mostly due to armed conflict), with the second largest group coming from Baghdad. Only a few IDPs have fled north from the south, specifically from Basrah and Babylon.

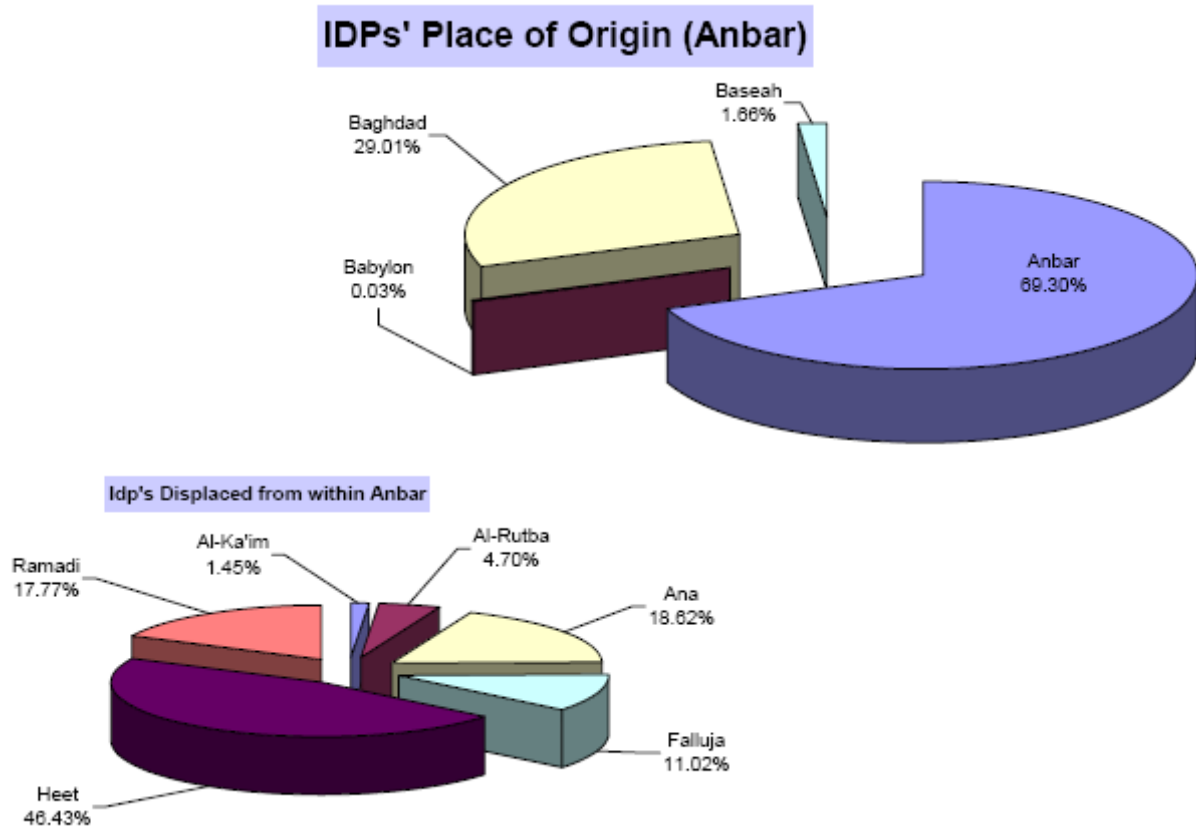
The percentages from each of the governorates or origin are as follows:

Anbar: 69%

Baghdad: 29%

Basrah: 2%

Babylon: less than 1%



Outline of Already-Existing IDP Population (pre-February 22, 2006)

IOM identified an estimated 12,497 IDP families and 38,000 IDP returnee families before February 22. IDP families displaced in Anbar before February 22 are displaced subsequent to three main reasons: 1) the military actions carried out by the Multi-National Forces in Al Qaim, Fallujah, Haditha, and Rawa and by the insecure living conditions in Fallujah and Ramadi. On the whole around 800 families have not returned to their place of origin either because their property was completely or partially destroyed or they do not feel it is secure enough to return; 2) the religiously-motivated violence that, even before the bombing in Samarra, forced many Arab-Sunni families to move to Anbar due to religious or political discrimination. They are about 800 Sunni families displaced for this reasons, especially from Basra and Baghdad; 3) the attempt to Arabize the Northern regions of Iraq pursued by Saddam Hussein's regime before 1993. The displaced are around 600 Kurdish families, some of whom tried to return back to the North but were rejected. After long displacement and failure of their attempt, they are trying to integrate with the host community in Anbar, although their living standards are lower than the rest of the population. In April 2004, attacks on Fallujah and Ramadi districts by the multinational forces instigated major population movements in and out of Anbar, creating a trend of short term displacements during

and following the fighting, where families returned to their homes right after the security situation stabilized.

A second military operation conducted by Multi-National Forces on Fallujah in November 2004 in search of insurgents believed to be housed in the city led to the displacement of over 250,000 persons (almost the whole population of the town). Most moved to the outskirts of the city and Baghdad, in 15 main locations (in Anbar mainly Amiriyah, Habaniyah, Neimiyah, Saglawiyah and Karma; in Baghdad mainly Abu Ghraib, Taji and Adamiya). Though the destruction scale in the city is reportedly large, by end of January 2005, an estimated 38,000 families returned to Fallujah. Basic services are reported inadequate inside Fallujah, and population movements in and out of the city continue to date.

The majority of the displaced in Anbar are considered displaced subsequent to the military actions carried out by the Multi-National Forces in Al Qaim, Heet, Fallujah, Haditha, and Rawa and by the insecure living conditions in Fallujah and Ramadi. In the case of both Al Qaim and Heet, most of the IDPs were displaced internally within the cities as the Multi-National Forces and Iraqi Forces conducted offensive operations in targeted areas of these cities. While many of those displaced from Al Qaim have returned, the overall majority of IDPs in Anbar are still displaced from Al Qaim, with the second largest group coming from Heet and the third largest from Ramadi.

North: Sulaymaniyah, Dahuk, and Erbil (2007)

- Most of the displaced families in Sulaymaniyah governorate are the victims of Collectivization, Arabization and Anfal operations that had occurred in the 1970s and 1980s
- Some 718,896 individuals are believed to be in a situation of displacement in the provinces of Dahuk, Erbil and Sulaymaniyah

Cluster F, 11 February 2007

Governorate	Pre 2003	2003-2005	Pre 2006	Newly displaced (Post Samara)	Newly displaced (military ops)	Total 2006	Total displaced families	Total displaced individuals
Dahuk	22,452	22	22,474 These numbers reflect displaced populations, including others at risk, living in collective towns	6,751 The data is from December 2006; no updated information has been received.		6,751	29,225	175,350

			and public buildings as reported by UNOPS.					
Erbil	32,737	76	32,813 2	2,3223		2,322	35,135	210,810
Sulaymaniyah	50,430	35	50,465 2	4,9393	52	4,991	55,456	332,736
Total North	105,619	133	105,75 2	14,012	52	14,064	119,816	718,896

UNOPS Survey, April 2005

Sulaymaniyah governorate

"After the 1991 gulf-war and the subsequent uprising in the North, thousands of IDPs came from Kirkuk and the Kurdish areas of Diyala governorate to Sulaymaniyah. Many of these IDPs occupied public buildings and military barracks. In 1996, due to the internal KDP-PUK fighting, a large number of families were displaced from Erbil toward Sulaymaniyah. In 2002 and 2003, the conflict related to Islamic extremist groups such as Ansar Ul-Islam caused another wave of displacement. Up to date, 31 Public Buildings are recognized.

With the fall of the former Government in April 2003, people who were displaced started to return spontaneously to their places of origin in the Governorates of Tameem, Diyala and Salah Al Din. While many of the returns were voluntary, some had been influenced by the assistances of KRG like allocating a plot of land in Kirkuk and other non food items like tents, blankets etc.

At the same time other IDP families who are originated within Sulaymaniyah and who were living in rented houses or in collective towns started moving to public buildings evacuated by IDPs moved to Kirkuk to get better access to public services and job opportunities.

The above table shows that 39% (547 out of 1388 families) were displaced after 1991 due to armed conflicts. Sulaymaniyah local authorities assisted IDPs in particular those from Erbil because they were displaced as being loyal to PUK. The assistance included renting for public building, free supply of water & electricity.

Category	Post 1991 IDPs	Pre 1991 IDPs	IDP Returnee	Others At Risk	Others	Total
Number of Families	547	210	0	381	250	1388

[...]

IDPs are concentrated mainly in Sulaymaniyah center (91.1%) followed by Rania (5.7%) and Chamchamal (3.2%)."

Place of origin

The table below shows that only 37.4% of IDPs are originated from within Sulaymaniyah Governorate while the rest 63% are originated from other Governorates with the maximum from Kirkuk 44.5% who were displaced between 1991 to 2003."

Place of Origin / Governorate	Family No.	%.
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Dahuk	5	0.4%
Diyala	63	4.5%
Not answered	3	0.2%
Erbil	180	13.0%
Kirkuk	618	44.5%
Sulaymaniyah	519	37.4%
Total	1388	100%

Dahuk governorate

"After the 1991 gulf-war and the subsequent uprising in the North, Dahuk Governorate received a big number of returned refugees who had fled to Turkey between 1988-1991 also a big number of IDPs from Ninawa Governorate moved towards Dahuk fleeing from GOI persecution in the aftermath of the uprising. Most of these returned refugees and IDPs occupied public buildings because their villages had been destroyed and they did not own houses. In 1998 and thereafter, influx of returnees from Iran became the main issue of humanitarian concern. Many families returned and settled mainly in Amedi and Zakho districts. Up to date, 298 Public Buildings are recognized. With the fall of the former Government in April 2003, people who were displaced started to return spontaneously to their places of origin in Ninawa Governorate. Many of the returns were voluntary.

[...]

Category	Post 1991 IDPs	Pre 1991 IDPs	IDPs Returnee	Others At Risk	Others	Total
Number of Families	650	1308	2	84	1076	3120

[...]

The majority of IDPs are in Amedi District center (44.8%). Others are found mainly in Zakho, Dahuk and Sumel Districts [...]. The majority of IDPs are Kurds. 89.8% are originated within Dahuk Governorate while 9.4%, 0.3% & 0.1% are from Ninawa, , Erbil, and Tameem Governorates respectively.

[...]

Place of origin

The table below shows that 89.8% of IDPs are originated from within Dahuk Governorate while the rest 10.2% are originated from other Governorates with the maximum from Ninawa 9.4%.

Place of Origin / Governorate	Family No.	%.
Dahuk	2802	89.8%
Erbil	9	0.3%
Hasaka (Syrian Kurds fled to Iraq in 2004)	13	0.4%
Ninawa	292	9.4%
Sharnakh(Turkish Kurds fled to Iraq in 1994)	1	0.0%
Tameem	3	0.1%
Total	3120	100%

Erbil governorate

"After the 1991 gulf-war and the subsequent uprising in the North, Erbil received a big number of IDPs from Kirkuk and Ninawa Governorates. In 1996, due to the internal KDP-PUK fighting, thousands of families were displaced from Sulaymaniyah toward Erbil. Most of these IDPs occupied public buildings. Up to date, 115 Public Buildings are recognized. The table below shows that 80% (1217 out of 1519 families) were displaced after 1991 as result of armed

conflicts. Erbil local authorities assisted IDPs from Sulaymaniyah because they were displaced as being loyal to KDP. The assistance included renting public building, free supply of water and electricity from 1998 and thereafter. With the fall of the former Iraqi regime in April 2003, people who were displaced started to return spontaneously to their places of origin in the Governorates of Tameem and Ninawa. While many of the returns were voluntary, some had been influenced by the assistances of KRG like allocating a plot of land in Kirkuk and other non food items like tents, blankets, etc.

[...]

Category	Post 1991 IDPs	Pre 1991 IDPs	IDP Returnee	Others	Others At Risk	Total
Number of Families	1217	193	0	103	6	1519

[...]

IDPs are concentrated mainly in Erbil center (76.1%) followed by Soran (11.6%) and shaqlawa (6.4%)

[...]

Place of origin

The table below shows that only 17% of IDPs are originated from within Erbil Governorate while the rest 83% are originated from other Governorates with the maximum from Sulaymaniyah 61.7% who were displaced in 1996 for being loyal to PDK during the internal fighting between PUK & PDK."

Place of Origin / Governorate	Family No.	%.
Baghdad	1	0.1%
Basrah	6	0.4%
Dahuk	153	10.1%
Erbil	258	17.0%
Kirkuk	104	6.8%
Mosul	8	0.5%
Tameem	52	3.4%
Sulaymaniyah	937	61.7%
Grand Total	1519	100%

Most internally displaced people are believed to be located in Sulaymaniyah, Northern Iraq (2004)

- Sulaymaniyah has the largest concentration of IDP families
- The North hosts most IDPs with 145,356 families, the South has 53,402 families and the centre 29,959

UNHCR, August and October 2004

"The following table provides an overview of the current scale of displacement in Iraq, but the accuracy of these figures is not certain given the difficulties of reaching a credible global figure:

Location	No. of IDP Families
North	
Erbil	29,536
Dohuk	35,483

Sulaymaniyah	80,337
Sub-total	145,356
Centre	
Ninawa	1,213
Al Tameem	12,000
Salah Ad Din	4,595
Al Anbar	610
Diyala	8,269
Baghdad	1,272
Sub-total	27,956
South	
Karbala	14,364
Najaf	600
Babil	1,298
Qadisiyah	1,217
Wasit	1,477
Al Muthana	823
Dhi Qar	374
Maysan	7,142
Basrah	22,773
Sub-total	50,068
Total	223,380 families

NRC/IDMC Note: UNHCR and other UN agencies are relying on pre-war estimates. Exact figures of IDPs in Iraq are not known due to the ongoing poor security situation and ongoing displacements which makes it difficult to make assessments.

Southern Iraq: estimated numbers of displaced people (1994-2002)

- Because of lack of access to the government-controlled part of Iraq, estimates of the number of internally displaced in the South varied from 40,000 to 1 million between 1994 and 1997
- In 1999, USCR adopted the conservative estimate of 100,000 internally displaced persons and confirmed this estimate for 2000 and 2001
- According to Brookings Institution report, there are at least currently 300,000 IDPs in government-controlled Iraq

Southern Iraq

USCR, 1995, p.116

End of year	Estimated number of IDPs in Southern Iraq	Source
2001	100,000	USCR 2002
2000	100,000	USCR 2001, p.180
1999	100,000	USCR 2000, p.188
1998	No figure for the South	USCR 1999, p.153
1997	40,000-1,000,000	USCR 1998, p.145
1996	40,000-1,000,000	USCR 1997, p.152
1995	40,000-1,000,000	USCR 1996, p.113

1994	40,000-1,000,000	USCR 1995, p.116
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"The number of persons displaced in the south, including to, from, and within the marshlands, is nearly impossible to determine with any degree of certainty because the Iraqi regime denies the UN and other relief agencies access to the area. Estimates of the number of displaced and at risk Maaden (i.e. Marsh Arabs) range from 40,000 to 1,000,000."

USCR 2000, p.188 & 2000 p.180

USCR quoted the same estimate (40,000 to 1,000,000) for 1995, 1996 and 1997 (USCR 1996, p.113, USCR 1997, p.152, USCR 1998, p.145). It renounced to provide any estimate for 1998 because of lack of access for independent sources to the area. (USCR 1999, p.153). It stated for 1999 and 2000 that "[a]lthough there are no reliable sources on the number of displaced people in southern Iraq, the U.S. Committee for Refugees (USCR) conservatively estimates that about 100,000 are internally displaced from and within the southern region."

According to report by Brookings Institution

Fawcett & Tanner, Oct 02, p33

"The best estimate on numbers comes from a paper given at the AMAR conference in May 2001. At the start of the 1990s, prior to the initiation of the large scale marsh-draining program, an estimated original population of 400,000 Marsh Arabs had dwindled to about 250,000 people still living in the marshes and its vicinity. The reason for this reduction in numbers was essentially economic migration. Of this remaining number, 40,000 made it into Iran as refugees, and another estimated 20-40,000 remained in their homes. This leaves 170,000 to 190,000 people who are either dead or displaced. Although there have been anecdotal reports of massacres by Iraqi forces, no reliable figures exist.

Numbers for other Shi'i Arabs expelled either because of political activity or for living in the wrong place are equally hard to determine. While there have been anecdotal accounts of entire villages being destroyed and hundreds of people expelled, the only firm numbers are the 4,000 families (25,000 people) that the government itself has admitted to expelling from a Baghdad neighborhood in 1998.

The only figures we have on the al-Qilaa or Jash Kurds come from the Iraqi Red Crescent, which puts the figure at 8,000 families. Using the UN-Habitat average of 5.7 persons per family, this population is over 45,000. Finally, there are reports of some non-Arabs who, forced out of Kirkuk, have moved south instead of north and into the Kurdish areas. This may be because they are joining family members in the South, or because they are at odds with authorities in the North, or, perhaps because of some governmental measures not yet known or understood, or simply because of the vagaries of violence and expulsion.

All told, if one systematically takes the low estimates and the confirmed numbers – 80,000 from the Iraq/Iran war now living in Basra, 170,000 for the Marsh Arabs in the 1990s, 25,000 for expellees from Baghdad, 45,000 of the al-Qilaa Kurds, and an unknown number from the Arabization campaign – it is hard to see how there could be any fewer than 300,000 IDPs in South/Central Iraq."

Northern Iraq: estimated numbers of displaced people (1994-2002)

- Although accurate figures are not available, estimates fluctuated between 600,000 for 1994 to 800,000 for 1999
- USCR estimates that the number of persons still displaced in northern Iraq is about 600,000

- Current estimates include short and long-term displacement within northern Iraq, but also about 100,000 persons expelled from the government-controlled area to northern Iraq

Northern Iraq (including people displaced from Kirkuk)

USCR, 1995, pp.115-116

End of year	Estimated number of IDPs in Northern Iraq	Source
2001	600,000	USCR 2002
2000	600,000	USCR 2001, p.180
1999	800,000	USCR 2000, p.185
1998	800,000	USCR 1999, p.150
1997	At least 500,000	USCR 1998, p.144
1996	At least 666,000	USCR 1997, p.152
1995	No figure for the North	USCR 1996, p.112
1994	600,000	USCR 1995, p.115

1988-1995

"In the 1980's, the Iraqi government launched a punitive campaign known as Anfal, which destroyed up to 4,000 Kurdish villages. In 1988, tens of thousands fled into Iran and Turkey.

Following a failed Kurdish uprising in early 1991, some 1.5 million sought temporary refuge in Iran and along the Turkish border. By the end of 1991, most Kurdish refugees had returned, but some 700,000 remained displaced within northern Iraq. Many of these had been displaced two or more times, as fighting continued between Kurdish and Iraqi government forces. [...]

During 1992 and 1993, more Kurds were displaced by skirmishing and shelling along the confrontation line dividing the Kurdish zone from government-controlled Iraq, and government forces expelled many Kurds into the Kurdish zones. [...]

During 1994, about 100,000 previously displaced persons were able to return to their home villages, many of which had been destroyed during the Anfal, but were being rebuilt with UN and NGO assistance. However, an estimated 600,000 persons remained displaced within northern Iraq. Of those, about 400,000 were not able to return to their places of origin in government-controlled Iraq or along border areas due to fears for their safety. The remainder were displaced from one area of northern Iraq to another. For example, about 100,000 persons in Aqra, Shekan, and surrounding areas – dependent on the government-controlled energy grid – had to abandon their homes for lack of electricity, water, and sanitation. Others fled areas subjected to shelling either from Iraqi government forces or from Turkey."

1996

USCR, 1997, p.152

"It was almost impossible to calculate the number of internally displaced people in northern Iraq. Many people had been displaced multiple times, many also for brief interludes during sporadic fighting. Persons also fled or continued to be displaced as result of various conflicts and threats, including displacement in some cases from government-controlled Iraq into the north as well as displacement within the north. During the year, displaced persons fled incursions by Turkish and Iranian military forces. [...] Although the incursion of government forces into Erbil caused additional displacement, the most significant cause of internal displacement in 1996 was fighting between the KDP and PUK, as well as fighting between the KDP and the PKK. WFP was targeting assistance to 666,000 persons in the north, although this number was based on an assessment of need, not displacement per se."

UNHCR, June 2000, p.3

"Kurdish nationalist aspirations have experienced rivalry between the main parties, reaching a peak in September 1996 when the KDP briefly allied with the Government of Iraq regime to oust the PUK from its main bases. The crisis of September 1996 caused the largest population displacement since 1991 (approximately 200,000 persons), as the population feared the Iraqi army and its security services as well as the rivalry between the Kurdish factions. In the North-East, when the PUK announced an imminent Iraqi attack on Suleymaniya, it contributed to an exodus of 40,000 people towards the Iranian border, while another 40,000 were displaced in Suleymaniya itself."

Dammers 1998, p.182

"UN figures for those displaced by the fighting in 1996 and the first half of 1997 were: Dohuk governorate 13,281; Arbil governorate 67,283; and Suleimaniyeh governorate 38,453 (total 119,017)."

1997

USCR, 1997, pp.143-144

"Factional fighting among the Kurds in the north, particularly in the last three months of the year, and Turkish incursions into northern Iraq in May and September [1997], internally displaced, at least temporarily, 30,000 to 100,000 people. Another 500,000 long-term internally displaced people remained in the three northern governorates of Dohuk, Erbil and Suleymaniya. [...]"

The UN secretary general reported in 1997 that about half of the 500,000 people displaced in northern Iraq left their homes before 1991, that 150,000 became displaced between 1991 and 1995, and that 100,000 were displaced in 1996. [...]

In 1997, Baghdad intensified its systematic efforts to 'Arabize' the predominantly Kurdish cities of Kirkuk, Khanaqin, and Douz at the edge of government-controlled Iraq near the Kurdish-controlled zone. To solidify control of this strategically and economically vital oil-rich region, the government expelled Kurds, Assyrians, and Turkomans – at times, entire communities – from these cities and surrounding areas. [...] Although it was difficult to find a credible estimate of the number of internal expulsions in 1997, reports indicated that large numbers were involved."

Dammers, 1998, p.183

"A WFP survey conducted in August 1997 reported 1291 people still displaced from the border regions of northern Iraq affected by the Turkish incursions. In November, a UN security report revised this to '600 families'."

1998-1999

UN GA, 4 November 1998

In 1998 "The Special Rapporteur [of the Commission on Human Rights on the Situation of Human Rights in Iraq] [...] cited the more than 150,000 persons of Kurdish origin who had been evicted from the oil-rich regions, where the policy of 'Arabization' continued. That number did not include the problem of more than 200,000 internally persons in the rest of the country, mainly in the southern regions of Iraq."

UN GA, 14 August 2000

"[T]he following figures were provided in respect of the number of families forced to leave the area: 13,367 families from 1991 to 1993; 112 in 1994; 395 in 1995; 282 in 1996; 710 in 1997; 394 in 1998; 449 in 1999; and 155 in 2000 (as of 4 June). The total number of individuals who were forced to leave Kirkuk since 1991 reportedly amounts to 94,026."

USCR mentioned the number of 800,000 internally displaced persons in the north for 1998 and 1999, but 600,000 in 2000 and 2001. (USCR 1999, p.150 & USCR 2000, p.185 & USCR 2001 p.180; USCR 2002)

Surveys

International Medical Corps survey of IDPs (2007)

- IMC has compiled the following estimates of IDP movement between February 28, 2006 and January 10, 2007

IMC, January 2007

IMC Summary Chart of Post February 2006 Displacement and Related IDP Locations							Date: January 2007
Figures are estimates As displacements are occurring continuously. IMC updates these figures on a continuous basis							Location: Iraq
Displaced to Location	No. of Families	of Sect	No. of Families	of Sect	No. of Families	of Sect	Grant Total
Basrah	3,325	Shia					3,325
Thi Qar	4,400	Shia					4,400
Missan	4,800	Shia					4,800
Qadissiya	2,038	Shia					2,038
Wassit	6,966	Shia					6,966
Muthana	1,720	Shia					1,720
Najaf	6,500	Shia					6,500
Karbala	8,350	Shia					8,350
Babil	6,100	Shia					6,100
Baghdad	11,656	Shia	13,036	Sunni			24,692
Baquba	2,570	Shia	653	Sunni			3,223
Al Anbar			4,299	Sunni			4,299
Salah Al Din			4,125	Sunni			4,125
Ninewah			143	Turkmen			143
Ninewah			2,677	Sunni	1,680	Christian	4,357
Kirkuk			657	Sunni			657
Erbil			638	Sunni	880	Kurds	1,518
Dohuk							3,800
Sulaimania							
Total No. of Families	58,425		25,228		2,560		91,013
No. of Individuals, based on 6 individuals per family	350,550		151,368		15,360		546,078

Survey suggests 100,000 displaced Arab IDPs following the fall of Saddam Hussein's government (October 2003)

- About 100,000 newly displaced IDPs have been identified, concentrated in Diyala, Ninewa and Tameem governorates
- Major concentration is in Diyala where about 50,000 IDPs have been displaced from Khanakhin and Kifri
- The only big concentration is in Saar military camp (4000 individuals)
- The same pattern has been identified in Ninewa, where around 20.000 have been displaced since the war

OHCHR, 9 June 2004, p.21

"In the north, Kurds have also begun to return to their homes. The beginning of these return movements has caused a new wave of displacement. As several thousand Kurds have begun to reclaim their homes in the north of Iraq, about 100,000 Arabs who were installed there by the previous regime have fled in the months following the end of the war."

UN OCHA, 10 October 2003

"IOM and NGO partners continued to survey displaced communities in the center/south of Iraq. By the end of September about 100,000 newly displaced IDPs have been identified, concentrated in Diyala, Ninewa and Tameem governorates. These IDPs are mainly Arabs forced to move by the former regime to Kurdish areas. With the end of the regime, these Arabs were forced to vacate the occupied homes in advance of Kurdish returns.

The major concentration is in Diyala where about 50,000 IDPs have been displaced from Khanakhin and Kifri. The IDPs have found shelter in abandoned military installations and public buildings. Most are living in small groups, while the only big concentration is in Saar military camp (4000 individuals). The same pattern has been identified in Ninewa, where around 20.000 have been displaced since the war. In Tameem/Kirkuk, Most displaced are staying with host families, or have returned to their area of origin, and are reported to have quite good resources and coping strategies in place."

PATTERNS OF DISPLACEMENT

General

Many IDPs seek refuge in Kurdish regions which are more stable (2007)

UNHCR, January 2007

"Many IDPs are seeking refuge in the region of Kurdistan, on which this report focuses. In part due to its relative security, the region of Kurdistan has witnessed a steady movement of families into the area since 2003. In 2006, this flow increased dramatically as families continued to relocate due to threats and generalized violence. This population influx has placed additional pressure on the real estate market and public service sector in Kurdistan and has led to increased concerns about security and demographic shifts. At the same time the KRG has also benefited from the migration of professionals who have brought with them skills and disposable incomes that boost the local economy."

See also "[Number of displaced increases in Arbil](#)", IRIN, 26 February 2007

The return of Kurds to their former homes has in turn displaced the Arabs living in them (2003)

- Returning Kurds allegedly forced Arab settlers out of homes
- In northern Iraq most returnees are Kurds displaced by Saddam Hussein
- About 100,000 displaced Arabs are living in poor conditions in public buildings or in military camps

Refugee International, 21 November 2003

"Iraq's 800,000 or more displaced persons are in a variety of situations. In northern Iraq most are Kurds displaced by Saddam Hussein, but many of them have returned to their homes. However, often their homes have been destroyed or are occupied by other persons, and thus the returnees often live in tents next to their destroyed houses. Disputes about property ownership are a major factor in preventing many displaced from returning to their former homes. UNHCR estimates that 70,000 to 100,000 Kurds are vulnerable."

Iraq: Diffusing an Ethnic Time Bomb

Refugees International, 17 April 2003

"The collapse of Saddam Hussein's regime has left coalition forces scrambling to restore order in a nation suddenly bereft of the instruments of government. In central and southern Iraq, this has meant detaining looters, securing safe passage for aid trucks, and working to repair damaged utilities. In northern Iraq, where ethnic tensions are already erupting in violence, the task will be more daunting still and the stakes extraordinarily high.

Northern Iraq is home to a mixed population of Kurds, Turkmen, Assyrians and Arabs. During Saddam's rule, it was also home to a program of ethnic cleansing referred to as "Arabization," under which an estimated 600,000-800,000 Kurds were forced from their homes in Kirkuk, Mosul and the surrounding countryside. As they fled, Arab Iraqis were offered incentives to settle in their

place. Many Kurds have been waiting years to return to their homes. With the fall of Saddam, the opportunity has finally arrived.

With no organized process in place to accept returnees or settle property disputes, however, the two populations have been left to handle matters themselves. Since the fall of Mosul, at least 40 civilians have died as a result of ethnic violence, and more than 2,000 Arab Iraqis have fled their homes, either due to force or fear. With no police or peacekeeping force in place and more than 70,000 heavily armed Kurdish peshmerga roaming the area, the potential for these pockets of violence to spread is high.

Complicating the situation is a substantial population of Turkmen, whom the Turks consider brothers and have sworn to protect. Like the Kurds, many Turkmen were also expelled from northern Iraq during Saddam's reign. With several thousand troops inside the country and another 40,000 amassed on the border, the Turkish government has made it clear that perceived abuses of the Turkmen population will not be tolerated. Though reports have not been substantiated, the Turkish press is already claiming that Kurdish looters are destroying land records in an effort to facilitate the expulsion of Turkmen from the area.

To date, the United States has acknowledged the sensitivity of the area, but has outlined no clear strategy for easing tensions in volatile northern Iraq. There are few more urgent tasks than for the American forces to secure this area and establish an orderly and controlling process to handle the return of the displaced. To this end, the United States should announce that a commission with representative ethnic and religious makeup will be promptly established to enable Kurds, Turkmen and others to return and regain land and property lost as a result of forced displacement. As part of this effort, a mechanism for adjudication of property disputes will have to be created, as well as a task force set up to coordinate returns while also assuring fairness to the more than 200,000 Arabs brought in under Saddam Hussein's Arabization policy.

The most qualified organization to assist in these tasks is the United Nations. It has long experience in setting up claims commissions and courts to deal with property disputes and organizing returns of displaced persons and refugees. The UN has taken on this role in Bosnia and should be called upon as a matter of urgency to address the situation in Iraq.

The United States does not have weeks or months to deal with this problem. Efforts must be made now, before passion, fear, and competing claims for the area's substantial oil wealth plunge the region into violence that would undermine the stability and unity of Iraq and call into question the coalition's victory."

RFE/RL, 26 April 2003

"Meanwhile, "Kurdistani Nuwe" reported on 23 April that PUK head Talabani has held a series of meetings with the heads and shaykhs of Arab tribes on 21 April. Shaykh Muhammad Shaykhali, and leaders from Arab tribes including, the Azza, Albumu Faraj, and the Rabi, Bani Tamimi, Janabiyin, Dilemi, Ubed, Jibur, and Al-Azzawi tribes met with Talabani. According to the Kurdish daily, the participants thanked the PUK and the KPF (Kurdistan Peshmerga Force) for their role in protecting the liberated Iraqi citizens and towns. Talabani also announced that Iraq will set up a commission to resolve disputes between Kurds and Arabs to resolve issues related to the forced displacement of thousands of citizens under the Hussein regime's "Arabization" policy. The decision for a commission came following separate meetings on 22 April between U.S. administrator Jay Garner, Talabani, and Barzani. "There will be a committee later representing all sides under the guidance of the United States to arrange how people must go back home in a regular way, not in chaos," Reuters quoted Talabani as telling reporters in Sulaymaniyah on 23 April. Talabani added that the committee had first been proposed by U.S. envoy Zalmay Khalilzad in Ankara in March."

Most Marsh Arabs have been displaced or had to give up their traditional way of living (2003)

- To escape government repression aimed at Shi'a uprising in 1991, many insurgents fled to the marsh areas in central and southern Iraq
- Government drained the marshes to regain control of the region and most of an estimated 200,000 'Marsh Arabs' (1993 estimate) have been displaced, or have had to abandon their traditional livelihoods
- Iraqi government adopted a compulsory resettlement program for the Marsh Arabs in 1992
- The Special Rapporteur of the UN Commission on Human Rights Iraq has received lists of allegedly destroyed villages and houses, located in the marsh area and in Baghdad
- The government has also reportedly forced the Shi'a population from the marshlands to relocate in the Kirkuk area

Refugee International, 21 November 2003

"In southern Iraq, the displaced are primarily Marsh Arabs, forced off their lands by politically motivated reclamation projects in the 1990s. In addition to tens of thousands of Marsh Arabs who are refugees in Iran, tens of thousands more are displaced in Iraq. USAID has begun a project to restore at least part of the 20,000 square kilometers the marshes previously covered."

HRW, Jan 03, p6

"In 1993, Human Rights Watch estimated the rural population of the marshlands to be around 200,000, which took into account the huge amount of army deserters and political opponents seeking shelter in the region after 1991. Today, there may be as few as 20,000 of the original inhabitants remaining, the rest having fled or migrated to Iran and elsewhere, while an estimated minimum of 100,000 have become internally displaced in Iraq."

HRW, Jan 03

"In April 1992 (as part of the plan to "regroup the marsh villages on dry land" [...]), the Iraqi National Assembly approved a new housing program for the Ma'dan. According to then speaker of the Iraqi parliament, Sa'di Mahdi Saleh, the government's intention was to relocate some 3,000-4,000 inhabitants of the marshes to houses constructed along the highway between Basra and al-Qurna, to "provide them with electricity, clean water, schools and medical care," and to "make them good citizens." Saleh told the media that the plan approved by parliament "does not specify [whether the families to be relocated] will be given a choice to move or stay ... whether we say it is compulsory or optional is of no significance to them". The initiative was widely understood as a means through which the government could force political and military fugitives out of hiding, enable its program of drainage of the marshes to proceed without hindrance, and subjugate the local population once and for all.

Moreover, the forced relocation served as a means of depriving the marsh villagers of all sources of economic livelihood—mirroring precisely what had happened to the Kurds when they were forcibly relocated to resettlement camps in the 1980s as a prelude to the Anfal campaign.

The parallel between the Kurds and the Ma'dan was not lost on the speaker of the parliament. Referring to the Kurds, Saleh told the Reuters news agency: 'At the time we evacuated those people and put them in complexes and provided them with amenities, [but] for political reasons there was a row against us in the West. Concerning the marsh people the West should help us to move their homes, build schools for them, improve their health conditions, instead of criticizing. America wiped the Red Indians off the face of the earth and nobody raised an eyebrow.'

The forced resettlement program in the marshes was accompanied by a counterinsurgency campaign that included indiscriminate attacks by artillery, helicopter gunships and fixed-wing aircraft on villages. The attacks were reportedly accompanied by the arrest and execution of civilians, including tribal leaders, the destruction of property and livestock, and the razing of entire villages. Those targeted included whole families that had refused to vacate their homes. The waves of arrests were soon followed by reports of mass summary executions. Among the reports received by Human Rights Watch at the time was one incident involving the execution of some 2,500 villagers in August 1992. The victims, among them women and children, were rounded up in the marshes of al-Chibayish (west of al-Qurna) together with captured fighters of the opposition SCIRI. According to testimony obtained by Human Rights Watch, including that of a survivor, they were taken to an army camp in northern Iraq, where they were executed over a period of about two weeks. The UN special rapporteur on Iraq detailed similar reports he had received."

Fawcett & Tanner, Oct 02, p31

"As to where the Marsh Arabs went, little is known. The British NGO AMAR says some 40,000 people made it into refugee camps in Iran. Some tens of thousands may still be trying to scratch a living out of whatever remains of the marshes. Some were certainly killed by the Iraqi security forces during the 'drainage' operations. But upwards of 100,000 (see numbers section below) must be displaced. Neighboring urban centers such as an-Nasiriyah and al-Amara are thought to hold some people. Larger centers like Baghdad and Basra may provide havens as family members had been migrating there for decades. Finally, it is thought that some Marsh Arabs may be part of the people being sent north to inhabit former Kurd and Turkmen properties, under the Arabization campaign, although it is unclear how the necessary selection process unfolds."

US DOS, 25 February 2000, "Respect for human rights, g."

"The practice of the security services to force large numbers of Shi'a inhabitants of the southern marshes to relocate to major southern cities and to areas along the Iranian border probably is connected to the destruction of villages. Special Rapporteur van der Stoep described this practice in his February report, and added that many other persons were transferred to detention centers and prisons in central Iraq, primarily in Baghdad."

US DOS, 5 September 2000, Sect.I

"Security forces also have forced Shi'a inhabitants of the southern marshes to relocate to major southern cities and to areas along the Iranian border. [...] The Government reportedly also continued to move forcibly Shi'a populations from the south to the north to replace Kurds, Turkomen, and Assyrians, who had been expelled forcibly from major cities."

UN GA, 14 October 1999, para.15-19

"Reports of the destruction of civilian settlements have been received by the Special Rapporteur on an intermittent basis since 1991. The Special Rapporteur [of the Commission on Human Rights on the situation of human rights in Iraq] has received lists of allegedly destroyed villages and houses, located in many parts of the vast marsh area (now mainly drained), as well as in Baghdad."

It was reported that, in late March 1999, Armoured Division Six carried out operations surrounding and bombarding a number of residential areas of some of the tribes living in the Governorate of Basra. Such operations reportedly took place in the areas of Al-Ghameigh, Bait Wafi and Bait Sayed Noor.

Since the beginning of 1999, the Special Rapporteur has regularly received reports indicating that the Government of Iraq has been destroying the houses of opponents with bulldozers, operating during the daytime in full view of the occupants. [...]

The Special Rapporteur has received a list of names of hundreds of people so affected, indicating their addresses, the date of destruction of their homes and the action taken against the families (arrests, executions, expulsions etc.).”

Internal displacement forecasts in case of war (2003)

- In Jan 2002, the UN estimated that an additional 900,000 people could be internally displaced in case of a war
- Rumor of the use of WMD might generate panic to instigate large scale flight
- Iraqi regime could force people in the South to flee as part of its war strategy
- Massive displacement to and from Kirkuk and Mossul is expected

UN OCHA Jan 03, p10

"Up to 900,000 people may be displaced in addition to the 900,000-1,000,000 existing IDPs."

U.N. agencies predicted in December 2002 that war could displace an additional 1.1 million people inside Iraq and 900,000 would become refugees outside the country.

To view the UN confidential report mentioning this information, please see: UN 10 Dec 2002, Likely Humanitarian Scenarios [reference and link below]

CHC, 23 Dec 02

"Scenarios for large-scale population displacement:

1) Refugee flow from northern Iraq to neighbor states. Despite the past history (1988 and 1991) and the publicly and forcefully articulated fears of Turkey and Iran, this is an unlikely scenario. The reasons for this are the following:

The Kurds are far better organized than in the 1980s or 1991. Administrative structures that can channel assistance and defuse popular panic exist both at the government and at local levels.

Most Kurdish households, from prime minister to taxi-driver, have several weeks / months worth of food stocks in the house.

Since 1991, circa 3000 villages have been at least partially rebuilt. They will provide a protective buffer between the towns and the mountainous borders, with access to food and water. (In 1991 there was nothing between the towns and the mountains.).

Indications are that a key trigger to large-scale displacement – a prolonged Iraqi military attack -- will be met with an overwhelming US-led military response.

2) Flight from the northern cities to surrounding areas. As noted above, any large-scale Iraqi military action against cities such as Erbil, Sulaimaniah, or Dohuk is expected to be met with a prompt coalition response. Therefore it is only the use of or rumor of the use of WMD that might generate sufficient panic to instigate large scale flight.

3) New IDPs coming into northern Iraq from the South. This could be any of a number of populations including non-Arabs expelled from Kirkuk, Mosul or even Baghdad, as well as the general population of the first two cities. These are likely to be people that are expelled by the Iraqi regime, as part of its strategy of fighting the war with 'population bombs.'¹ Weapons of mass destruction (WMD) may be used to instigate large-scale displacement.

4) Rapid population movements from and to Mosul and Kirkuk. Upon the withdrawal of Iraqi forces from the northern cities, which could happen even prior to the outbreak of hostilities, there are likely to be two types of population movements: Arab populations will flee south, and the former non-Arab residents will flood home. These movements will happen spontaneously and will be largely uncontrollable."

Bacon, Jan 03

"An attack on Iraq, starting with an air assault against Baghdad and other strategic targets, would generate huge flows of refugees and a serious nutritional and public health crisis. More than a million people fled Iraq during and after the 1990–1991 Gulf crisis, when Saddam Hussein crushed ethnic rebellions that the United States refused to support. Surrounding countries, the United Nations, and relief agencies are bracing for flows at least as great this time. There could also be massive internal movement, with people fleeing cities for the country. Many of the roads that U.S. and allied troops would need to bring troops and equipment into Iraq could be clogged with people fleeing for their lives.

Most of Iraq's 24 million people depend on food rations provided under the U.N. Oil for Food Program. Any break in the food pipeline would create a nutritional crisis, forcing hungry Iraqis to besiege invading troops for food.

Relief agencies have been working for years in Afghanistan, but there is little infrastructure to deal with a humanitarian disaster in Iraq. Stockpiling food, assembling supplies and medicine, and building relief teams will take time and money—mainly from the United States. During and immediately after a conflict, occupying forces are often the only source of food and medical care.

If Saddam Hussein were to use chemical or biological weapons to blunt an attack, the humanitarian crisis could be far worse. Thousands of people would be killed or incapacitated, but relief workers—the world's first responders to complex emergencies—would find it difficult to provide aid. Humanitarian workers are completely unprepared to work in the toxic conditions they could encounter in the country."

Eviction of Kurds, Turkmen and Assyrians from the Kirkuk area (2002)

- Since 1997, Iraqi government forced Kurds, as well as a number of Turkmen and Assyrians to leave the Kirkuk area as part of its policy of 'arabization'
- Most of the people expelled from Kirkuk decided to go north, despite government decree that doing so would cause them to lose their property and food rationing cards
- Families perceived to be opposed to the regime, families who have relatives outside Iraq or in southern Iraq and those who have relatives in detention or executed are said to be the first targeted in the process of forced displacement
- Baath Party members are responsible for ordering the eviction of families viewed as opponents of the Iraqi regime
- Kurdish sources reported acceleration of forced displacement of non-Arab citizens in 2001 and 2002

AI, 24 November 2000

"Since mid-1997 thousands of Kurds and a number of other non-Arabs, including Turkmen and Assyrians, who have lived all their lives in the Kirkuk region, which is about 260 kilometers north of Baghdad, have been expelled to the Kurdish provinces in the north controlled by the Kurdistan Democratic Party (KDP) and the Patriotic Union of Kurdistan (PUK) because of their ethnic origin and because of Kirkuk's strategic location as well as its oil fields. The authorities have given Kurdish families targeted the choice of either going to Southern Iraq or to the Kurdish provinces. If

the families choose Southern Iraq then they are allowed to take some of their possessions with them. However, if they choose to go to the north their properties, as well as their food rationing cards are confiscated by the authorities. The majority of the families have reportedly chosen to go north. [...]"

Once in Northern Iraq some of the families expelled tried to live with relatives. The majority, however, have been resettled in camps such as the al-Salam camp near Chamchamal and Benislawa camp near Erbil. The KDP, PUK and UN agencies have provided them with basic food, tents, blankets and other items. Their empty properties in the Kirkuk region and in Khanaqeen are given by the authorities to pro-government Arabs brought from other regions in Iraq. Thus far thousands of Arabs from other regions in Iraq have been resettled in the Kirkuk governorate."

UNHCR, June 2000, p.12

"Forced displacement of the Turkomen was reported to have resumed in the last months of 1998, particularly in the Kirkuk area. The head of the coalition of the Turkoman parties stated that about 5,000 evicted Turkomans were living in 'sub-human conditions in Northern Iraq.'"

HRW, December 2000

"In 2000 "The government continued its forced expulsion of Kurds and Turkmen from Kirkuk, Khaniqin, Makhmour, Sinjar, Tuz Khormatu, and other districts as part of its 'Arabization' program.[...] Over 800 people were reportedly expelled between January and June, bringing the total number of those expelled since 1991 to over 94,000, according to Kurdish opposition sources."

Kurdistan Observer, 26 March 2001

In 2001 "Iraqi authorities have forcefully deported five Kurdish families in Tuze Khurmatoo south of Kirkuk city. Their documents were ceased and their houses were expropriated and given to Arab families. The families were asked to register as Arabs or face deportation to the areas controlled by the Kurdish authorities. The deportees who arrived in Kurdistan asked UN to pressure Iraqi government to allow them back to their land and to halt further deportation activities. The deportees numbered 33 persons, all from the farm lands near Tuze Khurmatoo."

RFE/RL, 15 February 2002

"Emanuel Khoshaba, an official with the Assyrian Democratic Movement, said that '10 Assyrian families have been forced to move to...Baghdad since the beginning of the year,' according to 'Zinda' on 12 February. The deportation of these families is part of the arabization campaign spearheaded by the ruling Iraqi Ba'th Party."

RFE/RL, 26 April 2002

"The Iraqi government's ethnic-cleansing campaign against the country's non-Arab citizens has accelerated, according to the Patriotic Union of Kurdistan (PUK) Kurdish-language daily "Kurdistan Nuwe" on 17 April [2002]. "Daily, the Iraqi government further intensifies the policy of ethnic cleansing and deportation of Kurds in the regions under its own control," reported "Kurdistan Nuwe." The article continues, "Whenever the global problems become more intricate and more threatening, the Iraqi government finds it an opportune time to further implement its schemes against the Iraqi people in general and the Kurdish people in particular.[...]"

'On 5 January 2002, [Saddam Hussein's] Presidency Council issued a directive through the Interior Ministry, to the Kirkuk Governorate in which it called for probing into the causes of death of all the Kurdish citizens from 1991 to 1996 in Kirkuk, for the purpose of expelling...the families and relatives of the Kurds who were martyred in the battles for liberating Kirkuk..., ' the report said. The battles for liberating Kirkuk refer to the brief seizure of Kirkuk by Iraqi Kurdish forces during the abortive March 1991 Kurdish uprising."

For more information on forced displacement from Kirkuk, please see Zanger, Maggy, April 2002, "Refugees in Their Own Country, War Without Borders", Middle East Report 222, Spring 2002, [[External Link](#)]

Multiple displacements in northern Iraq (2001)

- In 1998 UN-Habitat estimated that out of 3 million people in northern Iraq, 1 million had been internally displaced at one time or another
- The displaced include victims of the Anfal campaign, people expelled from government-controlled regions, people displaced by Kurdish in-fighting, or people close to the border

USCR, 2000

"Many residents of northern Iraq have been displaced multiple times. In 1998, the UN Center for Human Settlements (UN-Habitat) estimated that more than 1 million people (out of a population of 3 million) were internally displaced in the three northern governorates at one time or another. At least 100,000 of the displaced in the north are people from the government-controlled regions of Kirkuk, Khanaqin, and Sinjar bordering the north who have been expelled into the north in recent years, including 1999.

Those displaced in northern Iraq also include people previously displaced from government-controlled Iraq; about half of the displaced were forced out before 1991, many during the 'Anfal' campaign in the late 1980s when Baghdad forces wiped out about 4,500 Kurdish villages, including virtually all villages near the borders of Turkey and Iran. The rest of the displaced have been uprooted from one part of northern Iraq to another by factional Kurdish in-fighting or, for people living in border areas, by incursions or shelling from outside the Kurdish-controlled region by Turkish, Iranian, or Iraqi government forces."

Habitat Jan 2001, p1

"At 1999 Sulaimaniyah Conference the following category definition was produced:

Those from Kirkuk (old and new caseload). Khanaqin, Kifri, Makhmour, Sinjar, Tala'far, Mosul and other areas.

Those displaced as a result of conflict between the two major factions in Iraqi Kurdistan.

People affected by conflict involving the Kurdistan Workers Party (PKK).[...]

Others in collective towns including widows and children, who would like to return to places of origin if given the opportunity to do so.

All other citizens of Iraq displaced/expelled for political reasons."

UN SC, 19 November 1998, Sect. IV

"The composition of the displaced population now includes: (a) those in collective towns who are unable to return; (b) those who do not wish to return; and (c) those displaced persons who have taken refuge in urban and semi-urban areas and who, because of their vulnerable position, require water and sewage and other infrastructure services. [...] These two groups [(a) and (c)] make up 0.8 million persons."

Aquilla Lawrence, Summer 2000

"About 900,000 internal refugees – as much as a third of the region's population – are scattered across Iraqi Kurdistan. Some of them have been displaced several times in the last twenty years by violence between the Kurds here and Turkey. Some are unable to return home because the soil is still strewn with landmines. About 200 people each month are killed or maimed by mines, according to the UN de-miners."

UNHCR/ACCORD, 14 November 2000

"The other kind of displacement happened in Northern Iraq after the conflict between the PUK and the KDP, especially after the KDP gained the control over Arbil City, which had been in the hands of the PUK since 1995. A forcible exchange of population took place from Arbil City to Sulaymaniyah City and vice versa, affecting around 50,000-55,000 people respectively (100,000-110,000 all in all). These people were sent to the other town just because they were accused of being affiliated with the other party. They lost their social status and support as well as their property: houses, cars, land."

Local officials in Kirkuk are granted impunity to carry out expulsion process described in government decree (2000)

- Procedures during the expulsion process included confiscation of property, of ration cards and of membership cards to government agencies
- One member of each Kurdish family expelled was often detained and had to sign a note acknowledging to move voluntarily
- Special Rapporteur of the Commission on Human Rights on the Situation of Human Rights in Iraq observes that the Baath Party and its members are effectively granted impunity in carrying out forced displacement policy
- To prevent the return of displaced persons the government would mine the area, set-up military checkpoints and demolish Kurdish sites
- Other measures included sealing off entire districts and taking children from families of minority groups hostage to intimidate their families into leaving their home regions

AI, 24 November 1999

"The Kirkuk Governorate was renamed 'Al-Ta'mim' which means in arabic 'nationalization'. On 12 January 1998 a decree was issued by the Governorate of al-Ta'mim ordering the expulsion of 1468 families from the governorate because of its 'very important security status and geographical location'. The decree was based on directives issued by the office of the President of Iraq. It sets a date, between 15 April 1998 and 15 June 1998, for the deportation of the 1468 families. The decree gives details of the number of families to be expelled from different neighbourhoods in the Kirkuk governorate. It also includes details of the procedure to be followed by the security forces, it states:

1. One member of each Kurdish family expelled to the northern provinces should be detained;
2. Confiscation of property belonging to the expelled;
3. Confiscation of ration cards;
4. Confiscation of membership cards to government agencies;
5. Notification of the decree to: the head of security of each district; the Ba'ath party official of each district, the chief of each village. [...]

The expulsion of Kurdish families and other non-Arabs continued throughout 1998 and 1999. The same procedure described above is followed on each occasion."

CHR, 10 March 1998

"According to several persons interviewed, Baath Party members from the local offices of the Baath Party in the city of Kirkuk are responsible for implementing the decision to forcibly remove the targeted families. They are in possession of lists of people living in the neighbourhood under their 'jurisdiction'. These lists contain information on each household of the neighbourhood. Baath Party members are responsible for implementation of the decisions. Aside from the various human rights which are violated in the process of forced displacement (e.g. the rights to privacy, property, movement and personal integrity), the Special Rapporteur [of the Commission on Human Rights on the Situation of Human Rights in Iraq] observes that the practice of forced

displacement as carried out by the Baath Party is an extralegal use of self-ascribed authority; to the extent that the ostensible authorities permit the practice to occur, the Baath Party and its members are effectively granted impunity.

According to testimony received, the following is the typical experience of those families subjected to forced displacement. Once the decision is taken to expel a family, Baath Party members present themselves at the residence of that particular family and order them to leave the area within 24 to 48 hours. In order to ensure that the family will effectively move, Baath Party members usually withhold the identification cards of the members of the family. In some cases a member of the family is put in detention in order to accelerate the process. Once the family is ready to leave their home, they need to pass by the local police station and fill in a form stating that they are voluntarily changing their residence. Their identification cards are only then returned to them and if a member of the family was detained, only then is he or she released.

[...]

Iraqi authorities used to issue a 'displacement order' to families who were required to leave. However, it was reported that the Government of Iraq stopped this practice when they learned that the document was being used by asylum seekers outside Iraq as proof of their claims."

US DOS, 25 February 2000

"In Kirkuk the regime periodically sealed off entire districts and conducted day-long, house-to-house searches, evidently as part of its 'Arabization' campaign to harass, and expel ethnic Kurds and Turkomen from the region. Government officials also take hostage children from families of minority groups to intimidate their families into leaving their home regions. [...] As part of its policy, the authorities demolished the houses and detained and executed family members of Shi'a who protested government actions."

CHR, 26 February 1999, para.24-28

"The Government of Iraq has reportedly been using other measures aimed at encouraging departures and preventing displaced persons from returning. The Government has reportedly declared the area around Kirkuk, including the oil-fields and production facilities, a military and security zone and has mined the area to impede transit. The roads into the area have been heavily fortified with military checkpoints. The regime has also changed the administrative composition of Kirkuk governorate, eliminating four predominantly Kurdish districts and effectively reducing the Kurdish population to minority status. Most recently, the Iraqi Government has reportedly evicted the residents of Kirkuk's citadel and begun the demolition of this ancient Kurdish site, claiming that the envisioned new construction will generate considerable tourist revenue."

Other displacements include flight of political opponents and forced relocation of people who had found refuge in Baghdad (2000)

Dammers, 1998, p.184

"Thousands of non-Kurdish opponents of the Saddam Hussein regime have also sought refuge, or a base for continuing their opposition, in the Kurdish-controlled regions of Iraq, particularly since the Gulf War. The entry of Iraqi government troops and agents into these regions in 1996 left them particularly vulnerable - many were captured or killed, particularly in Arbil. In late 1997, the Iraqi National Congress reported that around 2000 non-Kurdish political displaced were still sheltering in PUK-controlled regions, mainly in Suleimaniyeh. Many reportedly had difficulty finding work, and were often regarded with suspicion (as potential government agents) by the PUK authorities."

US DOS, 25 February 2000

"Thousands of Gulf War refugees who sought haven in Baghdad were relocated forcibly to their home provinces."

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical Security

Generalised violence, fear and direct threats are main reasons for flight (2007)

- Displaced communities surveyed by IOM in all provinces with the exception of the Kurdish areas cited direct attacks to their lives as the primary reason for displacement
- Secondary reasons included generalised violence and military operations
- Displaced people surveyed by UNHCR in the Kurdish provinces cited generalised violence as the main cause of their flight and direct threats as a second cause (with the exception of Dahuk where people cited both generalised and direct threats equally)

UNHCR, January 2007

"Sulaymaniyah : Generalized violence was sighted as the main cause of flight by 96% of families surveyed, 38% also cited direct threats to life as a cause of flight. 97% of families brought winter clothes with them and 52% brought tools. 38% of families brought their own transportation, starting at a low of 13% in Chamchamal. Most families that did not drive to Sulaymaniyah in their own vehicle arrived by taxi; others may have flown. The number of IDP arrivals increased after the Samarra attacks, with peaks in July, August and September 2006, and then again in December 2006.

Erbil: Generalized violence was stated as the main cause of flight by 72% of families. 67% left out of fear and 23% also cited direct threats to life as causes of flight. 99% of families brought winter clothes with them, 59% brought food and 48% brought tools. 22% of families brought a vehicle with them. Most families that did not drive to Erbil in their own vehicle arrived by taxi, others may have flown. 96% of surveyed families reported this as their first displacement and the remaining 4% reported this as their second displacement.

Dahuk : General violence was cited as the main cause of flight by 67% of families. 65% also cited direct threats to life as a cause of flight. 82% of families brought winter clothes with them and 68% brought tools. Only 16% of families brought their transportation, ranging from 3% (Amedi) to 36% (Shekhan). Most families that did not drive to Dahuk in their own vehicle arrived by taxi, others may have flown. Times of flight to Dahuk remained constant and ranged from 8-12% between April and October with a peak of 15% in March."

IOM, 2 February 2007

"Almost all Iraqis are fleeing their homes because they fear for their lives, due to direct personal threats, general armed violence or increasing local criminal activity. All the IDPs' motives to flee were based on the fact that Iraqis do not feel safe where they live and believe that they must leave or face dire, or even fatal, consequences.

When asked why they left their place of origin, a majority of respondents reported that they left due to direct threats to their lives. These threats take the form of abductions, assassinations of individuals or their families, or other threats communicated through mobile telephone calls or texts, graffiti on buildings or walls, or leaflets distributed throughout the community.

The second most popular reason for flight was generalized fear. Fear is generated in an environment that lacks security and a sense of law and order, which describes most of Iraq. Sectarian violence, tribal infighting, armed violence between military and militias or insurgents, military offensives, and criminal activity all contribute to a general sense of fear in Iraq that forced many to flee their homes.

A less popular response was flight due to armed conflict. This response was most common in Anbar. Anbar is considered a hotbed of insurgent activity and suffers from frequent clashes between MNF-I/IF and other armed groups. This response was also given by IDPs in Diyala and Missan.

Respondents were asked if they thought IDP group or family members were specifically targeted. The vast majority (86%) responded positively, and stated it was because they belonged to a certain religion or sect. A smaller percentage thought they were a target because of certain political beliefs (6%), belonging to a certain ethnic group (1%), or belonging to a certain social or professional group, such as doctors or professors (less than 1%).”

Situation in southern Iraq deteriorates (2006)

UNSC, 5 December 2006

“The situation in southern governorates remained tense. From 19 to 21 October 2006, the predominantly Shiite town of Ammara was witness to violent clashes between rival militias seeking to establish control over the city. Incident rates are rising in the Governorates of Qadissiya, Maysan, Wassit, Karbala and Babil.

[...]

Basra has witnessed a high number of incidents since August and appears to be in turmoil. The fragile political balance in the Governorate Council is challenged on the street by a nexus of informal groups associated with smuggling and criminal activities.”

Serious security incidents continue at a high rate, with a daily average of 160 (2007)

- Human rights violations continue to rise

UNSC, 7 March 2007

“Serious security incidents continue at a high rate, with a daily average of 160. There has been a corresponding rise in the level of casualties among civilians, the multinational force and Iraqi security forces. The conflict continues to be characterized by attacks against the multinational force and sectarian violence by insurgents and militias. They use suicide bombings, assassinations, kidnappings and indiscriminate indirect fire attacks, using both rockets and mortars. Incidents against the multinational force are particularly intense in Ramadi and Falluja, with frequent roadside ambushes and sustained attacks against police and military bases. The alleged presence of Al-Qaeda in Iraq, in Diyala and al-Anbar provinces, has been a factor in sustaining and widening the conflict. Despite the focus on the security situation in Baghdad, it is not always apparent that violent incidents take place in almost all areas of Iraq.”

UNSC, 5 December 2006

“Although the Government of Iraq has resolved to promote the protection of human rights and the rule of law, human rights violations continue to rise. Abuses continue to be committed by terrorists, insurgents, militias and criminal armed groups. The excessive use of force by the multinational force and the Iraqi security forces in responding to these elements is also a matter

of concern. Ongoing military operations also continue to challenge the principles of international humanitarian law as civilian casualties mount and access to public services by the affected populations is limited or obstructed. The sectarian carnage has resulted in a vicious cycle of violence fuelled by revenge killings. The end result is an environment of lawlessness and insecurity.

[T]he situation in Iraq has further deteriorated in many parts of the country with a significant rise in sectarian violence, insurgent and terrorist attacks, and criminal activities. The growing militia activities have led to further destabilization. Across many parts of the country, an increasing number of Iraqis have been affected by growing violence and insecurity. High levels of civilian casualties and displacement on a daily basis are breeding an increasing sense of insecurity and deep pessimism among Iraqis. The prospects of all-out civil war and even a regional conflict have become much more real. Therefore, the challenge is not only to contain and defuse the current violence, but also to prevent its escalation.”

Violence and insecurity acute in Baghdad, especially in mixed neighborhoods (2007)

- Most violence has centred around Baghdad
- Large movements of populations have occurred within the city because of kidnappings, extra-judicial killings, dropping of threatening leaflets, destruction of properties, and intimidation
- Fighting between Sunni and Shiite armed groups were primarily recorded in December 2006 in Baghdad's neighbourhoods of Dora, Hurriyah, Al Adhamiyah, Khadimiyah, Ghazaliyah, Amariya and Qadisiyah
- Attacks against minorities and Palestinian refugees are also reported
- Many victims are kidnapped by militias at improvised checkpoints and then extra-judicially executed
- Numerous attacks killed and maimed civilians
- Attacks have also targeted cultural symbols, mosques and churches of different denominations
- Execution-style killings have taken place in Baghdad and other locations, most notably in Babil, Basra, Falluja, Karbala, Kirkuk, Mosul and Ramadi

UNSC, 7 March 2007

“In Baghdad, Sunni and Shiite neighbourhoods are engaged in frequent reciprocal assaults, using improvised explosive devices, mortars and rocket attacks. Typically there can be as many as 15 bombs of varying sizes delivered to targets across the city in a given day, with retaliatory mortar attacks against residential communities. In the single deadliest attack, on 4 February 2007, a suicide bomber driving a truck loaded with one ton of explosives struck a market, killing 135 people and injuring 305. This situation is further compounded by high rates of kidnappings, drive-by shootings and the dumping of mutilated bodies.”

UNAMI, 16 January 2007

“Baghdad is at the centre of the sectarian violence. Sunni and Shiite armed groups are attempting to establish territorial control of Baghdad's many predominately mixed neighbourhoods by intimidating and killing civilian populations and forcing them into displacements to parts of the city inhabited or controlled by members of their ethnic group. Reports suggest the existence of large movements of populations primarily within the city boundaries, as the neighbourhoods become increasingly divided among Sunni and Shi'a armed groups, and are consequently grouped together based on their sect and ethnicity. This forced displacement has been achieved by means of large scale attacks targeting civilians, kidnappings, extra-judicial killings, dropping of

threatening leaflets, destruction of properties, and intimidation. For instance, fighting between Sunni and Shiite armed groups were primarily recorded in December in Baghdad's neighbourhoods of Dora, Hurriyah, Al Adhamiyah, Khadimiyah, Ghazaliyah, Amariya and Qadisiyah."

UNSC, 5 December 2006

"Across many parts of the country an increasing number of Iraqis have been affected by growing violence and insecurity."

UNAMI, 22 November 2006

"Violence in Iraq has been increasingly acquiring a sectarian nature, with each attack generating a surge of revenge attacks in Baghdad and around the country. Sunni and Shi'a mosques have been attacked by rival factions, while mixed neighbourhoods, such as Dora, have been increasingly polarized along the Sunni-Shi'a lines. Many of the death squads and rival militias have direct links with or are supported by influential political parties belonging to the Government and are not hiding their affiliation. There have also been frequent cases of mass kidnappings in which the victims appear extra-judicially executed, bearing signs of torture before death. In other cases, the fate or the whereabouts of the kidnapped remained unknown.

Much of this violence is carried out by militias and other armed gangs, some purporting to grant the community protection that cannot be guaranteed by the state law enforcement agencies. Militias and other armed groups are said to be in control of whole areas in the east and west of Baghdad and continue to carry out illegal policing, manning of checkpoints and "dispensation of justice" through illegal trials and extra-judicial executions. They operate with almost total impunity. Attacks against minorities, Palestinian refugees and women are often allegedly carried out by such groups. Many victims are kidnapped by militias at improvised checkpoints and then extra-judicially executed. These tactics have been employed by both Sunni and Shi'a armed groups or militias to various degrees.

For example, on 1 September, three Indian and eleven Pakistani pilgrims were shot dead by insurgents near Ramadi. The men were part of a group of about 40 pilgrims who were on their way to Karbala. Two of the victims were elderly, two were in their 20s and others were middle-aged.[...]

Families in Al-Hurriya district, a mixed area dominated by Shi'a militia, have reportedly received messages signed by the militia warning them to evacuate the area within 24 hours. On 22 September, armed men reportedly burned two houses with their residents inside and fired several shots against two mosques one hour before the beginning of a ban on vehicle circulation. On 23 September, in Najaf, unidentified gunmen killed Fadil Abu-Sayba, a member of the Shiite Supreme Council for the Islamic Revolution in Iraq (SCIRI).

One of the most atrocious recent acts of sectarian violence occurred in the town of Balad. On 13 October, 17 Arab Shi'a construction workers were kidnapped and their decapitated bodies were found in an orchard in Al-Dhuluiyah, near Balad. Over the following days estimates indicate that up to 90 Sunni Arab civilians were killed and hundreds fled to avoid further violence after armed men wearing black militia clothes chased the Sunni minority out of town, attacking the villages with mortar fire and setting their houses on fire. Two Iraqi police officers have been reportedly detained for collaborating in the killings with the militias. While local officials in Balad claimed that local residents had carried out the attack, others reported that militia groups were sent from Baghdad to participate in the massacre. As a result of this attack most local Sunni residents fled the town.

On 17 October, in a Turkoman area of the Toz Khormato-Tikrit highway, unknown gunmen established an illegal checkpoint and arrested 17 Turkoman officials working in Tikrit. They were questioned on their ethnicity and those of Sunni identity were released. However, 15 Shia's were detained and have not been seen since.

Concerned about growing violence in the country, Iraqi Shi'a and Sunni clerics gathered in Mecca, Saudi Arabia, on 20 October, for a meeting organized by the Organization of Islamic Conference (OIC). They signed a declaration calling for an end to the killing of Shi'a and Sunni Muslims, protection of Sunni and Shi'a holy places, unity and the release of "all innocent detainees." Regrettably, however, there has been no visible decline in the number of sectarian attacks following this declaration.

On the same day the Mecca Declaration was signed, militias took over the town of Amara for one day after a fight with local police, allegedly dominated by a rival militia group. At least nine persons were killed and 60 wounded. On 30 October, Iraqi Ministry of Interior reported 25 people killed and 60 wounded when a bomb blasted through a crowd of labourers in a square in Baghdad's Shi'ite Sadr City.

On 4 September, in Baghdad, unidentified gunmen wearing army uniforms kidnapped Ghanem Khudhair Hussein, a football player from the Iraqi Olympic team. On 1 October, 26 workers from a food factory in Hay al-Amil neighbourhood of Baghdad were kidnapped and loaded onto a refrigerated truck (please see paragraph 95). On 2 October, 14 individuals were kidnapped from computer stores near Baghdad's Technical University where they worked. In both instances armed men in military and police style clothing abducted large numbers of workers from busy neighbourhoods of the city in broad daylight, acts which led to the withdrawal of an entire Iraqi police brigade under suspicion of collusion.

The number of disappeared and missing persons was on the rise. HRO estimates that during the reporting period, over 200 unidentified bodies were transferred to cemeteries in Karbala and Najaf. If a victim was killed in a military operation, the family members may be reluctant to go to the morgues to claim the body, fearing that the militias or security forces may be there to take revenge against the rest of the family. [...]

Victims' families, in addition to emotional distress, face loss of income in cases where kidnapped family members were employed. In some cases, vulnerable members of the family such as elders, women, disabled, students and children were forced to seek low paid work to meet financial needs."

UNAMI, 18 July 2006

"Civilian casualties resulted mainly from bombings and drive-by shootings, from indiscriminate attacks, in neighbourhood markets or petrol stations, or following armed clashes with the police and the security forces. Civilians were also targeted or became unintended victims of insurgent or military actions. Terrorist acts against civilians have been aimed at fomenting sectarian violence or allegedly motivated by revenge and have targeted members of the Arab Shi'a and Sunni communities, including their cultural symbols, as well as markets in Shi'a neighbourhoods. Collusion between criminal gangs, militias and sectarian "hit groups," alleged death squads, vigilante groups and religious extremists adds further complexity to the situation. Certain neighbourhoods in Baghdad often witness fighting among armed groups, police and Special Forces. Execution-style killings continue to take place in the streets of Baghdad and other locations, most notably in Babil, Basra, Falluja, Karbala, Kirkuk, Mosul and Ramadi."

UNAMI, 23 May 2006

"Civilians continued to be targeted by terrorist attacks or killed as unintended victims by insurgent, militia or criminal activities. HRO received numerous documents and testimonies indicating that

Shi'a and Sunni civilians are being intimidated, threatened or killed in order to cause their displacement. HRO has also received credible and consistent reports of summary or extrajudicial executions that have taken place only on the basis of the victim's name. As a result, Iraqis are reportedly resorting to changing their names in order to avoid being identified as belonging to any particular community.

Numerous terrorist attacks killed and maimed civilians and targeted also cultural symbols, mosques and churches of different denominations, with the clear intent of fomenting sectarian animosity. On 12 March, at least 54 persons were reported killed and hundreds wounded in car bombings in Sadr City, Baghdad. The following day revenge attacks took place; four individuals were allegedly accused of being involved in the bombings and summarily executed and hung from lamp posts in the neighbourhood. On 7 April, a terrorist attack against the Buratha mosque north of Baghdad killed at least 85 people and wounded another 160 immediately after Friday prayers. On 6 April, another attack in the holy city of Najaf killed at least 10 others. Approximately 30 people were killed on 13 and 14 April in Baquba, following attacks on three mosques, one Shiite and two Sunni. On 19 April a prominent Shi'a tribal leader, Sheikh Saad Jaber Yassin, was killed in Kut when a bomb exploded under his car.

Targeting of pilgrims has been also reported around the time of the celebration of Prophet Mohammed's birthday. On 15 March, at least 15 pilgrims were killed and over 50 wounded in Baghdad, Mahmoudiya and other places as they were directed to the holy city of Karbala. On 8 April, another explosion in Musayyib, 40 miles south of Baghdad, killed at least the six and wounded 14 Shi'a pilgrims visiting a Shrine in the city.

On 13 and 14 April, HRO recorded an alarming increase in violence in Basra. Over 40 people were reported killed, half of whom were said to be members of the Basra Sunni community. In the morning of 13 April, the Basra-based construction company "Al Fayhaa" was raided by armed men wearing Iraqi police uniforms and driving the same type of vehicles used by the Iraqi police. Sunni and Shi'a employees were apparently separated and seven Sunni were summarily executed. Their killing was interpreted by the construction company as a retribution for their company's earlier association with the Ba'ath party."

For further reports, see sources below

Military operations are ongoing - particularly in Anbar and Diyala (2007)

- Military operations are ongoing, including in Baghdad, Diyala province, Ramadi, Fallujah and Heet
- Military operations are accompanied with restrictions on freedom of movement, excessive use of force, theft and raid of homes, evictions and demolitions
- Claims relate to death, injury and displacement of non-combatants as well as damage to civilian property and facilities
- Schools and hospitals have been occupied by MNF-I and ISF forces
- The impediment of the delivery of humanitarian assistance to areas and individuals affected remains a key point of concern
- Growing number of humanitarian actors detained or imprisoned while attempting to carry out their work

UNSC, 7 March 2007

"The multinational force continued intensive operations in the Diyala province, with extensive cordon-and-search operations in Balad Ruz and Baqubah. Numerous suspects were detained

and weapons caches discovered. Despite these operations, the insurgency continues in Diyala and al-Anbar provinces. Major routes through Falluja and Ramadi are persistently ambushed by armed opposition groups employing increasingly effective explosive devices and improved tactics.”

UNAMI, 16 January 2007

“Military operations continued in Al Anbar Governorate, in particular Ramadi, Fallujah and Heet. Ramadi and Fallujah have seen relatively constant fighting between MNF-I and insurgents in some districts, completely disrupting the functioning of social services and resulting in a high degree of displacement and casualties. In Ramadi, for instance, MNF-I is alleged to have bombed Ramadi electric power station with fighter jets on 27 November, wounding one engineer and two technicians, and leaving the city without electricity for a number of days.

In Ramadi, about 200 families were reported to have left their houses in November. According to the Ramadi General Hospital, during the first week of November, MNF-I snipers were reported as having allegedly killed 13 civilians. The General Hospital staff reported a severe shortage of medicines, staff and equipment. For several months now, patients have refrained from using the hospital for fear of snipers allegedly placed on the hospital roof, in addition to the military occupation of the hospital garden. No school attendance was reported in Ramadi, except for a limited number of schools with few students on the outskirts of the city. The MNF-I and Iraqi Forces had allegedly occupied 11 public schools in Katana, Aziziya, Al-Mu'alimeen and Al-Jameea districts. In addition, Anbar University was not functioning due to threats by insurgents.

HRO has received reports to the effect that on 5 November, around 21:00, MNF I units gathered Iraqi citizens near the General Hospital building in Heet. Allegedly, seven men were killed and ten wounded in this operation. Among the dead, there was Sabti Jumaa Hayan, who was reportedly sick and in bed at the time. 120. HRO received information that between 7-8 December, MNF-I Air Force raided two houses in Jazera area of Al-Eshaqi sub-district of Salahaddin Governorate resulting in the deaths of 37 civilians residing in two farm houses. A source in Tikrit Hospital informed HRO that most of the victims were already dead even before the air raids. They bore execution-style gun-shot wounds. He claimed to have seen 17 victims - 5 females, 6 children, 2 elderly men, and 4 adult male with these wounds. Amer Alwan, Al Eshaqi District Commissioner also announced that all 17 bodies bore bullet marks and were apparently killed before the air-raids. MNF I has reportedly claimed that the air strikes were an anti terror operation and in response to shootings coming from the houses. On 19 December, HRO requested MNF-I for more information regarding this raid.

One of four U.S. soldiers accused of raping a 14-year-old Iraqi girl before killing her and her family was conditionally sentenced, on 10 November, in Fort Campbell, Ky, USA, to 90 years in prison with the possibility of parole. The sentence -- which is subject to review by a higher military authority and could be reduced -- was imposed on Specialist James Barker after a two-day court-martial. He had pleaded guilty to rape and murder and agreed to testify against others charged in the case in exchange for escaping the death penalty. 122. On 22 December, at Camp Pendleton, Calif., USA, eight Marines were charged in the killings of 24 Iraqi civilians last year during a military operation in the town of Haditha. Four of the Marines -- all enlisted men -- were charged with unpremeditated murder. The other four were officers accused of failures in investigating and reporting the deaths. The most serious charges were brought against Staff Sgt. Frank Wuterich, a 26-year-old squad leader accused of murdering 12 civilians and ordering the murders of six more. With respect to Mahmudiya: 5 soldiers have been charged in the rape and murder of a 14-year-old Iraqi girl and the murder of her family. So far, 1 soldier pleaded guilty to avoid a death sentence. Another soldier was discharged.”

See also, IRIN, ["Anbar province plagued by violence"](#), 15 January 2007 and ["US air strikes isolate Baqubah villagers"](#), 16 January 2007

UNAMI, 22 November 2006

"Military operations by MNF-I and Iraqi Security Forces continue to affect the rights of the local population. In Ramadi, military clashes between MNF-I and Iraqi Security forces on one side, and insurgents on the other, continued to be reported in late September and throughout October, especially in the districts of Aziziya, Soufiya and Al- Mala'ab, and the surrounding streets such as Al-Eshreen and 17 Tammouz. MNF-I reportedly occupied three public schools in Al-Eskan district, close to Aziziya, while the Iraqi forces occupied the garden of the local hospital and used it as a recruitment centre. Adjacent residents, fearing being caught in cross-fire, had to evacuate their homes.

MNF-I snipers were reportedly placed over civilian houses and high buildings and on the roof of the Ramadi Faculty of Medicine and General Hospital. This development, as well explosion of a motorcycle in front of the hospital on 20 September, has lead to the reluctance of most medical staff and local population to access these facilities. Patients are now seeking treatment in Tikrit General Hospital, in Salaheddin Governorate, some 100 kilometres away. The Ramadi Education Directorate building was also reportedly occupied by MNF-I. Schools opened later in the city and Al-Anbar University has refused to start classes for as long as MNF-I remained inside the university campus.

In Fallujah, following a series of renewed bombings on 17 September, the MNF-I implemented a complete siege of the city. Those who were outside the city at the time have not been allowed to return to their homes. All the roads driving to the city were blocked for days and access became extremely difficult.

On 25 October, MNF-I and Iraqi security forces carried out several targeted cordon and search operations in various parts of Baghdad, including inside the Al-Sadr City, and launched air raids on certain areas when MNF-I soldiers were attacked. In one such operation, four civilians were reportedly killed and 18 others wounded."

UNAMI, 18 July 2006

"UNAMI HRO continues to receive reports of alleged incidents related to military/security operations, especially where there has reportedly been loss of civilian life. A constructive dialogue was initiated with the relevant MNF-I authorities and UNAMI HRO welcomes MNF-I efforts in addressing this matter in an impartial and transparent way. Progress have also been made by various Coalition Authorities to compensate for those wrongfully attacked or detained by MNF-I.

The cases reported to UNAMI HRO, which could not be independently verified, include:

On 13 May 2006 the MNF-I, accompanied by the Iraqi Army, reportedly carried out a military operation in Shakha 1 area, in Al-Latifiya district south of Baghdad. The operation was said to have taken place following an earlier downing of an MNF helicopter in the same area. Seven (7) civilians are said to have been killed while the private vehicle they were traveling in was hit by an air strike.

On 14 May 2006, at 4.30 hours, MNF-I reportedly arrived at the home of a retired health sector employee, Mr. Issam Fitiyan Al-Rawi, in Al-Yarmouk neighbourhood in Baghdad. According to members of the family present at the time of the incident, explosions destroyed the gates and some windows of the house. Mr. Al-Rawi apparently came out of his bedroom and into the living room when he was allegedly wounded in the abdomen by a gunshot fired through the bedroom window. When his son Ahmed, a 22- year-old student, tried to assist him, he was also allegedly shot in the head from the outside and died instantly. According to the family, several MNF-I soldiers with an Iraqi translator subsequently entered the home, took female relatives outside the home and reportedly interrogated them while more shots were heard from inside the house. The

MNF-I left allegedly taking the two bodies, family documentation, money and other items with them. Another member of the family living in the house has been detained by the MNF-I.

On 11 June MNF-I planes reportedly carried out an air strike on the home of Sheikh Rasheed Ghazal Al-Mayahee, in Al-Hashimiat area south of Khalis (Diyala Province), killing thirteen inhabitants.

Ongoing military operations in Al-Anbar areas have reportedly resulted in hardship for the local population. According to information received by UNAMI HRO, operations in Falluja on 17 and 18 June resulted in the death and wounding of civilians and destruction of property. In Ramadi, according to reports received by UNAMI, civilians live in fear of insurgent operations which include attacking MNF from civilian homes and generate a military response by the MNF. Civilians are reported to be severely affected by heavy MNF bombing in the districts of Al-Orphally, Al-Soufiya, Al- Katana, Al-Mala'ab, Al-Andalus, 30 July and Al-Azeeziya. Ongoing disruption in the supply of basic services, including water and electricity, and increasing militarization of the sectors of the town have forced residents to leave their homes and relocate to neighbouring areas for fears of military attacks. Access to medical care and food supplies has been reportedly rendered difficult by the military operations."

UNAMI, 23 May 2006

"In Baghdad and central areas of the country, where military operations have continued by the MNF and Iraqi forces, severe disruption to civilian life continues to take place. In Ramadi, where clashes are reported daily between insurgents and Iraqi and MNF, civilian casualties, damage to civilian property and extreme hardship to civilians are commonplace also due to the actions of the insurgency and the resulting use of force by the military. In the outskirts of Al-Iss Haqi District in Balad (Salah-El-Din Governorate), during the early morning of 15 March, an MNF raid caused the death of several civilians, including women and children. The MNF has announced that it is investigating the incident. Medical and other sources from Ramadi reported that 11 civilians, including children, were killed in the city following aerial bombings on 22 April. HRO could not independently verify this allegation.

In March, the MNF announced that they were opening an inquiry into the incidents occurred in November 2005 in western town of Haditha. Residents accused US marines of killing 15 civilians after a marine was killed by a roadside bomb. The MNF had originally reported that the civilians had been killed by the bomb blast but a film produced by a local NGO suggested that the civilians died of gunfire and in their homes."

UNAMI, 1 January - 28 February 2006, p.3

"Military operations conducted by the Multinational Force and Iraqi security forces, especially in the al-Anbar Governorate, have raised a number of human rights concerns as allegations of restrictions to freedom of movement, excessive use of force, mistreatment and theft during raids of private homes, evictions and demolitions of houses have been received by UNAMI. Such reports were reiterated during visits by UNAMI to Ramadi and Fallujah on 20 and 21 February 2006. UNAMI is following up on these allegations with the MNF-I and the relevant Iraqi authorities."

UNAMI, November - December 2005 Human Rights Report, p.5

"MNF-I operations in Anbar Governorate during the reporting period have raised a number of human-rights concerns, relating in particular to the death, injury and displacement of non-combatants as well as damage to civilian property and facilities. In addition, the Human Rights Office is in receipt of numerous allegations that medical facilities have been damaged and their operations otherwise disrupted by MNF-I raids, involving in some cases the detention of medical personnel.

Without prejudice to any determination of violation of International Humanitarian Law, claims have been made to the effect that Tel Afar Hospital has been occupied by MNF-I and ISF forces for six months, limiting patients' access to the facility and putting at risk the lives of staff and drivers observed by insurgent forces entering the hospital premises. According to non-governmental organization monitors, the ISF continues to maintain a presence in and around the hospital which exacerbates the problem of limited patient access to the facility. Reports have also been received alleging that access to Ramadi Teaching Hospital has been severely restricted for several months by MNF-I roadblocks placed in the vicinity. The teaching hospital was reportedly searched on 8 November 2005 by MNF-I troops claiming that they were looking for insurgents.

More generally, during the course of MNF-I military operations at Obeidi in November 2005, water and electricity supplies were badly disrupted and a large number of houses were destroyed or otherwise damaged. A number of non-combatants were reportedly killed, although precise figures concerning these losses are not available to the Human Rights Office. Similar claims were made during and in the wake of MNF-I operations that same month in Al-Qaim, Hadithah, Karabila and Heet, where it was further reported by local actors that up to seven thousand families had been displaced. At the conclusion of the military operations, some of those displaced returned to their homes although living conditions were reported to be inadequate, that is, services remained disrupted and security cordons around the towns severely restricted the movement of residents."

UNAMI, September - October Human Rights Report, p.2

"Ongoing military and security operations by MNF-I and Iraqi forces with the stated aim of restoring law and order, including the resort to aerial bombardment, also had a negative impact on human rights. The United Nations has been unable to obtain accurate figures concerning civilian losses following such operations but reports received from civil society organizations, medical sources and other monitors indicate that they are significant and include women and children. According to figures released by the MNF-I and NGOs, more than 10,000 families have been displaced due to ongoing military operations in Al Anbar and Ninewa Governorates. Displaced persons' access to basic services has been severely hampered. Similarly, the impediment of the delivery of humanitarian assistance to areas and individuals affected remains a key point of concern, as is the growing number of humanitarian actors detained or imprisoned while attempting to carry out their work. According to reports from the World Health Organization, during military operations in Al Anbar Governorate in October, medical doctors were detained and medical facilities occupied by armed forces. The UN has repeatedly raised this issue with the Ministry of Health. Such actions are contrary to international law governing armed conflict and in any event they constitute a denial of the protection of international human rights law. Many homes have been damaged or destroyed and restrictions on freedom of movement have added to civilian hardship. The price paid by civilians, including women and children, during military activity currently underway calls for further reflection on the nature and conduct of the conflict and on the proportionality of the use of force."

See also further reports documenting the impact of military operations in Sources below

Security situation is volatile in Kirkuk, Tal Afar and Mosul (2007)

- A series of incidents have also been also caused concern in the Kurdish region
- There have been increasing reports from NGOs and other sources of a deteriorating human rights situation in both Kirkuk and Mosul
- Of particular concern is the right of minorities to effectively participate politically
- Other concerns include the use of security forces to intimidate and prevent minority groups from participation

- In Mosul, violence has increased and there are also an increasing number of reports of arbitrary arrest and detention
- MNF-I and ISF house raids in Mosul are reported to have resulted in damaged and stolen property
- In Anbar there has been heavy fighting

UNSC, 7 March 2007

"While the Kurdish region remains relatively calm, a series of incidents have caused concern. Following the raid on the Iranian office in Erbil by the multinational force, there was a period of tension and friction between the multinational force and the local security forces. In February 2007, Kirkuk also suffered waves of car bombings. Also in the north, Mosul and Tal Afar witnessed multiple bomb attacks."

UNAMI, 16 January 2007

Kirkuk

"HRO has received several consistent reports from various NGOs and other sources on the deteriorating human rights situation in Kirkuk and is particularly concerned by such developments. Key concerns include the rights of minorities living in Kirkuk and their ability to effectively participate in its political, economic and social development. Additional concerns relate to the use of security forces and the power of detention, including in KRG facilities by the authorities so as to intimidate and prevent minority groups from playing a significant role in the city's affairs. Such violations may well be the prelude of a looming crisis in Kirkuk in the coming months."

Mosul

"Violence in Mosul, although less frequent than that engulfing south and central Iraq, has intensified. Mosul officials state that terror attacks by armed groups are significantly contained. Recently, however local authorities reported that 40 civilians and police officers have been killed on average each week in violent incidents. According to information and reports received by HRO, arbitrary arrest and detention of predominantly "terror suspects" form an inescapable feature of civilian life in Mosul. MNF-I and ISF house raids have allegedly resulted in damaged or stolen property and contributed to an atmosphere of fear and mistrust. Government officials have acknowledged the problem in recent meetings with HRO and have attempted to resolve some of these cases. For instance, the Head of Human Rights Committee of the Governing Council attended to 360 detention cases since 2005 and secured the release of 341 detainees as only 19 were eventually charged and convicted in Court. The Governor's Office has also processed claims for compensation from the central Government for affected inhabitants but it is usually inadequate to cover property loss."

UNSC, 5 December 2006

"During the period under review, the situation in north-western and northcentral parts of Iraq, such as the Governorates of Ta'mim, Mosul and Diyala, was increasingly volatile. In the west, Al-Anbar Governorate continues to witness heavy fighting involving tribal, Al-Qaida and armed groups. [...] In northern Iraq, the security situation varies in intensity and character. In the far north, violence is mostly concentrated in Mosul, with Erbil remaining relatively peaceful."

Perceptions of security and free movement in areas of displacement (2007)

- Displaced people surveyed by IOM generally felt safe in their area of displacement
- Displaced people reported loss of family members, detentions, deaths and disappearances

- Some 6 per cent of displaced people had been detained and 5 per cent had unaccounted for family members
- Displaced people reported some restrictions in their daily movements, including checkpoints and inability to leave their homes freely due to violence

IOM, 2 February 2007

"Despite persistent instability and violence in Iraq, the majority of IDPs report that they felt relatively safe in their current location, or at least safer than in their place of origin. Only 1% of families did not feel safe in their current location.

Iraqis are facing a dramatic increase in deaths, detentions, injuries, and disappearances, and the displaced are not exempt. When asked if someone in the group or family had been injured or killed since displacement, 2% had members killed by militants, the Multi-National Forces in Iraq, or Iraqi Forces; 2% had group members killed by another citizen; less than 1% reported injuries due to mine accidents; 4% suffered other types of deaths; and 3% suffered other injuries. When asked if anyone had been detained since they were displaced, 6% responded that someone had. In addition, over 5% reported that family members were still unaccounted for. However, IDP monitors and international officials believe the numbers to be much higher, as interviewees tended to underestimate when responding on behalf of more than one family.

Various military operations have also restricted people's movement, especially in Anbar and Baghdad. However, these restrictions were usually limited in time and only affected a small population. Only a little over 1% required authorization to move from their current location. In addition, 9% reported that they had to pass through checkpoints for daily movement near their home. Three percent reported other restrictions on their freedom of movement due to the security situation, such as the inability to freely leave their home due to fighting, conservative tribal traditions that prevented movement, the inability to move around at night due to violence, or armed groups restricting movement."

Violations are inadequately investigated and unpunished (2006)

- The investigative capacity of the State remains limited because of security conditions as well as for lack of adequate resources and the limited number of investigative judges
- Existing mechanism for redressing violations are insufficient
- Many individuals and organizations reported their distrust to contact authorities whenever there is a security risk

UNAMI, 23 May 2006

"It is of grave concern that numerous cases of assassinations, torture, abuse of detainees, and intimidations are frequently inadequately investigated and therefore unpunished. [...] It is however often reported that neither the Iraqi judiciary nor the police yield much success investigating crimes perpetrated by numerous well established militias. The investigative capacity of the State remains limited because of security conditions as well as for lack of adequate resources and the limited number of investigative judges. Allegations made that some sectors of the security forces are colluding with armed militias or other armed groups risk eroding support for the security forces and increase the perception that the impunity gap in Iraq is growing.

Existing mechanism for redressing violations are insufficient. Many individuals and organizations reported their distrust to contact authorities whenever there is a security risk. It is imperative that the new Government addresses on a priority basis the security of citizens and that it renews efforts to investigate all crimes or risk that a culture of impunity pervades the new institutions and

further undermines the rule of law. It is also necessary that internal oversight mechanisms of key institutions, such as those in the Ministry of Interior, Defence and Justice, are put in place as well as a more effective forensic investigative capacity of the police and the Ministry of Health."

Government forces alleged work in complicity with sectarian militias (2006)

- The Iraqi security forces are frequently accused of violations including torture, kidnappings, and extortion
- There are increasing reports of militia and death squads operating within the police ranks or in complicity with them
- The UN continues to receive reports alleging that the police forces and sometimes the Army are infiltrated by sectarian militias
- The Ministry of Interior announced that it has instituted reforms to discourage corruption
- Measures were reportedly taken to increase the ethnic and sectarian diversity of the Public Order Division
- Reports suggest that militia have worked in collaboration with forces of the Ministry of Interior
- Organised crime, including attacks on businesses is also reported
- Mosques and other religious sites are allegedly being used as secret prisons and even operating as illegal courts

UNAMI, 22 November 2006

"The Iraqi security forces face formidable challenges to its professional integrity and reputation as a result of its inability to defend the Iraqi population from terrorist, sectarian or revenge attacks. Its officers and forces are frequently accused of engaging in kidnapping, torture, murder, bribery, excessive use of force, extortion and theft, which have in turn, undermined public confidence in the police. There are increasing reports of militias and death squads operating from within the police ranks or in collusion with them. There are also numerous credible reports of police officials requiring payment from would-be recruits to join the police, with the intention of payroll fraud. Consequently, absenteeism is widespread and there are reports that in Kirkuk alone, half of the 5,000 police force and 13,000 Army soldiers, are not reporting to duty at any given time, and many fail to return to duty.

HRO continues to receive reports alleging that the police forces and, to a lesser extent, the Army are infiltrated by sectarian militias. Factional divisions among militia groups have led to violent clashes over control of areas or even cities. Faced with a credibility issue, the Ministry of Interior (MoI) has recently announced that it has taken action against individuals suspected of collusion with militias and has instituted reforms to discourage corruption. Some measures were also reportedly taken to increase the ethnic and sectarian diversity of the Public Order Division (e.g. the recruitment of Christians and Turkomans in the Ninawa Province, resulting in 8,000 potential new recruits). At a press conference on 17 October, MoI Spokesperson stated that 3,000 police members were laid off since last May for human rights violation and corruption charges. Of these, 1,228 were dismissed for "breaking the law", while nearly 2,000 more were dismissed for "dereliction of duty". There is no indication whether these former officers will be further prosecuted for their alleged misconducts.

In response to mounting outcry relating to the operation of death squads with the support of or in collusion with security forces, the Iraqi authorities announced on 4 October that the 8th Police Brigade, composed of about 700 policemen, was relieved of its duties. Reportedly, the brigade commander was relieved of his duties while a battalion commander was arrested. The brigade was accused of collusion in the 1 October kidnapping and subsequent killing of 26 workers "by

men wearing police uniforms” in the area of Hay al-Amil, Baghdad, which the brigade was supposed to be protecting. Again, there is no indication as to whether the officers and forces allegedly involved in this mass kidnapping and killing will be further prosecuted. On 17 October, 2 generals, Rasheed Fleyah and Mahdi Sabeh, the country's two most senior police commanders, were removed from their posts in the first broad move against the top leadership of Iraq's special police forces. In a restructuring that has been applied to the leadership of the National Police, all brigades were brought directly under the commander of the National Police. It is yet to be seen whether the above measures will have a tangible impact on improving the state of conduct and discipline in the police force.”

UNAMI, 23 May 2006

"HRO continues to receive reports of kidnappings and killings carried out by militias, alone or allegedly in association with forces of the Ministry of Interior. Most of the cases relate to actions by armed individuals wearing black clothes abducting young men, who are executed and then left at the morgue or on the streets. Some of the extra-judicial executions are said to be a form of “setting of scores” or revenge killings.

A new brand of violence has emerged, a mix of organized crime and sectarian killings, increasingly attacking businesses. Gunmen often wearing police uniforms have stormed numerous businesses since the beginning of March resulting in workers being kidnapped or killed and money being stolen. On 29 March, 8 people working in a trading company in Baghdad, were lined-up against a wall and murdered. In other cases, armed groups wearing police uniforms have arrested individuals who have later appeared murdered although the Ministry of Interior later denied that its forces were involved in the crime. The Ministry of Interior denied its involvement in the abduction of 50 employees of the Al-Rafiden security company in east Baghdad on 9 March although the operation was carried out by individuals wearing police commando uniforms. The fate of the men remains unresolved.

[T]he actions of militias, armed and vigilante groups, and their alleged implication in human rights violations, remain a cause of great concern. Reports indicate that such groups have increased their activity in central and southern areas of the country. Allegations that sectors of the new security forces have been infiltrated by militias responding to parallel structures have continued to be voiced by Iraqi NGOs, politicians, including members of the Government, and the international community.

During the reporting period, there has apparently been no action taken to effectively address this problem thus increasing a perception of growing impunity. As a result, many continue to express the view that new militias need to be created in order to guarantee personal or group safety. [...]

HRO receives increasing reports about mosques and other religious sites allegedly being used as secret prisons and even operating as illegal courts. On 22 March, HRO received information that three men may have been detained inside Almuhsin mosque, allegedly used by Al-Mahdi militia to “investigate and try” individuals. The three men worked in a vegetable market next to Sadr-city and were allegedly executed after being tortured. Summary trials and execution-style have been reported as being used by Sunni groups.”

Lancet study suggests close to 655,000 deaths have occurred in the 2003 invasion and its aftermath (2006)

- The governments of Iraq and the United States denied the validity of the study
- See also Body Count website linked below which tracks civilian deaths since the beginning of the 2003 conflict in Iraq

UNAMI, 22 November 2006

“According to information provided by the Ministry of Health, the number of civilians violently killed in the country was 3,345 in September (including 195 women and 54 children) and 3,709 in October (including 156 women and 56 children).³ The number of wounded reached 3,481 in September, including 251 women and 125 children), and 3,944 in October (including 276 women and 112 children). As a way of comparison, the total figure of civilians killed in Iraq was 3,590 in July and 3,009 in August 2006. In Baghdad the total number of civilians violently killed in September and October was 4,984 (2,262 in September and 2,722 in October: among those the number of unidentified bodies was 1,471 in September and 1,782 in October).

In its September 2006 issue, the “Lancet,” an independent and authoritative journal, published a study on mortality rates in Iraq. The study estimated that 654,965 excess Iraqi deaths, including 601,027 due to violence, have occurred in Iraq since the invasion of the country in March 2003. The “confidence range” for the number of excess Iraqi deaths due to violence has been estimated between 426,369 and 793,663 with the figure of 601,027 as the median number. The study is based on interviews of 1,849 households containing 12,801 persons. The Government of the United States and Iraq as well as others, including the Iraq Body Count, an organization which has conducted other type of surveys, denied the validity of the study’s findings. The Iraqi Minister of Health, in a statement made in Vienna, in early November, indicated that up to 150,000 Iraqi civilians might have been violently killed since 2003.”

UNAMI, 18 July 2006

“The reported number of civilian casualties continued an upward trend. According to figures provided by the Ministry of Health, which include counts from hospitals in all Governorates [2] indicate that 1,294 civilians died as a result of violence in May 2006 (among them 58 women and 17 children) and 2,687 were wounded (among them 178 women and 41 children). In June 2006 1,554 civilians died violently (among them 66 women and 30 children) and 3,075 were wounded (176 women and 58 children). The overwhelming majority of casualties were reported in Baghdad. In addition, the Medico- Legal Institute in Baghdad (MLI) separately reported receiving 1,375 unidentified bodies in May and 1,595 in June 2006. The total figure of civilians killed in Iraq, adding the figures provided by the Ministry of Health and the MLI, reaches 2,669 civilians in May and 3,149 in June 2006. According to the Ministry of Health, from January to June 2006 there were 6,826 civilians killed and 13,256 wounded.³ Including the figures of the MLI in Baghdad for the period, the total of civilians killed in Iraq from January-June 2006 was 14,338. [...]

On 25 June, the Ministry of Health publicly acknowledged information stating that since 2003 at least 50,000 persons have been killed violently. The Baghdad morgue reportedly received 30,204 bodies from 2003 to mid-2006. Death numbering 18,933 occurred from “military clashes” and “terrorist attacks” between 5 April 2004 and 1 June 2006. The Ministry further indicated that the number of deaths is probably underreported. ”

[Footnote 2] The Region of Kurdistan is not included in these statistics.

See also [Iraq Body Count](#)

Vulnerable groups

Intimidation and displacement of Palestinians inside Iraq (2007)

- There has been a significant Palestinian community living in Iraq for many years

- 23,000 Palestinians were registered by UNHCR in 2003
- Estimates of the current number of Palestinians range between 15,000 and 34,000 people
- Following the US invasion of 2003, Palestinians were perceived as supporters of the regime or the insurgency
- Palestinians have faced discrimination and attacks, others have been illegally detained, tortured or disappeared
- Several hundred Palestinian, particularly those from the Al Baladiyat and Al Hurriya neighborhoods left Baghdad in fear for their safety
- UNHCR reported that 350 Palestinians remain stranded near the Al Tanf border crossing between Iraq and Syria in a makeshift refugee camp (January 2007)
- For many Iraqis, leaving the country is not an option because they do not have documentation recognised in neighboring countries

For an indepth report, see [Nowhere to Flee: The Perilous Situation of Palestinians in Iraq](#), HRW, September 2006

UNSC, 7 March 2007

"The Palestinian community in Iraq, currently estimated at more than 15,000 persons, suffers from regular intimidation, kidnappings and assassinations. On 23 January 2007, unidentified men, some of whom were in police uniforms, abducted 60 Palestinians from their homes in three Baghdad neighbourhoods. When released, some victims showed signs of physical abuse. UNAMI records indicate that 186 Palestinians were killed between April 2004 and mid-January 2007. Approximately 700 Palestinians have sought refuge on the border between Iraq and the Syrian Arab Republic and at the Al-Waleed Camp on the Iraqi side of the border. UNHCR and its NGO partners are providing food, water, supplies and medicine, while ICRC is supplying tents and other essential relief items. On 8 February 2007, a senior representative of the Palestinian Authority visited Iraq, after several failed attempts. He sought assurances from President Talabani and Prime Minister Al-Maliki that Palestinians in Iraq will be protected."

UNAMI, 16 January 2007

"Killings, threats, intimidations, and kidnappings are becoming the norm for Palestinians in Iraq. Many of these actions are reportedly carried out by the militias wearing police or special forces uniform. Most of the victims are found dead or simply disappear. Sixteen Palestinians were kidnapped and 9 killed during the reporting period. HRO received unconfirmed reports that many victims were interrogated and killed in illegal detention centres run by militias. Many residents have reported receiving threatening letters demanding they evacuate their houses and many of the abandoned houses were later occupied allegedly by members of militias or their affiliates.

On 2 November, two individuals were killed in front of their parents by the Iraqi National Guard in Al Fadil area in Baghdad. On 27 November, the body of 72-year-old Tawfiq Abdul Khaliq was found bearing signs of torture. On 13 November, unidentified gunmen killed a female Palestinian in Al Mashtel area in Baghdad. Her house was occupied by militias and when she asked MNF-I for help, the militia torched her house before departing. Other Palestinians were targeted and kidnapped for ransom and then released or killed. On 30 November, a taxi driver, was kidnapped at the Al Habibia area and then released. A shopkeeper was taken from his shop in Al Mashtel area on 2 December. The kidnappers came in one police and three civilian cars. His body was found on 7 December at the Baghdad morgue.

Attacks on the Palestinian compound in Baladiyat in Baghdad for instance are frequent in order to compel Palestinians to leave their dwellings and their belongings. Baladiyat is located in the midst of a Shiite area and threats are usually followed by small arms fire and mortar attacks. In the past two months, at least six incidents of organized attacks on the Palestinian compound have been

recorded, such as on 26 November, when a group of gunmen stormed the quarter and demanded Palestinians leave or be shot. On 9 December, three mortar shells landed in Al Baladiyat wounding ten. On 13 December, mortar attacks continued to rain on the compound for three hours, killing up to 11 and injuring more. There were reports that the area was cordoned off by police, according to some accounts, and by militias according to others, thus preventing injured Palestinians to reach hospitals.

[...]

On at least two occasions in December, UNAMI had to call upon MNF-I to intervene while the Palestinian compound was being attacked. The police and MNF-I were reported to have arrived after the attacks had ended, and briefly patrolled the area. UNHCR reported that 350 Palestinians from Iraq (who recently left Baghdad) remain near the Al Tanf border crossing between Iraq and Syria in a makeshift refugee camp located in the no man's land between both borders. They have been denied entry by the Syrian government and they refused to return to Iraq. As a result, they have been living in increasingly desperate circumstances for the past six months. There are 131 Palestinians still within Iraq near Al Tanf border. Similarly, at the border with Jordan, 7 Palestinians remain between the Jordanian and the Iraqi border."

UNHCR, 30 November 2006

"Palestinian refugees came to Iraq in successive waves. The first group originating from the northern part of today's Israel reached Iraq in 1948. They were followed by another group who fled the Occupied Territories, mainly in 1967, as a result of the third Arab-Israeli war and later by a third group who moved from the Gulf countries in the aftermath of the 1991 Gulf war. Following the 2003 war in Iraq, 23,000 Palestinians have been registered by UNHCR before the evacuation of the UN staff from Iraq and the interruption of the registration campaign in August 2003. It is believed that at present less than 15,000 Palestinians continue to live in Iraq.

The Palestinian refugees in Iraq were never recognized formally as refugees by the Iraqi government. However, they were protected by the Iraqi authorities based on pertinent resolutions of the League of Arab States and, in particular, the 1965 Protocol for the Treatment of Palestinians in Arab States, the Casablanca Protocol. They enjoyed a relatively high standard of treatment and were granted residence permits, benefited from the right to work, access to social services and were provided with government-owned housing or fixed, subsidized rent in privately-owned dwellings. Iraq could thus be considered as the habitual place of residence of these Palestinians.

Since the fall of the former regime in Baghdad in April 2003, members of the Palestinian community in Baghdad have raised concerns that their status and their security in Iraq are at risk. They have expressed concerns regarding the renewal of their residency permits and the confiscation of their documents.

Palestinians in Iraq have become a target of arbitrary arrest, detention, false accusations in the media, abduction, kidnapping, torture and even extra-judicial killings. UNHCR received credible reports that many have been harassed by segments of the Iraqi population and armed militias who resent their perceived close affiliation with the former regime and accuse them of acts of terrorism. Palestinians complained about the increasingly difficult and sometimes humiliating process of renewing their residence documents on a two months basis.

Hundreds of Palestinian families were evicted from their homes by landlords resentful that they had been forced to house subsidized Palestinian tenants. Some of the reported acts of violence against Palestinians have been allegedly carried out with the connivance and, possibly the participation of some elements associated with the Iraqi security forces or that the security forces have shown little effort to stop these acts. This climate of hostility against Palestinians has continued unabated until the present, and many Palestinians, given their insecurity, have limited their movements and have stopped sending their children to schools.

In early October 2006, the Al Hurriya district in Baghdad was the scene for an incursion by the members of an Iraqi militia who threatened the Palestinian inhabitants of the area and evicted at least one Palestinian family from their home. UNHCR received reports that the incident forced around 300 families to leave the Al Hurriya district and to head for other areas. On 19 October 2006, a mortar attack in Baghdad's Palestinian neighbourhood of Al Baladiya left four Palestinians dead, a dozen wounded and many people displaced. Ambulances trying to reach the area right after the attack were reportedly turned away by armed militia. There had been previous warnings by militia groups that Palestinians should leave the neighbourhood. The Al Baladiya area used to house some 8,000 Palestinians. Reports by Palestinian sources now say that there are only about 4,000 remaining there."

UNAMI, 22 November 2006

"The Palestinian refugees in Baghdad have continued to be harassed and targeted by militias using light weapons and mortars to force them out of their homes in Baghdad, particularly the Al-Baladiyat and Al-Hurriya neighbourhoods. The Palestinian Embassy in Baghdad reported that Palestinians have received constant verbal threats and abuses. Further, the Embassy has reported incidents of random shooting at their buildings from moving vehicles, which the Palestinians have described as a daily occurrence. Several have been killed or injured in these incidents. As a result, many families living in Al-Hurriya and a majority of the 2,200 Palestinian families residing in Al Baladiyat have reportedly left their homes, which they had rented or bought after having been forcibly evicted from other neighbourhoods in Baghdad. For many Palestinians, leaving Iraq is not an option, as the only documents they have are either Iraqi Travel Documents or Palestinian passports. Neither document is accepted by neighbouring countries.

Following threats delivered through leaflets at the end of September, militias reportedly raided Palestinian neighbourhood of Al-Hurriya on 7 October at 22:00 hours and ordered the residents to vacate their houses by 10:00 the following day or they would be killed. UNHCR, MNF-I and the US Embassy were alerted and it appears that the Iraqi Army visited the area. During the same militia raid of 7 October, at least one individual and his family were forcibly evicted from their home. The militias confiscated the keys to their home, and up to 20 families have relocated from the area out of fear.

On 20 October, 6 mortars were fired at the Baladiyat complex, used as a sewing training centre and currently occupied by about 20 Palestinian families evicted from their homes in 2003. The complex is situated close to a mosque and a residential area. Three Palestinian men were killed and 21 sustained light or critical injuries. According to witnesses along the main road to Baladiyat, the attackers were dressed in black outfits. The witnesses, who were shop owners, were asked to get inside their shops during the attack."

UNAMI, 18 July 2006

"The situation of Palestinians in Iraq continues to be of serious concern. Some 34,000 Palestinians have been living in Iraq for years but are currently victims to various types of human rights violations because they are perceived as supporters of the previous regime or the insurgency. After serious attacks against the Palestinian community following the destruction of Al-Askari Shrine in Samarra on 22 February 2006, their security situation has varied.[...]

In the morning of 26 June the apartment building complex where many Palestinians reside in Baghdad, in Al-Baladiyat neighbourhood, was attacked by armed individuals identified as militias. Some accounts indicated that among the aggressors there were allegedly members of the Special Forces of the Ministry of Interior. At least 4 Palestinians died and many others were wounded when the militias reportedly opened fire in a local market. Among the attackers, 7 were reportedly killed in the ensuing clashes. After the initial assault, the armed men entered several apartments and detained at least 12 young men. The situation was brought under control after

the intervention of the MNF-I but Palestinians remain fearful and requested that the MNF-I continue frequent patrols to dissuade further attacks.

The Human Rights Office received several reports that, following the attack in Al- Baladiyat, family members of one Palestinian killed during the clashes was also murdered outside the Medico-Legal Institute in Baghdad, when they tried to recover the body of their relative. UNAMI HRO also received reports that two Palestinians wounded during the 26 June clashes were kidnapped from Al-Kindy and Habibiya hospitals by unidentified armed men.

The approximately 175 Palestinian refugees who are stranded in no-man's land, on the border to Syria, recently reported that, on 18 June, Iraqi Security Forces arrived in several vehicles in front of the camp and told a man standing there that the Palestinians were terrorists and threatened to take him back to Iraq with them. The man started shouting and calling a Syrian security officer who happened to be in the camp. The officer called for a Syrian Patrol to assist, but the Iraqi Security Forces left in their vehicles towards Iraq."

UNAMI, 23 May 2006

"UNAMI HRO has been in contact with Palestinian representatives over the past months. Some 34,000 Palestinians have been living in Iraq for years but are currently victims to various types of human rights violations because they are perceived supporters of the insurgency. In this sense, they are victims of the same discrimination, labelling, stigmatization and profiling affecting other communities of foreign residents of Arab extraction in Iraq (e.g. Syrian Arabs, Sudanese, Yemenis, Egyptians, Somalis). On 22 February 2006, following the events in Samarra, militias attacked Palestinians living in the neighbourhood of Baladiyat in Baghdad with mortars and indiscriminate fire. Up to 10 Palestinians have been reported killed since 22 February; others have been illegally detained and tortured or have disappeared.

Since 19 March 2006, approximately 240 members of the Palestinian community, who have lived in Iraq for many years, have left Baghdad in fear for their safety and were stranded near the border with Jordan as of 30 April.."

Professionals and academics specifically targeted, many forced to flee (2007)

- Since 2003, professionals and academics have been specifically targeted
- Many have stopped working, fled to safer parts of Iraq or fled the country
- Judges, in particular those working on criminal cases have faced particular threats
- There have been reports of violence in Diyala, Hillah, Karbala and Wassit affecting court proceedings

UNAMI, 16 January 2007

"HRO documented a worrying increase in targeted attacks and assassinations of professionals such as teachers, religious figures, barbers, police officers, artists, lawyers, exmilitary officers, and politicians across Iraq including the northern cities of Mosul and Kirkuk. These attacks are typically perpetrated by extremists practising conformist ideology and by militant/terror groups intent on spreading fear and intimidation. Journalists and media workers are among the most frequently targeted group with at least 12 killed from November to December."

UNAMI, 22 November 2006

"HRO has recorded a trend of mass departure of Iraqi professionals from areas of conflict to more peaceful parts of Iraq, such as Iraqi Kurdistan region or abroad. The Ministry of Higher Education (MoHE) has registered 154 assassinated professors from 2003 to August 2006. In the last 3

months, 15 more academics and university staff were assassinated. Dr. Isam Al-Rawi, Professor in the Geology Department of the University of Baghdad and the Head of the League of the University Professors was assassinated on 30 October.

The highest rate of assassinations, i.e., 44% of all assassinations of Iraqi academics, was recorded in Baghdad; Anbar, Mosul and Basra each accounted for 10% of the total number of assassinated academics, while in Diyala this figure was 5%. To circumvent some of the obstacles faced by professors and students, MoHE introduced more flexible measures for the attendance at the examinations held in September this year, allowing both academics and students to meet at convenient hours and in convenient locations.”

UNAMI, 23 May 2006

“The killing of professionals, including doctors and academics, is another cause for concern. At least 100 professors have been reportedly killed since 2003. HRO has received no figures concerning the number of students killed. A large number of lecturers, teachers and other intellectuals have reportedly stopped their work or left the country. HRO has received numerous reports that sectarian divisions have engulfed universities; some students appeared to be backed by different political factions. Lack of security in campuses has led to reports of clashes between students as well as intimidation against students and professors. Since 22 February 2006, thousands of students have reportedly requested to be transferred to other universities.

[...]

On Saturday 9 April 2006, a group of armed men gunned down Dr. Darb Muhammad Al-Mousawi, Director of the “Ear, Nose and Throat Centre of the University of Baghdad” at the door of his clinic on Al-Maghreb Street in Al- Adhamiya, in Baghdad. On 19 April, gunmen opened fire against staff members at the Baquba University killing three university professors, including a woman. On 24 April, two car bombs exploded in front of Al Mustansiriya University resulting in at least three persons killed and 25 others injured. Another bomb was placed near the Technical Medical Institute in Bab Al Mouatham in Baghdad, three persons were killed. The University in Baquba and Al Mustansiriya University temporarily closed in protest.

The targeting of judicial professionals is particularly worrisome in the context of the deterioration of law and order. In Baghdad, an investigative judge was killed on 5 April and the president of the Tribunal of First Instance was killed on 25 April. There are reports that many judges, especially those working on terrorism or serious criminal cases, are facing intimidations or threats, including in the provinces. According to various sources, judicial professionals are said to be considering resignation, have requested to be transferred or are reluctant to sit on sensitive cases. There have also been reports of violence in Diyala, Hillah, Karbala and Wassit affecting court functions. Concerns have been expressed by judicial authorities that, because of constant cases of torture reportedly committed by the police, the investigative powers should be squarely kept with the judiciary.”

Vulnerabilities and risks among displaced communities (2007)

- Over 8% of the displaced population assessed suffered from illness, pregnancy, or advanced age in the communities monitored by IOM
- However, IOM monitors believe the percentage is higher

IOM, 2 February 2007

“Over 8% of the displaced population assessed suffered from vulnerabilities or risks, such as illness, pregnancy, or advanced age. (However, monitors and international officials believe that this percentage is higher. When interviewees provided information for several families, numbers tended to be underestimated.) IDPs must often leave behind their possessions, their source of

income, and their social safety net, placing them at risk. In addition, a lack of food or water has a greater impact on the already vulnerable, such as pregnant women or the elderly. Mental disabilities can be exacerbated by an unfamiliar environment experienced in displacement. Stress due to violence and displacement exacerbates all of these conditions.

Out of over 247,134 individuals, 4,957 women (2% of individuals) were reported female heads-of-households, 8,491 individuals (3%) were considered elderly, 3,633 women (2%) were pregnant, 383 individuals (less than 1%) reported a family member with a mental disability, 648 individuals (less than 1%) have serious illnesses, and 375 individuals (less than 1%) reported “other vulnerabilities”. Again, the actual number of vulnerable IDPs is probably higher.”

Minority groups targeted by violence and intimidation are forcibly displaced (2007)

- Palestinian refugees have been victims of mortar attacks and discrimination, others have been detained, tortured or have disappeared
- Christians in Iraq have also received threats and violence such as the bombings of churches, including in the north
- Other groups who have been displaced following threats to their identity include the Faeeli Kurds, the Shabaks, Assyrians and Sabean Mandeans
- Sunni and Shi'a communities are being persecuted in areas where they are a minority
- Representatives of the Iranian Ahwazi refugee communities have also received threats and many have fled their homes
- Only a small number of the Iraqi Jewish community are believed to remain in the country
- Individuals are also being targeted because of their sexual orientation
- Reports of discrimination against non-Kurds in the Kurdish region have continued to emerge as well as allegations that security elements linked to the Ministry of Interior and Peshmerga militias have been involved in illegal policing outside of the KRG
- Inter-ethnic tensions between Arab, Turkoman and Kurdish communities are reported to be escalating in Kirkuk

For an in-depth report on persecution of minorities in Iraq, see also [Assimilation, Exodus, Eradication: Iraq's minority communities since 2003](#), MRI, February 2007.

UNAMI, 16 January 2007

“Minorities in Iraq remain severely affected by the overall security situation, economic and social degradation and the existence of organized armed groups, militias and insurgents, all operating with near complete impunity. Minority groups feel marginalized from political participation and decision-making at the local and national levels. The Shabaks and Assyrians in the Nineveh Plains in particular have been pressured to convert to Islam. Of the 1.5 million Assyrians living in Iraq before 2003, half have left the country and the remaining 750,000 are said to be moving into “safe areas” in Zakho and North Ninevah. Considered to be foreign, non-Arab and of non-Iraqi origin, religious minorities, such as Sabean-Mandeans, frequently encounter intimidation by public and religious officials.

In November, there were significant attacks against the Christian community in Mosul and in December, 14 Kurdish farmers were killed by insurgent groups in the Sinjar area of the Ninewah plain. Inter-ethnic tensions between Arab, Turkoman and Kurdish communities are escalating in Kirkuk. The ethnic divide in Kirkuk was underscored when the Sunni Mosque of Ahmad Thiab al-Nu'aymi in the Terklan area was blown up by extremists on 16 November. HRO received a video evidently showing the abuse and killing of an Arab, who was in the custody of local security

officers, in the streets of Kirkuk. Kirkuk authorities have agreed to investigate the case upon HRO's request.

On 19 November the KRG Parliament Speaker, Adnan Mufti, received a delegation from the Syrian Assyrian Democratic Organization to discuss Christian rights in Kurdistan and their demands for an autonomous region in the Ninewah Plains in response to the heightened violence against Christians. Four days later, gunmen brutally gunned down the leader of Iraq's Christian Syrian community, Yashoo'a Majid Hadaya in an attack in Qaraqosh, northeast of Mosul.

On 3 December 2006, militiamen broke into the house of Taleb Salman Uraibi, assistant to one of the Mandaean religious Sheikhs, and abducted him from his house located in Hay Ur neighbourhood. The body of Uraibi was found with marks of torture later that day. On 11 December 2006, unidentified gunmen killed a Turkman family of five in the middle of the night in Yankaja village in Toz Khormato. In late December, two members of the Shabak community and one from the Yazidi community were murdered in Mosul. Police believed they were targeted simply because of their religious affiliation."

UNAMI, 22 November 2006

"Religious minorities have been increasingly targeted and have experienced severe restrictions in the right to express their religion or affiliation. A new wave of violence and intimidation against Christians has taken place since Pope Benedict XVI made controversial public remarks on Islam on 12 September. Following the Pope's speech, extremists groups issued threats to kill all Christians unless the Pope apologized. As a result of the community's fears, many churches have reportedly cancelled services and attendance in church has dwindled. Christian churches in Baghdad and elsewhere have reportedly displayed banners dissociating themselves from the Pope's comments.

On 24 and 25 September, rockets were reportedly fired against the Chaldean Church of the Holy Spirit in Mosul and an explosive device was detonated outside the church's door. On 4 and 5 October, unidentified men opened fire on the same church, injuring one of the guards. It was reported that young men wrote the following message on church doors: "If the Pope does not apologize, we will bomb all churches, kill more Christians and steal their property and money."

In Mosul, a high-ranking clergy reportedly claimed that priests in Iraq can no longer wear their clerical robes in public for fear of being attacked by Islamists. On 2 October, in Mosul, a convent of Iraqi Dominican Sisters was fired upon. 56. On 9 October, Paulos Eskander, a priest from the Syriac Orthodox Church, was kidnapped. His decapitated body was found two days later in Mosul's Muharaibin neighbourhood bearing signs of torture. The kidnappers had asked for a significant ransom and that his Church displays posters denouncing Pope Benedict XVI's comments. While the banners regarding the Pope's speech were displayed, the hostage was killed before the sum was paid. Two separate incidents occurred on 16 October 2006. In the Baghdeda sub-district of Nineveh governorate, KRG security officers reportedly burst into the offices of a Christian run media outlet, Ashour satellite channel, beat up the staff and took them away. They were subsequently released hours later. On 16 October, in Mosul, unknown gunmen fired at Al-Safena Church causing some damage to the church.

[...]

Other minorities continue to suffer. The Sabean-Mandeans, one of the oldest groups in Iraq, have continued to receive threats that they must convert to Islam or be killed. The community has been dwindling fast; only a few thousand of them are said to remain and live in isolation and fear. On a number of occasions, HRO met with members of the Sabean-Mandaean community that, like other minority groups, is subjected to religious persecution and forceful displacement. The Sabean-Mandaean community decreased from 13,500 persons in 2001 to roughly 4,000 persons in 2006 in Iraq.

Many Sabean-Mandeans have been targeted for religious reasons. In October alone, 4 Sabean-Mandeans were killed: Abdul Razzaq Jabbar Sayyad was killed in Baghdad on 2 October, Raad Mutar Falih, a jeweller, was killed in his house in Al Suwayra on 9 October, Ridha Saeed, a barber, was killed in his shop in Abu Ghraib on 10 October; and Ayar Sattar Fadhil was killed in Basra on 12 October 2006. Sabean-Mandeans complain about being discriminated by their Muslim neighbours or peers, and not as a result of an official policy of the Iraqi Government. For instance, in schools, Muslim children refuse to sit together with Sabean-Mandean children. There are “fatwas” or religious edicts against the Christian communities and overall economic opportunities are often not equal.”

UNAMI, 18 July 2006

“Minorities in Iraq constitute not less than 10 percent of the Iraqi population and continue to express concerns regarding their official recognition, threats to their identity and their desire for increased political rights and participation in the life of Iraq. Faeeli Kurds have also been displaced from Diyala and eastern areas of Baghdad. Kurds and Christians in Ninewa reported continuing patterns of threats, intimidation and killings in the city of Mosul while Christians have complained of illegal policing by Kurdish militias in the Ninewa plains. As a result, many Christian families from Baghdad and Ninewa continue to leave the country or relocate to safer areas in the Ninewa Governorate or the Region of Kurdistan.

Representatives of the Shabaks have submitted to UNAMI HRO a list of 41 members of this community who have been killed during June 2006 in Mosul. In areas where they constitute a minority, Sunni and Shi’a continued to be intimidated by armed and extremist groups into leaving mixed areas and continue to move to areas where they constitute a majority. Following recent threats against Shia’s in general and Shabaks in particular to leave Mosul or be killed, of which UNAMI HRO has received a copy, Shabaks are considering relocation.[...] Mandeans are reportedly also seeking to move to safer areas of the country. Representatives of the Iranian Ahwazi refugee community – Iranian Arabs – expressed concerns regarding their vulnerability to UNAMI HRO. Five members of the Ahwazi community were reportedly assassinated since the fall of the past regime allegedly because they support separation of the Ahwazi from Iran.”

UNAMI, 18 July 2006

“Reports of discrimination against non-Kurds have continued to emerge as well as allegations that security elements associated to the Ministry of Interior and Peshmerga militias have been involved in illegal policing outside of the KRG, notably in Kirkuk and in Ninewa Governorates.”

UNAMI, 23 May 2006

“HRO is particularly concerned about the treatment of ethnic and religious minorities in the country, as well as individuals because of their sexual orientation. The alarming trend of militias turning to systematic intimidation and killing of ethnic and religious minorities has already been reported. Many individuals have left and continue to leave their homes and are seeking refuge among the members of the same ethnic/religious group as a result of threat letters or other forms of intimidation,

Members of the Christian community have lodged complaints with the HRO regarding the treatment and intimidation of the Christian community in the North, and reported that in Mosul alone, some 400 families migrated from the city to other villages with Christian majority within the Governorate. The persecution of minorities seems to continue in the Basra province. HRO received uncorroborated reports on identity profiling in schools and marking of minority houses.

[...]

During an informal meeting between the HRO and a member of the Iraqi Jewish community, it was confirmed that only a small number of families remains in the country. The representative emphasized the importance for the Iraqi Jewish community to be reintegrated within the Iraqi society.”

UNAMI, 1 January - 28 February 2005

"UNAMI continues to receive disturbing reports that minorities, including Palestinians living in Iraq, are victims of human rights violations because of their perceived association with the insurgency. Palestinian refugees, a community estimated at 34,000 individuals who arrived in Iraq over the past three decades, suffer the same discrimination, labeling, stigmatization and profiling affecting other communities of foreign Arabs residing in Iraq (e.g. Syrians and Sudanese). Following the destruction of Al-Askari Shrine in Samarra, militias attacked Palestinians living in the neighbourhood of Baladiyat in Baghdad with mortars and indiscriminate fire on several occasions. The intervention of the MNF-I, assisted in stopping further violence. Since then, other attacks have taken place. Up to 10 Palestinians have been reported killed; others have been illegally detained and tortured or have disappeared.

The Christians of Iraq, among other religious groups, have also been targeted and continue to live in fear. On 29 January, car bombs targeted the Catholic Church of the Virgin Mary and the Orthodox Church in Kirkuk, the Saint Joseph's Catholic Church and an Anglican Church in Baghdad, killing at least three people and wounding nine. A car bomb also exploded outside the residence of the Apostolic Nunzio, without causing any casualties. Political and religious leaders from all communities condemned the attacks. The Special Representative of the Secretary-General, Mr. Ashraf Jehangir Qazi, condemned the explosions and called on Iraqi authorities and political leaders to commit themselves to the safety of all worshipers, and preserve the sanctity of places of worship. In the days following the attack of 22 February, militias fired shot towards a church near Al Sadr City, lightly wounding a priest. The Human Rights Office also received reports that in the course of February, 150 Christian families moved from Mosul city to other areas in Ninewa Governorate where Christians constitute a majority because of increasing concerns for their security."

Further reports are included in sources below

Mixed families vulnerable to displacement (2006)

- Iraq does not have a history of violence based on religious differences
- With the current sectarian violence, mixed families may be particularly vulnerable to separation

IRIN, 6 April 2006

" According to estimates, two million out of Iraq's 6.5 million marriages are unions between Arab Sunnis and Shi'ites. [...]

Many of the doctrinal differences between Sunnis and Shi'ites are minor enough to be dismissed, except by puritans of both sects. Mixed marriages between Arab Sunnis and Shi'ites – and also between the predominantly Sunni Kurds and Arabs of both sects – have been common, even in the days of former president Saddam Hussein, when Shi'ites were heavily discriminated against.

Hadeel's husband, Jamal Jomaa, noted that the current wave of sectarian violence was unlikely to disrupt the homes of mixed marriages, since they were living proof that such violence was useless and unnecessary. "During the Saddam Hussein regime, we never heard of sectarian violence, despite all the problems that we went through," Jomaa said. "Now we have to be strong to show our children that those committing sectarian violence are doing wrong."

According to sociologists, one of the major problems facing mixed families is displacement. "When these families are being displaced, their main concern is where to go, because each one

has a particular sectarian area to run to,” said Marouf Abbas, a sociologist in Baghdad. “Usually the wives follow their husbands so as to keep their families intact.”

More than 40,000 families have been displaced in Iraq due to ongoing sectarian violence, according to estimates by the Ministry of Displacement and Migration. “My husband is Sunni, but I’m a Shi’ite from Basra, in south Iraq,” said Samira Kadham, a Baghdad resident. “We were forced to leave our house in Kadhmiya because my family received anonymous threats accusing my husband of terrorism.”

“We’re here now taking refuge with Sunnis in an abandoned building on the outskirts of the capital because I will never leave my husband,” Samira added. “How you pray isn’t important – what’s important is to show your children that differences of opinion can still exist in our country.”

Millions of Iraqi children are the products of Sunni-Shi’ite unions, brought up in homes where different beliefs coexist peacefully. In today’s Iraq, however, they are being forced to think differently. “There’s no sectarian violence in my home because my parents live harmoniously with each other,” said Hala Kubaissy, 12, daughter of a Sunni father and a Shi’ite mother. “But when I reach school, I’m confronted with a different reality.”

Local NGOs working with children say that sectarian violence has seriously affected the psychology of children, especially those born of mixed marriages. “They suffer more because society accuses them doubly,” explained Ahmed Farid, a psychologist and spokesperson for Peace for Iraqis Association (PIA), a local NGO devoted to the issue. “They’re accused by Sunnis for being Shi’ite and also by Shi’ite for being Sunnis.”

Increased reports of violence against women (2007)

- There are increasing reported incidents of harassment and intimidation and displacement of women and children linked to sectarian violence
- A rise in sectarian and generalised violence has further restricted women's ability to move around freely as well as in cases, their freedom of expression
- At the political level, women's organisations have raised the concern that women's participation in the government has dropped
- “Honour crimes,” including domestic violence and killings, as well as kidnappings are reportedly increasing
- Displacement has increased women's vulnerability by augmenting health risks while diminishing access to health care and other services
- A survey undertaken in 2006 by NGOs found that women were able to exercise their rights more freely prior to 2003
- The new Iraqi Constitution, approved in October 2005, makes Shari'a law the primary source of national law
- A survey showed that the Multi National Forces are defined as the most important threat by more than half of the women in the governorates of Anbar and Salah Al-Din (2006)
- Displaced women, in camp or camp-like situations are more likely to be exposed to sexual assault and abductions
- The CEDAW Committee has called on interim government to ensure participation of women and non discrimination in the new constitution
- The situation for women in the Kurdish region is significantly different from that in the rest of Iraq

UNAMI, 16 January 2007

"The plight of women in the northern governorates continues to be widely covered by the media and is a matter of great concern to human rights NGOs. The latest monthly report by the KRG Human Rights Ministry stated that 239 women had burned themselves in the first eight months of 2006. Authorities in Sulaimaniya have documented the highest number of monthly traumatic burn cases in November, with 13 cases of burns by fire and 24 cases of scalding involving women. A Sulaimaniya hospital source suspected that such cases are underreported because of fear of the social stigma, shame and culpable involvement of family members that are associated with honor crimes. Most cases have been investigated as "accidents" or suicide attempts.

Most victims of suspected honor crimes suffer horrific injuries which are unlikely to have been accidentally caused whilst cooking or refuelling oil heaters. For instance, on 25 November in Erbil, a 49-year old mother of four claimed that she accidentally set herself on fire whilst refuelling the oil heater and suffered 60% burns in her body. In another case at the Brayati Quarter, Erbil, 21-years old Qadria Mustafa claimed that her burns on 40% of her body were the result of a cooking accident. In December, at the Saidawa Quarter, in Erbil, a newly married 18 year old housewife claimed that she accidentally burned herself while boiling water. Since the incident apparently occurred in a bathroom and she suffered 40% burns in her body, the police commenced an investigation. In Shorija Q, Kirkuk, a 16-year-old teenager died after setting herself on fire because her brother demanded that she marry a suitor she disliked. In another case, in Zahko District, Dahuk, a 39-year-old woman claimed that she suffered 90% burn injuries because her cooker exploded in the kitchen. She did not file a complaint. It has been acknowledged by both government officials and civil society representatives that tribal traditions, a chauvinistic interpretation of Islam and unreasonable societal expectations of women, are some of the root-causes of honor crimes.

In the central and southern regions, women remain particularly vulnerable and their enjoyment of basic rights is being rapidly eroded. As previously reported, [...] the security situation and the militancy of intolerant groups are increasingly limiting women's ability to move freely outside their homes while progressively restricting their access to health services and education as well as their ability to participate in public life. November and December witnessed an alarming shift towards more violent episodes. It is a challenge to obtain accurate female mortality rate and the cause(s) of death. Female corpses are usually abandoned at the morgue and remain unclaimed for fear of damaging the family honour. More than 140 bodies were unclaimed and buried in Najaf by the morgue during the reporting period.

Women are reportedly living with heightened levels of threats to their lives and physical integrity, and forced to conform to strict, arbitrarily imposed morality codes. HRO has received cases of young women abducted by armed militia and found days later sexually abused, tortured and murdered. HRO has also charted an increase in kidnapping and killing of women. In late December, three female students from Mustansiriya University were reportedly kidnapped by Shiite militias. Despite the payment of a ransom, their bodies were found at the morgue on 22 December bearing signs of rape and torture. Official sources denied the incident but students from the University confirmed it did take place.

Two other women were kidnapped on separate occasions from the Sunni Al Ghazaliya area during the month of December. The body of an elementary school teacher was found badly mutilated in Al Shula Shiite area and the fate of the second kidnap victim remains unknown. In a suspected honor crime case, a secondary school student was publicly hanged in east Baghdad by armed militia. Her brother was shot dead by the militia trying to rescue her. The impact of the conflict on women and girls and the absence of a functioning social service system are visible on the streets of Iraq. A four-year-old girl, hungry and exhausted was found on Baghdad streets on 20 December after running away from her mother who used her for soliciting. HRO arranged for her to be sheltered in a safe haven managed by Iraqi civil society. HRO has received information

of children abducted and sold to armed militias and forced to become supporters. Children are also trafficked outside Iraq to work as sex slaves, labourers, or unlawfully adopted by families abroad. Dozens of children are currently seeking shelter and protection in safe houses managed by the Ministry of Social Affairs and civil society organizations across the country.”

UNAMI, 22 November 2006

“Violence, poverty, unemployment, growing tensions and displacement are reported to continue to aggravate the situation of women in the country. There are increasing numbers of widows without a reliable source of income and few work opportunities. Incidents of honour killings, kidnappings associated with rape and sex slavery, and killing of women and children for sectarian reasons were reported in Kurdistan, Kirkuk and Mosul. [...] A worrying trend of female “suicides” and “attempted suicides” as a result of family conflicts were reported in the Kurdistan Region. These incidents are often in reality crimes committed or incited by the women’s own family members on the grounds of “honour”. On 14 October, in Kirkuk, a married woman reportedly set herself on fire after a family dispute. Three days later, in the Makhmour district of Erbil Governorate, Ahmed Ali was reportedly arrested after stabbing his daughter during a dispute. On the same day, at the Nawroze quarter in Erbil city, an 18-year-old woman died after setting herself on fire after a family argument.

Women and women groups, especially those of secular or Christian orientation, continue to report harassment and death threats for not abiding to the strict dress code, such as long skirts and headscarves. HRO recorded a case on 6 October when two Christian women in Basra received anonymous letters demanding that they wear headscarves. In Mosul, female Christian and Muslim students alike have received leaflets warning them to wear ‘proper Muslim attire’ at the local universities. Shops selling inappropriate clothing reported receiving threats.

Besides the general deterioration of the human rights situation, violations of women’s rights continued to increase. In Mosul on 18 September, four women who had been abducted two days earlier were found dead in a garbage dump. It appears that the victims had been raped and killed and had their faces mutilated. Two days later, a female school principal was abducted and then killed by having her throat slit reportedly by 20 armed men after failing to pay the so called “protection money.” The targeting of women also occurs as a means to punish other members of the family. On 28 September, the wife of a police officer in Mosul was shot dead reportedly after the attackers failed to find her husband. In late October, Faliha Ahmed, a women rights activist, was killed by ten unidentified men in Haweeja and the motive remains unclear. Prior to her death, Ms Ahmed, an Arab, had received threats from Islamic militias discouraging her from associating with international organizations and “collaborating” with the Coalition. She had publicly called for Arabs in Kirkuk to be protected against discrimination and was against the assimilation of Kirkuk into the Kurdistan region.

An institution known as Muta’a or “enjoyment marriage” has appeared in the Iraqi society recently and these cases are on the rise. It is basically a marriage with time limitation that can range from a few hours to a year. The woman can claim no rights after the marriage is dissolved even if she has children. Largely driven by the economic situation, this marriage has become very familiar among university female students. In Missan, two females were reportedly killed in September after their families discovered their engagement in Muta’a marriage.”

UNAMI, 18 July 2006

“Many women have complained to the Human Rights Office that their freedoms are being restricted due to extremist Sunni and Shi’a elements operating at neighbourhood level, who proffered threats and intimidations both verbally and through flyers. There are reports that, in some Baghdad neighborhoods, women are now prevented from going to the markets alone. In other cases, women have been warned not to drive cars or have faced harassment if they wear trousers. Women have also reported that wearing a headscarf is becoming not a matter of

religious choice but one of survival in many parts of Iraq, a fact which is particularly resented by non-Muslim women. Female university students are also facing constant pressure in university campuses. Furthermore, UNAMI HRO learned that girls are also facing similar pressures to wear a headscarf in schools. Equally disturbing are reports that in some public offices, including Ministries, women have been warned that they must wear a headscarf at all times.

Women organizations have complained that the number of female Ministers in the Federal Government has dropped from six to four, that the number of female legislators is 16 less in the Council of Representatives compared to the Transitional National Assembly and that there are no women in the Presidency Council or the Prime Minister's office. Some groups are asking for a quota of female members in the Government and decry the lack of sufficient female representatives in the negotiations for national reconciliation. Others have complained at the recently revamped regulation requiring that women need to be accompanied by their husbands or another male member of their family if they wish to apply for a passport or travel abroad.

Women's groups continue to be mobilized against further curtailment of their rights and have denounced the increasing restriction in their freedoms and safety. Violence against women, including sexual violence, and trafficking are identified as growing problems by women's groups. Women who are victims of sexual violence are reluctant to contact the police because they fear of being killed by relatives in order to restore the "family honour." Displacement is increasing women vulnerability by augmenting health risks while diminishing access to health care and to other services.

The situation of women is significantly different in the Region of Kurdistan. The Women Affairs Committee in the Kurdistan Regional Assembly has worked significantly to ensure that women enjoy their rights in the Region. In the cases of murder of women the Committee succeeded in changing the law. "Honour" is no longer considered "extenuating" but an "aggravating" circumstance. However, the Committee admitted that much work remains to be done to ensure that the police force consider "honour crimes" as serious crimes and investigate them accordingly."

UNAMI, 23 May 2006

"Women and children continue to pay a heavy price as a result of the conflict in Iraq. According to a study conducted by the University of Baghdad, at least 9 women become widows every day as a result of the violence and an increasing number of children become orphans. The prevailing violence also increases the vulnerability of women, children and the elderly, hampers access to health and education and affects negatively their living standards. [...]

UNAMI continued to receive reports from individuals and NGOs that women face harassment and intimidation if they are less inclined to conform to traditional dressing. This form of harassment is corroborated by the distribution of leaflets and text messages sent via cellular phones. "Honour crimes," including domestic violence and killings, as well as kidnappings are reportedly increasing. The Kurdish Regional Government recently confirmed that 534 women may have been victims of so-called "honour killings" since the beginning of 2006. Although the practice has been outlawed, police do not enforce legislation or tends to be lenient towards offenders. Women activists and women NGOs have reported several cases of domestic violence in which victims were hesitant to seek help from the police out of fear for their lives.

There have also been reported cases where women were used by the Iraqi security forces to pressure their male family members to turn themselves in. A family living in Al- Amiriya district reported that during a raid a police officer held the mother from her hair and banged her head against the wall several times to force her brother, who was armed and hiding upstairs, to surrender. In another case, the victim has reported that a police officer tried to force her into a sexual relationship in exchange for the release of her husband and son."

IRIN, 13 April 2006

“According to the findings of a recent survey by local rights NGOs, women were treated better during the Saddam Hussein era – and their rights were more respected – than they are now.

[...]

According to the survey, women’s basic rights under the Hussein regime were guaranteed in the constitution and – more importantly – respected, with women often occupying important government positions. Now, although their rights are still enshrined in the national constitution, activists complain that, in practice, they have lost almost all of their rights.

Women’s groups point to the new government, many members of which take a conservative view when it comes to the role of women. [...]

Government officials disagree saying that women’s political views are respected and that they are better represented in government than was the case during the previous regime.

Female activists, on their part, agree with the survey’s results.

“Before the US-led invasion in 2003, women were free to go to schools, universities and work, and to perform other duties,” Senar added. “Now, due to security reasons and repression by the government, they’re being forced to stay in their homes.”

The new constitution, approved in October 2005, makes Shari’a [Islamic Law] the primary source of national law. According to Senar, however, Shari’a has been misinterpreted by elements within the government and by certain religious leaders, which has resulted in the frequent denial of women’s rights. This is particularly the case in matters pertaining to divorce, she said.”

UNHCR, Octoter 2005, pp.34-40

“Continuing violence and high criminality, slow reconstruction, low living standards and the increasing tendency to apply strict Islamic behavioural and dress codes have taken a toll on women in Iraq. Indiscriminate attacks by insurgents have resulted in the death and injury of scores of civilians, many of them women.[...] Women of all religions risk being targeted if they do not comply with strict Islamic dress codes (e.g. not covering their hair or wearing Western style fashions). [...] According to police officials, dozens of women have been attacked with acid by religious conservatives in Baghdad[...] and many others have been killed outright. [...] Furthermore, the IWCP reports that unveiled women are frequently denied governmental jobs. [...] Among the Shiite community, the practice of *muta’a*, or temporary marriage, which was considered adultery by the former regime and punishable with fines or imprisonment, appears to be on the rise. The manner in which *muta’a* is practised in Iraq, which is meant to provide an income and protection for widowed or divorced women, strongly favours men as only they can decide to end a *muta’a* marriage (unless it was agreed at the outset that the women can end it as well). Furthermore, women cannot inherit from their *muta’a* husbands. [...]

Lack of both security and proper law enforcement has led to high rates of crime against women, in particular in the months after the 2003 conflict. A survey undertaken by the ‘Organisation of Women’s Freedom in Iraq’ recorded that 400 women that were raped in Baghdad between April and August 2003. [...] Human Rights Watch has documented reports from Iraqi police officers that ‘the number of (rape) cases reported [now is] substantially higher than before the war’. [...] Fear of harassment, abduction and rape prevents women from moving freely, thereby restricting their personal freedom, access to schools and universities, [...] opportunity to work[...] and access to health services.[...]

The ILCS revealed that 40 percent of surveyed women identified criminals as a direct threat to their safety, while 12 percent say that the MNF represents the main threat. There are significant differences in safety for women among the different Governorates. More than 85 percent of the

women in the Governorates of Sulaymaniyah, Erbil, Dohuk and Muthanna report no direct threats, but 91 percent of women in Missan, 73 percent of women in Thi-Qar, 65 percent of women in Baghdad and over 40 percent of women in Wasit and Kerbala identify criminals as a threat. The MNF are defined as the most important threat by more than half of the women in the Governorates of Al-Anbar and Salah Al-Din. While 49 percent of all Iraqi women (92 percent of women in Al-Anbar and more than 70 percent of women in Thi-Qar and Missan) think that the security in their area has worsened compared to one year ago, 20 percent (70 percent in Sulaymaniyah and more than 90 percent of women in Erbil and Dohuk) think security has improved or is the same compared to one year ago. [...]

There have been reports of abuse, including sexual abuse, of Iraqi women detained by the MNF in Abu Ghraib and other detention facilities. [...] The social stigma attached to rape and domestic violence in Iraq, the insensitivity of the Iraqi police to such crimes (combined with the lack of female police officers), the lack of support services for victims of sexual violence (such as counseling, forensic testing, health and medical services, legal and financial services) and fears of retaliatory violence by male family members are all factors which may prevent women from reporting such incidents or seeking legal redress. [...]

Politically active women have increasingly become the targets of insurgents. [...] There have also been killings of professors, [...] women's rights activists[...] and humanitarian workers. [...]

Domestic violence (including 'honour killings') continues to take place in Iraq, and some observers believe it has increased since the fall of the former regime, given the corresponding rise in conservative attitudes. [...] 'Honour killing' is a term used to describe a murder committed by a family member to protect the family's honour. Many women and girls are at risk of death if they are accused of behaviour believed to have brought shame on the family, such as a loss of 'virginity' (even by rape), infidelity, a demand for divorce or a refusal of marriage. Many women are killed based on suspicions of a family member and are not given the chance to defend themselves.

As described above, the Iraqi *Penal Code* provides for lenient punishment of perpetrators of 'honour killings'. While it is encouraging that the Kurdish authorities have cancelled the relevant provisions in recent years and qualify the killing of a family member for honour reasons as straightforward murder, there is still a need to change people's way of thinking and to make 'honour killings' socially and morally unacceptable.

No exact figures on the extent of the practice are available and many cases undoubtedly go unreported. 'Honour killings' occur mainly in conservative Muslim families (both Shiite and Sunni, of both Arab and Kurdish backgrounds), in all areas of Iraq. 'Honour killings' cannot be justified by Islam or Sharia law, but are a 'tribal custom stemming from the patriarchal and patrilineal society's interest in keeping strict control over familial power structures'. [...] Tradition often serves as an excuse for violent acts 'against women daring to choose how to lead their lives'. [...] It cannot be excluded that 'honour killings' also take place among other religious groups as it has been observed in other countries.¹⁹² 'Honour killings' have also been reported among Iraqis abroad. [...]

A study done by Rewan Women's Information and Cultural Centre (RWICC), based in Sulaymaniyah, recorded 3,979 cases of women killed as the result of domestic violence in the North in the 1980s. [...] According to Kurdish Women's Action Against Honour Killings (KWAHK), [...] – a network of Kurdish and non-Kurdish activists, lawyers and academic researchers – between 1991 and 2000 more than 4,000 women were killed in the North in the name of honour, with the authorities failing to punish the perpetrators. [...] Despite the suspension of the relevant articles of the Iraqi *Penal Code* by the Kurdish authorities in 2000 and 2002 respectively, 'honour killings' continue to take place in Northern Iraq. The RWICC claims that either the bodies of

victims of 'honour killings' are hidden or mutilated to make identification impossible, or their deaths are claimed to have been the result of an accident. One reported case involved the payment of compensation to a victim's family, of which the local authorities were aware and about which no criminal investigation took place. [...]

There are no figures available for the Centre and the South, however NGOs believe that the situation there may be even worse as cultural values and traditions remain very strong. According to the German NGO Wadi, which has conducted assessments on domestic violence in some areas of the South, 'the situation is much worse in the South; it has been completely neglected, and the fact that there is no data on this issue shows that there is no assistance for women suffering there'. [...] Amnesty International's report 'Iraq - Decades of Suffering' includes some references to 'honour killings' in Central and Southern Iraq, however the full extent of the practice is unknown. [...] A study conducted by the Ministry of Women's Affairs found that more than 400 women have been raped since the fall of the former regime and more than half of this group were later killed for honour-related reasons. [...]

Some women try and commit suicide, particularly through self-immolation, in order to 'cleanse' the honour of the family or to escape killing or other forms of violence. In the Governorate of Sulaymaniyah, [...] cases of self-immolation were recorded by RWICC in 2002. [...] The practices of hymen reconstruction on girls that have lost their virginity [...] and backstreet abortions [...] both pose a serious health risk but appear for some girls to be the only way to escape killing.

Women's shelters were established in Sulaymaniyah in January 1999 (*Nawa Centre*) and Erbil in April 2002 (*Khanzad Centre*). A third centre, opened by the German NGO Wadi in Mosul at the end of January 2004, was forced to stop working due to the continuous violence and threats by Islamists. [...] The centres provide food and accommodation, psychological treatment, social assistance, legal aid as well as a mediation programme. *Asuda*, the first protection centre for women endangered by 'honour killings', was opened in a hidden place in Sulaymaniyah in 2000. [...] Since women seeking protection often have to stay for long periods of time, *Asuda* offers a 'home' which includes education, leisure and daily activities. Mediation between the women and their families aims at enabling the women's return, but this may not always be possible and there have been cases of fathers assuring their daughters that they have forgiven them, only to murder them once they are back in the family home. Sometimes, *Asuda* sends women to far away villages and places in other regions of Northern Iraq, where they are not known and can find protection. However, in some cases there are no alternatives other than remaining in the protection centre or finding solutions outside Iraq.

A safe house for victims of domestic abuse was established within Baghdad's International Zone, [...] but was reportedly closed down in early 2005 on the order of former Interim President Ghazi Al-Yawer for 'security reasons'. [...] UNHCR has been informed that the shelter will be re-opened late in 2005 and will be operated by the Department of Social Welfare (Ministry of Labour and Social Affairs, MoLSA). Iraqi law provides that NGOs need to obtain MoLSA's authorization to open a social institution such as a women's shelter or an orphanage. [...]

During the summer of 2004, the Iraqi NGO 'Organization of Women's Freedom in Iraq' (OWFI) opened two shelters – one in Baghdad and one in Kirkuk – both of which are in secret locations and have the capacity to host up to 20 women at a time. The Chairwomen of OWFI reported that they face 'extreme difficulties' of reaching out to women, who are often unable to even leave their homes. While the organization was able to find solutions for a number of women to return to their families, other women are at such serious risk of being killed by their families that they cannot leave the shelter. [...] Despite these efforts by Iraqi authorities and NGOs, many women do not have access to shelters or legal, social and psychological counselling. [...]

Women and girls in Iraq may be exposed to harmful traditional practices such as forced and/or early marriage (including exchanging of women between families for marriage purposes and marriages between young women and much older men, [...] female genital mutilation (though limited to a few areas in Northern Iraq), [...] trafficking and prostitution. [...]

Women suffer most from economic and social deprivation. According to the ILCS, illiteracy rates[...] and maternal mortality rates[...] are extremely high. Girls have a significantly lower enrolment rate in primary schools than boys, [...] in particular in rural areas, and women's participation in the labour market is very low when compared with the wider region. [...]Many women who lost their husbands in one of Iraq's wars or in governmental campaigns against the civil population bear the full responsibility of providing and caring for their families. [...]"

CEDAW, 28 July 2005

"As Iraq has been a State party to the Convention on the Elimination of All Forms of Discrimination against Women since 1986, the Committee has, on previous occasions, expressed concern about the situation of women in Iraq and has called on the interim Government to do its utmost to ensure equal participation of women in the reconstruction process and full compliance with all provisions of the Convention in the development of Iraqi society.

The Committee now urges the Government of Iraq to ensure that the principles of gender equality and non-discrimination, as they are enshrined in the Convention, are fully reflected in the new Constitution of Iraq which will become the basis for the entire legal framework of the country, including the family and personal status laws. The Committee further emphasizes once again the urgent need to take special measures to rehabilitate and reintegrate women and children victims of war.

The Committee calls on the Government of Iraq to ensure that full attention is given to the Committee's concerns and to the country's obligations as a State party to the Convention."

IRIN, 21 May 2004

"At least 10,000 of the women and children who fled Fallujah are in camps outside Fallujah and in and around Baghdad"

UN Cluster 8/UNCT, August 2004

"The breakdown of general security has particularly affected women and girls. Armed fundamentalist groups target high-profile women, and the general lack of safety has left women exposed to sexual assaults and abductions. Displaced women, especially in camps or camp-like situations, are particularly vulnerable to such violations."

UNHCR, 12 August 2004

"In the centre, women are particularly affected by the security and situation of lawlessness in Iraq, especially as concerns their freedom of movement due to the threat of kidnapping. In the North, despite the fact that a law now defines honour killings as straightforward murder, crimes of this type still take place, and women who are, for example, victims of sexual aggression, are nevertheless frequently ostracized by their family members in an attempt to preserve the family's honour. There is currently one centre for women who are victims of honour crimes. However UNIFEM stated that they do not believe that the existence of the centre is well-known among the female population in the North."

IRIN, 20 May 2004

"In the Kirkuk area in the north, where ethnic tensions are high, Arabs and Turkmen need to be protected from arbitrary displacement and violence. Mines and unexploded ordnance are also a serious protection concern in the north. In the centre/south, IDP women heads of household face protection problems as do women and children fleeing Fallujah who have taken refuge in tents.

More than 50,000 displaced persons in Baghdad, according to the NGO Premiere Urgence are reported to be in need of protection and security. In particular, several thousand Roma need protection from harassment and expulsion."

"Both women and men have suffered from the impact of the conflict on civilians, injuries and death as a result of fighting, the deterioration in standards of living resulting from exposure to conflict, damaged infrastructure and the collapse of public security. However, women felt specifically vulnerable during the past year owing to the deteriorating security situation including the kidnapping of civilians, which has led to increased restrictions on their freedom of movement and their access to education, health services, and employment opportunities." (OHCHR, 9 June 2004, p.23)

OHCHR, 9 June 2004, p.24

"The Transitional Administrative Law (TAL), adopted by the Governing Council on 8 March 2004, prohibits sex discrimination but does not offer adequate protection against discrimination in marriage (no equal rights to marry, within the marriage, or to divorce), inheritance and ability to pass citizenship on to their children."

AI, 22 February 2005

"Women and girls in Iraq live in fear of violence as the conflict intensifies and insecurity spirals. [...] The lawlessness and increased killings, abductions and rapes that followed the overthrow of the government of Saddam Hussain have restricted women's freedom of movement and their ability to go to school or to work. Women face discriminatory laws and practices that deny them equal justice or protection from violence in the family and community. A backlash from conservative social and political forces threatens to stifle their attempts to gain new freedoms. The general lack of security has forced many women out of public life, and constitutes a major obstacle to the advancement of women's rights.

[...]

Under the government of Saddam Hussain, women were subjected to gender-specific abuses, including rape and other forms of sexual violence, as political activists, relatives of activists or members of certain ethnic or religious groups. War and economic sanctions had a particular effect on women. They left women and households headed by women, many of them war widows, among the poorest sectors of the population. In the 1990s the mortality rate for pregnant women and mothers increased, and became one of the worst in the world for children under the age of five.

Since the 2003 war, women's rights activists and political leaders have been threatened by armed groups and a number have been killed. Women have been subjected to sexual threats by members of the US-led forces [1], and some women detained by US forces have been sexually abused, possibly raped."

Footnotes

1 The term "US-led forces" is used in this report to refer to both coalition forces (during the 2003 invasion and occupation of Iraq) and multinational forces (since the handover of power in June 2004).

See also, ["Violence against women in Iraqi-Kurdistan", 18 May 2005, Wadi e V.](#) and ["Focus on women's rights", IRIN, 6 June 2005](#)

Children gravely affected by the situation in current Iraq (2006)

- Many children are killed by bombings as well as victims in MNF-I and Iraqi security forces raids
- Internally displaced children live in substandard conditions, without access to education and health care services, trauma counseling, available support to children with disabilities
- Some surveys suggest that a large number of children have lost one or both parents
- A Ministry of Education survey found high numbers of children killed, injured during attacks on educational institutions

UNAMI, 18 July 2006

“Children remained victims in Iraq in many ways. Although not necessarily targeted, they are killed or maimed in sectarian-motivated attacks and in terrorist and insurgency acts. They are civilian casualties in MNF-I and Iraqi security forces-led raids against insurgents or militias, and suffer the most from other political, social and economic consequences of Iraq's violent daily reality. The extent of violence in areas other than the Region of Kurdistan is such that likely every child, to some degree, has been exposed to it. Children suffering disabilities have also been unable to access adequate care and education.

On 26 June, 10 children were reported to be among at least forty people killed in targeted explosions on two crowded markets in Hilla and Ba'quba. Three children were reported as casualties in June clashes between the MNF-I and anti-Coalition forces in Maysan. Conversely, MNF-I informed UNAMI that only one insurgent was killed in this incident. In the first week of May, Iraqi police reported finding a group of 100 brutally murdered people in Karbala, among them a 13-year-old child.

In one case the body of a 12-year-old Osama was reportedly found by the Iraqi Police in a plastic bag after his family paid a ransom of some 30,000 US dollars. The boy had been sexually assaulted by the kidnappers, before being hanged by his own clothing. The police captured members of this gang who confessed of raping and killing many boys and girls before Osama.

Minors are often witnesses of extreme violence, killings and scene of carnage and dead and mutilated bodies. On 21 June, the dean of the Basra Abdullah Bin Om Kalthoum School was assassinated in front of his students.[...]

Violence, corruption, inefficiency of state organs to exert control over security, establish the rule of law and protect individual and collective rights all lead to inability of both the state and the family to meet the needs of children.

According to the joint UN and Iraqi government food security and vulnerability analysis, children are the primary victims of food insecurity, with every one in ten child suffering from malnutrition. The survey also records the growing drop-out rate among pupils less than 15 years of age – 25 percent of students under the age of 15 lived mostly in rural areas and were identified as extremely poor. The main reason given for the dropout rate is the inability of the families to afford to pay for the schooling and schools being located too far away from home.[...]

UNAMI HRO is also aware of the extreme hardship of the children of internally displaced families, whose numbers are growing every day. The living conditions are substandard, without access to education and health care services, trauma counseling, available support to children with disabilities, to mention a few examples.

Additional hardship for families and children is caused by the lack of adequate places to socialize, play and learn as would be necessary for their healthy development. Many Iraqis complain of having to keep their children at home for prolonged periods of time.”

UNAMI, November - December 2005, p.2-3

"Children remain gravely affected by the situation in current Iraq. According to some sources, women and children account for twenty percent of all civilian deaths. Although the exact number of children who have been killed as well as the extent of the trauma they have suffered as a result of the conflict are difficult to determine, the extent of the suffering of children is unacceptable. Scores of children have been killed in indiscriminate bombings and by indirect fire. Some surveys suggest that a large number of children in Iraq have lost one or both parents as well as close family members to violence. The Iraq Living Conditions Survey by the UNDP/Ministry of Planning showed that thirteen percent of Iraqis surveyed who were between the ages of fifteen and nineteen had lost their fathers (while in neighbouring Jordan only eight percent of the same age group had lost their fathers). Of particular concern are reports of attacks involving children acting as combatants. On 1 November 2005, a boy said to be aged between ten and thirteen years allegedly carried out a suicide bombing targeting the police commander in the city of Kirkuk. Later that month, two boys aged twelve and thirteen years reportedly carried out attacks against MNF-I patrols in Fallujah and Hweeja, respectively."

See also "[Increased protection of children following attacks](#)", IRIN, 5 March 2006

Freedom of movement

New entry regulations in the northern governorates restrict movement of IDPs (2007)

- A sponsor is required for entry into Dahuk for Arab IDPs and single men
- Non Kurds are required to have a sponsor for entrance and residency in Erbil
- Kurds from Kirkuk and Khanaqeen are generally denied entry to the Sulaymaniyah for political and demographic reasons

UNAMI, 16 January 2007

"As the security conditions in south and central Iraq progressively worsen, the influx of IDPs into the northern region continues to swell. Although the KRG authorities have received IDPs of all ethnicities in all three Governorates, recent entry regulations have restricted the movement of IDPs to reside and seek employment in the region. The lack of a unified approach in all three Governorates has led to inconsistent policies and practices regarding IDPs. The assistance provided by KRG authorities favours Kurdish IDPs, while Arab IDPs have been given the least support because of security fears."

UNHCR, January 2007

"Throughout most of 2006, IDPs in Dahuk were not required by the local authorities to obtain entry documents and did not require sponsorship for residence. Since November at least, the local authorities have required a sponsor for both Arab IDPs and single men for both entry and residence. In practice however, the local authorities in Dahuk Governorate have admitted single IDPs without a sponsor, providing that i) the person's background can be thoroughly checked by KDP offices in the person's place of origin and he/she does not pose a security risk; and ii) the person could establish that he/she feared for his/her life. Otherwise, the person will not be admitted to / allowed to remain in the Governorate of Dahuk. While most IDP families are living in rented housing, IDPs are also living in tents, public buildings, and former military camps or with relatives.

"While persons originating from the Governorate have generally been able to enter, reside and move freely within the Governorate, all non-Kurds relocating to the Governorate need to have a

sponsor to enter the Governorate and to legalize their stay through registration with the Directorate of Residence. IDPs legally resident in Erbil receive an identification card which is valid for three to six months and can be renewed. IDPs in the Governorate are also required to register with the local security office in the village/sub-district of their residence. Kurdish IDPs, provided they originate from the Erbil Governorate, do not face official obstacles to the purchase of homes, while other IDPs are officially prohibited from the purchase of real property in KRG territory. However, provided they have regularized their stay, IDPs are generally free to rent accommodation and live with relatives. While most IDP families live in rented housing, some are also living in private homes and with host families or relatives."

"All IDPs entering Sulaymaniyah Governorate must register at entry checkpoints established by the authorities. However, Kurds from Kirkuk and Khanaqeen (Governorate of Diyala) are generally denied entry to the Governorate for political and demographic reasons, unless they are visiting only. Sponsorship is not required for entry but is required in order to reside and remain in Sulaymaniyah. IDPs with residence are allowed to remain in Sulaymaniyah and integrate into the community;⁶ there are no official barriers to employment. After registering with the local authorities and obtaining a residency permit, IDPs may rent homes or live with relatives, while non-Kurds are not allowed to purchase immovable property. At the time of the survey, the government did not provide shelter for IDPs in public buildings or tents, although one family surveyed did report living in a public building."

Other provinces are also imposing entry and residence restrictions.

See for example, "[Karbala says it will not host additional displaced families](#)", IRIN, November 2006

State of Emergency extended on monthly basis (2007)

- Emergency laws were adopted in July 2004 by Prime Minister Allawi
- Under the emergency law, measures including searches, arrest and detention and restrictions on freedom of movement can be taken
- On 28 November the state of emergency was extended in all parts of Iraq with the exception of Kurdistan
- The Government of Iraq declared a state of emergency in June in Baghdad and a state of emergency in May in Basra

UNAMI, 16 January 2007

"On 28 November, the state of emergency was extended in all parts of Iraq, except Kurdistan, for another 30 days. Emergency laws were adopted by Prime Minister Allawi on 6 July 2004. Under these provisions, curfews, cordon off towns and cities, search operations, can be imposed. The latest example was the curfew imposed by the Government after the multiple attacks on Sadr city on 23 November. The state of emergency has been extended by the Council of Representatives (CoR) on a monthly basis yet CoR must act again in order to continue it beyond 31 December."

UNSC, 5 December 2006

"On 8 October 2006, the Council of Representatives renewed for another 30 days the state of emergency that has been in place across the country since November 2004, with the exception of the Kurdistan region."

UNAMI, 18 July 2006

"On 31 May a state of emergency was declared in Basra and a ban on vehicle movements imposed for four hours around Friday midday prayers. Following street battles in Baghdad

between Shi'a militias, insurgents, Iraqi forces and the MNF-I, the Government of Iraq declared a state of emergency on 23 June and a curfew in the capital. Emergency laws were adopted by former Prime Minister Allawi on 6 July 2004. Under these provisions, curfews, cordon off towns and cities, search operations, etc could be imposed. On 7 November 2004, the Government declared the state of emergency for a period of sixty days. It was never officially extended."

UNHCR, October 2005, p.3

"On 7 July, 2004, the Iraqi Interim Government (IIG) passed the *Order for Safeguarding National Security* (Order 1 of 2004) which consists of 13 articles referring to the state of emergency, and measures that can be taken during such a state. These include searches, arrest and detention, interference with correspondence, the confiscation of property and weapons, and restrictions on freedom of movement, association and commercial activities. The Order gives the interim Prime Minister the power to declare martial law for up to sixty days, beyond which period such a state can only be prolonged with the approval of the Presidency Council. The Order also empowers the Prime Minister to impose curfews, order the closure of roads, sea-lanes and airspace, declare restrictions or bans on public gatherings, order the surveillance of electronic and other communications, and gives him wide powers to search property and detain suspects. The Order stipulates that no person can be arrested except upon the issuance of arrest warrants from the judicial authorities, and that the persons in question should be brought before an investigative judge within twenty four hours. Only in 'extreme exigent circumstances' does the law permit arrests or searches without a warrant, although the parameters of this clause have not been elaborated upon in the law.

Article 1 of the *Public Safety Law* allows for the declaration of a state of emergency 'upon exposure of the people of Iraq to a danger of grave proportions, threatening the lives of individuals and emanating from an ongoing campaign of violence by any number of people, for the purpose of preventing the establishment of a broad-based government in Iraq, or to hinder the peaceful participation of all Iraqis in the political process or for any other purpose'. On 7 November 2004, the Prime Minister declared a state of emergency for a period of sixty days ahead of the military intervention in Fallujah. This state of emergency was extended during the elections which took place in January 2005. To date, the Emergency law is still in place."

Mines and unexploded shells pose physical threat to IDPs and returnees (2006)

- Reduced international funding for Iraq (down by half from 2004) plus deteriorating security significantly hindered mine action in all but the northern regions;
- The National Mine Action Authority reported a sharp drop in mine clearance in 2005
- In 2005, there were at least 358 casualties, an increase from 2004, and likely an underestimate as there is no effective casualty surveillance in Iraq (also excluding Tikrit and Diyala)
- There are approximately 10 million mines in Iraq dating as far back as WWII
- Iraq is one of the most mine/uxo affected countries in the world
- A landmine survey conducted by the Iraqi authorities in June 2005 found a higher prevalence of contaminated areas in the North but more landmine victims in the South
- New mines were planted in areas of return before and during the Coalition Forces intervention
- Spontaneous returnees are particularly vulnerable because they are unaware of recently laid mines
- Displaced people often find shelter in public buildings where UXOs are left

- Displaced people and returnees are at particular risk as they are often unfamiliar with the areas where they are in
- There is a lack of rehabilitation and reintegration of persons with disabilities and shortage of rehabilitation equipment
- Mine and unexploded ordnance were reported as a major problem to return to Fallujah (January 2005)

Landmine Monitor, 2006

"Key developments since May 2005: Iraqi officials have continued to express strong interest in joining the Mine Ban Treaty. Opposition forces have continued to use improvised explosive devices in great numbers, as well as antivehicle mines. Coalition forces have discovered many caches of antipersonnel mines. Reduced international funding for Iraq (down by half from 2004) plus deteriorating security significantly hindered mine action in all but the northern regions; some contracts and operations ended early. The National Mine Action Authority reported a sharp drop in mine clearance in 2005. The authority's second director general in two years was replaced in October 2005. The Iraq Landmine Impact Survey completed surveying 13 of Iraq's 18 governorates in April 2006, but suspended survey in Tikrit and Diyala due to lack of security. As of May 2006, the survey had recorded 565 casualties in two years (over 20 percent were children) and 7,631 less recent casualties. In 2005, there were at least 358 casualties, an increase from 2004, and likely an underestimate as there is no effective casualty surveillance in Iraq."

UNHCR, October 2005, pp. 73-74

"After decades of war and internal conflicts, Iraq is one of the most mine/UXO-affected countries in the world.[...] Most affected are border areas, in particular the Iran-Iraq border. Approximately one out of every five Iraqis lives within one kilometre of areas highly contaminated by the explosive remnants of war.[...] Children are exposed to a particular risk and are injured or killed on a daily basis, such as when working in the street or living in abandoned buildings.

The Landmine Impact Survey (LIS), which was undertaken by the Iraqi Ministry of Planning and Development Cooperation (MoPDC)/National Mine Action Authority through the Vietnam Veterans of America Foundation, found that by 20 June 2005, 26 percent of the communities in the three Northern and 11 percent of the communities in the four Southern Governorates were contaminated (a total of 1,464 communities). Despite the higher prevalence of contaminated areas in the three Northern Governorates, the survey found many more victims in the South. The LIS established that all in all, an estimated 2400 km² is suspected mine or UXO contaminated, mostly in the South near the Iranian border. There are some 1,777 km² of contaminated area in the Governorate of Basrah alone, as it was one of the main battlegrounds during the eight-year long Iraq-Iran War.[...]

Mine clearance and explosive ordnance disposal is carried out by numerous actors, including local authorities, MNF, commercial companies and several NGOs. Ongoing insecurity in Iraq has seriously hampered these activities and has resulted in the withdrawal of several international NGOs as well as UN mine action staff. To date, the UN has cleared almost 12 km² by removing more than 900,000 mines or other explosive ordnance items. Full clearance will require many years, provided that sufficient resources are made available.[...] Mines and UXO represent major obstacles to reconstruction and development in certain areas.[...] They prevent people from having access to fields for grazing, land for cultivation and water for irrigation. The LIS found that in 60 percent of the accidents, the victims had been herding or farming.[...] While local communities are often aware of the approximate whereabouts of mined areas in their environment, IDPs and returnees are at particular risk as they are often not familiar with the areas they are in. In addition, they are exposed to such risks when returning to Iraq through mined border areas or upon return when they live in vacated public buildings (such as former military

sites) due to a lack of housing. Many cannot return because their villages of origin have been destroyed and mined: many villages in the North were depopulated during the *Anfal* campaign and villages along the border with Iran were heavily mined during the Iraq-Iran War. UNHCR is aware of 28 Iranian refugees (including 14 children) from the Al-Tash Camp that have sustained injuries caused by UXO during the past months.

According to the Mine Advisory Group, there were an average of 20 mine/UXO-related casualties per month in Northern Iraq in early 2004.[...] The Landmine Monitor Report 2004 accounts for at least 2,189 new mine/UXO casualties in Iraq in 2003.⁴⁹⁶ Data collected in the four Southern Governorates found that mines and UXO caused 324 casualties over a six-week period from 16 June to 1 August 2003. The figures obtained for the Southern Governorates are extremely high when compared with other countries such as Afghanistan where on average 150 victims are recorded per month. In the three Northern Governorates, 70 casualties were reported over the period of 18 June to 29 July 2003. Adult males and boys are most at risk, with 75 percent of children's injuries attributed to playing or tampering with explosive ordnance. [...] The NGO Norwegian People's Aid (NPA) estimates that between 1991 and 2002, 3,500 Iraqi civilians were killed and 6,000 were injured in the three Northern Governorates alone. [...] The UN/World Bank estimated that under the strategy and funding scenario outlined in the Joint Iraq Needs Assessment of October 2003, 'freeing northern Iraq from the impact of landmines and UXO will take eighteen years'.[...]

In addition to the general dire state of the health system, [...] rehabilitation and reintegration of persons with disabilities, including mine victims, is hampered by the following factors: shortage of raw materials for prosthetic and orthotic manufacturing workshops,⁵⁰¹ a lack of rehabilitation equipment and aids such as wheelchairs and crutches, a lack of transport to existing facilities, a lack of psychosocial support programmes, insufficient knowledge, training and skill among rehabilitation specialists and a lack of vocational training programmes and income generation opportunities.[...]"

UNSC, 7 June 2005, para. 56

"Landmines and unexploded ordnance pose two of the greatest obstacles to reconstruction and development in some areas. The completion of a landmine impact survey, the recovery of 13,812 items of mines, explosive ordnance and unexploded ordnance and the clearance of 225,400 square metres are critical steps towards overcoming those obstacles."

UNAMI EWG, 18 January 2005

Fallujah: "According to an NGO assessment, the presence of mines and UXOs remains a major concern, as reports suggest that homes and public buildings have not been systematically cleared and demarcated and that public information campaigns have not been effectively disseminated to returnees"

IOM, September 2004

"The presence of mines and unexploded ordnance (UXOs) in public buildings, former military barracks, and rural areas where IDPs are returning to is common. This is particularly evident along the Iranian border and in former militarised zones. Highlighted in the centers areas along the green line, along borders (especially in Missan and Basrah where the Iranian border runs) and in former military barracks where many IDPs currently live."

UNHCR, 9 August 2004

"Unexploded Ordnances (UXOs) and landmines are a major problem for IDP groups residing in public buildings or spontaneously returning to rural areas. Many IDPs are residing in former military sites that were targeted by the Coalition during active combat; others are residing in locations that were used by the former Government to hide weapons; while others reside on land

that was newly mined during the coalition intervention. De-mining activities have been hampered by security conditions."

UNHCR, 12 August 2004

"There are approximately 10 million mines in Iraq. The mines date from various conflicts as far back as World War II. As a result of the Iraq-Iran war in the 1980s, a great deal of the approximately 1200 Km border between Iraq and Iran, including the hydro dams, is littered with mines and UXOs (unexploded ordinances).

This situation is particularly hazardous for spontaneous returnees who generally use illegal border crossing points and has already resulted in a number of deaths. While demining activity is currently on-going, it is far from completed and the presence of mines will continue to pose a serious threat to physical safety for many years to come.

Also, new mines were planted in areas of return before and during the Coalition Forces intervention. Returnees are generally not aware of the existence of these sites. As for those Iraqi refugees who find themselves displaced upon return, they often find shelter in public buildings where UXOs have been left as a result of the last war.

The Coalition Provisional Authority established the Iraq National Mine Action Authority (NMAA) and Iraq Mine Action Centre (IMAC) in Baghdad as a part of the Planning Ministry, to plan and coordinate the mine action response. The NMAA became operational on July 9, 2003, and is responsible for mine action policy development and providing stakeholders with guidance on standards and other requirements to operate in Iraq. It will be responsible for the development of legislation for mine action in the country."

"Laden with their possessions, the majority of [returning] families walk down to a small cluster of buildings 200 metres from the Iranian checkpoint. Here bureaucratic requirements must be fulfilled in order for them to obtain continued support within northern Iraq. They are vitally in need of this support because crossing the border is not the end of their journey. Some villages have been bulldozed or occupied by other families, and many more are littered with landmines and unexploded ordnance. Most of the refugees cannot return immediately to their former homes and stay at a camp until arrangements can be made for their relocation.

Refugees and displaced people are particularly vulnerable to the threat of landmines. Poor and landless, they are often pushed to the margins of society and the economy. Through economic necessity, they are likely to be under pressure to use land that may be mined. Furthermore, refugees may be unfamiliar with the appearance of landmines and unexploded ordnance and will lack knowledge of the landmine threat in local areas." (MAG, 5 February 2004).

See also:

["Desk Study on the environment in Iraq"](#), UNEP, May 2003

["UXO poses great problem in the south"](#), IRIN, May 2003

Freedom of movement a problem for all Iraqis (2005)

- Legal restrictions to movements ceased but security limits have same effect
- Mines, legal and illegal checkpoints hinder movement
- Restricted movement reduces self sufficiency
- Many IDPs face harassment and restrictions on freedom of movement
- Some IDPs face difficulty accessing public services

UNHCR, October 2005, pp. 90-91

"All vehicular travel in Iraq is extremely dangerous and there have been numerous attacks on civilian vehicles as well as military convoys. Attacks occur throughout the day, but travel at night is exceptionally dangerous. Travel in or through Ramadi and Fallujah, travel between Hilla and Baghdad and between the International Zone and Baghdad International Airport is particularly dangerous, however, no major route into Iraq is to be considered safe. Main risks include:

- *Ongoing armed conflict between MNF/ISF and insurgents*, mainly near Fallujah and Ramadi (highway to Jordan/Syria) and near the Syrian border, but also on the roads to Samarra, Tikrit and Mosul, as well as on the roads leading South;
- *Ambushes/hostage taking by insurgents/criminals*, mainly on the road from Baghdad to Fallujah as well as South of Baghdad ('Triangle of death'). The kidnappers often demand money but have also carried out kidnappings for political/religious reasons;
- *Highway robbery/car-jacking* by armed thieves are very common, even during daylight hours, and particularly on the highways from Baghdad to Jordan and Kuwait;
- *Roadside bombs*, in particular near Baghdad, mainly targeting MNF/ISF, but often causing civilian deaths;
- *Mines/UXO*, in particular near Iraqi-Iranian border and along the former 'green line';
- *'Friendly fire'*: there have been a number of incidents in which civilians were killed at MNF/ISF checkpoints or when getting close to a military convoy.[...]

Freedom of movement is further restricted due to the numerous military checkpoints which have been set up, especially in and around Baghdad as well as at the former 'green line', which separates the Northern Governorates from Central Iraq.[...] In addition, there are illegal checkpoints set up by armed groups and militias. For security reasons, airports and border crossings may be closed, for example on religious holidays or political. At times however, such closures are imposed without prior notice."

UNHCR, 12 August 2004

"Most legal restrictions to freedom of movement disappeared as a result of the fall of the former regime. Nevertheless, freedom of movement in all parts of Iraq is severely restricted due to the security situation. While there is no formal prohibition of movement, many people have chosen to 'self impose' a curfew and do not venture out in the evening. Road travel is hazardous due to the possibility of mined areas, and is further restricted due to the numerous military checkpoints which have been set up, especially in and around Baghdad as well as at the 'green line', which separates the northern governorates from central Iraq. Freedom of movement is further hindered by the additional illegal checkpoints, which have been set up by armed groups linked to various political parties."

UNHCR, 8 August 2004

"Many Arab IDPs within areas just below the green line face harassment and are increasingly finding their freedom of movement restricted. For example, some IDPs residing in Diyala were initially refused access to public services such as health and education. While not a generalised pattern, individual cases have been monitored."

SUBSISTENCE NEEDS

IDP needs in Baghdad and Anbar province

Anbar: IDP needs (2007)

- Assessments among displaced people in Anbar province indicate a range of different needs among displaced people, including water, food, shelter and non food items (November 2006)
- Assessments indicate priority needs among IDPs in this province are shelter, employment opportunities and fresh food (January 2006)

IOM, 20 November 2006

"Unlike in other governorates, IDPs in Anbar did not strongly indicate top three needs. The various IDP families and groups all had different needs, depending on their locations and vulnerabilities. However, the most frequently listed needs were water, food, shelter, and non-food items.

Water and Food: Many IDPs in Anbar must travel long distances to access water and do not have access to potable water. Many IDPs reported that this basic, life-saving assistance is a priority. In addition, 74% of IDPs (2,511 families) do not have access to PDS rations and receive little food from other sources, so this was another frequently-listed need.

Water trucking, providing bottled water and the construction of better water networks can assist with the shortage of water. Chlorine tablets can also be provided for water treatment.

Food distributions to the most vulnerable can help alleviate their food deprivation. Food should target the IDPs' needs, especially those nutritional needs of children and women, and should compliment and not duplicate what has been provided by other entities.

Many families hosting IDPs have access to arable land, so providing agriculture materials (food, tools and equipment) can increase the food production for both the IDPs and host families. For those IDPs who cannot access PDS rations due to security and violence, the best method for food access is the stabilization of the security situation in Anbar. This is a complicated issue that, at the time, must be the responsibility of local authorities, tribal leaders, the MNF-I, and the Iraqi forces.

Shelter: Many displaced persons live in public buildings, cannot meet their monthly rental expenses, or are facing pressure and tension due to overcrowded conditions with family or friends.

One suggestion provided by IDPs was building simple, inexpensive houses for the IDPs living in public buildings. This would have to be coordinated closely with the local authorities and Iraqi Ministries and should target only those families who plan on staying long-term.

As is happening in some parts of Anbar, the local authorities should put a cap on the inflation of rent prices, as this can help IDPs manage the weekly or monthly rent. Building more costefficient homes to rent, as mentioned above, is another option but must be coordination with all relevant stakeholders.

Many of the host families that are sharing their homes with recently-arrived IDPs suffer from the same vulnerabilities and poverty as the IDPs. Therefore, expanding their homes or providing electricity and sanitation services can help these families' situation. For those families who have been evicted, a short-term solution can be the provision of tents. The setting up of camps should be avoided. Permanent or semi-permanent camps could create a pull factor and can be costly to maintain, put the IDPs' security at risk, and create dependency once services are established.

Non-food items: There were various other items that IDPs in Anbar require that fall under the category of "non-food items". These include hygiene kits, which are in high demand in those locations that lack sanitation facilities or are not in close proximity to health facilities. In addition, fuel for heaters and heaters was requested by IDPs, due to the high cost of fuel and oncoming winter months. Other non-food items needed are mattresses, blankets, water buckets, jerry cans, cooking sets."

IOM, October 2005 - January 2006

"The IDPs in Anbar communicated that their top three priority needs are:

1. Shelter
2. Income Generating Programs
3. Fresh Food

Priority Needs per Sector:

Water & Sanitation:

Water:

1. Extension/Rehabilitation of water network
2. Compact Unit
3. Maintenance

Training Sanitation:

1. Hygiene Campaign
2. Garbage Containers
3. Construction of Latrines

The need for water is now minor in winter. The higher levels of water consumption during summer were due to the warmer climate.

Water quality is still very bad in all locations of Anbar governorate. Both IDPs and the hosting community are frequently using river water for domestic uses. River water represents the main source of drinking water for more than 65% of the population of the governorate. About 80% of the governorate is not served by a functioning sanitation system. Water is most often directly pumped from rivers to the beneficiaries, causing diseases like severe diarrhea.

Rutba experiences the largest shortage of water and is totally dependant on water trucking. Its major source of water provision is the trucking from Al-Thaba'a area (20km from Rutba center).

The water pipe supplying Akashat (where many IDP families are hosted) is currently out of order, due to misuse and the large presence of people hosted in the area. Currently there is ongoing trucking of water, but the water tank capacity of the families is not sufficient.

Food:

1. Transfer of PDS Ration Cards

2. Fresh Food
3. Adding items on PDS Ration Card

Food is still a priority need for the displaced, as for the whole population, since the Public Distribution System is not working properly. Food ration distributions are ongoing with some exceptions. Distributions are missing sugar, vegetable oil and rice and the quantity of some other items, like detergent and soap, is insufficient.

It is reported that the reason for the PDS distribution problem is that the transporting agents contracted by MoT are refusing to carry the food ration if the Ministry does not pay more than before for the transportation. MoT started paying the missed items in the PDS ration with compensating bank checks, estimating different prices from one governorate to another, according to the local prices. Local banks are generally refusing to liquidize these checks. MoT is still trying to convince the banks to accept the checks, and it seems that in some cases banks have started accepting the compensating checks. Markets are functioning except for in some areas of tension like Baghdadi, sometimes Ramadi and Hadetha. The access to markets is almost impossible in cases of military operations.

Health:

1. Provision of drugs/medicine
2. Rehabilitation of primary health center
3. Increase the number of the medical staff

Most of the hospitals and health clinics in Anbar are affected by the military conflicts and some have been seriously damaged or partially destroyed. Health facilities are generally functioning, but they have a limited capability of meeting the needs of patients and lack winter-related medication. Medical treatment is inappropriate in many locations hosting IDPs, especially in Heet, Ana and Al Qaim. All hospitals and other health facilities are in need of assistance due to the deteriorated security situation and the big number of injuries and wounded people.

- Education:
1. Rehabilitation of schools
 2. Furniture for schools
 3. Increase the number of teachers

Income Generation:

1. Carpentry/Construction
2. Sewing
3. Metal works

Unemployment is still one of the major concerns for the displaced in Anbar. Much economic infrastructure has been destroyed and people cannot afford the rehabilitation expenses. The problem applies also to farmers, especially in Qaim, who cannot transport goods during military clashes. Implementing income-generation projects was a consistent request of IDPs.

Access to Legal Documents

1. Legal/Information center
2. Registering children at school
3. Filing claims on Iraqi Property Claims Commission- IPCC"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

Baghdad : IDP Needs (2007)

- Priority needs identified among displaced people in Baghdad are shelter and food and access to work (September 2006)
- Priority needs identified among displaced communities in Baghdad include garbage collection, rehabilitation of schools and the water network (December 2005)

IOM, 15 May - 30 September 2006

"In the case of Baghdad, the IDPs listed their priority needs as 1) shelter and food (these two were equally listed by IDPs as the first priority), 2) access to work, and 3) shelter and food (these two were also equally listed by IDPs as the third priority).

Shelter: Many displaced persons live in inadequate shelter, cannot meet their monthly rental expenses, or are facing pressure and tension due to overcrowded conditions with family or friends.

While shelter is important, it is also important to remember that the majority of IDPs in Baghdad plan to return to their place of origin, so other needs should be addressed before long-term, permanent shelter is provided.

However, for those IDPs who plan to stay in their current place of displacement, there are several options. One option for intervention is to expand host communities' homes where IDPs are present, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

Another option is to support the purchase of land and/or the construction of small cement homes. This would need to be closely coordinated with the relevant Iraqi Ministries in regards to land tenure and legal implications so that no future problems would arise from the purchase of land.

In severe cases where immediate, short-term shelter is needed, another intervention is to purchase tents for temporary residence. This will be a provisional solution, as the use of tents can result in the creation of informal camps, which can cause numerous problems, including the extremely high costs they entail, the security issues they pose and the dependence they create.

Access to Work: Some would assume that Baghdad Governorate, where the Iraqi capital is located, should have more job opportunities. However, the influx of IDPs and economic migrants has created a stronger competition for employment, and IDPs from rural areas often have skills in areas, such as agriculture, that are not appropriate in the urban context.

IDPs have suggested training in carpentry, mechanics, or other skills that would make them eligible for jobs in Baghdad. Providing loans to open small businesses or factories is another suggestion. The economic growth and therefore employment opportunities in Baghdad are directly dependent on the security situation, and until this can be contained, economic opportunities will be thwarted.

Food: Some organizations have provided food to IDPs in Baghdad, but clearly it is not sufficient. Many IDPs do not have access to the PDS rations, so facilitating the transfer of documentations so that the IDPs are registered in their place of displacement is one possible intervention. In addition, organizations can provide food baskets, especially those that target the nutritional needs of women and children."

IOM, October - December 2005

"Priority Needs per Sector:

The IDPs in Baghdad communicated that their top three needs are:

1. Garbage containers
2. Rehabilitation of schools
3. Rehabilitation of water network

Water and Sanitation:

Water:

1. Extend the water network
2. Maintenance training

Sanitation:

1. Garbage containers
2. Hygiene campaigns
3. Construction of latrines

A large number of IDP locations suffer from a shortage of water, due to the lack of rehabilitation of damaged water infrastructure. Water is being stored improperly in many of these areas, leading to disease.

Health:

1. Medical awareness for women
2. Rehabilitation of health center

As most of the IDP locations are within Baghdad governorate, with a small number of locations outside, access to health services is not a major problem despite the fact that families claim inaccessibility to health facilities due to long distances. Generally, the health sector in Iraq suffers from shortages of medical supplies and medications provided to health facilities which can cause severe shortages and inability to provide health services.

Education:

1. Rehabilitation of schools
2. Furniture for schools
3. Registering children at school

Access to education for the Marsh Arabs and Roma community is difficult due to unavailability of documentations necessary for schools and social rejection of the Roma by the surrounding communities. In addition, refugee returnee families who were in asylum in Iran are also unable to gain access to education for their children for the same aforementioned reasons.

Food:

1. Provide the missing items in the PDS Ration Card
2. Fresh Food

In general, the displaced families in Baghdad have access to food through the PDS Ration Card distributed by Ministry of Trade or access to local markets.

Legal Assistance:

1. Legal/Information center
2. Registering children at school

Income Generation:

1. Metal works
2. Carpentry
3. Sewing"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

IDP needs in central Iraq

Salah Al-Din: IDP needs (2007)

- Displaced people in the province identified their main needs as food, shelter and access to work (November 2006)
- Priority needs identified by IDPs in Salah al-Din are rehabilitation of primary health centres and schools as well as employment opportunities (January 2006)

IOM, November 2006

"IDPs in Salah al-Din listed their priority needs as 1) food, 2) shelter, and 3) access to work.

Food: Many IDPs in Salah al-Din do not have access to the PDS rations (623 of those families interviewed) and are not receiving it from other sources, so providing additional food assistance is essential. Food should target the IDPs' needs, especially those nutritional needs of children and women.

In addition, since so many IDPs do not have access to the PDS rations, organizations can lobby the Ministry of Transportation, the Ministry of Displacement and Migration, and the local government to help bring food items to these populations.

Shelter: Many displaced persons live in inadequate shelter, cannot meet their monthly rental expenses, or are facing pressure and tension due to overcrowded conditions with family or friends.

One option for intervention is to expand host communities' homes where IDPs are present, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

Another option is to support the purchase of land and/or the construction of small cement homes. This would need to be closely coordinated with the relevant Iraqi Ministries in regards to land tenure and legal implications so that no future problems would arise from the purchase of land. The Iraqi government could also be encouraged to provide allocations of land to the displaced. In severe cases, if immediate, short-term shelter is needed, another intervention is to purchase tents for temporary residence. This will be a provisional solution, as the use of tents can result in the creation of informal camps, which can cause numerous problems, including the extremely high costs they entail, the security issues they pose and the dependence they create. Setting up a camp should be considered as a last resort.

Whatever shelter provided, or any other service, it should never be contingent on the IDPs' ethnicity or religion. In addition, all shelter will need to have the appropriate sanitation facilities provided. Also, long-term, permanent shelter should focus on those IDPs planning to stay in Salah al-Din.

Employment: IDPs often must leave behind employment and income-generating activities when they are displaced, and access to work was third among IDPs' priorities in Salah al-Din. For those IDPs who do have work, the series of curfews that the governorate has experienced has been especially difficult, since they cannot go to their day jobs.

Projects to improve water and sanitation infrastructure, build homes, or other construction projects could also employ IDPs while providing much-needed services. One suggestion by IDPs was the construction of health centers, which would create employment both through the construction phase and staffing the centers with health care professionals, and it would assuage IDPs' problems accessing adequate health care.

Agencies can create vocational training programs in areas such as carpentry, masonry, metalwork, tailoring and the auto mechanic trade, or on-the-job training, where employees are paid to train the IDP for a certain amount of time and then agree to hire him or her after the training is complete.

In addition to food, shelter, and access to work, IDPs requested assistance accessing information about the property they left and the legal procedures to reclaim it if necessary."

IOM, October 2005-January 2006

"The IDPs in Salah al-Din communicated that their top three priority needs are:

1. Rehabilitation of the Primary Health Center.
2. Rehabilitation of schools
3. Employment opportunities

Priority Needs per Sector:

Water:

1. Installing a compact unit
2. Extend the water network
3. Maintenance training

IDPs in Salah al-Din generally have potable water but request increased amounts.

Sanitation:

1. Garbage containers
2. Hygiene campaign
3. Construction of latrines

The IDPs requested garbage collection campaigns and latrines.

Health:

1. Provision of medication
2. Rehabilitation of the Primary Health Center
3. Increase in the number of the medical staff

An increase in the quality and quantity of medications is necessary.

Education:

1. Rehabilitation of schools
2. Furniture for the school
3. Increase the number of teachers

The groups monitored cited an increase in school material and the rehabilitation of schools as their primary needs.

Food:

1. Fresh Food
2. Provide the missing items on the PDS Ration Card
3. Transfer of the PDS Ration Card

The biggest complaint was the absence of food items in the Public Distribution System.

Legal Assistance:

1. Legal/Information center
2. Registering children at school
3. Filing claims in the Iraqi Property Claims Commission- IPCC

There did not seem to be a great need for legal assistance, although some IDPs expressed a wish for better understanding of their rights.

Income Generation:

1. Carpentry
2. Sewing
3. Metal works

The most popular requests for skills training were in metal works, mechanics, and carpentry.

Type of information needs:

IDPs would like to be better informed of the security situation in their areas."

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

Diyala: IDP needs (2007)

- Priority needs identified by displaced people in Diyala are shelter, employment and food (December 2006)
- Priority needs identified by IDPs in Diyala were housing, food and non food items (December 2005)

IOM, December 2006

"IDPs in Diyala were very clear on their priority needs. They overwhelmingly listed the following as their top three priorities: 1) shelter, 2) access to work, 3) food. These three priorities are common for recently-displaced IDPs throughout Iraq.

Shelter: As mentioned above, the majority of IDPs in Diyala (62%) rent shelter. Those who can afford it when they arrive find a space to rent, but several factors make this unsustainable. Many IDPs did not think they would be displaced for long and do not have the savings to continue to afford rent. IDPs left behind employment and income-generation activities, and they are finding it difficult to find another job in their place of displacement. Without income, covering rental costs is difficult. Finally, rental costs are increasing with the demand, also making renting impossible for some families.

A couple of options could help alleviate the housing problems for IDPs. Building simple, affordable houses to rent would have to be coordinated closely with the local authorities and Iraqi Ministries and should target only those families who plan on staying long-term. Local authorities could cap the inflation of rent prices, which would allow more families to continue to rent. 24% of IDPs live with a host family or relative, and these host families often suffer from the same lack of

basic services or income as the IDPs. If the IDPs plan to share the house for the longterm, expanding their hosts' homes could be beneficial and less costly than new housing.

For the 12% of IDPs who live in public buildings, on unused land or in collective towns or settlements that lack facilities, improved sanitation and cooking facilities, insulation, and reconstruction of their shelter could be undertaken. However, this can only be done if these locations will not be reclaimed and the IDPs will be living there permanently. If IDPs have access to land, providing grants or interest-free loans would allow them to build inexpensive housing on their property.

If property owners of the aforementioned buildings or land decide to evict the IDPs, which is a growing possibility as more IDPs move into these areas, a short-term solution can be the provision of tents. The setting up of an IDP camp should be avoided. Permanent or semipermanent camps could create a pull factor and can be costly to maintain, put the IDPs' security at risk, and create dependency once services are established.

Employment: IDPs must often leave behind employment and income-generating activities when they are displaced, and access to work was ranked second among IDPs' top priorities in Diyala. IDPs provided numerous suggestions for employment opportunities. Many suggestions focused on construction projects that would improve water and sanitation infrastructure, build homes, or other construction projects that would employ IDPs while providing much-needed services. Some IDPs suggested a partial rehabilitation on an unused primary school located nearby their location so that it could be used for classes. IDPs also suggested water purification units and water pipe extensions for accessible, clean drinking water.

Another suggestion was allocating portions of public land where the IDPs are currently living to be used for farming, especially for those IDPs who have experience in agriculture. This would have to be closely coordinated with local authorities. Another recommendation was establishing chicken farms for those who have experience in raising poultry and livestock. IDPs also suggested providing them with micro-loans so that they could begin their own small business.

Finally, agencies could create vocational training programs in areas such as carpentry, masonry, metalwork, tailoring and the auto mechanic trade, or on-the-job training, where employees are paid to train the IDP for a certain amount of time and then agree to hire him or her after the training is complete. These trainings should target IDPs with little work or skills experience. Food: Food distributions to the most vulnerable can help alleviate their food deprivation. Food should target the IDPs' needs, especially the nutritional needs of children and women, and should compliment and not duplicate what has been provided by other entities.

If families hosting IDPs have access to arable land, providing agriculture materials (food, tools and equipment) can increase the food production for both the IDPs and host families. For those IDPs who cannot access PDS rations due to security and inability to transport food, the best method for food access is obviously the stabilization of the security situation, a complicated challenge in Iraq. For those IDPs who are having trouble transferring their PDS ration cards, MoDM and the Ministry of Trade will need to help facilitate this process. All Iraqis must renew their PDS cards for 2007, which could be further complicated due to displacement."

IOM, October-December 2005

"The IDPs in Diyala communicated that their top three priority needs are:

1. Housing
2. Non-Food Items
3. Food items

Priority Needs per Sector:**Water:**

1. Extension network
2. Compact unit
3. Water tanks/ containers

Sanitation:

1. Garbage containers
2. Construction of latrines
3. Hygiene campaign

Health:

1. Provision of drugs/ medicine
2. Increase the number of the medical staff
3. Rehabilitation of a Primary Health Center

Education:

1. Furniture for schools
2. Rehabilitation of schools
3. Increase the number of teachers

Food:

1. Adding more items in PDS Ration Card
2. Fresh food

Legal Assistance:

1. Filling claims in Iraqi Property Claims Commission- IPCC
2. Legal/Information center
3. Registering children at school

Skills Training Needs:

1. Metal works
2. Carpentry/Construction
3. Sewing

Type of information Needs:

1. Security
2. Housing
3. Jobs"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

Tameem/Kirkuk: IDP needs (2007)

- Displaced people in Kirkuk have identified their priority needs as shelter, access to work, food, and legal help

IOM, November 2006

"IDPs in Kirkuk listed their priority needs as 1) shelter, 2) access to work and food were both most frequently mentioned, and 3) food and legal help were most frequently given. Shelter: Many displaced persons live in inadequate shelter, cannot meet their monthly rental expenses, or are facing pressure and tension due to overcrowded conditions with family or friends.

One option for intervention is to expand host communities' homes where IDPs are present, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

Another option is to support the purchase of land and/or the construction of small cement homes. This would need to be closely coordinated with the relevant Iraqi Ministries in regards to land tenure and legal implications so that no future problems would arise from the purchase of land. The Iraqi government could also be encouraged to provide allocations of land to the displaced. IDPs in Kirkuk also recommended building simple housing units for families living in public buildings or where they face potential eviction. However, any long-term or permanent settlement in Kirkuk might meet resistance by the local authorities, due to political sensitivities over altering the ethnic makeup of the governorate.

In severe cases, if immediate, short-term shelter is needed, another intervention is to purchase tents for temporary residence. This will be a provisional solution, as the use of tents can result in the creation of informal camps, which can cause numerous problems, including the extremely high costs they entail, the security issues they pose and the dependence they create. Setting up a camp should be considered as a last resort.

Whatever shelter provided, or any other service, it should never be contingent on the IDPs' ethnicity or religion. In addition, all shelter will need to have the appropriate sanitation facilities provided.

In Kirkuk, where political issues of ownership make the permanent settlement of any population a contentious issue, any shelter and settlement issue will have to be done in a sensitive manner and in collaboration with all government entities in the governorate.

Employment: IDPs often must leave behind employment and income-generating activities when they are displaced, and access to work was ranked high among IDPs' top priorities in Kirkuk. IDPs interviewed in Kirkuk had many suggestions for employment generating opportunities. Projects to improve water and sanitation infrastructure, build homes, or other construction projects could also employ IDPs while providing much-needed services. One suggestion by IDPs was the construction of health centers, which would create employment both through the construction phase and staffing the centers with health care professionals, and it would assuage IDPs' problems accessing adequate health care.

Another suggestion was establishing a manual block factory. This would provide IDPs with blocks to build their houses, instead of using mud, and also would provide job opportunities for those who could be employed to work at the factory and to build the factory. Another option would be to provide the grant so that individuals could create a small brick making business. Agencies can create vocational training programs in areas such as carpentry, masonry, metalwork, tailoring and the auto mechanic trade, or on-the-job training, where employees are paid to train the IDP for a certain amount of time and then agree to hire him or her after the training is complete.

Food: Most IDPs in Kirkuk do not have access to the PDS rations, so providing additional food assistance is essential. Food should target the IDPs' needs, especially those nutritional needs of children and women.

In addition, since so many IDPs do not have access to the PDS rations, organizations can lobby the Ministry of Transportation, the Ministry of Displacement and Migration, and the local government to help bring food items to these populations.

Legal Assistance: While not listed as frequently as the aforementioned needs, IDPs in Kirkuk still see legal assistance as a priority. IDPs throughout Iraq need assistance with a wide variety of legal issues, such as access to property they left behind, especially if it has been occupied since they left. Often they need assistance transferring their documents, such as the PDS ration card, to their new locations or obtaining lost, left, or stolen documents.

Many organizations have found that legal centers are a constructive method of assisting IDPs with legal help. In addition to assisting the IDPs with the aforementioned issues, legal centers can provide accurate information about IDPs' rights, access to services, resources, and IDPs' options when it comes to their left property or documents."

IOM, October-December 2005

"The IDPs in Tameem/Kirkuk communicated that their top three priority needs are:

1. Midwives training
2. Employment opportunities
3. Skills training centers for the youth

Priority Needs per Sector:

Water

1. Extend the water network
2. Water pumps
3. Water network

IDPs requested the rehabilitation of water networks or installing new networks. Another request was increased purification stations and tanks. In Busharya specifically, IDPs are in need of purified water.

Sanitation:

1. Garbage containers
2. Construction of latrines
3. Hygiene campaign

IDPs suggested garbage collection campaigns, garbage containers, latrines. Latrines are especially needed in the Hawija district; defecation near rivers is leading to intestinal diseases.

Health:

1. Drugs provision
2. Rehabilitation of the Primary Health Center

Due to insecurity, IDPs need health clinics that are located within a safe distance. An increase in the quality and quantity of medications was also requested.

Education:

1. Stationary
2. Rehabilitation of schools
3. Increase the number of teachers

Many schools in the area are in need of rehabilitation (estimated number of schools is 499). Noteworthy is the lack of schools in camps. Most IDP families send their children to schools in towns, causing congestion in classrooms. In addition, access to schools was reported to be problematic for girls. An increase of teachers and housing nearby schools for teachers who live far away are needed. Children are missing school to work and families do not have the funds for school supplies.

Food:

1. Fresh Food
2. Provide missing items on the PDS Ration Card

The increasing absence of food items in the Public Distribution System is a primary concern of IDPs.

Legal Assistance:

1. Legal/Information center
2. Registering children at school
3. Arab staff employment in these areas

IDPs require assistance in obtaining legal documents.

Income Generation:

1. Sewing
2. Metal works
3. Midwives training

Any income-generating project is highly needed in IDP communities, as lack of employment opportunities is leading to looting and recruitment by insurgents."

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

Ninewa: IDP needs (2007)

- Displaced people list shelter, access to work and legal help as their priority needs (November 2006)
- Priority needs identified by displaced people in Ninewa province include employment opportunities, non food items and extension/rehabilitation of the water network (January 2006)

IOM, November 2006

"When asked to list their top three priorities, IDPs in Ninewa listed their priority needs as 1) shelter, 2) access to work, and 3) legal help.

Shelter: As mentioned above, 75% of IDPs rent housing, 24% are living in the house of a host family or relative, and 2% live in public buildings or a tent near a host family's house. IDPs who are renting have voiced repeatedly that without adequate income, they cannot continue to cover rental costs. For those who are renting, creating a cap on the increase in rent will prevent inflated rental costs and allow IDPs to stay longer in their current housing. In coordination with local officials and relevant Ministries, building affordable housing complexes will assist both IDPs who are renting and those living with other families or in public buildings. Improving the structures where IDPs currently reside, whether that is with host families or in public buildings, can also assist IDPs with their housing needs.

Any of the aforementioned recommendations must take into consideration that post-February IDPs interviewed do not plan on staying in their current location, and therefore long-term, permanent shelter assistance is not appropriate. If the IDP families plan to follow through with their intentions to leave, the most appropriate assistance will be assistance for rent (funds paid directly to property owners), food and non-food items.

Employment: IDPs often must leave behind employment and income-generating activities when

they are displaced, and access to work was the second highest priority among IDPs in Ninewa. The series of curfews that have been enforced over the past few months have made the situation difficult even for those IDPs who do have employment, since they cannot go to their day jobs. IDPs in Ninewa had numerous suggestions for employment opportunities. For youth in Tilkaif and Al Hamdaniya districts, which are a bit more stable, IDPs recommended trainings, especially for the youth. They recommended training in carpentry or sewing. Some IDPs near agricultural areas recommended facilitating negotiations with local farmers in which those that have experience in agriculture can work their land either in trade for food or income.

Any projects that improve infrastructure could employ IDPs while providing much-needed services. Construction of roads, bridges, or health facilities where security permits would assist both IDPs and the local community with employment opportunities.

Again, any training or employment assistance would need to take into consideration the intentions of IDPs and focus on those who most require the income and who plan to stay in their current location, at least for the near future.

Legal Assistance: IDPs in Ninewa listed legal assistance as their third priority. The majority seeking legal assistance requested assistance with compensation for the damage or destruction of their property, or repossession or restitution of their property in cases where this property is illegally occupied by private parties, the government or the army.

Since the Commission for Resolution of Real Property Disputes (CRRPD) does not cover property issues incurred after April 9, 2003, the Iraq governorate could be encouraged to establish a special purpose commission or body to handle these claims.

IDPs could also try to file their claims with the Iraqi civil courts. Entities who work in this field could assist the IDPs with this process, including helping them to collect evidence of their property rights prior to displacement, the subsequent violation of those rights and/or the damage and destruction of their property.

Providing legal advice about their rights and providing possible legal representation should they file a claim would be additional suggestions for responding to IDPs' request for legal assistance."

IOM, October 2005 - January 2006

"The IDPs in Ninewa communicated that their top three priority needs are:

1. Employment opportunities
2. Non-Food Items
3. Extension/rehabilitation of water network

Priority Needs per Sector:

Water:

1. Water tanks/containers
2. Extension/rehabilitation of water network
3. Jerry cans

Most IDP sites are reported far from water sources and access to these sources is made even more difficult as the road conditions are poor.

Sanitation:

1. Garbage containers
2. Hygiene campaign
3. Construction of latrines

Health:

1. Provision of drugs/ medicine
2. Medical instruments
3. Ambulance

The main problem seems to be lack of access to the health centres for the families and an improvement of the coverage is requested.

Education:

1. School supplies for the children (books, bags, etc...)
2. Clothes
3. School furniture (desks, chairs, etc...)

There is also a need for school renovation in numerous districts.

Food:

1. Adding more items on the PDS Ration Card
2. Fresh food
3. Milk

Legal Assistance:

1. Legal/information center
2. Transferring of documents

Income Generation

1. Carpentry/construction
2. Metal works
3. Handicrafts"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

IDP needs in the lower south region

Thi-Qar: IDP needs (2007)

- Displaced people list shelter, access to work and food as their primary needs (September 2006)
- Primary needs identified among IDPs in Thi Qar province include non food items, water and sanitation and social assistance (January 2006)

IOM September 2006

"In the case of Thi-Qar, the IDPs listed their priority needs as 1) shelter, 2) access to work, and 3) food.

Shelter: Many displaced persons live in inadequate shelter, cannot meet their monthly rental expenses, or are facing pressure and tension due to overcrowded conditions with family or friends.

One option for intervention is to expand host communities' homes where IDPs are present, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

Another option is to support the purchase of land and/or the construction of small cement homes. This would need to be closely coordinated with the relevant Iraqi Ministries in regards to land tenure and legal implications so that no future problems would arise from the purchase of land. In severe cases where immediate, short-term shelter is needed, another intervention is to purchase tents for temporary residence. This will be a provisional solution, as the use of tents can result in the creation of informal camps, which can cause numerous problems, including the extremely high costs they entail, the security issues they pose and the dependence they create. Access to Work: Whether the IDPs plan on settling in Thi-Qar or elsewhere or eventually plan to return to their place of origin, access to employment is a priority. As mentioned above, IDPs in Thi-Qar requested assistance gaining employment in brick-making, road building, and government jobs.

Thi-Qar has more rural areas and offers more opportunities for agricultural employment and income-generation, so providing the means, such as tools and equipment or loans to purchase land and seeds, could provide income-generating activities to IDPs in Thi-Qar.

In addition, IDPs who have skills in or experience owning a business could benefit from loans that allow them to open a small business in Thi-Qar. Other ideas to improve IDPs' access to work could be vocational training in areas such as carpentry, masonry, metalwork, tailoring and the auto mechanic trade; and on-the-job training that allows IDPs to learn a new skill while being paid a stipend.

Food: Some organizations have provided food in Thi-Qar since February 22, but clearly it is not sufficient. Many IDPs do not have access to the PDS rations, so facilitating the transfer of documentations so that the IDPs are registered in their place of displacement is one possible intervention. In addition, organizations can provide food baskets, especially those that target the nutritional needs of women and children."

IOM, October 2005-January 2006

"The IDPs in Thi-Qar communicated that their top three priority needs are:

1. Non-Food Items
2. Extension/rehabilitation of water network
3. Social assistance

Priority Needs per Sector:

Water & Sanitation:

Water:

1. Extension/rehabilitation of water network
2. More than one water tanker
3. Water tanks/containers

Sanitation:

1. Garbage containers
2. Construction of latrines
3. Hygiene campaign

This sector is the main concern for those IDPs living in marshes, rural areas and public buildings (Al-Food, Tar, Alokeaka, and Al-Esakrah). Due to the increasing number of population in the governorate, IDPs face a lack of water access. The main sources of drinkable water are the water tank trucks and the river.

Health:

1. Construction of hospital/clinic
2. Rehabilitation of Primary Health Center

There is a high demand for health services due to the high rates of malaria, cholera and typhoid, which are reported to be common among the population. The hospitals face a lack of equipment such as surgical tools, ambulances and laboratory equipment.

Education:

1. Rehabilitation of schools
2. Furniture for the school (desks, chairs, etc.)
3. Increase number of school teachers

Most of the IDPs living in camps and destroyed villages do not have access to schools. Many schools in the area are in need of rehabilitation (the estimated number of schools is 499). The lack of schools in camps is noteworthy. Most IDPs families send their children to schools in towns, causing congestion in classrooms. In addition, access to schools was reported to be difficult for girls. 40% of 'non-school attendance' is in the age group of 13 -18 year olds. Also, a lack of furniture and teachers has been reported.

Child labor is reported to be a common practice.

Food:

1. Fresh food
2. Adding items in PDS Ration Card
3. Assistance with transfer of the PDS Ration Card

All families have a PDS food ration card, but the food items supplied by the food ration are not sufficient to satisfy their needs. Therefore the residents have to buy some items from the markets, especially rice and sugar, to cover their daily needs.

Legal Assistance:

1. Legal/information center
2. Assistance with filling claims with the Iraqi Property Claim Commission- IPCC
3. Nationality certificates

The main legal problem facing the IDPs families is the threats of being evicted from the buildings where they are settled.

Income Generation:

1. Carpentry/Construction
2. Metal works
3. Sewing

The rate of unemployment is very high (around 85 %). The main income resource is agriculture, but there are many problems that the farmers face, such as the lack of agricultural kits, especially tools, fertilizers and seeds. The other problem is the presence of swamps, which cover agricultural lands.

Type of Information needs:

1. Housing
2. Jobs
3. General services"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)
[Click here for an indepth assessment of Thi Qar province](#), UNHCR, 31 October 2006

Missan: IDP needs (2007)

- Priority needs among displaced people in Missan are water, food and non food items (December 2006)
- Priority needs among displaced people in Missan province include shelter and employment opportunities (December 2005)

IOM, December 2006

"Although Missan is one of the most stable governorates, it is also very poor and lacks many basic services. The IDPs displaced there also tend to suffer from poverty, so their reported priority needs are basic and immediate. IDPs assessed in Missan listed their top three priority needs as water, 2) food, and 3) non-food items.

Water: Missan is the only governorate where recently-displaced IDPs have listed water as their number one priority. According to assessments, 30% of IDPs interviewed do not have regular access to water. Some of those that do have access find that the water is not suitable for drinking. Water trucking, providing bottled water and the construction of better water networks can assist with the shortage of water. Chlorine tablets can also be provided for water treatment, and IDPs recommended establishing reverse osmosis systems for water purification.

Food: Despite relatively good access to PDS food rations and additional assistance from humanitarian organizations, IDPs in Missan most frequently reported food as their second priority. High levels of poverty are preventing these IDPs from accessing adequate food.

Needs assessments should be conducted to identify the most vulnerable IDPs and their food needs. Comprehensive food distributions should be based on these assessments and implemented in coordination with other food assistance agencies to avoid duplication. Those few IDPs who do not have access to PDS food rations might need assistance to transfer their PDS ration cards to their area of displacement.

Some IDPs mentioned that they have access to agricultural land, so long-term food assistance could focus on providing agricultural production inputs, such as seeds, tools and fertilizers, to these IDPs. Providing land to cultivate produce is an option, although it would need to be lead by or closely coordinated with the local authorities and the Ministry of Agriculture. This long-term solution should be provided to those IDPs who do not intend to return home or move to a third location.

Non-food items: There were various other items that IDPs in Missan require that fall under the category of "non-food items". These include hygiene kits, which are in high demand in those locations that lack sanitation facilities or are not in close proximity to health facilities. In addition, fuel for heaters and propane heaters were requested by IDPs, due to the high cost of fuel and oncoming winter months. Other non-food items needed are mattresses, blankets, water buckets, jerry cans, and cooking sets.

In addition, IDPs in Missan gave numerous recommendations for basic services, employment and income generation:

- Al-Husain Al Qadeem is a poor area that lacks a sewage system, negatively affecting the health of both IDPs and host families. Therefore, they recommended installation of a new sewage system.
- Al Ezair sub-district is not served with a proper municipal water system. The subdistrict is dependent on river water so is in need of a water purification project to serve both the host community and IDP families.
- In Hay Al Askary in Amarah, IDPs suggested the construction of a sewage network for proper disposal of waste. IDP families on this location are also in need of health services in the form of vaccinations and medications.
- IDPs in Bin Hashim sub-district requested various services, including a health center and new water treatment plants, and the construction of two schools and expanding and rehabilitation the existing schools, which are made out of mud.

More generally, IDPs in Missan suggested:

- Helping families with access to land to launch projects for the purpose of raising livestock or equipment for producing dairy products to be sold in the market.
- Opening training centres to develop the skills of the unskilled youths.
- Road paving, especially for those living in the remote villages, in order to connect their villages with the neighbouring villages and to improve access and movement for IDPs.
- Employment in the governmental sector, while others suggested establishing a brick factory to employ those who worked in brick factories in Baghdad suburbs."

IOM, October-December 2005

"The IDPs in Missan communicated that their top priority needs are:

1. Shelter
2. Employment opportunities

Priority Needs per Sector:

Water:

1. Extension/rehabilitation of water network
2. Desalination of water
3. Compact unit

Sanitation:

1. Garbage containers
2. Construction of latrines
3. Sewage network

Health:

1. Provision of drugs/medicine
2. Construct public clinic
3. Providing instruments and medical staff

Education:

1. School furniture (desks, chairs, etc.)
2. Construction of schools

Food:

1. Adding more items in PDS ration card
2. Distribution of food items

Legal Assistance:

1. Legal representation
2. Legal consultations

Income Generation:

1. Sewing
2. Metal works
3. Carpentry/ Construction

Type of information needs

1. Shelter
2. Employment opportunities
3. Public services"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

[Click here for an indepth assessment of Missan province](#), UNHCR, 5 February 2007

Basrah: IDP needs (2007)

- Priority needs identified by displaced people in Barah include shelter, access to work, food and legal help (May - October 2006)
- Displaced people in Basrah have identified access to schooling and medical clinics as well as water and sanitation among their primary needs (October - December 2006)

IOM, May - October 2006

"In the case of Basrah, the IDPs listed their priority needs as 1) shelter, 2) access to work, and 3) food and legal help.

Shelter: Many displaced persons live in inadequate shelter, cannot meet their monthly rental expenses, or are facing pressure and tension due to overcrowded conditions with family or friends.

One option for intervention is to expand host communities' homes where IDPs are present, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

Another option is to support the purchase of land and/or the construction of small cement homes. This would need to be closely coordinated with the relevant Iraqi Ministries in regards to land tenure and legal implications so that no future problems would arise from the purchase of land. In severe cases where immediate, short-term shelter is needed, another intervention is to purchase tents for temporary residence. This will be a provisional solution, as the use of tents can result in the creation of informal camps, which can cause numerous problems, including the extremely high costs they entail, the security issues they pose and the dependence they create.

Access to Work: IDPs often must leave behind employment and income-generating activities when they are displaced, and access to work was ranked high among IDPs top priorities in Basrah. Some IDPs in Basrah who had an agricultural background requested either donations of land or loans to purchase land to begin agricultural activities. Some IDPs who have backgrounds in mechanics or another trade requested loans or funds to help them set up small businesses. Other options for employment opportunities are creating vocational training in areas such as in carpentry, masonry, metalwork, tailoring and the auto mechanic trade, or on-the-job training, where employees are paid to train the IDP for a certain amount of time and then agree to hire the IDP after the training is complete.

Food: Some organizations have provided food in Basrah since February 22, but clearly it is not sufficient. Many IDPs do not have access to the PDS rations, so facilitating the transfer of

documentations so that the IDPs are registered in their place of displacement is one possible intervention. In addition, organizations can provide food baskets, especially those that target the nutritional needs of women and children.

Legal Help: IDPs in Basrah requested legal help as a priority, which was not as frequently requested as a priority in other governorates. IDPs need assistance with a wide variety of legal issues, such as access to property they left behind, especially if it has been occupied since they left. Often they need assistance transferring their documents, such as the PDS ration card, to their new locations. Some IDPs must leave quickly and leave behind legal documentation and identity cards, which they need assistance obtaining.

Many organizations have found that legal centers are a constructive method of assisting IDPs with legal help. In addition to assisting the IDPs with the aforementioned issues, legal centers can provide accurate information about IDPs' rights, access to services, resources, and IDPs options when it comes to their left property or documents."

IOM, October-December 2006

"The IDPs in Basra communicated that their top three priority needs are:

1. Constructing a secondary school in the area
2. Adding a delivery room to the clinic
3. Extension/rehabilitation of water network

Priority Needs per Sector:

Water and Sanitation:

Water:

1. Water tanks/containers
2. Extension/rehabilitation of water network
3. Water pumps

Sanitation:

1. Garbage containers
2. Hygiene campaign
3. Sewage system

The water and sanitation system remains critical. IDPs locations do not have a specific place to collect this garbage, so it collects in public areas, presenting a health risk.

Health:

1. Provision of drugs/medicine
2. Ambulance
3. Increase the number of the medical staff

Access to medical facilities it is not always available. Many IDPs families are not able to be assisted by primary health centers for many reasons, such as their long distance from IDP communities, lack of birthing facilities, lack of doctors, and lack of medication.

Education:

1. Furniture for schools
2. Increase the number of teachers
3. Additional classrooms

IDP children who live in the rural areas are not attending school (primary and secondary) for many reasons, such as distance and lack of rooms.

Food:

1. Meat
2. Legumes
3. Milk for children

Legal Assistance:

1. Legal/Information center
2. ID documents, especially for girls and women

Income Generation:

1. Sewing
2. Metal works
3. Carpentry/construction

The unemployment level is very high, as much as 70-80% in some IDP locations."

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

See also an indepth [assessment of Basra province](#) by UNHCR, 31 August 2006

Muthanna: IDP needs (2007)

- Displaced people in Muthanna list primary needs as water, shelter and food

IOM, November 2006

"IDPs in Muthanna listed their priority needs as 1) water, 2) shelter, and 3) food.

Water: Water is clearly the number one priority for IDPs in Muthanna, and 60% report that they do not have regular access to water. Water assistance will greatly depend on the IDPs' location. For IDPs living in rural areas but with access to lakes, rivers, or streams, chlorine tablets and family-size filtration systems are most appropriate. In rural areas with untapped underground water, wells could be created. However, this would require professional assessments and coordination with the local authorities.

For families living in public buildings or in homes without basic water services, existing water networks (piping in the building or home) could be rehabilitated (or built) and connected to the municipal water networks system. Another option is to provide water trucking that is delivered to tanks.

Humanitarian organizations who have the capacity to respond to IDPs' need for water should make this a priority, as water is an essential, life-sustaining need that must be available to everyone.

Shelter: Many displaced persons live in inadequate shelter, cannot meet their monthly rental expenses, or are facing pressure and tension due to overcrowded conditions with family or friends.

Those IDPs living in public buildings (2%, or 124 families) suggested rehabilitating the buildings, especially the crucial services (water, electricity, sanitation, etc.) to make them more suitable for living. While this is a good suggestion on behalf of the IDPs, it is essential to ensure that the Iraqi

government will allow the IDPs to stay in the buildings for the long-term, before permanent facilities are added.

For the 19% who are living with relatives and plan on staying long-term, an option for intervention is to expand host communities' homes, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

IDPs also recommended building settlements of low-cost housing. This would need to be closely coordinated with the relevant Iraqi Ministries in regards to land tenure and legal implications so that no future problems would arise from the use of land and construction of homes.

Food: Although IDPs in Muthanna have access to the PDS rations, very few receive any additional food assistance, and poverty and heightened vulnerabilities result in the urgent need for food assistance. Food can be provided as food baskets through emergency distributions. Food should target the IDPs' needs, especially those nutritional needs of children and women. Long-term food assistance could be in the form of agricultural assistance. This would need to be coordinated with the local authorities and provided to those IDPs who meet several requirements, such as access to suitable land and long-term intentions of residence."

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

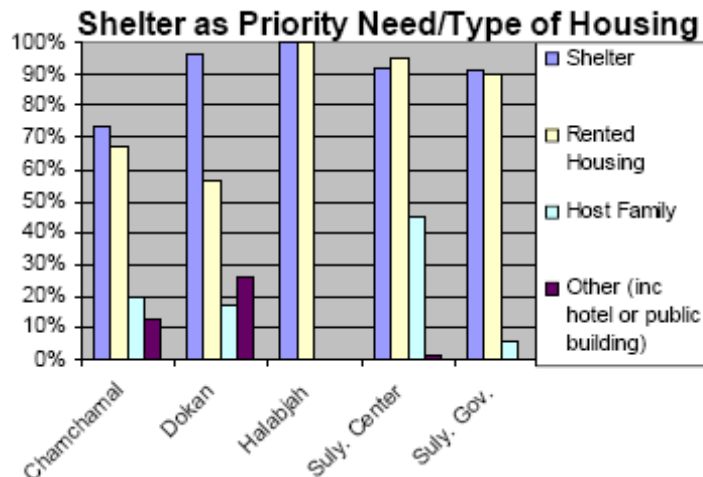
IDP needs in the north

Sulaymaniyah: IDP needs (2007)

- Shelter was identified as a priority need followed by employment and food/healthcare

UNHCR, January 2007

"Shelter was overwhelmingly identified as the main priority need across all districts; 73-100% of families selected housing as their principal need despite IDPs immediate housing needs having been met. 90% of families live in rented housing, 6% with a host family, less than 1% in public buildings and none in tents. Families may be concerned about the sustainability of their current shelter solutions as the cause of their displacement shows little sign of abating and the length of their displacement extends. Continuing rent payments as savings are depleted and work opportunities remaining scarce is likely to be a major challenge, particularly in the face of price increases caused by the steady influx of IDPs. Those staying with host families may also be concerned about over-stay. After shelter, the next priority needs were work, health and food. The second priority need was overwhelmingly employment. Only families in Sulaymaniyah City selected a third choice, evenly split between healthcare and access to food."



Dahuk: IDP needs (2007)

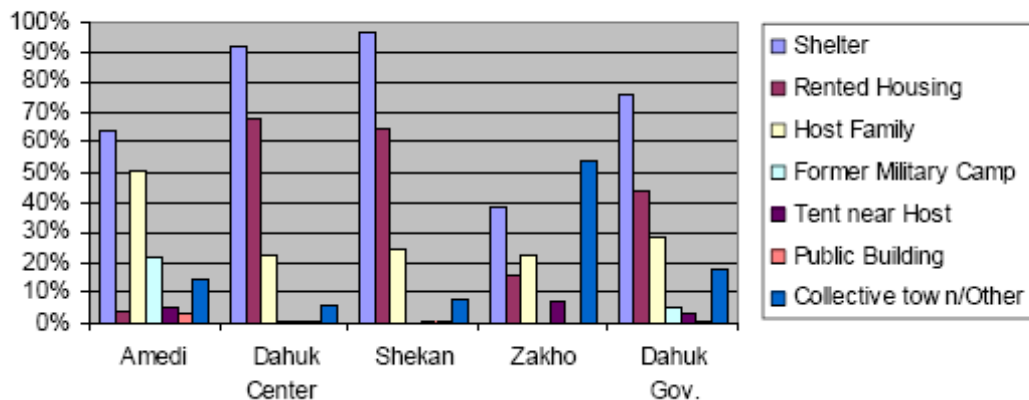
- Shelter was reported by displaced people to be their top priority followed by employment and health care among some districts

UNHCR, January 2007

"Shelter was identified as the top priority need in all districts with the exception of Zakho, where shelter was identified as the second priority after employment. Between 92 -96% of IDP families surveyed in Shekhan and Dahuk City, where 65-68% live in rented housing, selected shelter as their first priority. In Dahuk, the remaining 32% live with host families (23%) or in public buildings, tents, former military camps and in other shelter arrangements. In Shekhan, the remaining 35% live with host families (24%) or in collective towns, tents near host families, public buildings and in other shelter arrangements. In Amedi and Zakho, only 4-16% of families surveyed are renting houses. Those unable to rent have serious cause to feel insecure about their shelter; the emphasis on shelter reflects concerns about their ongoing ability to maintain payment and secure their own shelter as the length of their displacement extends. Most families are having difficulties finding jobs and are therefore living off savings. As the influx of IDPs continues, rental rates have risen sharply, and high rents underlie many IDPs' housing concerns. Together with their lack of regular income, rental market pressure means that families will find it difficult to continue to afford housing as the length of their displacement extends.

Employment was identified as the second priority need by all families, except those in Zakho which listed it as the first priority. While the KRG is experiencing less unemployment than other governorates in Iraq, unemployment is still a problem for both local residents and IDPs who face additional obstacles due to language barriers, problems obtaining references and a lack of familial and general connections. Families surveyed in Amedi and Zakho listed health as their third priority but no third priority was listed in Dahuk City or Shekhan."

Shelter as Priority Need/Type of Housing

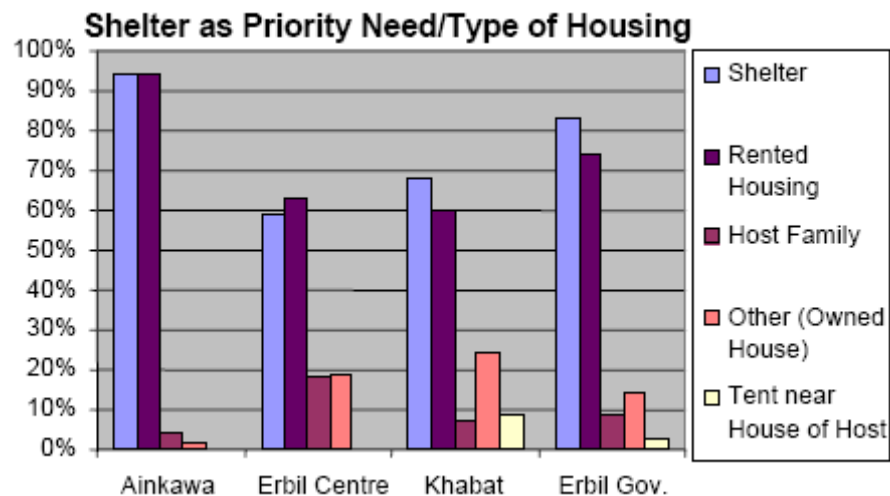


Erbil: IDP needs (2007)

- Shelter followed by employment, health and food were identified as priority needs by displaced people surveyed in Erbil province

UNHCR, January 2007

"Shelter was overwhelmingly identified as a priority need across all sub-districts, ranging from 59-94%. Overall, 83% of IDP families surveyed rated shelter as their principal need despite the apparent absence of a housing crisis of the surveyed IDP population. 74% of families live in rented housing, 14% (other) live in private homes or hotels, 9% with a host family and 3% in tents near a host family home (mainly in Khabat). Families may be concerned about the sustainability of their current shelter solutions as the cause of their displacement shows little sign of abating and the length of their displacement extends. Continuing rent payments as savings are depleted and work opportunities remain scarce is likely to be a major challenge, particularly in the face of price increases caused by the steady influx of IDPs. Those staying with host families may also be concerned about over-stay. After shelter, the next priority needs were work, health and food."



IDP needs in the upper south

Kerbala: IDP needs (2007)

- Key needs among displaced people in Kerbala are food, access to work and shelter (November 2006)
- Key needs among displaced people in Kerbala province are water, sanitation and employment (December 2005)

IOM, November 2006

"When asked to rank their top three priority needs, IDPs in Kerbala ranked them as follows: 1) food, 2) access to work, and 3) shelter.

Food: Many IDP families do not access to the PDS rations, and additional food assistance is sporadic and temporarily. Food assistance was the number one priority listed by IDPs in Kerbala. Food can be provided as food baskets through emergency distributions. Food should target the IDPs' needs, especially the nutritional needs of children and women.

Long-term food assistance could focus on providing agricultural production inputs, such as seeds, tools and fertilizers. This would need to be coordinated with the local authorities and the Ministry of Agriculture and should be provided to those IDPs who meet several requirements, such as access to suitable land and long-term intentions of residence.

Assisting the IDPs with transferring their PDS ration cards to their area of displacement in Kerbala could help them access the distributions, where they are available. Lobbying the various ministries in charge of transferring PDS ration cards and distributing the rations, such as MoDM and the Ministry of Trade, could also help these IDPs access the PDS.

Shelter: Many displaced persons throughout Iraq live in inadequate shelter, cannot meet their monthly rental expenses, or face pressure and tension due to overcrowded conditions with family or friends.

The majority of IDPs in Kerbala rent space, but they report that they have difficulty meeting their rental expenses and the space is often inadequate. Agencies or the Iraqi government could provide grants so that IDPs can pay for their rent or find more permanent, adequate or less expensive shelter. Some IDPs suggested building small, low-rent homes. IDPs could assist with the construction of these homes, providing income-generating opportunities that would also help IDPs pay rent (see more employment suggestions below).

13% live in the house of a host family or relative, but as mentioned, families are increasingly unable to provide for both their families and the newly-displaced families. For those who are living with relatives and plan on staying long-term, an option for intervention is to expand host communities' homes, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families. This could also help those 81 families who live in a tent near the house of a host family or relative.

For the 13% who live in public buildings and the 14% who live in collective towns, bringing services such as water, electricity, and proper sanitation facilities to these IDPs will improve their overall standard of living. Before such services are provided in public buildings, agencies will need to coordinate with the local government or any other entity who might try to reclaim them to ensure that they will allow the IDPs to stay in the buildings for the long-term.

IDPs also suggested paving roads to connect isolated IDP communities, sanitation projects to improve sewage systems, and water projects such as wells, pipelines, and water tanks, as appropriate.

Access to Work: IDPs throughout Iraq lack employment and income-generating activities. Displacement especially affects Iraqis' income sources, as they must leave behind their work, and finding work in their areas of displacement and sector of expedience is challenging. Monitors asked IDPs to share their suggestions for employment opportunities. IDPs recommended establishing small factories in Kerbala, such as clothing factories, that would provide employment, especially to females who are heads-of-households.

Another option is training IDPs in new areas of service or imparting new skills. This could include carpentry, masonry, metalwork, tailoring and the auto mechanic trade. Feasibility and economic opportunity assessments would need to be conducted to find out what type of skills are in most demand in Kerbala. Another option is on-the-job training, where employees are paid to train the individual for a certain amount of time and then agree to hire him or her after the training is complete.

Projects in construction create work while simultaneously providing much-needed infrastructure development. IDPs recommended health facilities and school construction, as these are facing problems due to the large influx of new IDPs.

Also, as one of the holiest cities in Iraq, Kerbala city experiences some religious tourism, which provides employment and reconstruction. If stability can be attained, especially in Kerbala, this field could provide a growing number of economic opportunities for IDPs in Kerbala."

IOM, October – December 2005

"The IDPs in Kerbala communicated that their top three priority needs are:

1. Network maintenance
2. Promote awareness about environmental cleanness
3. Income generating programs

Priority Needs per sector:

Water:

1. Maintenance training
2. Network maintenance
3. Extension/ Rehabilitation of water network

Shortage of potable water is a concern, especially since most displaced have settled in areas with little services. Many communities have no source of potable water.

Sanitation:

1. Refuse sacks and sewage system
2. Hygiene campaign

Health:

1. Increase medical staff
2. Provision of drugs/ medicine
3. Promote the awareness of women towards hygiene

Doctors in Kerbala complain that they are confronted daily by numerous cases of IDP children suffering from intestinal and urinary tract infections from drinking polluted water, leading to

malnutrition and even death. Doctors say they can give the children needed medication but these children return to unsanitary living. Most areas where the displaced are found lack health clinics, and there is only one major hospital serving the entire governorate. There is also a shortage of medical equipment and supplies throughout the governorate.

Education:

1. Furniture for the school
2. Stationary for the school
3. Secondary school

Schools are often crowded or located great distances from the IDPs. Many IDP youth must leave school to work and help support the family. In addition, due to systematic looting and the destruction of public property, most schools lack plumbing, wiring, lighting, desks, windows, and doors.

Food:

1. Adding items on PDS Ration Card
2. Fresh food
3. Transfer of PDS Ration Card

According to the IDP monitors, the PDS system is the main source of food; however, it only reaches about 60% of the IDPs. Many IDPs sell their food ration to cover other costs. In addition, some IDPs have no ration cards to obtain their PDS ration.

Legal Assistance:

Legal/ Information center

Most displaced people are in need of legal help to obtain necessary documents, such as civil status cards, marriage contracts and ration cards. These documents help the displaced be recognized as citizens and enable them to receive government services.

Income Generation:

1. Sewing
2. Carpentry
3. Farming and handicraft making"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

Najaf: IDP needs (2007)

- Displaced people in Najaf have identified shelter, access to employment and food as their primary needs (November 2006)
- Primary needs in Najaf for displaced people include water and sanitation and vocational training (December 2005)

IOM, November 2006

"IDPs in Najaf listed their priority needs as 1) shelter, 2) access to work, and 3) food. Shelter: Many displaced persons throughout Iraq live in inadequate shelter, cannot meet their monthly rental expenses, or are facing pressure and tension due to overcrowded conditions with family or friends.

A large number of IDPs in Najaf live in collective towns, and these areas tend to lack basic services. Bringing services such as water, electricity, and proper sanitation facilities to these IDPs will improve their overall standard of living.

Since the majority of families live in rented homes, providing grants so that they can pay for their rent or finding more permanent or less expensive shelter would assist this population.

Those IDPs living in public buildings (24 families) suggested rehabilitating the buildings, especially the crucial services (water, electricity, sanitation, etc.) to make them more suitable for living. While this is a good suggestion on behalf of the IDPs, it is essential to ensure that the Iraqi government will allow the IDPs to stay in the buildings for the long-term, before permanent facilities are added.

For the 7% who are living with relatives and plan on staying long-term, an option for intervention is to expand host communities' homes, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

IDPs also recommended building settlements of low-cost housing. This would need to be closely coordinated with the relevant Iraqi Ministries in regards to land tenure and legal implications so that no future problems would arise from the use of land and construction of homes.

Access to Work: IDPs throughout Iraq lack employment and income-generating activities, a problem experienced by all Iraqis. Displacement especially affects IDPs, as they must leave behind employment, and finding work in their areas of displacement and sector of expedience is challenging.

Several options exist to improve IDPs' access to employment. One is training IDPs in new areas of service or skills. This could include carpentry, masonry, metalwork, tailoring and the auto mechanic trade. Feasibility and economic opportunity assessments would need to be conducted to find out what type of skills are in most demand in Najaf. In addition, vocational training, which can take time, is most appropriate for IDPs who wish to stay in Najaf. Another option is on-the-job training, where employees are paid to train the IDP for a certain amount of time and then agree to hire him or her after the training is complete.

Projects in construction create work while simultaneously providing much-needed infrastructure development. Micro-credit loans for small business start-up or purchasing land for agriculture are additional options.

Food: Since a very high percentage of IDPs in Najaf do not have access to the PDS rations upon which many families rely, access to food is a priority and should be addressed.

Food can be provided as food baskets through emergency distributions. Food should target the IDPs' needs, especially the nutritional needs of children and women.

Long-term food assistance could focus on providing agricultural production inputs, such as seeds, tools and fertilizers. This would need to be coordinated with the local authorities and the Ministry of Agriculture and should be provided to those IDPs who meet several requirements, such as access to suitable land and long-term intentions of residence.

Assisting the IDPs with transferring their PDS ration cards to their area of displacement could help them access the distributions, where they are available. Lobbying the various ministries in charge of transferring PDS ration cards and distributing the rations, such as MoDM and the Ministry of Trade, could also help these IDPs access the PDS."

IOM, October – December 2005

"The IDPs in Najaf communicated that their top three priority needs are:

1. Extension/rehabilitation of water network
2. Support vocational training
3. Legal place for permanent living

Priority Needs per Sector:

Water & Sanitation:

Water:

1. Awareness campaign
2. Rehabilitation of network
3. Compact unit

Sanitation:

1. Hygiene campaign
2. Garbage containers
3. Construction of latrines

Owing to the fact that the displaced are settling in isolated areas characterized by a shortage of services, they suffer from lack of or shortage of potable water. Some IDPs obtain water from rivers while in other locations they must purchase water.

Health:

1. Provision of drugs/medicine
2. Rehabilitation of a Primary Health Center
3. Training midwives

There are numerous cases of IDP children suffering from gastroenteritis and urinary tract infections due to polluted drinking water. Many are also suffering from tuberculosis, skin infections and respiratory problems because they are living in unsanitary locations.

Education:

1. Furniture for the schools
2. Support adult literacy
3. Extension of school

Most displaced people, especially children, require better access to education. There are few suitable schools and some IDP children encounter difficulty studying in Arabic. Some children and adolescents leave school to work and support their families. Many women who have little education and desire to learn have no access to education.

Food:

1. Adding more items in the PDS Ration Card
2. Preserved food

The Public Distribution System food rations are the only source of food for about 70% of the IDPs in Najaf. Many of the PDS rations are missing items, forcing the IDPs to purchase these items, although their income generally does not cover these items. The IDPs generally rely on food assistance from the religious community and local and international organizations.

Legal Assistance:

1. Legal/Information center
2. Registering children at school

Most displaced people report that they are in need of legal assistance to obtain the necessary documents to obtain ration cards.

Income Generation:

1. Metal works
2. Sewing
3. Carpentry/Construction"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

Babylon: IDP needs (2007)

- Displaced people in Babylon listed shelter, access to work and food as their primary needs
- Main needs for displaced people in Babylon are shelter/housing, employment and water and sanitation (December 2005)

IOM, December 2006

"IDPs in Babylon listed their top three needs as 1) shelter, 2) access to work, and 3) food.

Shelter: The majority of IDPs in Babylon are renting housing, and high unemployment is making meeting rental costs difficult, and prices continue to rise. Local authorities could put a cap on the inflation of rental prices, as is done in some other governorates. Also, financial assistance that directly helps pay rent would be useful for this population.

13% of those interviewed live in collective towns or settlements and 6% live in public buildings. These structures often lack water, sanitation, and electrical services. Bringing services to these locations would greatly improve the IDPs' standard of living.

7% are living with family or friends in Babylon. For these families, expanding the host families' homes, building simple concrete block homes, or providing electricity and sanitation services would help both the hosting families and IDPs. This is a long-term solution and should therefore target IDPs who plan on staying in Babylon and must be coordinated with the relevant government ministries and local authorities.

Employment Opportunities: IDPs throughout Iraq lack employment or a source of income, a problem shared by many people throughout Iraq and frequently listed as the top priority need by IDPs. Displacement especially affects employment, as IDPs must leave behind jobs and income-generating opportunities. Finding work in their areas of displacement and sector of experience is challenging.

IDPs in Babylon provided monitors with numerous options for income-generating activities. One suggestion was infrastructure development, such as low-cost houses, paving roads, water system installation, construction or rehabilitation of health centers, etc. Projects in construction create work while simultaneously providing much-needed infrastructure development for IDPs and the host community.

IDPs suggested micro-credit loans to help them establish a small business. These loans could have little or no interest, making the repayment less burdensome. Skills training for IDPs or on-the-job training are additional options, and would need to target the IDPs' interests and the market demands.

Food: Food distributions to the most vulnerable can help alleviate their food deficit. Food should target the IDPs' needs, especially those nutritional needs of children and women, and should compliment and not duplicate what has been provided by other entities. Food needs assessments should be conducted to identify the most vulnerable beneficiaries and IDPs' specific food requirements.

If any families have access to arable land, providing agriculture materials (food, tools and equipment) can increase the food production for both the IDPs and host families. Projects and assistance that targets both IDPs and host communities will facilitate acceptance of the newly-arrived and provide assistance to all vulnerable populations."

IOM, October - December 2005

"The IDPs in Babylon communicated that their top three priority needs are:

1. Improve shelter/housing
2. Provide opportunities of employment
3. Extension/Rehabilitation of water network

Priority Needs per Sector:

Water & Sanitation:

Water:

1. Extension/Rehabilitation of water network
2. Compact unit
3. Training community on maintenance

Sanitation:

1. Construction of latrines
2. Garbage containers
3. Hygiene campaign

In the IDP locations, the water supply is considered the main problem due to a lack of basic services, including water networks. The families must bring water from long distances and which lack minimal standards for safely carrying and storing the water. This is best seen in Al Mahawil and Al Mahmoudiya districts where the families must bring water from long distances.

Health:

1. Provision of drugs/medicine
2. Increase the number of medical staff
3. Rehabilitation of the health center

Access to the health facilities is a primary concern the IDPs residing in the center of the governorate. However, for those who live in rural areas, there is a lack of hospitals and public health clinics. Those that do exist lack medicine, medical equipment and staff.

Education:

1. Rehabilitation of school
2. Increase number of teachers for the school
3. School furniture (desks, chairs, etc.)

Lack of access to education is not a concern for most IDPs in Babylon.

Food:

1. Adding items in PDS Ration
2. Fresh food

3. Assistance with transfer of the PDS Ration Card

In general, the IDP families in Babylon have access to food either from the monthly Public Distribution System food ration or through the market. However, many food items are missing in the monthly ration, which in turn increases the families' hardships.

Legal Assistance:

1. Legal/Information center
2. Assistance with filing claims with the Iraq Property Claims Commission - IPCC
3. Assistance registering children

Type of Information needs:

1. General public services
2. Employment opportunities
3. Increased security

Income Generation:

1. Carpentry/Construction
2. Sewing
3. Metal works"

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

Qadissiya: IDP needs (2007)

- The most urgent needs identified by displaced people in the province are shelter and employment opportunities (November 2006)
- Priority needs among displaced people in Qadissiya are housing, jobs and non food items (December 2005)

IOM, November 2006

"By far the IDPs' most urgent needs in Qadissiya are shelter and access to employment. Shelter: Many displaced persons throughout Iraq live in inadequate shelter, cannot meet their monthly rental expenses, or face pressure and tension due to overcrowded conditions with family or friends.

A very high percentage of IDPs in Qadissiya live in public buildings, and these areas tend to lack basic services. Bringing services such as water, electricity, and proper sanitation facilities to these IDPs will improve their overall standard of living. Before such services are provided, agencies will need to coordinate with the local government or any other entity who might try to reclaim the building to ensure that they will allow the IDPs to stay in the buildings for the longterm.

IDPs in Hathaeb village in Al-Bdeer suggested providing a sewage system and paving the roads, which would improve the living conditions in this town.

Many IDPs who are renting do not have access to income or live in poor conditions, so providing grants so that they can pay for their rent or find more permanent, adequate or less expensive shelter would assist this population. Some IDPs suggested building small, low-rent homes. For those who are living with relatives and plan on staying long-term, an option for intervention is to expand host communities' homes, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

Access to Work: IDPs throughout Iraq lack employment and income-generating activities, a problem experienced by all Iraqis. Displacement especially affects Iraqis' income sources, as they must leave behind employment, and finding work in their areas of displacement and sector of expedience is challenging.

IDPs in Qadissiya voiced numerous suggestions for employment opportunities. IDPs in the Shanafiya sub-district of Al-Hamza suggested building a chicken butchery or a farm for egg production, as many have experience in this field and there is suitable land to build such a factory. IDPs in Shamiya suggested building a furniture factory to hire local IDPs.

Another option is training IDPs in new areas of service or imparting new skills. This could include carpentry, masonry, metalwork, tailoring and the auto mechanic trade. Feasibility and economic opportunity assessments would need to be conducted to find out what type of skills are in most demand in Qadissiya. In addition, vocational training, which can take time, is most appropriate for IDPs who wish to stay in Qadissiya. Another option is on-the-job training, where employees are paid to train the individual for a certain amount of time and then agree to hire him or her after the training is complete.

Projects in construction create work while simultaneously providing much-needed infrastructure development. Micro-credit loans for small business start-up or purchasing land for agriculture are additional options.

In addition to shelter and employment, IDPs requested non-food item distributions. Specifically, IDPs need furniture, mattresses, electrical equipment, and clothes. A much smaller number requested assistance with services such as legal help, education, water and food."

IOM, October-December 2005

"The IDPs in Qadissiyah communicated that their top three priority needs are:

1. Housing
2. Jobs
3. Non-Food Items

As most of the IDPs settled two or more years ago and do not foresee leaving in the near future, they are looking for durable solutions for their families, such as schools, playgrounds, and workshops for females to learn hand crafts. Another priority is income generation, especially for youth to prevent their search of other economic means, such as looting or joining the insurgency.

Priority Needs per Sector:

Water:

1. Extension/rehabilitation of water network
2. Building water station
3. Maintenance training

The majority of people would like to see rehabilitation of water networks, reinstallation of new networks, and purification systems and tanks.

Sanitation:

1. Construction of latrines
2. Sewage network
3. Hygiene campaign

Garbage collection campaigns, garbage containers, and latrines are also priorities.

Health:

1. Provision of drugs/medicine
2. Construction of hospital/clinic
3. Primary health clinic

Most IDPs requested an increase in the quality and quantity of medication and health services.

The villages with no primary healthcare clinic asked for this.

Education:

1. Construction of schools
2. Increase the number of teachers

IDPs requested more teaching staff. They also explained that children are not attending school because they need to work to support the family or because they could not cover school costs.

Food:

1. Adding items in PDS Ration Card
2. Providing money along with PDS Ration Card
3. Providing money instead of PDS Ration Cards

The primary concern was with the Public Distribution System and a lack of items. They also requested the availability of fresh food.

Legal Assistance:

1. Registering children at schools
2. IDPs requested assistance with obtaining legal documents.

Income Generation:

1. Carpentry/Construction
2. Sewing
3. Driving

Since the majority of IDPs rely on agriculture for income generation, they also requested training in metal works and mechanics, especially training for youth."

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

Wassit: IDP needs (2007)

- Displaced people in Wassit province identify shelter, access to work and food as their primary needs (November 2006)

IOM, November 2006

"IDPs in Wassit most commonly listed their priority needs as 1) shelter, 2) access to work, and 3) food.

Shelter: As mentioned above, IDPs in Wassit generally live in inadequate shelter. Those in the camp, public buildings, and collective settlements do not have access to basic services, such as electricity, water, and sanitation facilities. The housing is not properly insulated and is extremely

hot in summer and cold in winter. Families who live with relatives or friends only see it as a temporary solution.

For IDPs living in public buildings or collective towns, providing services such as water pipes or water trucking, electricity or benzene, and proper sanitation facilities to these IDPs will improve their overall standard of living. This must be closely coordinated with the proper local authorities. The majority live in rented homes, so providing funds to cover the rent or locating less expensive shelter would assist this population. If the IDPs plan to stay in Wassit, identifying more permanent housing is another alternative.

For the 33% who are living with relatives and plan on staying long-term, an option for intervention is to expand host family's homes, since this is a more cost-effective measure than building completely new homes, and this method will support both IDPs and host families.

Access to Work: IDPs throughout Iraq lack employment and income-generating activities, a problem experienced by all Iraqis. Displacement especially affects IDPs' income, as they must leave behind employment, and finding work in their areas of displacement and sector of expedience is challenging. As more and more IDPs arrive in Wassit, there is greater competition for work.

IDPs were concerned about the lack of activities for youth and the potential for them to become involved in the conflict and violence. Therefore, they suggested trainings for youth. Training in employable areas allows the IDPs to be more competitive for work and expands their employment options. They also suggested establishing production factories to employ youth. IDPs had numerous additional suggestions for employment options. One was infrastructure development, such as installing water piping, providing waste facilities, building health clinics, construction of primary schools and expansion of existing schools, paving of roads, and filling swamps and lakes to construct recreational sites or playgrounds for children. All of these construction and infrastructure development projects would create jobs upon implementation. In addition, once constructed, facilities such as health clinics and schools would require staffing, further providing employment options.

Micro-credit loans were also recommended. These could be provided for small business start-up or purchasing land for agriculture.

Food: Due to the high number of IDPs who do not have regular access to PDS rations and the low amount of food assistance available, the majority of IDPs placed food as their second-highest priority.

Humanitarian organizations should assess the specific food needs of IDPs in Wassit and, based on these assessments, provide food emergency distributions. Food should target the most vulnerable IDPs. As powdered milk and appropriate food for women and children were requested, their special nutritional needs should be taken into consideration.

Some IDPs will have access to PDS food rations if they transfer their PDS ration cards to their area of displacement, so assistance can facilitate this. Lobbying the various ministries in charge of transferring PDS ration cards and distributing the rations, such as MoDM and the Ministry of Trade, could also help these IDPs access the PDS.

Some IDPs might have access to agricultural land, so long-term food assistance could focus on providing agricultural production inputs, such as seeds, tools and fertilizers, to these IDPs. Providing land to cultivate produce is an option, although it would need to be lead by or closely coordinate with the local authorities and the Ministry of Agriculture. This long-term solution should be provided to those IDPs who do not intend to return home or move to a third location. In

addition to the top three priority needs, IDPs in Qadissiya mentioned that they would like legal assistance to help them better understand their rights regarding their property in their place of origin, especially where it was confiscated by another citizen or by insurgents."

[Click here for further information, see IOM's assessments and monitoring reports by province](#)

General

Capacity and resources of host communities to support displaced people is limited (2007)

- In general displaced people have been well received by host communities
- However the lack of infrastructure and resources has raised potential tensions between IDPs and host communities

IOM, 2 February 2007

"Despite instability throughout the country, the majority of the displaced reported that they were well received by their host communities. In general, IDPs moved from religiously and ethnically mixed to more homogenous communities, so the host community often had the same cultural background as the IDPs, and good relations were maintained. However, at the end of 2006, monitors reported increased tension between host communities and the displaced. Local authorities in Kerbala, for example, decided to close the governorate's borders to all IDPs except those who were originally from Kerbala, and even most of these were restricted from entering. Najaf also reportedly restricted settlement in Najaf city. These restrictions were attributed to a strain on the health sector, overcrowding of schools, and a lack of infrastructure to accommodate the influx of IDPs.

In some governorates, the recently-displaced were blamed for an increase in violence. Local authorities in many governorates required security checks for any Iraqi who arrived and registered with MoDM, IRCS, or other entities."

Conflict since 2003 has resulted in reduction in the standard of living of all Iraqis (2007)

UNSC, 7 March 2007

"Implications of this situation are far-reaching. An increasing number of children are unable to attend school, particularly in the Baghdad area. Brain drain continues, as professionals and skilled workers leave the country. Unemployment and inflation rates are escalating. The standard of living of all Iraqis has fallen, despite ongoing initiatives to reconstruct infrastructure and capacities to deliver basic services such as electricity, health, drinking water and sanitation. Food security is tenuous, with more than a third of the population dependent on a rapidly deteriorating food ration distribution system (public distribution system). The impact of this situation on children in particular is leading to increased chronic and acute malnutrition rates, school dropout rates and truancy rates. Access to health services is weakening, as insecurity jeopardizes efforts to maintain even the most basic services."

Government and UNDP survey shows grave deterioration in Iraqi living standards (2005)

- The comprehensive survey on living conditions in Iraq was undertaken by the Iraqi Ministry of Planning and Development Cooperation in collaboration with the United Nations Development Programme
- The survey was conducted from a sampling of 22,000 households in 2004
- It reveals grave deterioration in living standards in the country over the past 25 years with Iraq
- The Survey found that Unemployment among young men with secondary or higher education stands at 37 percent
- Even though most Iraqis are now connected to water, electricity or sewage networks, supplies remain unstable and unreliable
- Almost a quarter of children between the ages of six months and five years suffer from malnutrition
- More young people today are more illiterate than in previous generations
- Just 83 percent of boys and 79 percent of girls of school age are enrolled in primary school.

UNDP, 12 May 2005

"A comprehensive survey on living conditions in Iraq released here today by the Iraqi Ministry of Planning and Development Cooperation in collaboration with the United Nations Development Programme reveals grave deterioration in living standards in the country over the past 25 years, with Iraq now suffering from some of the region's highest rates of joblessness and child malnutrition and continuing severe deficiencies in sewage systems, electric power supplies and other essential public services.

The survey, conducted from a representative sampling of 22,000 households in 2004, provides one of the largest and most comprehensive statistical portraits of the country in recent years. The survey [...] found that:

- Unemployment among young men with secondary or higher education stands at 37 percent
- Even though most Iraqis are now connected to water, electricity or sewage networks, supplies remain unstable and unreliable
- Almost a quarter of children between the ages of six months and five years suffer from malnutrition
- More young people today are illiterate than in previous generations
- Just 83 percent of boys and 79 percent of girls of school age are enrolled in primary school.

'This survey shows a rather tragic situation of the quality of life in Iraq,' Iraqi Minister of Planning Barham Salih said at the news conference where the report was released in Baghdad today.

Also speaking at the launch of the survey, Staffan de Mistura, the Secretary-General's Deputy Special Representative in Iraq, said the study would serve as an important tool for policy makers, development planners and experts. 'It not only provides a better understanding of socio-economic conditions in Iraq,' he said, 'but it will certainly benefit the development and reconstruction processes in Iraq. The survey will help us address the grave disparities, between urban and rural and between governorates, in a more targeted fashion.'

The three volumes of the report are available in Arabic and English on [UNDP's Iraq Country Page](#)

Food

Displaced people do not get enough food because of deterioration in security (2007)

- Displaced people, especially in Anbar province have received only parts of the food ration or none at all
- Security conditions have also prevented the displaced from accessing food between 2003 and 2005

UNAMI, 16 January 2007

“One of the primary concerns for IDPs, beside that of access to sanitation and shelter, is food. The food distribution system seems to have deteriorated due to the security situation, especially in Al Anbar, causing many displaced persons to receive either only a portion of the food ratios or not receive any ratios at all.”

IRIN, 22 August 2005

“Food shortages have been reported in northern and western Iraq by local NGOs.

The town of Talafar, north east of the Mosul governorate and near the Syrian border in the western Anbar governorate, are worst affected following military operations there.

US forces are fighting insurgents in both areas.

“Many areas in Anbar governorate have been suffering from food shortages and especially those cities under military operations like al-Qaim and Haditha due to no access to the area. We have been working hard trying to cover their needs, but the requirements are very high,” Ferdous al-Abadi, a spokesperson for the Iraq Red Crescent Society (IRCS), said.”

Delays in transferring ration cards leave displaced people without food (2007)

- Most IDPs, like other Iraqis, rely on the food distribution system to obtain food
- Displaced people face problems in accessing food rations in their place of displacement because they need to transfer their ration card from their area of origin
- The process is lengthy during which they may have no access to food rations
- The Public Distribution System (PDS) was set up in the mid 1990s and up to 40 per cent of Iraqis are estimated to be highly dependent on food rations
- Of displaced people interviewed in 2006, 32% reported no access to PDS food rations
- The highest percentages of people without regular access to food were Anbar (76%), Najaf (72%), and Thi-Qar (60%)
- Of those who did receive food assistance, 32% received it from humanitarian organizations, 25% from religious charities, 8% from regional authorities, and 2% from national authorities

IMC, January 2007

“Prior to June 2006, when the MoT changed its policy, IDPs fleeing their homes for other governorates were not allowed to claim food rations in their new locations. Thus, dependent on religious groups and on the generosity of host families often poor themselves, many IDP families had inadequate access to food. Their lack of money made it difficult, if not impossible, to supplement rations with goods from the prohibitively expensive open market, where inflation,

transport difficulties, and power outages at food storage facilities have sharply driven up the price of food over the course of the conflict. Already suffering a food shortage due to the inadequate and irregular government rations, strained host populations as well as IDPs have run through their meager stores of food, and resource-sharing is becoming more difficult.”

IOM, 2 February 2007

“Food was one of the top priority needs identified by many displaced throughout Iraq in 2006. Accessing the Public Distribution System (PDS) was hampered because documents must be transferred or renewed, and PDS rations were not always available. Lack of income prevented families from meeting their nutritional requirements. In addition, humanitarian organizations sometimes could not access highly instable areas, where the displaced needed food most.

For years, people throughout Iraq have relied on the PDS to supplement their daily food intake. It is estimated that between 25% and 40% of Iraqis are highly dependent upon PDS rations. The Ministry of Trade manages transportation and warehousing of food items, but lack of items, insecure transportation routes, and a lack of documentation prevent access to food rations.

Of those interviewed in 2006, 32% reported no access to PDS food rations. Anbar (76%), Najaf (72%), and Thi-Qar (60%) had the highest percentage of displaced without access. Fifty-one percent reported receiving food rations sometimes and only 17% reported that they always received them. Muthanna had the highest percentage (82%) of IDPs who always received PDS food rations. In addition, those who received food rations found that they were incomplete; 34% reported that their last PDS distribution was missing items. Missing items have been attributed in part to corruption, mismanagement, and stealing of food items.

For those IDPs who had no access to PDS rations or had not received them lately, 54% blamed it on food transportation routes being insecure, and 15% blamed it on lack of transportation. Fourteen percent of families blamed it on a delay in transferring their PDS registration card to a new location or a lack of documentation. Twenty families even believed that there simply was no food to distribute.

[...]

Of those who did receive food assistance, 32% received it from humanitarian organizations, 25% received it from religious charities, 8% from regional authorities, and 2% received it from national authorities. These entities usually provided dried or canned food, rarely fresh food. In addition, the food distributions usually only lasted for a few weeks at most, so assistance was temporary and barely met the expanding need for food.”

UNHCR, October 2005, p.93

“Refugees, returnees and IDPs are entitled to register with a food distribution agent and obtain food through the PDS. Like most Iraqis, they tend to sell some part of the monthly ration and use the income from the sale (along with any other income and savings they may have) to buy fresh food such as fruits, vegetables and meat as a supplement to their diet.[...] Most families have no food stocks. [...]

Newly displaced persons may face problems obtaining their food rations in their place of displacement, as their ration cards only allow receipt of food in a particular location. The transfer of food ration cards is often delayed by bureaucratic procedures, leaving families without food for several months. In addition, security conditions may prevent access to IDPs as observed in Fallujah in late 2004[...] and in Najaf during August 2004. [...] At times, returnees face delays in obtaining their food ration cards.”

UNSC, 7 Sept 2005, p.9

“The Emergency Working Group also learned that internally displaced persons were having great difficulty in collecting food rations from the Iraq public distribution system, owing to their relocation

and the inability of the system to respond to moving beneficiary populations. In addition, lack of security for transport of rations caused further delays in delivery to beneficiaries.”

IRIN, 8 June 2004

“An estimated 60 percent of Iraqi families depend entirely on the monthly food ration distributed under the Public Distribution System (PDS) managed by the Iraqi Ministry of Trade (MoT). The PDS was funded through the Oil-for-Food Programme (OFFP) between 1996 and until late last year, when the OFFP was discontinued.

The PDS was introduced by the Iraqi government 13 years ago. Under this system, since 1996 food, has been imported from abroad and was stored in MoT warehouses. Although estimates vary, the food basket had a monetary value in Iraq of roughly US \$8 to 10 per person per month when under the OFFP.

The MoT distributed food to Iraqis in the central and southern region during the OFFP days. However, now the MoT distributes to all Iraqis, including the north, continuing under the PDS.

Prior to the closure of the OFFP, in the north, where the UN was mandated to implement OFFP activities on behalf of the Iraqi government, WFP was responsible for the collection of food from WFP-managed warehouses in Kirkuk and Mosul, its transport to Arbil, Sulaimaniyah and Dahuk governorates and distribution to beneficiaries.

However, it became clear that the PDS would be disrupted by the hostilities in 2003 and therefore WFP launched an emergency operation in order to ensure that food distribution to the vulnerable would continue. More than 2 million mt of food were delivered to Iraq in 2003 over a period of six months, making this the WFP's biggest humanitarian operation ever.

Although there is no recent information on how much of the population is still dependant on the rations since the fall of Saddam Hussein, preliminary results of a December 2003 WFP household survey indicate that 14.3 percent of the Iraqi population is 'extremely poor' (those who spend less than US \$35 per month on food) and 47 percent are 'poor' (those who spend between \$35 and \$90 per month on food).

Today, nearly 27 million Iraqis nationwide continue to receive their food rations from over 40,000 distribution agents. The monthly 18 kg ration includes basic food commodities such as wheat flour, rice, sugar, pulses and vegetable oil. Families use their food ration cards, distributed under the PDS, to receive a monthly ration.

Markets are full of fresh fruit, vegetables and meat but they are very expensive, and with unemployment at an estimated 50 percent or more, most families say they cannot afford to buy even the most basic items.

Although the OFFP was handed over to the Iraqi Ministry of Trade (MoT) and the US-led administration in November 2003, the WFP continued procurement of 1.6 million mt of food and dispatched commodities, after being asked by the Coalition Provisional Authority (CPA) and MoT who needed additional help. In addition to this, the food agency is still assisting, by training MoT staff.

WFP work is continuing in the country under the new UN Country Team strategy for 2004 and the agency is heading the Food Security Cluster and cooperating with UNICEF and the World Health Organization (WHO) in nutrition and supplementary feeding programmes.

[...]

Although malnutrition rates had fallen in the late 1990s, chronic malnutrition stands at 28.8 percent and acute malnutrition at 6.7 percent, according to the December 2003 WFP survey of the central and southern governorates."

Almost a quarter of Iraqi children suffer from malnutrition (2006)

- Joint UN-government survey suggests that one in ten children is suffering from malnutrition
- UNICEF expresses concern at impact of hostilities on children and notes that acute malnutrition among children has doubled since March 2003
- A nationwide survey by the Iraqi Planning Ministry and UNDP found chronic malnutrition among 23 per cent of Iraqi children
- At the UN 60th Human Rights Commission, Special Rapporteur on food, Ziegler reported that increasing numbers of Iraqi children do not have enough food to eat and more than a quarter are chronically undernourished
- Ziegler's report says that under the former regime 4% of Iraqi children under five were going hungry; now that figure has almost doubled to 8%
- Ziegler blamed the worsening situation in Iraq on the war led by coalition forces
- Local NGOs working in Diyala governorate also report signs of malnutrition among internally displaced children
- A survey carried out by a local organisation among children aged between six months and six years found 800 children suffered from vitamin deficiencies and abnormally low body weight
- 500 of the children surveyed are living in and around Mugdadiyya, a town with one of the highest concentration of IDPs in Diyala governorate
- Normally, the countrywide monthly rations system should act as a barrier against child malnutrition, but local officials say that some families may slip through the net

UNAMI, 18 July 2006

"According to the joint UN and Iraqi government food security and vulnerability analysis, children are the primary victims of food insecurity, with every one in ten child suffering from malnutrition."

IRIN, 4 January 2005

"On 23 November the United Nations Children's Fund (UNICEF) expressed deep concern again about the devastating impact the hostilities are having on the overall well-being of the country's children. 'Latest reports are showing that acute malnutrition among young children has nearly doubled since March 2003,' UNICEF Executive Director Carol Bellamy said. 'This means that hundreds of thousands of children are today suffering the severe effects of diarrhoea and nutrient deficiencies,' she added. Bellamy noted that Iraq already had severe problems with malnutrition, water and sanitation before the war, when 1 in 8 Iraqi children died before the age of five."

UNDP, 13 May 2005

"Malnutrition may be the result of too few calories, lack of particular elements in the food, or inadequate uptake by the body, for instance, during diarrhea. The indicator of malnutrition chosen to monitor the first MDG is underweight-for-age ('general malnutrition'). Preferably, however, to be able to interpret the combination of acute and chronic malnutrition, the height-for-age ('stunting'), and weight-for-height ('wasting') is also monitored. While 'stunting' reflects chronic malnutrition and shows little seasonal variance, 'wasting' is a measure of acute malnutrition and has large seasonal variance.

-12% of the Iraqi children in the age group 6 months – 5 years suffer from general malnutrition.

-8% of children suffer from acute malnutrition.

- 23% of children suffer from chronic malnutrition.
- Acute malnutrition in the South reaches 9%, compared to 4% in the North.
- Chronic malnutrition mostly occurs in the Centre, where it reaches 26%, where 9% also suffer from stunting.
- The highest occurrence of acute stunting was in Erbil and Dahouk, where it reached 13%
- The levels of acute malnutrition are the same across the five quintile income groups, whereas general and chronic malnutrition is more prevalent among the poor.
- Levels of chronic and general malnutrition are found to be much more closely related to the caretaker's levels of education than to family income. Stunting was found to decrease to 17% for children whose caretakers have attained secondary or higher education, where general malnutrition also goes down to 8%. However, the situation is different with acute malnutrition, where no relation was found to the educational level of the children's caretakers."

BBC, 30 March 2005

"Increasing numbers of children in Iraq do not have enough food to eat and more than a quarter are chronically undernourished, a UN report says.

Malnutrition rates in children under five have almost doubled since the US-led invasion - to nearly 8% by the end of last year, it says.

The report was prepared for the annual meeting of the UN Human Rights Commission in Geneva. [...]

Jean Ziegler, a UN specialist on hunger who prepared the report, blamed the worsening situation in Iraq on the war led by coalition forces.

He was addressing a meeting of the 53-nation commission, the top UN rights watchdog, which is halfway through its annual six-week session.

When Saddam Hussein was overthrown, about 4% of Iraqi children under five were going hungry; now that figure has almost doubled to 8%, his report says.

[...]

That point is aimed clearly at the US, but Washington, which has sent a large delegation to the Human Rights Commission, declined to respond to the charges, says the BBC's Imogen Foulkes in Geneva."

IRIN, 30 November 2004

"With backing from international NGOs, a local organisation in the northeastern Iraqi governorate of Diyala is distributing specially prepared food packages to internally displaced children who show signs of malnutrition.

Based in the mainly Kurdish town of Khanaqin, al-Salam Organisation began handing out rations of fish, chicken, corned beef, honey and protein-rich biscuits this August after a survey of children aged between six months and six years found 800 with vitamin deficiencies and abnormally low body weight.

Of the total, 300 are from mixed Arab and Kurdish villages around Khanaqin. Heavily arabised by the former Iraqi regime in the 1970s, the area has seen a large number of Kurds returning over the past 12 months.

The other 500 children are living in and around Mugdadiyya, an Arab town 60 km further east that has the highest concentration of internally displaced people (IDPs) in Diyala governorate. Aid agencies say 3,200 Arab families evicted from Kurdish areas after the war are living there in extremely primitive conditions.

In normal circumstances, the countrywide monthly rations system should act as a barrier against child malnutrition. But local officials say that, in the chaos caused by large-scale movements of people in Diyala governorate, some families may have slipped through the net.

'Village children have the additional problem of suffering from diseases caused by dirty water and lack of hygiene, worms and dysentery for instance,' Dilshad Othman, director of health in Khanaqin district and organiser of the July survey in 35 surrounding villages, told IRIN. 'We were not surprised to find cases of mild anaemia to be common.'

Dr Othman's surveyors compared the weight and height of all village children between six months and six years to standards set by the United Nations Children's Fund (UNICEF). For those found to be below, special rations are distributed every 20 days."

WFP survey indicates high levels of food insecurity among Iraqi population (2006)

- Despite the fact that the PDS continues to exist, it is increasingly unable to provide adequate food for Iraq's poorest households
- The survey found that just over four million people (15.4 percent of the surveyed population) are food insecure
- The current also indicates that a further 8.3 million people (31.8 percent of the surveyed population) would be rendered food insecure if they were not provided with a PDS ration
- The study suggests that if the PDS is discontinued without a careful assessment of the needs of the population, an estimated 47 percent of the total population will face real difficulties in ensuring their food security

WFP, 11 May 2006

"In the early 1990s, and in response to the imposition of international sanctions, the Government of Iraq established the Public Distribution System (PDS) which ensured that every citizen received a monthly ration of detergent, infant formula, milk, pulses, rice, salt, soap, sugar, tea, vegetable oil, weaning cereal and wheat flour. In the push to ensure greater food security in Iraq, WFP and COSIT launched the country's first household survey in 2003 to assess both food security and vulnerability. That Baseline Food Security Assessment found that, despite the PDS, food insecurity persisted in Iraq for a significant segment of the population who faced serious difficulties accessing food. Chronic poverty, a lack of job opportunities and inadequate purchasing power were all contributing to Iraq's overall food insecurity.

The first survey concluded that approximately 11 percent (2.6 million people) of the Iraqi population were extremely poor and vulnerable to food insecurity and, were the PDS to be discontinued, an additional 3.6 million people would face a high probability of being food insecure.

Despite the fact that the PDS continues to exist, it is increasingly unable to provide adequate food for Iraq's poorest households. It is in this context that the current household survey must be viewed. The current study was intended to create an improved understanding of the problems facing Iraqis today, identify areas for intervention and to provide information to assist policymakers. The questionnaire for the study was made available in three languages (Arabic, Kurdish and English). Arabic was used to cover populations in the centre/south of Iraq and Kurdish was used in Sulaymaniyah. The survey covered 22,050 households across all 98 districts in Iraq in 16 governorates excepting those in Erbil and Dohuk. Statistical analysis was conducted using the Principal Component Analysis and a clustering technique in addition to the basic statistical methodologies (i.e. means, frequencies, correlations).

Seven leading indicators were analyzed, namely Stunting, Underweight, Wasting, Percentage Extremely Poor Population (spending less than US\$15 per month), PDS ration Dependency Rate, Coping Strategy Index and Income. These seven indicators were used along with the dietary diversity indicator to identify the food insecure and the levels of severity in food insecurity and poverty. Using the data collected, this study set out to answer the following questions:

- Who are the food insecure?
- Why are they food insecure?
- How many are food insecure?
- Where do the food insecure live?
- How can food aid make a difference?

Who are the food insecure?

In general, the food insecure in Iraq can be found in those families with low incomes living in rural areas (69 percent of the food insecure in Iraq) who have poor or borderline dietary diversity. The heads of such food insecure households in Iraq are either unemployed (26 percent) or parttime workers engaged in agriculture either as marginal farmers (25 percent), non-skilled labourers (15 percent) or agricultural wage earners (5 percent). Women constitute a low percentage (14 percent) of those employed within the 16 to 60 years old age group. Children are also major victims of food insecurity. The chronic malnutrition rate of children in food insecure households was estimated as 33 percent. Chronic malnutrition affects the youngest children aged 12 months to 23 months most severely. Acute malnutrition in Iraq is also alarming with 9 percent of Iraqi children being acutely malnourished. The highest rate (13 percent) of wasting was found in children aged 6 to <12 months old followed by 12 percent for those aged 12 months to 23 months.

Why are they food insecure?

Decades of conflict and economic sanctions have had serious effects on Iraqis. Their consequences have been rising unemployment, illiteracy and, for some families, the loss of wageearners. Iraq's food insecurity is not simply due to a lack of production of sufficient food at the national level, but also a failure of livelihoods to guarantee access to sufficient food at the household level. The results of this study suggest that food insecurity in Iraq is a result of many chronic factors and their complicated interactions, amongst which are the following:

Weak infrastructure: as a result of conflict, which has destroyed much of Iraq's infrastructure in many sectors. Water and sanitation in particular continue to undermine the community's ability to recover. An estimated 22 percent in extremely poor districts are dependant on water tankers and vehicles as a main source of drinking water compared to 4 percent in the better-off districts. In addition 18 percent depend on streams, rivers and lakes for their water supplies in the poorer areas compared to 8 percent in the better-off districts.

Unemployment: is a major problem in Iraq. Human capital and skills of the poor are very low and there are serious problems for the poor to enter into the current labour market where prevailing security conditions do not necessarily make it an attractive proposition. Job creation is key to reducing vulnerability to food insecurity in Iraq. Private and public sector job creation activities could serve the dual purpose of improving infrastructure and transferring cash to Iraq's poorest households.

Education: The educational levels of a population have an impact on accessibility to food. The more educated generally have greater ability to cope with a variety of difficult situations, and are likely to have a higher probability of finding employment.

It is clear that the **Public Distribution System (PDS)** is still a major indicator in stabilizing food security in Iraq where 15 percent of the total population are living in extreme poverty and

spending less than US\$0.50 per day. The value of the food commodities in the PDS ration when the data was collected in July 2005 equalled US\$15, a threefold increase on the market price that existed during the previous survey in 2003. For the poor and food insecure population, the PDS ration represents by far the single most important food source in the diet. Social protection mechanisms targeting these groups should be carefully considered. Monitoring of market prices also enhances the policymaker's capacity to take timely, remedial actions that would reduce the potential risks of price-related shocks.

How many are food insecure?

The survey found that **just over four million people (15.4 percent of the surveyed population) are food insecure** and in dire need of different types of humanitarian assistance including food despite the PDS rations they are receiving. This is an increase from the estimated 11 percent which were found to be 'extremely poor' in WFP's 2003 Baseline Survey.

The current survey also indicates that a further **8.3 million people (31.8 percent of the surveyed population) would be rendered food insecure if they were not provided with a PDS ration**. Thus, if the PDS is discontinued without a careful assessment of the needs of the population, an estimated 47 percent of the total population will face real difficulties in ensuring their food security."

See the full report, "[Food Security and Vulnerability Analysis](#)"

See also "[Baseline Food Security Analysis in Iraq](#)", WFP, September 2004

Security measures affect distribution of food by slowing down delivery to Iraqis, see for example, "[Food supplies affected by security checks at Syrian border](#)" (IRIN, 7 May 2005)

For specific information on the needs related to the Marsh people, see, "[UN Office of the Humanitarian Coordinator for Iraq \(UN OHCI\), 30 June 2003, United Nations Inter-Agency Assessment of Vulnerable Groups Part I: Marsh Arabs](#)"

Health

Lack of access to basic services raises health risks of displaced populations (2007)

- Among the current problems are lack of health personnel and medicines, non-functioning medical equipment and destroyed hospitals and health centers
- Health services are also heavily affected by infrastructure problems, including infrequent electricity supply, clean water, and communications
- 10 per cent of displaced people assessed by IOM have no health care services in their area of displacement (a main reason was distance to health care centres)
- 37 per cent of displaced people assessed did not have access to needed medicines
- Lack of medication and access to health centres has contributed to disease and sickness among IDP communities
- Some 55 per cent of displaced people had not been involved in vaccination campaigns

IOM, 2 February 2007

"Increased instability and violence is taking a toll on the health sector, possibly more than any other sector in Iraq. In addition to health facilities occasionally suffering collateral damage during military operations or armed conflict, many doctors and other health professionals have fled the

country due to threats to their lives, they no longer can travel to work, or they have found work in other professions. Medical equipment and medications are also dwindling. Fewer Iraqis are able to obtain the health care they once received.

Ten percent of the displaced assessed reported that there were no health care services in their area of displacement or if they are available, they could not access them. Of those with no access, 4% blamed inaccessibility on financial constraints, 5% reported that facilities were too distant, less than 1% reported a lack of female staff and less than 1% refusal of service as reasons for not being able to get adequate health care services. In addition, 37% reported that they did not have access to most of the medications they needed.

IDPs were also asked if they had been visited by a health care worker in the last 45 days (from the date of the assessment). The majority (70%) had not, Ninewa having the highest percentage with 96% who had not been visited. Of those 30% who had been visited in 2006, 25% received vaccinations, 4% received medical examinations, less than 1% received consultations or educational information, and 3% received medications.

[T]he lack of proper sanitation facilities and clean water, lack of proper nutrition, and inadequate living arrangements often found in IDP communities can contribute to disease and sickness. Of those families assessed, 13% had members who had suffered from infectious diseases or epidemics in the last 45 days (from the date of the interview).

In addition, a high number of the displaced, 55% total, had not been involved in vaccination campaigns, which could further prevent disease and epidemics. The highest percentage of these was found in Ninewa (99%) and Kerbala (81%). Of those who had been involved in a vaccination campaign, 3% of families were vaccinated within the last week (from the date of the interview), 13% received vaccinations within the last month, 21% received them one to three months prior, 8% received them four to six months prior, and less than 1% received them seven or more months prior to the interview. Qadissiya and Missan had the highest percentages of displaced who had been involved in a vaccination campaign (86% and 77%, respectively)."

IMC, January 2007

"While the collection of certain types of data from displaced populations is neither possible nor practical in the current environment, the Iraqi Ministry of Health, with the assistance of outside organizations such as UNICEF and WHO, has compiled some figures that allow a big-picture look at general health indicators. For example, the overall crude death rate in 2002 was 8 per 1,000, and the infant mortality rate was 108 per 1,000. Now, out of 1,000 children, an estimated 131 did not reach the age of 5, and the maternal mortality rate was 294 per 100,000 live births¹. At the same time, the most recent data show that malnutrition in Iraq is around 26% for stunting, 16% underweight, and 9% for wasting; compared to 28% stunting, 12% underweight and 4.4% wasting in 2003. The numbers indicate that acute malnutrition is growing at an alarming rate."

UNHCR, October 2005, p. 105

"Refugees, returnees and IDPs have the same level of access to health services as the general population does. As access to safe drinking water is a major problem for IDPs and returnees living in public buildings and camps, gastro-intestinal disorders are highly prevalent among these populations, particularly during the summer. Contaminated drinking water also increases the risk of diseases such as typhoid fever and cholera. UNHCR was informed by the local authorities in Missan that the most recent tuberculosis outbreak affected a particularly high number of returnees and IDPs. Accordingly, UNHCR temporarily suspended the repatriation of Iraqis from Iran to the Governorate until the health situation stabilized. [...] In the winter, IDPs' and returnees' health is particularly at risk due to poor housing conditions and the high cost of kerosene for heating. IDPs living in settlements or camps are often far away from health centres. For example, in the area of Huwair in the Governorate of Basrah more than 2,000 IDP families

must walk more than 40 minutes to reach the nearest health facility, which is often underequipped. [...] National vaccination campaigns tend to reach out to displaced populations. Even though refugees are entitled to equal access to public health services, UNHCR has learned that Ahwazi refugees face difficulties in receiving subsidized medicine and secondary health care from government-supported clinics. Furthermore, most Ahwazi children are suffering from malnutrition."

IRIN, 4 January 2005

"The three cities of Ramadi, Fallujah and Samarra, west of Baghdad, in the 'Sunni triangle' where US troops are fighting insurgents, are in desperate need of medical supplies and other aid, hospital staff said on 18 October. The Ministry of Health (MoH) and NGOs around Baghdad add that the situation is critical as they are having difficulties in accessing the area and are prevented from delivering aid due to insecurity. Medical officials in the cities have warned that the delay in the arrival of aid is affecting life-saving treatment. They are calling on government officials to take urgent action in a critical situation."

UNDP, 12 May 2005

"In the 1980s, Iraq was widely considered to have one of the region's best health care systems, with advanced, technological specialist care, and an extensive net of primary health care. However, after years of war and sanctions, this situation has changed completely.

Among the current major problems are lack of health personnel, lack of medicines, non-functioning medical equipment and destroyed hospitals and health centers. The health services are also heavily affected by infrastructure problems, including degraded or disrupted electricity supply, sanitation, and communications.

Chronic Illness

Chronic illness refers to physical or psychological illnesses of prolonged nature, or any afflictions due to an injury, a handicap, or age.

- 8% of the respondents said that they suffer from chronic illness
- Of the male respondents, 15% said that the cause was of war versus 7% of female respondents
- In the 2003 war, the number of ill children under 9 years of age exceeded the number of the ill people in the age group 20-29. This indicates that civilians may have suffered more in the war than the military.
- 12% of respondents in the South who had chronic disease said that war was the cause of their illness, compared with 11% in Baghdad, 10% in the North, and 7% in the Centre.

Acute Illness

- 4% of respondents reported that they had at least one case of illness or acute illness one week prior to the survey
- 59% of the reported cases hindered normal activities for at least three days.
- The number of cases of acute illness in urban areas reached 5%, whereas it was 3% in the rural areas.
- The number of acute illness cases was 7% in the North, 6% in Baghdad, 4% in the South, and 3% in the Centre.
- 83% of people who had acute illness sought external assistance of some kind.
- 91% of people suffering from critical acute illness, which limited their activity for three days or more, sought medical assistance. The number went down to 69% for those who suffered less critical illness.
- 50% of the ill people consulted specialized doctors, 45% consulted general practitioners, 3% consulted pharmacists, and less than 1% asked the help of nurses, religious helpers, traditional healers, neighbours, and others.

- 71% of the ill not seeking help preferred to treat the illness by themselves, while 18% said they could not afford the cost of treatment; 4% did not have nearby medical services.
 - 35% of the ill people in the rural areas who did not seek assistance provided that they could not afford it. 16% reported that there were no adequate services in the area.
 - 15% of ill people in the urban areas reported that they could not afford medical assistance. 2% said that the services were not available or they could not access the hospital
- The highest record of people not able to meet treatment costs was reported in the South (27%). The highest number of cases where external help was not sought was in the North (11%).

Proximity to Medical Services

An important aspect of health services is whether one can reach them in time.

- 95% of Iraqi people live within 60 minutes to the nearest hospital. 89% need less than 30 minutes to reach the hospital.
 - 14% of people in the rural areas need more than one hour to reach the nearest hospital. 36% need 30 minutes to reach the nearest medical centre.
- 32% of the people in the Muthana Governorate have to travel more than 30 minutes to see a doctor, whereas 10% have to travel more than one hour for the same purpose."

IRIN, 15 February 2005

"One of the most affected areas after the US-led war in Iraq to topple Saddam Hussein was the health system, according to government officials.

Doctors throughout hospitals in the capital complained of a lack in electricity and clean water. They also added that many foreign companies which started working in hospitals had pulled out and new equipment promised had yet to reach them.

[...]

A shortage of medicine is still the main problem throughout the country. Doctors and pharmacists claim that simple medication such as pain killers and antibiotics are unavailable and sometimes they run out of needles and syringes.

[...]

The International Committee of Red Cross (ICRC) in a press statement in January also complained of a shortage of medicines in all Iraqi hospitals and problems caused by the lack of water and electricity."

Psychosocial problems among displaced communities (2007)

- 70 per cent of displaced mothers consulted by IMC reported that their children suffered from psychosocial distress

IMC, January 2007

"In focus groups conducted by IMC in various IDP communities, nearly 70 percent of the mothers reported that their children suffer intense psychological distress when they hear sounds of helicopters, gunfire, or explosions. About 60 percent of them report that their children suffer pervasive feelings of sadness, cry often, and seem to cling to their parents a great deal more than they did before. About 17 percent of the mothers reported their children also showed signs of pervasive anxiety and fear. An equal number of mothers said their children seemed constantly tired and lacked energy. Over a third experienced repeated sleep disturbances and nightmares. About 25 percent of the mothers observe that their children were falling ill frequently, particularly with respiratory and skin infections. While this might be a result of poor living conditions, frequent illness could also be stress-related. Several mothers also reported that their children are irritable

and easily angry; many appear unable to concentrate (.day-dreaming.) or to be interested in daily activities, even play.

[...]

Turkmen IDP children in Karbala said that their major problem is inability to speak Arabic. Such inability to communicate not only leads to anger and frustration, but also creates learning problems at school and integration into local communities."

Water and sanitation

Displaced communities in face difficulties to access clean water - especially in Anbar, Baghdad and parts of south Iraq (2007)

- Anbar province and Baghdad are among the most affected areas for water supply, according to recent reports released by local and international NGOs
- Access to water for displaced communities is also a problem in south Iraq
- The situation is critical in the governorates of Basra, Dhi Qar, Qadisiya, Wasit, and Babil that are nearby the southern parts of the Tigris and Euphrates, where a large percentage of the population rely on water from the rivers and streams
- Monitoring by IOM indicates that the greatest numbers of IDPs who did not have regular access water live in Babylon (61%) and Muthanna (54%)
- Displaced people rely on a number of water sources, including rivers and lakes and public wells

IOM, 2 February 2007

"A significant problem the displaced faced in 2006 was access to clean water. Fourteen percent of the displaced assessed did not have regular access to water. The greatest percentages of IDPs who did not have regular access water were found in Babylon (61%) and Muthanna (54%). Almost all families in Anbar and Qadisiya reported regular access.

Those families who could access water sometimes had to travel great distances to obtain it, or relied on water from streams or lakes, which increased the spread of disease and infection. The displaced reported water access through various sources: municipal underground pipes (90%); water tanks or trucks (40%); rivers, streams, or lakes (16%); public wells (13%); and/or open or broken pipes (8%). Almost 10% of families had to travel over 500 meters to obtain their water.

IDPs fared better with their access to toilets; only 2% reported that they did not have access to toilets. However, considering that this represents over 800 families, this is a concern, especially in preventing disease."

IRIN, 18 February 2007

"According to the Ministry of Water Resources, only 32 percent of the Iraqi population has access to clean drinking water, and only 19 percent has access to a good sewage system.

Vulnerable groups, such as internally displaced people (IDPs), have had no choice but to drink from rivers.

Anbar province, where Fallujah is located, and Baghdad are the most affected areas for water supply, according to recent reports released by local and international NGOs."

See IRIN, "[Water shortages leads people to drink from rivers](#)", 18 February 2007

UNHCR, October 2005, p.95

"Returnees and IDPs living in camps/settlements, public buildings or tents face major problems to obtain adequate amounts of drinking water. In addition, large numbers of newly arriving returnees and IDPs put an additional strain on already weak water networks. In the Governorate of Erbil, 43 percent of the IDP families have to share one tap between five families and 25 percent share two taps between 2-4 families, often for short duration due to unstable supply. [...] Public buildings and camps/settlements often have no sanitation facilities. For example, among the 1,519 IDP families (8,267 persons) living in public buildings in Erbil, 56 percent have no latrines, 61 percent have no bathrooms, 31 percent have bad or very bad latrines and 28 percent have bad or very bad bathrooms.[...]"

UNDP, 12 May 2005

"The intensive use of the infrastructure in Iraq combined with three wars, sanctions, and improper policies of the former regime, contributed to the deterioration of the infrastructure, services, and maintenance.

Infrastructure and services provided to the families were administered by the government and funded by the general budget, which led to the provision of electrical, water, and sanitation services to most of the families. However, the bigger challenge was to maintain the stability of the services, as opposed to mere connection.

Despite the violence in the country and the deliberate destruction of the infrastructure, there are noticeable changes in the level of these services, as the Government of Iraq, UN and other International Organizations, in addition to the Coalition Forces in Iraq are putting effort into improving the infrastructure in the country.

Usage of Electricity in Iraq

Most families in Iraq get electricity from the national grid in both urban and rural areas. However, there is an exception to this norm in the rural areas in the Northern Region:

- 98% of families in the urban areas and 93% of those in rural areas are linked to electricity networks.
- 11% of families in the North use private generators.

[...]

Principle Problems in Electricity Supply

Stability of electrical supply is a major challenge in Iraq today. Families in the country have suffered for a long time from the low quality and instability of electricity supply. This is clearly evident in the urban areas, where the supply was more stable. The instability has led to the use of alternate sources.

- 3.2 million families suffer from the instability of electricity supply
- 29% of families rely on alternate sources of electricity (private generators)

There are wide differences between the urban and rural areas in the use of alternate power sources, which is attributed to the higher incidence of poverty in the rural areas. This is evident from the very low number of people in the poorest two governorates of the Southern Region, Muthana and Qadisiya, where families have no alternate sources of electricity despite the instable power supply in these governorates.

[...]

Sources of Potable Water

The results of the Iraq Living Conditions Survey 2004 have shown that:

- 78% of families are connected to the water network, 88% in the urban areas and 43% in the rural areas.
- 39% of families in Iraq suffer from instability of supply of potable water

Supply of Safe Drinking Water

- 54% of families in Iraq have access to drinking water
- 29% of families get instable drinking water
- 17% of families have stable access to potable water

Household Sanitation

Private toilets (within dwelling unit) are the most common. Public toilets (shared by three or more households), outdoor areas, and other areas, are also customary in certain parts of the country.

- 72% of urban families and 70% of rural families use private toilets.
- 28% of urban families and 20% of rural families use public toilets.
- 11% of families in rural areas use the outdoors and other areas as toilet facilities. This rises to 15% in the Southern governorates only.
- 45% of rural families in the governorate of Muthana, 36% of those in Qadisiya, and 23% on Wasit do not have toilets in their dwelling units.

Safety of Drinking Water and Residence

There are wide differences in the availability of safe drinking water between the urban and rural areas in Iraq:

- 60% of families in urban areas and 33% of those in rural areas receive stable safe water.
- 80% of families in rural areas use unsafe water

The situation is alarming in the southern governorates of Basra, Dhi Qar, Qadisiya, Wasit, and Babil that are nearby the southern parts of the Tigris and Euphrates, where a large percentage of the population rely on water from the rivers and streams.

Alarming Problems in the Old and Destructed Sanitation Networks

Many problems have been reported about the old and war-destructed sewage network from which sewage seeps to the ground and contaminates drinking water systems.

- 37% of households in Iraq are connected to sewage networks, 47% in the urban areas and 3% in the rural areas.
- 79% of families in Baghdad compared with 3% in Diyala are connected to the sewage network.
- 40% of families in the urban areas and 30% of those in the rural areas live in neighbourhoods where sewage could be seen in the streets.
- 51% of families in the urban areas in the south live in neighbourhoods where sewage could be seen in the streets."

Shelter

Shelter is reported as the priority need for displaced people across the country (2007)

- In surveying among displaced people by IOM, shelter was listed as a priority need
- A number of factors have contributed to lack of shelter among IDPs, including lack of income and limited homes or support networks

- A majority of displaced people reported that they rented homes (57 per cent) but most saw this as a temporary solution
- Twenty two per cent lived with families and friends but reported overcrowding and a strain on host families
- Less than one per cent lived in tents
- Seven per cent lived in temporary settlements
- Some displaced people reported facing pressure to leave from relatives, neighbors, militants, and court-ordered eviction

IOM, 2 February 2007

"Shelter was overwhelmingly listed as the priority need of people displaced in 2006. Lack of income, increased competition for limited homes or apartments, lack of families or friends who could provide shelter, overcrowded conditions in relatives' or friends' homes in places of displacement, and inadequate shelter all contributed to this need.

Families who could move in with family or friends did so, but the majority (57%) rented a place to stay. Many families thought their displacement would be temporary or that they would be able to find employment in their current location. As their displacement became more protracted, renting became increasingly difficult. In addition, in many areas the swell in demand for rental property increased rental prices, so some families who could originally afford to rent were forced to find other shelter. Some even had to move into abandoned buildings or build makeshift shelter on unused land.

Twenty-two percent of those interviewed said that they lived with friends and family. However, this led to overcrowding and put added strain on the host family. Almost 5% of IDPs living with family said that they received pressure from their hosts to find another means of shelter.

Less than 1% was reported to live in tents near the house of a host family or relative. This living arrangement is unsustainable, especially in winter months. Iraqis who could not afford to rent or did not have family or friends with whom they could live had to find other means of shelter, often in public buildings. Ten percent of IDPs in Iraq reported that they lived in public buildings. These public buildings, often unoccupied or abandoned, frequently lack services such as electricity, running water, sanitation facilities, and proper insulation. In addition, these buildings can be reclaimed by the government or private entities, rendering the IDPs homeless once again.

Seven percent lived in collective settlements or towns. These settlements are marked by provisional housing set up by IDPs. The housing is makeshift, sometimes made of mud bricks or local material. Collective settlements also frequently lack electricity, running water, sanitation facilities, and proper insulation.

Military camps that once belonged to the Ba'ath party were abandoned after its overthrow in 2006, so the displaced sometimes move into these empty facilities. There is concern that these areas will be invaded by militias or insurgents, who would then use them as recruiting grounds. However, no reports have confirmed this yet. Less than 1% of those interviewed moved into former military camps.

Three percent reported other living arrangements.

In addition to pressure to leave from relatives, 1% faces pressure to leave from neighbors, 1% face pressure to leave from militants, 2% have received a court-ordered eviction, and 1% faces "other threats". This pressure to leave or threat of eviction could cause secondary displacement, further exacerbating the lack of adequate shelter."

Camps and informal settlements

Many displaced people shelter in empty public buildings and other informal settlements (2006)

- Other IDPs are hosted with relatives and extended family
- Public buildings are often overcrowded and lack sanitation services and drinkable water
- Lack of housing is a problem in all governorates: more than 1 million housing units are needed in addition to occupied and destroyed housing
- Local authorities in some parts of the country have allocated families land or provided reconstruction grants however assistance has stopped due to financial limitations
- In January 2004, it was estimated around 400,000 IDPs lived in collective towns and 300,000 displaced lived in homes
- Over 80,000 IDP and returnee families live in camps and public buildings according to the MoDM
- In North Iraq, 20 per cent of the population lacks adequate housing

UNAMI, February 2006, p.1 (Anbar province)

"NGO monitors reported that at least 3,590 families remained displaced in 15 different locations with many being temporarily sheltered in public buildings or tented camps and some were mixed with host communities."

UNHCR, October 2005, p.97-100

"IDP and returnee monitoring has revealed that shelter is one of the most pressing concerns for IDPs and returnees. Large numbers of Iraqis cannot return to their places of origin as their villages were either destroyed by the former regime, either as part of the *De-villagization* and *Anfal* campaigns in Northern Iraq [...] or the drainage of the Marshes in Southern Iraq. In addition, Iraqis' financial resources are often limited, impeding them from reconstructing or rehabilitating their houses or paying rents. A lack of shelter is one of the major reasons for returnees and IDPs not being able to return to their places of origin and instead returning into a situation of internal displacement. Many are hosted with relatives, in public buildings or even in tents. Public buildings housing returnees and IDPs are usually overcrowded and lack hygienic facilities and potable water. Their residents are at risk of being evicted by the authorities that wish to use such buildings for their original purposes.

The following figures from IOM/UNOPS IDP Monitoring provide an overview of the extent of the shelter problem faced by IDPs (note: housing is a problem prevalent in all governorates; the data below does not cover all governorates but should illustrate the extent of the problem):

- In the *Governorate of Dohuk*, 3,120 IDP families are living in public buildings that are substandard and lack adequate water and sanitation facilities. Almost two thirds of the buildings are in either bad or very bad condition. [...] According to the local authorities, 5,018 IDP families were living in 374 locations such as health centres, kindergartens and schools, military buildings, factories and police stations by the end of May. This significant increase in the number of IDPs living in public buildings (in July 2004, the local authorities accounted for 1,728 families) is linked, *inter alia*, to the return of refugees from Iran, many of whom cannot return to their homes near the Iraq-Turkish border due to security reasons, and the numbers of Iraqis who have relocated to Northern Iraq, seeking refuge from persecution and general violence in other parts of the country. The local authorities have been reluctant to accept these persons given the already dire housing

situation in the North. In addition, the increase of rental prices for apartments has forced impoverished IDPs to leave their apartments and begin residing in public buildings. [...]

- The local authorities in the *Governorate of Sulaymaniyah* have done an inventory of all public buildings currently being used by IDPs and other populations and introduced a programme to provide US \$2,000 to each family to vacate public buildings, provided that the authorities have the necessary financial resources.⁶⁶⁶ To date, a number of IDPs have made use of this programme, in particularly those originating from Kirkuk as they also benefit from land allocation. [...] However, for those not originating from Kirkuk, the amount is hardly enough to rent an apartment, given the increased rental prices,⁶⁶⁹ and accordingly there are still 1,388 IDP families (8,849 persons) living in public buildings in the Governorate. The majority of such buildings are in either bad or very bad conditions (80 percent), while the others are in fair or good condition (20 percent). [...] UNHCR was informed by the local authorities in the *Governorate of Erbil* that they are planning to implement a similar initiative to vacate public buildings in Erbil city, providing US \$3,200 per family in addition to a piece of land (200m²) outside the city, access to public services and shelter materials. It remains to be seen to what degree resources will be available for this initiative. If the programme succeeds, it might be expanded to other towns in the Governorate and the Governorate of Dohuk.⁶⁷¹

- In the *Governorate of Kirkuk*, 25 percent of the 21,800 IDP families are reported to be living in tented camps, 25 percent in public buildings, 25 percent in collective settlements and the remaining 25 percent mixed with host communities. [...]

- The vast majority of the 9,776 IDP families in the *Governorate of Ninewa* are living in tents and in old military barracks.⁶⁷³ • In the *Governorate of Diyala*, 15 percent of the secondary displaced Arabs live in public buildings and military barracks and more than 400 IDP returnee families live in tents. In addition, 238 refugee returnee families from Iran were found to be living in public buildings and IDP camps/settlements. [...]

- In the *Governorate of Salah Al-Din*, 62 percent of secondarily displaced Arabs live in public buildings, 73 percent of Marsh Arabs (who were displaced as a result of the drainage of the Marshes) live in camps/settlements (the remainder live in public buildings) and 94 percent of the Kurdish IDP returnees are mixed with host communities, (the remainder live in public buildings or in camps or settlements). [...]

- In the *Governorate of Baghdad*, there are, *inter alia*, 605 Roma families, who were displaced after the fall of the former regime due to their different social practices. 90 percent of them are living in public buildings. [...] • In the *Governorate of Wasit*, 66 percent of the 1,300 IDP families are accommodated in camp-like settlements on the outskirts of the main urban centres, 17 percent in public building and few mixed with host communities. [...]

- In the *Governorate of Thi-Qar*, 65 percent of the 5,000 IDP families reside in public buildings, with a few living in camp-like settlements and some living in mixed/host communities. [...]

- In the *Governorate of Qadisiya*, half of the 2,300 IDP families are being hosted by local communities, 35 percent are living in collective towns and 15 percent are living in camp-like settlements or public buildings. Assessments in collective towns have revealed dire housing conditions, usually with one family of up to ten members sharing a single room which is poorly insulated and has no water/electricity supply or sanitation facilities. Among the IDPs living with host families, several were found to live in rooms with unfinished or missing windows, doors or pavement insulation. [...]

- In the *Governorate of Basrah*, 98 percent of the more than 11,600 IDP families that were displaced as a result of the drainage of the Marshes and 92 percent of the 16,417 families that

were displaced by the Iraq-Iran War are living in camp-like settlements with little or no access to water and sanitation facilities. [...]

[...]

Most public buildings will almost certainly be repossessed by the Government in the future, and also remain at risk from mines and unexploded ordinance."

[...]

"Apart from damaged and illegally occupied property, the UN Development Group/World Bank estimate that there are currently 1-1.5 million housing units missing, affecting up to 9 million people, thereby representing a housing 'crisis'."

See also "[Displaced Iraqis find unusual shelter](#)", Al Jazeera, 3 May 2005 and "Housing Problems increase as conflict hits hearth and home", IRIN; 4 Aug 2005 in Sources below

UNAMI, July 2005, p.2 [Tal Afar]

"Initial reports indicated that several hundred IDP families were displaced from the most conflict affected areas of the city and were living in substandard conditions in schools, mosques or other public facilities in surrounding villages."

UN OCHA, 5 January 2004

"With an estimated 900,000 internally displaced people (IDPs) in Iraq, humanitarian organisations are putting the emphasis on providing proper shelter in the coming year for homeless people uprooted by the troubles that have plagued the country not only over the past year but the past few decades.

Of this figure the majority, some 400,000 live in what are called 'collective towns' or purpose built settlements. Another 300,000 live in homes and the rest are in government or other types of accommodation.

Prior to the second Gulf War a UN Habitat survey found that 40 percent of the displaced had no access to health care and that only some 57,000 people were living in adequate housing."

MoDM, September 2004

"Over 80,000 IDP and returnee families currently live in camps or public buildings"

UNHCR, 19 August 2004

"Housing is one of the biggest challenges facing all Iraqi people, and especially those who have just returned to the country or have been internally displaced.

In the north of Iraq alone, where over 20 percent of the people are reported to be lacking adequate housing, "

Many IDPs living in public buildings and camps/settlements do not have electricity (2005)

UNHCR, October 2005, p. 113

"Electricity is a major problem for IDPs and returnees living in public buildings and camps/settlements. In the Governorate of Ninewa, electricity has been identified as a major problem for IDPs residing in Sinjar, Tal Afar and Mosul. The whole community of Sinjar lives in a camp where electricity is completely unavailable.[...] Increases in kerosene costs have affected poor families the most, as it is they who cannot afford required amounts of kerosene for heating."

Around 1 per cent of displaced people live in formal camps (2007)

- Due to a lack of services, remote locations, and the cultural sensitivities to these living arrangements, moving to camps is a last resort for internally displaced persons
- In some areas, IDPs are reported to be using tent camps as a transitory shelter

IOM, March 2007

"In many governorates, the Ministry of Displacement and Migration (MoDM), through the Iraqi Red Crescent Society (IRCS) or local authorities, has set up camps for the displaced families who do not have an established place to stay. However, due to a lack of services, remote locations, and the cultural sensitivities to these living arrangements, moving to camps is a last resort for internally displaced persons (IDPs), and less than 1% of the recently-displaced population is currently living in camps.

Baghdad: Originally, MoDM planned on establishing three camps in Baghdad in the following areas: Taji, Sadr City and Ubaidi. However, a camp in Taji proved to be unfeasible, owing to the insecure situation and the difficulty in accessing the area. The plan was thus changed and it was decided that two camps would be managed by MoDM. One of these camps was set up in the Kadhimiya/ Shula sector, in an area called Chikook. Fortysix tents were constructed for families, most of whom had been displaced from Abu Ghraib. The camp was run by MoDM in cooperation with a local religious party. Security officers were assigned to provide protection. Assistance in the form of food, water tanks, latrines and other basic services like potable water were provided by the Baghdad provincial council and the local council of Shula.

Chikook camp changed dramatically, when a religious entity called Al-Tadamoon replaced all tents with small cement block houses for the 45 families, in coordination with MoDM. Each house contains a kitchen, one room and a bathroom. Only three tents remain as these families wait the final construction of their houses. The second camp, established by MoDM in 7 Nissan district/ Ubaidi, was built in the beginning of April 2006 in an open courtyard near Mohammad Baqir Mosque. No IDPs settled there due to a lack of resources, and it was closed. In addition to the above two camps managed by MoDM, the IRCS set up eight camps in Baghdad. Most of these camps were set up temporarily and were soon closed once the IDPs found more suitable living arrangements.

Basrah: There was one camp established in Basrah, built by the MoDM Basrah office and located in the Zober district. At the outset, it was composed of 30 tents, within which 30 families resided. Most of the families were displaced from the Saladin/ Taji District and were Shia Muslims. Shortly afterwards, all of the displaced families moved into a public building close to the camp. These families were evicted from the public building and now live in an abandoned school. The camp has been closed.

Kerbala: A camp was established by IRCS in March 2006, and consists of 35 tents occupied by six families who received some assistance from IRCS, and an Islamic political party supplied them with shortterm water. The camp was located in an open area without any protection, and the inhabitants needed to use generators due to a lack of available electricity, and there were no schools nearby. The camp eventually was closed.

Missan: Currently, local authorities, in coordination with the IRCS, are setting up a new camp in southern Missan. The camp will contain 100 tents and covers about 5,000 sq. meters. The camp is supplied by a generator and contains water tanks; water will be supplied through trucking by the municipality. Protection will be controlled by the Missan police force. The IRCS set up the first 40 tents and the camp is ready to receive IDPs. IDPs who have been evicted from residing in schools will be the first priority for this camp.

In October 2006, MoDM allocated funding to the ministers' council to establish a new camp five kilometers south of Amarah city. However, this camp was closed due to lack of services. On April 4, 2006, a camp was formed in an empty lot of an old plastic factory in Amarah, the capital of Missan, and was administered by the MoDM office in cooperation with the Iraqi Red Crescent Society. There was no electricity in the camp, and only two small water tanks were available. There were only eight tents (180 pounds each), with others left uninstalled. The few families that came to this camp left soon after.

Najaf: The IRCS recently established a camp about 20 km from Najaf city to shelter the families who were evicted from make-shift houses that were on the Al-Hameya military facilities, which were demolished due to the decision of local authorities to remove all people squatting on public properties. MoDM is supplying tents donated by UNHCR. There are fiberglass water tanks in the camp filled by daily trucking. Currently there are 39 IDP families. There are no health care services and the nearest school is two kilometers away. It is unclear who will be providing services and managing this camp.

A year ago the provincial council in Najaf established a camp for IDPs and vulnerable groups near Al-Kefel sub-district, located about 25 km north of Najaf city. However, due to its remoteness and a lack of services (electricity, water, schools and health services) and security, IDPs were unable to settle there. Thus, this camp did not receive any families and after a month was closed.

Ninewa: The MoDM branch office in Ninewa, in cooperation with IRCS, set up a camp in Babh Al-Shamis near Mosul city. The camp has 100 tents, but who will manage the camp has not been established for over four months. This will most likely be the MoDM Ninewa branch office, but the MoDM headquarters has not officially handed management over to the branch office. No IDPs are currently residing in this camp.

Qadissiya: This camp, located in the Sanai sub-district 10 km north of Diwariyah city, was formed by the local authorities (provincial council), which chose the location according to security considerations. There are currently 24 families. Families leave the camp when they find more appropriate shelter. The local authorities are responsible for management of the camp, which is highly secured by police. Orders have been issued to prevent anyone from entering the camp without authorization. If a family wishes to leave the camp, it must submit an official request to the camp management office at the camp.

Electricity is available in the camp through a large generator that belongs to an official directorate. There is sufficient water available, as well as latrines for both men and women. Currently there is a medical team that visits the camp daily to provide simple medical assistance, but for any complicated issues, IDPs must go to the nearest provincial health clinic in the Sania sub-district.

Thi-Qar: Originally two camps were established in Thi-Qar, a camp in Nassiriya and one in Al-Fajer subdistrict but both were closed. The camp in Nassiriya was established by IRCS through the MoDM. It consisted of 35 tents. There was no electricity available in the camp, and only a few families possessed a small generator. However, due to a lack of services, the camp was closed. A second camp was established by the Iranian Red Crescent Society in the Al-Fajer sub-district. In the beginning, 75 families came to the camp, but left shortly afterwards due to a lack of services, and the camp was closed.

A third camp is being established by IRCS outside of Nasiriyah on the road to Baghdad to house up to 100 families. Each family will be provided with a tent, simple kitchen located outside of the tent, and a latrine. The camp is 50% complete and will be ready to hand over to MoDM in two months.

Wassit: The MoDM Wassit branch office built a camp in Kut city in March 2006. The camp was set up in the recreation ground south of the city where a source of water and sanitation were partially available. More than 30 Shia families came to the camp, but lack of services caused some families to leave the camp and look for other shelter. Seventeen families are currently residing in the camp. However, there has been a deterioration of services in the camp, and these IDPs are in special need of kerosene heaters, winter cloths and blankets. Only MoDM employees are allowed to enter the camp, and local authorities prevent entry and exit from the camp between 8:00 pm and 6:00 am, for security purposes. MoDM, IRCS, and religious charities have provided food assistance."

UNAMI, 22 November 2006

"Most IDPs continue to seek shelter with their relatives and extended family, as well as in empty public buildings. At the beginning of the school year in September, IDPs were asked to leave the schools they had occupied in parts of Baghdad, Basra and Missan, and the authorities offered displacement camps as an alternative. One of the UN concerns has been to ensure that the camps are located in a secure area away from military and other targets and in proximity to services as well as education and health facilities. In at least some locations, IDPs are reported to be using tent camps as a transitory shelter."

For further details, [see IOM](#)

Forced evictions from public buildings cause grave concern (2005)

- Many IDPs in the north and the centre/south are in need of adequate shelter
- Some returnees are living with families, many others live in collective centres and public buildings
- Evictions of IDPs from public buildings without provision of alternative shelter is a pressing issue in the country
- Evictions of IDP families from public buildings continued to occur during 2005 across the country
- All over Iraq, displaced and vulnerable families with no place to live are illegally occupying former government buildings
- Evictions have been pronounced in Baghdad, Mosul and Kirkuk but are imminent in all urban areas (2004)
- New housing projects (promised by the US administration) and compensation (promised by the interim Iraqi government) were promised but neither have been implemented efficiently
- Under the former regime, rents were heavily subsidised by the government and many families cannot afford the current market prices
- In 2005, a demonstration against such evictions in Baghdad was reported by IRIN

UNAMI, August 2005, p.3

"Police evicted 20 families including 18 IDP families from a military building in Diyala Governorate before a suitable solution was found for alternative accommodation. The local Ministry of Displacement and Migration office was aware of this development and IOM was assessing the immediate needs of the evicted families. Evictions also affected IDP families temporarily residing in public buildings such schools across other areas of Iraq, including Tal Afar and western Anbar."

IRIN, 16 February 2005

"[K]urds too who have returned to Kirkuk are living in temporary accommodation while awaiting a solution from the government.

According to a government official from Kirkuk, nearly 16,000 Kurdish families have moved back to the city and are living in tents in a very distressing situation.

Nearly 1,558 Turkmen, 1,804 Arab and 16,714 Kurdish families have moved to Kirkuk and are living in old government buildings or schools, or are camped on the outskirts of the city, local authorities said."

IRIN, 7 March 2005

"Nearly 600 families camped in Diwania, 77 km south of the Iraqi capital, Baghdad, are living in poor conditions and in need of supplies, according to local aid agencies.

The internally displaced people (IDPs) were living in the oil-rich city of Kirkuk and say they were forced out by returning Kurds.

[...]

Many other families are living in abandoned schools and government buildings in the area. The places can be seen surrounded by rubbish and to get potable water they have to walk nearly 2 km."

UNAMI, 2 May 2004

"In northern Iraq, evictions of displaced persons, recent returnees and other vulnerable groups have also been reported, and people living in several public buildings in Mosul and Kirkuk have been threatened with eviction."

IOM, September 2004

"Evictions from public buildings without the provision of alternative shelter for IDPs and the vulnerable communities remains a major concern throughout the country. This has most recently become more pronounced in Baghdad."

UNHCR, 8 August 2004

"Evictions continue to be a primary protection issue for all groups residing in public buildings throughout the country. Reports have been received from every urban town in Iraq that evictions are imminent. While some evictions have been conducted, it has mostly been a case of threats rather than action. In response, Cluster 8 has developed a policy paper and guidelines for the humanitarian community. These have been provided to national authorities who are considering incorporating elements into a national response."

IRIN, 20 May 2004

"Protection concerns of displaced people in the north include the threat of eviction of those living in public buildings by the authorities reclaiming the public building or by individuals returning to their homes.."

"Substantial numbers of IDPs in both the north and the centre/south are in need of adequate shelter. In the Kirkuk area in the north, tens of thousands of returning Kurds are staying with host families, while thousands more have been living in public buildings, including squatting in a sports stadium. Kurdish IDPs in 'collective centres' also need improved shelter, as many of these are decaying. Moreover, newly displaced Arabs from Kirkuk, whether in the north or centre/south, require adequate shelter, as do tens of thousands of returning Shi'ites from Iran, many of whom have taken refuge in public buildings or former military barracks. At least 10,000 of the women and children who fled Fallujah are in camps outside Fallujah and in and around Baghdad."

UNAMI, 2 May 2004

"In northern Iraq, evictions of displaced persons, recent returnees and other vulnerable groups have also been reported, and people living in several public buildings in Mosul and Kirkuk have been threatened with eviction."

IRIN, 6 September 2004

"[A]rmed Iraqi police moved the families' furniture and other belongings out of government houses where they had been living illegally since US-led forces began fighting to topple Saddam Hussein in March 2003.

The government housing complex near new Interior Ministry offices used to be used to house visiting foreign delegations. 'We don't have any houses, so the government promised us they would find something for us after the fall of the former regime,' Khaedher Abbas Jassem, 42, told IRIN. 'The Ministry of Housing and Reconstruction said they would compensate all of us, but we have not received any money.'

It was the first time the police have cracked down on the large number of people who illegally occupy numerous government buildings around the country, including many former government buildings in Baghdad.

Interior Ministry officials declined to comment officially on the crackdown. But police at the scene said that, while they sympathised with the people's plight, the new government had to take control.

'This is a general campaign. We will make not only the people who live here leave, but those living illegally in any government building,' Khanem Bender Mohammed, a police officer helping to move furniture out of a house, told IRIN.

[...]

Families with no place to live taking over former government buildings is a pressing issue all over Iraq, according to aid agency workers who declined to be named. Many of the families were forced to leave rented accommodation when landlords raised the rent drastically last year. Others are victims of Saddam Hussein's 'Arabisation' programme, in which he gave houses in northern Iraq to Arabs. After the regime fell last spring, original owners of the houses often came back to reclaim their houses. There are about a million internally displaced people (IDPs) in Iraq today with the majority, some 800,000, in the north of the country.

US administrators catalogued the displaced and pledged new housing costing millions of dollars, but so far no new housing projects have been finished. Other displaced people live in former army barracks around Iraq; some live along the Tigris River in former army officer houses and in damaged buildings in the capital.

In the meantime, police said they would help people they were throwing out of the houses in Jadriyah with up to 600,000 Iraq dinars, or about US \$400, in compensation. Families on the street said they heard they would receive less than \$200 and that they hadn't seen any money from the police.

[...]

Under the former regime, their rents were heavily subsidised by the government. It was unclear if UNHCR would be involved in helping find places for the newly displaced people. By Monday, most families had gone to stay with relatives in Baghdad." ()

Demonstration against forced evictions (2005)**IRIN, 22 March 2005**

"Over 300 people demonstrated on Tuesday at the gates of the heavily fortified Green Zone in the Iraqi capital Baghdad, calling on the government to allow them to stay in government buildings as they have no homes following the conflict in 2003.

Nearly 200 Iraqi families have been ordered to leave the buildings in a government complex, called the Freedom Complex district, by the end of this week. There are approximately 2,000 people and some families have up to 10 members.

The families had been renting houses during Saddam Hussein's regime but after the last war they were forced out by the owners as they were paying normal lower rents. Most of the residents earn less than US \$30 dollars a month and don't have enough to rent a house on the open market.

'I won't go out of my home, I don't have anywhere to go. It is the only place that I have to live and my children are in a school very close to it. They can kill me but I won't leave,' Afifa Abdul-Nebi, a mother of four and resident of the complex, told IRIN at the demonstration.

'Homes, homes, we want homes', was the slogan being chanted by the displaced people. Children could be seen carrying Iraqi flags and small pictures they had drawn of houses and colourful gardens.

Muhammad Shanei Jarallah, organiser of the demonstration, resident of the complex and director of the Iraq National Association for Human Rights, told IRIN that last year the Ministry of Reconstruction (MoR) invested a lot of money in the complex, building 100 new rooms, 50 new bathrooms and repairing the power, water and sewage system, as well as making a small health centre. He said the authorities had told them that they could consider the place as their home forever.

[...]

Salua Ibrahim, a senior official from MoR, told IRIN that these people were living in government buildings and even if they had repaired the complex they had to start to look for another place to live as they would need the building back.

'We gave them warning and asked them to leave some time ago and they accuse us of being careless, they don't have the right,' Ibrahim added.

The Iraqi Red Crescent Society (IRCS) said that the government had to address this problem and at least give them another choice of housing before they asked for the complex to be returned."

Survey among IDPs in public buildings and camps in three Northern governorates (2003)

- The survey indicates that 69 per cent of IDPs living in public buildings and camps in Dahuk, Erbil and Sulaymaniyah wish to return
- The very high percentage in Sulaymaniyah (89%) can be attributed to the fact that the majority of the IDPs living in the public buildings in Sulaymaniyah are from Kirkuk
- In Erbil, the high percentage of IDPs in public buildings is a mixture of IDPs from those areas previously under the control of the former regime such as Kirkuk and Makhmur and those IDP resulting from internal fighting in the region
- 66% of the whole IDP population, who intend to return to their place of origin, regard 'shelter' as a pre-condition for return

- Many IDPs in public buildings and transit camps have been displaced on more than one occasion in the last 10 years and many originated from villages close to the Turkish border in Dahuk and the Arabized villages in Kirkuk which were completely destroyed
- The survey found that property claims (land 3.4% & house 4.7%) account only for 8% of IDPs living in public buildings and transit camps
- Most of the IDP population living in public buildings and transit camps were vulnerable and destitute before displacement and therefore had never been the owners of extensive agricultural lands or houses

UNOPS, May 2003

"The survey among IDPs living in Public Buildings and Transit Camps in the Dahuk, Erbil and Sulaymaniyah governorates indicates a high level of intention to return to their places of origin (69%). The percentages intending to return vary when looking at each governorate separately but are still high throughout the north (58%-Dahuk; 68%-Erbil & 89%-Sulaymaniyah).

The very high percentage in Sulaymaniyah (89%) can be attributed to the fact that the majority of the IDPs living in the public buildings in Sulaymaniyah are from Kirkuk. The current situation in Iraq is encouraging the returning process of these IDPs. In Erbil, the high percentage of IDPs in public buildings is a mixture of IDPs from those areas previously under the control of the former regime such as Kirkuk and Makhmur and those IDP resulting from internal fighting in the region. While change circumstances, following the recent conflict, is encouraging people to return, there have not been major changes yet in the KDP-PUK peace process, which might lead to the returning process of those IDPs created by the internal Kurdish conflict.

It is important to notice that 12% of IDP would rather resettle in a place other than their present location or their place of origin, while 19% of the whole IDP population intend to remain in their current location. In Dahuk the latter represents 27% of the IDP population. This high percentage is a result of 4 factors:

- IDPs in this governorate belong to the 'PKK-Turkey' conflict. The security situation in those areas is still unstable;
- Life conditions (low level of economic activities) are very difficult in those border areas with Turkey and the villages have not yet been rehabilitated;
- The new geopolitical developments in Iraq do not affect in a positive way the returning process of this group;
- This group of IDPs has over the years most probably developed livelihood strategies, which ensure their ability to cope in their present location.

In Erbil, 19% of IDPs intend to remain at their present location. The main reasons behind this might be attributed to the economic prosperity of this region due to the 'oil for food program', employment, the provision of basic services and enjoyment of social life.

IDPs who intend to resettle in a different place than their place of origin or their present location represent 12% of the whole IDP population. The highest percentages in this respect are in Erbil (13%) and Dahuk (15%). In Erbil, over 1000 families originally from Kirkuk and Sulaymaniyah are on the UN-Habitat 'waiting' list. These families were supposed to be resettled in Daratu collective town by now.

Looking at the timetable expressed by the respondents, it seems that IDPs from Erbil (52%) and Sulaymaniyah (61%), are planning to return (at least to begin the process) in the coming 3 months. Such a high percentage refers to the recent changes in the political situation in the former regime's areas. This current environment also refers to the in and out movement of people (Arabs out of 'arabized' areas and Kurds in/back to those arabized places). The following factors support those arguments regarding the returning process in the coming 3 months: a) children will

be out of school; b) with the end of the harvest the optimal period for 'construction' in the region (a self-built house means: composed of mud bricks compacted with the leftover of harvest products) will start; c) anticipated external aid (governmental, and international organizations such as the OP, UN and others); d) improvement in security concerns; e) legal claims on properties (land and houses) will be solved by then.

In Dahuk only 10% of the IDP who wish to return are expecting to do so in the next 3 months while 20% have planned their return in the next 12 month period. 64% of IDPs surveyed did not provide a timetable for their return. The case in Dahuk is mostly related to there being no major developments in the places of origin and the still unsolved PKK/Turkey conflict.

66% of the whole IDP population, who intend to return to their place of origin, regard 'shelter' as a pre-condition to do so. However, when looking at each governorate the percentages are higher in Dahuk (74%) and Sulaymaniayah (80%). Recent history suggests that IDPs may expect that UN-Habitat or another organization (possibly OP) will provide housing or building materials for a self-built houses' program. It is also important to notice that the history of displacement of this specific sector of the IDP population (those in public buildings and transit camps) have been displaced on more than one occasion in the last 10 years. This can be also an important factor when understanding their 'pre-condition' for returning or resettlement. In addition, the complete destruction of those villages of origin close to the Turkish border in Dahuk and the Arabized villages in Kirkuk, allow us understand the concern on the part of these IDP about being assisted with the provision of shelters as a pre-condition to return.

Property claims (land 3.4% & house 4.7%) account only for 8% of IDPs living in public buildings and transit camps. Looking at the general IDP population living in public buildings and transit camps it seems that these IDPs were vulnerable and destitute before displacement and therefore had never been the owners of extensive agricultural lands or houses. On the contrary, many of these IDP had been living in simple shelters in villages, which had been destroyed when they were displaced. On the other hand, the IDPs who were displaced due to the PKK conflict do not have any property claims since nobody had occupied their houses or lands. Finally, the majority of the property claims for those IDP, resulting from the internal fighting category, has been solved by a joint KDP and PUK committee in 2002 within the ongoing peace process between the two parties."

ACCESS TO EDUCATION

General

Marked decline in quality and access to education (2007)

- A report by Save the Children suggests that 22 per cent of Iraqi children are not attending school
- A study by the Ministry of Education and UNICEF found that the majority of those who do not attend school are female
- The northern provinces have particularly high rates of destroyed school buildings (2004 UNICEF/MOE Survey)
- The southern provinces of Babil and Muthanna have the lowest availability of primary and secondary schools
- There are large regional differences in illiteracy: Illiteracy in urban areas is lower (21 percent) whereas it is 39 per cent among the rural population
- Illiteracy is highest in Duhouk and Al-Muthanna
- Gender differences in illiteracy are also present: 35 percent of women are illiterate compared to 17 percent of men
- In the youngest age group (aged 15-24), one in ten has never attended school (six percent of boys and 14 percent of girls)
- The availability of schools is higher in urban than in rural areas

IRIN, 14 March 2007

"According to a report released last year by NGO Save the Children, 818,000 primary school-aged children, representing 22 percent of Iraq's student population, were not attending school.

A joint study by the Iraqi Ministry of Education and the United Nations Children's Fund (UNICEF) found that of those who do not attend school, 74 percent are female. Aid agencies estimate that thousands of Iraqi parents do not send their daughters to school for cultural reasons and because of the general insecurity in the country.

[...]

They add that schools and universities are likely to continue emptying throughout 2007 if there is no let up to current levels of violence and the displacement it causes.

[...]

Last September, the Ministry of Education increased teachers' salaries by 20 to 50 percent in an attempt to entice teachers to stay in their jobs. More recently, the government hired 13,000 guards to protect schools and universities.

However, specialists say these measures have had little impact on the rate of teachers leaving their profession and children continue to be deprived of both an education and social support system."

UNDP, Tabulation Report Living Conditions Survey, 2005, p.80

"One of the Millennium Development Goals is to achieve universal primary education by 2015; attainment of this goal will be assessed using three indicators: literacy, enrolment in primary education, and children enrolled in school reaching grade five.

Two thirds of the adult Iraqi population, 65 percent, claims to read and write without difficulty, and an additional 10 percent can read and write everyday material with some difficulty. In the younger age groups (aged 15-24), literacy rates are only somewhat higher than for the population at large: 71 percent claim to read and write without difficulty. It is worth noting that the literacy level is somewhat lower among those aged 15-24 compared with the age group 25-34, a difference that is particularly marked for men.

There are large regional differences in illiteracy. Illiteracy among the urban population is lower, 21 percent, than among the rural population, 39 percent. Illiteracy is highest in Duhok and Al-Muthanna. Gender differences in illiteracy are also marked: 35 percent of women are illiterate compared to 17 percent of men. The gender gap is higher in rural than in urban areas, and is also higher in older than in younger age groups.

In comparison to other countries in the region, where Jordan and Syria have an adult literacy rate of 86 percent and 75 percent respectively, Iraq has a low literacy rate (Fafo 2004 forthcoming; UNDP 2003). Conversely, Yemen has low educational performance with an adult literacy rate of 53 percent.

Twenty-two percent of the Iraqi population has never attended school, and another 15 percent has less than six years of elementary education. The proportion without any formal schooling is largest in the oldest age groups. However, even in the youngest age group (aged 15-24), one in ten has never attended school (six percent of boys and 14 percent of girls).

The North has the lowest educational levels where 55 percent of the adult population never completed elementary school, and only six percent started or completed higher education. On the other hand, educational levels are highest in Baghdad where 25 percent of the population never completed elementary school, and 16 percent started or completed higher education.

Overall, 76 percent of children need less than 15 minutes to get to their elementary school. The availability of schools is higher in urban than in rural areas. The distance of secondary schools is similar to that of elementary schools, with 77 percent of children requiring less than 15 minutes of commuting to reach their secondary school with the usual means of transportation; 17 percent requiring 15 to 30 minutes; and five percent requiring more than 30 minutes. The pattern of availability, with respect to governorates and urban versus rural location, is the same for secondary schools as for elementary schools.

Of the children in primary school age, 79 percent are enrolled in primary school: 83 percent of boys and 75 percent of girls. The net enrolment rate in intermediate school is 41 percent: 47 percent for boys and 36 percent for girls. Out of all the children enrolled in school, 98 percent attended school most of last month. There is no gender difference in attendance, but significant differences between governorates. Al-Anbar and Najaf have lower attendance rates, which is most likely due to the difficult security situation during part of the interview."

UNHCR, October 2005, pp.106-107

"Condition of school buildings

Primary schools

The School Survey 2003-2004 shows that one-third of all primary schools in Iraq lack a water supply, almost one-fourth have no electricity and almost half are without sanitation facilities.[...] It further reveals that out of 11,368 school buildings, only 1,271 sustained no damage, whereas 529 were completely destroyed and more than 9,500 need minor or major rehabilitation. In the Northern Governorates of Dohuk, Erbil and Sulaymaniyah, there are no schools that do not need

rehabilitation and Sulaymaniyah has the highest rate of completely destroyed school buildings (171 out of 1,381 school buildings).[...]

Secondary Schools

Iraq has 2,753 secondary schools, of which 36 are completely destroyed and 2,408 need minor or major rehabilitation. Again, the three Northern Governorates as well as the Governorate of Najaf do not have one school building that does not require rehabilitation. [...] Half of the school buildings have no functioning latrines, one fifth has no electricity and sufficient water is available in only half of them[...]

Access to education

According to the ILCS, [...] 73 percent of children of primary school-age require less than 15 minutes to reach a primary school with the usual means of transportation (80 percent in urban areas, 56 percent in rural areas). The Southern Governorates of Babil and Muthanna have the lowest availability of primary schools. In Babil, 20 percent of the children need more than 30 minutes to reach a primary school and 4 percent need more than 60 minutes; in Muthanna, 19 percent need more than 30 minutes to reach a primary school and 6 percent need more than 60 minutes. The availability of secondary schools is lower than that of primary schools, but in most governorates the majority of children need less than 30 minutes to get a secondary school, which is considered to be within a reasonable distance. Again, the lowest availability of secondary schools can be found in the Governorates of Babil and Muthanna.”

Obstacles to education

Attacks and threats on children and schools, including occupation of schools by MNF-I (2007)

- A Ministry of Education survey found high numbers of children were killed or injured during 417 attacks on educational institutions since November 2005
- According to the Ministry of Education, over 300 teachers and employees in the Ministry were killed and more than 1,000 wounded
- Several schools have closed as a result of threats and violence
- In some areas of Iraq, primary and secondary schools did not open with the start of the school year because of attacks
- The situation was particularly difficult in Ramadi where all schools remained closed at the start of the school year due to threat and in Diyala where 90 per cent of schools were closed due to threats
- Multi National and Iraqi forces allegedly occupied 11 public schools in Ramadi

UNAMI, 17 January 2007

“The MNF-I and Iraqi Forces had allegedly occupied 11 public schools in Katana, Aziziya, Al-Mu'alimeen and Al-Jameea districts [*Ramadi province*]. In addition, Anbar University was not functioning due to threats by insurgents.”

UNAMI, 22 November 2006

“The school year for primary and secondary education in Iraq officially started on 20 September, but many schools failed to open on that day. Schools in remote areas of Baghdad have not

opened so far, especially girls' schools. Schools have become increasingly a target for sectarian and other criminal attacks and parents are worried about the safety of their children, girls in particular. According to the Ministry of Education statistics, over 300 teachers and employees in the Ministry of Education (MoE) were killed and additional 1,158 wounded in 2006 alone, with several schools closed as a result of threats and violence.

The situation is particularly difficult in Ramadi. Although no official statement regarding the school situation has been issued, according to MoE Spokesperson and local media, almost all Ramadi schools have not opened yet due to threats from Al-Qaida disseminated in the form of public warnings to the local population at the beginning of the school year. In Heet, schools for girls received threats and remain closed.

In Diyala, the situation is extremely grave in relation to education. A statement issued at the end of October by the Governorate Council of Diyala, indicated that 90% of schools in the province are entirely closed due to the deteriorating security conditions, threats and terrorist acts. This was also confirmed by the MoE Spokesperson. Fearful of killing or kidnapping, the Director General of Directorate of Education in Diyala has abandoned the Education Department building and is now running his day-to-day office work from a room provided by the Governorate Council."

UNAMI, 23 May 2006

"Children and schools have also become victims of the sectarian conflict. With crimes against children and attacks against schools on the rise and a high level of general violence, school attendance levels have decreased."

IRIN, 5 March 2006

"The Ministry of Interior has announced it will increase security measures to protect children from ongoing violence after a recent report cited shocking figures for children killed and injured in the past four months.

[...]

The report, issued on 1 March by the Ministry of Education, also appealed for better security for children. "The report showed that children in our country are being innocently killed," said Kamal Muhammad, a senior education ministry official. "We urge the Ministry of Interior to take measures to protect them."

According to Muhammad, the report states that 64 children were killed and 57 injured in a total of 417 attacks on educational institutions since November 2005.

Additionally, more than 47 youngsters were kidnapped on their way to or from school for the same period. The report also noted that 311 teachers and government employees had been killed and another 158 wounded in attacks."

See also, [Iraqi Schools Hit by Insurgency, IWPR, May 2006](#)

Displaced children in Baghdad and other provinces are unable to attend school (2007)

- In more violent areas, displaced families did not send their children to school because it was too dangerous (Anbar, Diyala and Baghdad)
- Accessing schools that are located in areas dominated by the opposing sect is nearly impossible for students and teachers

- Other obstacles include that displaced families must obtain letters to authorise entry into schools in the place of displacement but the process is often very slow - sometimes up to a year
- Primary and secondary education are free in Iraq but displaced families often do not send children to school because they cannot afford books and other school supplies
- Transport is also an issue for IDPs living in remote locations
- Schools are overcrowded and unable to accommodate IDP communities

IOM, 2 February 2007

“Due to the high level of children being displaced with their families, before the beginning of the school year, the Ministry of Education issued a requirement that schools accept these children in their new location. However, displaced children were not always warmly welcomed at schools that were already overcrowded and did not have enough materials, desks, and chairs to support the new pupils. Some families also could not afford the clothing and school materials required.

In more violent areas, families simply did not send their children to school because it was too dangerous. Many schools and colleges in areas such as Anbar, Diyala, and Baghdad temporarily closed due to violence, thwarting this generation’s access to education.”

IMC, January 2007

“Both children in Baghdad as well as those displaced to other governorates face problems with continuing education. In the case of children displaced to other governorates, families may obtain letters of authorization from the Directorate of Education through the MoDM and have their children admitted to schools in their new locations. This, however, is a slow process and much time is lost; sometimes an entire academic year is wasted as children are unable to take requisite examinations. While primary and secondary education are free in Iraq, lack of income hinders IDP families from sending children to school as they are unable to afford books and other school supplies. Due to the often remote locations of these IDPs, lack of transport is the greatest problem children and families face in trying to continue schooling. Also, schools receiving IDP children are over-crowded. The lack of space and materials and poor teacher-student ratios adversely affect the quality of education and learning. Further, while some IDP children manage to settle into their new schools, others are simply unable to adjust to their new environments, mostly because of language problems. For instance, Turkmen children from Tel Afar now settled in Karbala speak no Arabic; as a result, communication with teachers, and consequently learning, is impossible. The capacity of those schools that remain open to accommodate newly registered IDPs has diminished greatly. In addition many children are being sent to work instead of to school to assist in income-generation to support their families.

In Baghdad, the daily insecurity arising from the sectarian conflict prevents children from regularly attending school. Indeed, one of the tragic decisions parents in Baghdad make daily is whether it is safe enough to send their children to school. Accessing schools that are located in areas dominated by the opposing sect is nearly impossible, for students and teachers alike. Parents who still remain within mixed areas do not send their children to schools and teachers have similarly declined to teach in schools located in areas dominated by sects to which they do not belong. Clearly, this is leading to the disruption of education and generations of children will have poor basic education.

One option for parents in Baghdad has been to shift children to schools nearer to their homes and many displaced and other families have resorted to change of school. However, what is likely to happen here is that a school, due to its location and depending on the pre-dominant sect of the residents in that area, may receive most children from that particular sect. While this may be the

only way for children to continue schooling in Baghdad, the divide may only serve to increase the fear and hatred, thus exacerbating the already widening crevices of sectarian violence."

Insecurity and lack of infrastructure keeps school attendance levels low, especially for girls (2006)

- A UN-government survey suggests that the main reason for a high dropout rate among students of 15-25 years old is the inability of the families to afford to pay for the schooling and schools being located too far away from home
- War and sanctions have caused a significant decline in the quality of education
- Children are kept out of school, in particular girls, to support the family income
- The enrolment rate of girls is lower than boys in all parts of the country
- Overcrowding, insecurity, lack of water and sanitation are the main causes of lower enrolment among girls
- Returnee families face difficulties enrolling their children in schools because of lack of documentation (Particularly in the South)
- Overcrowded schools are reluctant to admit returnee and IDP children
- Schools are being used as temporary shelters
- IDPs in camps have no access to education, for example, in the Governorate of Kirkuk, most IDP camps have no schools
- Illiteracy rates among IDPs are particularly high.
- In the Governorate of Thi-Qar for example, illiteracy rates among the general population stand at 25 percent but reach more than 50 percent among IDPs
- Children have problems at school as they have no space to read or sleep quietly at home
- In the aftermath of military operations in Fallujah, around 100,000 children from Fallujah and the surrounding communities were at risk of losing their entire academic year

UNAMI, 18 July 2006

"According to the joint UN and Iraqi government food security and vulnerability analysis, children are the primary victims of food insecurity [...] The survey also records the growing drop-out rate among pupils less than 15 years of age – 25 percent of students under the age of 15 lived mostly in rural areas and were identified as extremely poor. The main reason given for the dropout rate is the inability of the families to afford to pay for the schooling and schools being located too far away from home."

IRIN, 3 April 2006

"Children's education is being severely affected by ongoing sectarian violence, say officials at the Ministry of Education.

'Teachers have informed us that a high percentage of students aren't attending class, especially primary schools students,' said senior ministry official Sarah Obeid. 'The main reason for this is their families' fears due to the increase of sectarian violence.'

According to Obeid, at least 30 percent of Iraqi students are not attending school, with the situation much worse in districts of the capital, Baghdad, where violence has been most in evidence. [...]

Some parents have also noted growing discrimination in schools along sectarian lines."

UNHCR, October 2005, p. 106

"Twenty-five years ago, the education system in Iraq was considered one of the best in the Middle East.[...] Primary education was made compulsory in 1976 and nearly universal primary enrolment was achieved by 1980.[...] After three wars, 13 years of sanctions, and widespread neglect of the education system however, the quality of education has seriously declined. Many children, particularly girls, are kept out of school to work at home or to generate family income. Before the 2003 conflict, one-quarter of all children were out of school.[...] In the classroom, teachers were underpaid, facilities were dilapidated and curricula outdated.

The first comprehensive study on the condition of schools in post-conflict Iraq, the School Survey 2003-2004 in Iraq, [...] was released in October 2004 by the Iraqi Ministry of Education (and produced with in collaboration with UNICEF). It shows that overall enrolment surged in the 2003/2004 school year despite the fact that school facilities are not nearly adequate. Some 4.3 million children (2.4 million boys, 1.9 million girls) are currently enrolled in primary schools (compared to 3.6 million in 2000). [...] Furthermore, 1.57 million children (950,000 boys and 620,000 girls) are enrolled in secondary schools. [...] The enrolment of girls is lower than boys in every grade and in every governorate. Overcrowding (many schools have up to three shifts per day), insecurity and the lack of water and sanitation facilities in schools are three main causes of lower enrolment of girls. On a daily basis, teachers, children and their families in Baghdad and other flash-points of conflict and criminality have to overcome a fear of bombings, explosions and kidnappings. Nevertheless, and especially in a situation of insecurity and conflict, regular attendance at school is one of the best ways a child can regain sense of normalcy in his or her life."

UNHCR, October 2005, p.108

"Refugees, returnees and IDPs in principle have access to education on par with the general population. However, they face a number of particular problems.

Due to a lack of documentation, returnee families often face difficulties enrolling their children in schools, in particular in Southern Iraq. School attendance is further fraught by the lack of Arabic language skills, as many returnee children were born abroad and Arabic has not been their primary language of education. Already overcrowded schools suffer from additional pressure by returnees and headmasters are often reluctant to accept new pupils. Returnee children that do not speak the language properly rarely receive the attention required to integrate into a class, leading to quick dropouts and a high dropout rate overall. In addition, returnee children usually lack grade equivalency papers and are therefore often placed in grades several years below their same-age peers.[...]

IDPs in camps often have no access to education and rates of non-attendance at schools are particularly high among IDP children. In the Governorate of Kirkuk for example, it is reported that most IDP camps (one quarter of IDPs in that governorate live in camps) have no schools. IDP children need to go to school in towns, where they add to the already existing overcrowding.[...] In the Governorate of Babil, most schools operate in two or three shifts to accommodate large numbers of students, but this is still insufficient to meet needs.[...].Accordingly, illiteracy rates among IDPs are particularly high. In the Governorate of Thi-Qar for example, illiteracy rates among the general population stand at 25 percent but reach more than 50 percent among IDPs.[...] Children that live in overcrowded or sub-standard accommodation often face problems at school as they have no space to read or sleep quietly. In addition, many do not have access to recreational activities."

UNAMI EWG, 18 January 2005

"UNICEF notes that an estimated 100,000 children from Fallujah and the surrounding host communities are at risk of losing the entire academic year as a result of schools being occupied, damaged, or overcrowded. None of the 95 schools inside Fallujah are currently open, and only

125 out of 362 schools in the surrounding areas are reported as functioning by the IIG. The Ministry of Education is reportedly considering setting up 11 tented schools in Amiriya with support from NGOs."

UNAMI, July 2005, p.2

"In virtually all areas hosting displaced populations, schools are being used as temporary shelters. This is a point of growing concern with the start of the school year approaching."

See also, "[Insecurity threatens to leave students with a late start](#)", August 2005

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Employment opportunities rank in the top priority needs reported by surveyed displaced people (2007)

- Around 40 to 50 per cent of Iraqis were estimated to be unemployed in 2006
- Many displaced people lose their job due to displacement
- A mission by RI suggests that in the more stable Kurdish areas, the biggest concern among IDPs is economic

IOM, 2 February 2007

“Unemployment was cited at between 40-60% in Iraq in 2006, and in addition to the high competition for very few jobs, the displaced often find themselves in areas where there is no demand for their skills or experience. In addition, the displaced report that employers do not want to hire them because they see them as a security risk. It is not surprising that employment opportunities joined shelter and food as the top priority needs of people displaced in 2006.

The displaced who were assessed provided numerous suggestions to improve employment opportunities. Many suggestions focused on construction projects that would improve infrastructure while simultaneously providing much-needed services. Another suggestion was allocating public land to be used for farming for those IDPs who have experience in agriculture. IDPs also suggested providing them with micro-credit loans to begin their own small business or vocational training programs in order to learn new skills. “

RI, March 2007

“Whereas many Iraqis worry most about security, in the stable Kurdish area, the biggest concerns are economic. Those who reach the Kurdish governorates must surmount difficulties in finding housing, shelter, employment and education for their children.

Most internal refugees can't find work, except for professionals such as doctors or engineers, who are welcomed and sometimes even sought by the Kurdish authorities. Some of the displaced are staying with host families, and others are staying in public buildings, depending entirely on the host community's willingness to help. “We depend on our neighbors' generosity to feed our children,” a displaced Kurd said. With an inflation rate over 70 percent, and fuel and electricity prices that have increased by 270 percent in the course of 2006, it is unlikely that the economic situation for internally displaced people will improve in the near future.”

Particular livelihood issues related to the Marsh Arabs (2003)

- Before being displaced Marsh Arabs relied on fishing, agriculture, livestock and crafts
- Women particularly affected by displacement with harder lives and lower education levels

- Older generation wish to return, but younger generation wish for better services found outside marsh areas
- Marsh Arabs now farming say they lack supplies, support and the poor quality of the land reduces their output and therefore living standards

UN OCHI, 30 June 2003

"Prior to the forced displacement of the Marsh Arabs in 1991, the main livelihood activities engaging populations were fishing, agriculture, livestock herding (especially water buffalo), hunting and handicraft making. Wheat, barley, rice and vegetables were grown for household consumption. The significance of the water based economic activity of the Marsh dwellers reaches far beyond their homeland, as it was the subsistence for over one million residents of the region. Remnants of destroyed houses, schools and clinics in the original wetland settlements were noted, supporting the notion that services were much more accessible in the past.

The forced displacement caused a severe drop in the living standard for the majority of the marsh populations. With the continuous population movement livelihood patterns shifted. Communities that are currently settled in proximity to the marshes, seasonal agriculture as well as some livestock rearing were adopted. Fishing for communities close to water bodies is also practised in a small scale. Most Marsh Arabs who have moved in closer to urban areas are engaged in a wide range of activities including casual labour in cities. Unemployment was cited as a major concern for most of the communities visited.

Accordingly, income levels were drastically reduced, as was access to health, education, water and electricity. The situation of women across the Marsh population merits special mention. Most women/girls engage in running the households (which is normally extended family structures), house building, collection of water and working in the farmlands. Women noted that life was much harder for them now than in the marshes, and expressed a desperate need for access to clean water and health facilities. Literacy rates appear to have deteriorated as most of the women interviewed were not able to read or write.

Absence of surfaced main, arterial and feeder roads was noted as a major hindrance to economic activities and access to services. Large areas were reported impassable during the wet season November to April due to the loosely compacted earth roads. The border with Iran where Marsh Arab concentrations are currently living is infested with land mines and UXOs.

(...)

General observations from the one-day visit to the Al Hawezieh marsh in the Al Salem district of Missian and previous visits to the Central Marsh confirm the agricultural imbalance and unsustainability of current livelihoods of the Marsh Arabs. Displaced farmers who once depended on buffalo meat and milk, fish, wildfowl, the sale of reed products and seasonal rice, are now part time arable farmers with most of the men out of work and dependant on food aid. The most interesting observation was the age difference view of the future with the older generation (40+) wishing to return the known life of the marshes and its stable food security compared with the younger people (17-30) who know a different life and wish to have improved services found outside of the marsh.

In the assessment area the situation is difficult in many respects. Crop production and income generation of farmers has suffered significant drawbacks. Salinity of the soil and poor quality of the irrigation water is the main problem affecting crop yields. It also affects drinking water for the population and their livestock. As a result, milk yield and buffalo meat growth rates are reduced and further, taste and flavor are affected. Finally, it reduces the amount of fodder and reed grazing for buffaloes and sheep. This water problem is worsened by the deterioration and deficient functioning of irrigation infrastructures and pumping stations and general fuel shortages. Of the three main pumping stations visited, all are out of order. The water availability problem is

worsened by the increase in dam construction in the Tigris watershed which has reduced the overall water flow.

Fields were also affected by frequent movement of the Iraqi Army in the region, UXO and weaponry left in the fields and connecting roads. The region never had priority support from the previous regime and the embargo on agricultural and veterinary inputs worsened the situation. At present with the disruption of government services, the farmers main difficulties are: lack of support in agricultural inputs such as fertilizers and pesticide and a lack of veterinary support and vaccination. The farmers also mentioned the poor quality of seed for wheat and barley, and the lack of communication concerning the procurement of the 2003 cereal production. Further, farmers reported they made more income from the traditional marsh livelihood activities including: meat and milk production (buffaloes), wild birds hunting, rice cultivation on receding water and some wheat and sorghum cultivation.”

Public Participation

Factors including lack of documentation prevent displaced from voting (2005)

- Around 6,000 IDPs from areas around Fallujah are said to have cast their vote according to local election officials
- A representative of the Independent Electoral Commission of Iraq informed IRIN that only 2 percent of eligible voters in the central al-Anbar province cast ballots and only 30 percent in the Salahdine province
- Numerous observers raised concerns that IDPs would not have been able to vote due to lost documentation
- IRIN reported a reluctance to vote among Fallujah's population
- IRIN reported candidates hadn't done any campaigning in the area due to insecurity and residents say they even don't know how the elections will proceed
- Sunni parties who dominate the area also called for a boycott of the election
- IRIN reports also that insurgents sent out leaflets in the area around Fallujah saying that residents are prohibited to vote and those who do will be targeted
- Brookings Institute Project on internal displacement raised a number of concerns in a letter to the New York Times including lack of documentation for IDPs

IRIN, 15 February 2005

"IECI [*Independent Electoral Commission of Iraq*] officials told IRIN that internally displaced people (IDPs) from the cities of Fallujah, some 60 km from Baghdad, and Kirkuk and Mosul in the north were able to participate due to the improvised polling stations in the areas in the capital or in temporary camps. Around 6,000 IDPs from areas around Fallujah are said to have cast their vote.

Farid Ayar of the IECI told IRIN that only 2 percent of eligible voters in the central al-Anbar province cast ballots and only 30 percent in the Salahdine province, some 180 km from Baghdad.

Around 100,000 Kurdish IDPs uprooted from the Kirkuk area were permitted to vote locally following a decision by the Iraqi authorities in mid-January.

Exceptional arrangements were also made for over 200,000 people displaced from Fallujah, he said.

Numerous observers had raised concerns that many IDPs would not have been able to vote because they had lost the required personal documentation, either while fleeing or as a result of destruction of their homes.

'I wish that I had voted in the election and helped to give a vote to my Iraqi brothers, but all my documents were in Fallujah and my home was destroyed. I couldn't do anything,' Sinan al-Abbas, a Fallujah resident camped outside the city, told IRIN."

IRIN, 28 January 2005

"Some residents in the destroyed city told IRIN that they were not going to vote, especially after what happened in Fallujah.

They said the election is going to play into the hands of the authorities who they believe don't care about their needs. [...]

[Situation prior to elections]

The deafening hum of planes can still be heard over Fallujah with a heavy presence of US troops. Children can be seen peering out from behind the few doorways that still exist and some can be seen playing with rubbish left before and after the conflict started. Families said they need basic supplies and are suffering in the cold weather due to a lack of power and kerosene to fuel heating systems.

Candidates haven't done any campaigning in the area due to insecurity and residents say they even don't know how the elections will proceed.

In addition, Sunni parties who dominate the area have called for a boycott of the election. Insurgents have sent out leaflets in the area around Fallujah saying that residents are prohibited to vote and those who do will be targeted.

'I believe that [many] people from Fallujah aren't going to vote because they haven't received anything from the government yet and this has increased their anger. We will guarantee security and hope they come to vote, but I doubt it,' Sabah Kadham, deputy minister of interior, told IRIN.

Residents from the damaged city claim that the elections are too early in a place where they haven't seen any improvements."

Letter to the editor of the New York Times

Brookings Bern Project on Internal Displacement, 25 January 2005

"To the Editor:

In addition to arranging out-of-country voting for Iraqi expatriates ("Iraq Expatriates Sign Up to Vote in 5 Cities in U.S.," front page, Jan. 18), it is critical to ensure that the one million Iraqis displaced within the country are able to vote on Jan. 30.

Though voters are entitled to cast their ballots in the national assembly election regardless of where they are in Iraq, internally displaced voters face a number of practical obstacles. Many of the more than 200,000 people recently displaced from Falluja were unable to register to vote before the deadline.

Other internally displaced persons have lost personal documentation while fleeing or as a result of destruction to their homes.

Additional problems arise in the governorate elections, which lack provisions for absentee voting.

The disenfranchisement of Iraq's displaced persons will pose challenges to their return and also raises questions about the legitimacy of the electoral process over all. Both of these consequences could have significant repercussions for long-term stability in Iraq."

Special polling booths provided for IDPs around Fallujah (2005)

- Insecurity in a number of cities, including Baghdad, Mosul, al Fallujah and al Ramadi made verification of voter lists nearly impossible
- In other areas, including Mosul and Tikrit, registration centres were attacked
- Due to these acts of violence the Iraqi Electoral Commission allowed voters in Ninewa and Al Anbar to register and vote on election day
- According to the Commission, over 200,000 of Al Fallujah's IDPs will be allowed to register and vote at special polling places near the camps and villages where they sought refuge
- Locations of polling stations in areas where violence was high, including Fallujah, Ramadi and Samarra, were kept secret until voting day
- According to a representative of the Electoral Commission, a specialised group on elections would be sent to the camps where Fallujah's displaced were staying

HRW, 23 January 2005

"In many parts of the country the process has gone smoothly given the limited time, although citizens born in 1986 were accidentally left off the preliminary lists. In cities like Baghdad, Mosul, al-Falluja, and al-Ramadi, however, threats and violence by insurgents have made verification of the voter lists virtually impossible. In November, insurgents set fire to a Mosul warehouse with election registration papers. On January 2 unknown assailants destroyed two registration centers in eastern Tikrit with mortar fire. As Iraq's interim president Ghazi al-Yawir explained: 'There are areas where no one has been able to give out even one voter registration sheet.' [19]

In response, the Commission has decided to allow voters in Nineveh province, where Mosul is located, and in al-Anbar province, both to register and vote on election day. According to commission spokesman `Ayyar, the more than 200,000 residents of al-Falluja who were displaced during the U.S. offensive in November will be allowed to register and vote at special polling places established near the displacement camps and villages where many of them currently live. As of January 12, approximately 6,000 al-Falluja residents had returned to the town[20] and, according to a U.S. general, they will be able to vote there. [21]

[...]

On January 15 the electoral commission announced that voters must vote in the province where they are registered. [49] The one exception is the estimated 200,000 al-Falluja residents who were expelled from the town before and during the U.S. assault in November 2004. For them, the electoral commission is setting up special polling places in the villages and displacement camps where many of them live, such as in Abu Ghraib and al-`Amiriyya."

Endnotes

[19]"Electoral Process Faces Difficulty in Iraq," by Hamza Hendawi, Associated Press, December 2, 2004.

[20]Emergency Working Group, Fallujah Bulletin Update, January 18, 2005.

[21]"Battle-hit Falluja Set to Vote," BBC, January 19, 2005. See http://news.bbc.co.uk/1/hi/world/middle_east/4186231.stm, accessed January 19, 2005.

[49]"New Steps Set For Security Around Iraq Vote," by Jeffrey Gettleman, New York Times, January 16, 2005

IRIN, 28 January 2005

"The Iraqi government said that the displaced would have the right to vote no matter where, they were along with those who had returned to Fallujah recently at polling stations under tight security from US troops and the Iraqi army.

Farid Ayar, deputy for the Higher Independent Electoral Commission (HIEC), told IRIN that elections would be held in Fallujah, Ramadi and Samarra, east of the capital, and Mosul, north of Baghdad, but the location of polling stations in these areas would be kept secret until the day, to prevent attacks.

A specialised group on elections would be sent early morning to the camps where Fallujah residents are staying to speed up the process, he added. There are some 18,000 candidates running for election on 256 political party lists.

Prime Minister Iyad Allawi, in a press conference in Salahdine city, 180 km from the capital, on Wednesday said that differences between Sunni and Shi'ites shouldn't be present in the country and called on people from Fallujah to participate in the election to show that they were part of Iraq."

Displaced in Kirkuk given right to vote locally (2005)

- Kurdish political parties threatened to boycott the elections because Kurdish residents of Kirkuk, expelled by the former regime in the 1980s and 1990s were not allowed to vote in the province
- Under pressure, the Iraqi Electoral Commission announced its decision that around 100,000 displaced Kurds could vote locally
- The decision was condemned by Arab and Turkmen leaders

HRW, 23 January 2005

"Until mid-January, Kurdish political parties were threatening to boycott the elections because Kurdish residents of Kirkuk who had been expelled from the area during Saddam Hussein's 'Arabization' program in the 1980s and 1990s were forbidden to vote in the provincial election. On January 14 the Electoral Commission announced that displaced Kurds from the area could vote locally. The decision allows an estimated 100,000 Kurds to vote for the al-Tamim provincial government. [45]

Arab and Turkmen leaders in Kirkuk condemned the decision, and one of the main Turkmen parties, the Iraqi Turkmen Front, threatened to boycott the elections. The decision, they say, will put Kurds in charge of the al-Tamim government during the coming year, when Kirkuk's territorial status in Iraq is scheduled to be determined. [46]"

[Footnote 45]"Kurds Reach Tentative Deal to End Boycott of Kirkuk Elections," *Agence France-Presse*, January 14, 2005, and "Kirkuk Election Deal Tips Power to Kurds, Angers Arabs, Turkmen," *Agence France-Presse*, January 15, 2005.

[Footnote 46]According to Article 58 of Iraq's Transitional Administrative Law (TAL), the resolution of disputed territories, including Kirkuk, will be deferred until after a new constitution is in effect and a census has been held.

Daily Star, 25 January 2005

"Saleh and other Kurdish leaders have aggressively pushed their case in Baghdad, playing brinkmanship politics to guarantee their new stature in Iraq. The Kurds played hardball in December and January over the issue of the multi-ethnic city of Kirkuk which the Kurds want to claim for their northern self-rule enclave. Saleh and other leading lights of the PUK and the

Kurdistan Democratic party threatened an election boycott over the Iraqi government's failure to award the vote to those thousands of Kurds expelled from Kirkuk under Saddam.

But faced with growing Kurdish anger, the Iraqi government finally buckled and allowed an estimated 100,00 displaced Kurds from Kirkuk to vote in the city, effectively handing power in the community to the Kurds."

Kurdish Media, 25 January 2005

"The issue has a broader political significance since Kirkuk – which lies just outside the three provinces that make the Kurdish region - is something of a prize because of its oil resources. Both Kurds and Arabs would like to claim it as their own, while the Turkoman, a significant local minority, tries to secure their own position."

Displaced are particularly vulnerable to political manipulation (2004)

- IDPs are being pressured on a number of levels including being promised housing and money at the place of return, gangs charging IDPs for 'spots' in public buildings promising that high levels of compensation would be paid on eviction

UNHCR, 12 August 2004

"Due to the general political insecurity, IDPs are particularly vulnerable to political manipulation. IDP populations have in general been displaced due to ethnical or religious discrimination and at times to alter the ethnic balance in certain areas. With elections planned there is a high risk that displaced populations will again face push or pull factors for similar purposes. Examples that have already occurred range from cutting services to camps, promising housing and money at the place of return, to gangs charging IDPs for 'spots' in public buildings promising that high levels of compensation would be paid on eviction, or that buildings would be rehabilitated and provided for superior accommodation."

Displaced people form their own networks (2004)

- IDP groups have organised themselves and developed their own protection networks through community watch programs
- Baghdad's IDPs march on CPA offices in protest alleged order to leave abandoned government buildings in which they have been living for months
- Huge reconstruction efforts are planned to provide housing but could take up to 3 years
- IDPs tired of waiting believe this protest to be the 'beginning of [their] rights'
- Marsh Arabs organise council to participate in decisions of future of Wetlands and convene conference
- Conference provides the first opportunity for Marsh Arabs to present their ideas

UN Cluster 8/UNCT, August 2004

"The general insecurity faced by the population of Iraq as a whole, affects IDPs more due to their particular vulnerabilities and lack of community protection.

[...]

Increasingly, IDP groups have organised themselves and developed their own protection networks through community watch programs"

IRIN, 19 March 2004

"It looks like a peace rally or a spring celebration: green flags fluttering in the breeze, children running around, and posters calling for housing for all.

But talk to some of the 500 people who gathered on Wednesday in front of gates leading to US administrator Paul Bremer's office, and their protest is quite desperate. They say Iraqi police and US-led troops have told them to leave the abandoned government buildings around the city where they have been living for almost a year.

[...]

A Coalition Provisional Authority (CPA) spokesman says there is no coalition policy requiring internally displaced people in Iraq to leave government buildings.

Illegal squatters in government buildings are addressed on a "case-by-case" basis, Dan Senior, a spokesman for the US-led CPA, told IRIN.

US troops asked some people to move out of a ministry building for security reasons, said Brigadier General Mark Kimmitt, a spokesman for coalition troops. In general, troops leave displaced people living in government buildings alone, however, Kimmitt said.

'We don't want to continue to live in these places anyway. We believe that the (Iraqi) Governing Council should find a place for us,' said Najim Kalum, 40. 'But we don't trust the Governing Council to help us, so we came to talk to Bremer. All we want is a safe place to educate our children.'

However, with bigger issues to deal with, including the scheduled June 30 handover of sovereignty to Iraqis, the de facto government, the appointed Governing Council, apparently has not had time to address the issue of rapidly rising rents in some parts of the country. Meanwhile UN agencies that most commonly deal with internally displaced people in post-conflict situations are working on Iraqi issues from outside of the country.

Reconstruction experts believe up to 84,000 families may be without houses in Iraq, said Andy Bearpark, CPA director of operations and infrastructure. In an effort to address this Bremer recently signed seven housing contracts worth more than US \$100 million to start building new homes for people. The homes will be built mostly in the southern Iraqi towns of Basra, Muthanna, Najaf, Diyala, Karbala, Maysan and Ninawa.

When completed, the new construction is expected to put a permanent roof over the heads of 18,000 people, or more than 3,500 families. Each housing development will also include a mosque, a recreational area, a medical clinic, a shopping mall and schools.

The first construction project will start in Basra in coming days. Thousands of refugees who fled oppression under the former Saddam Hussein regime continue to return from Iran and Saudi Arabia to southern Iraq. Even though many stay with relatives, many towns near the border are bursting with new people. Displaced people in Baghdad also often come from southern Iraq.

[...]

However, people still living in temporary accommodations and shelters don't want to wait. They say if nothing is done soon, they'll create even more political problems. Housing projects just signed by Bremer could take as long as three years to complete.

'This is the beginning of our rights,' Kalum said. 'If they don't respond to us, we'll make a bigger demonstration, and things could be worse for them.'

Coalition Provisional Authority, 22 March 2004

"The founding conference of the Maysan Marsh Arab Council marked the first time that Iraq's Marsh Arabs publicly expressed their wishes and concerns for the future of their marshland environment. According to a report from the Maysan Province office of the Coalition Provisional

Authority (CPA), several hundred marshland residents gathered in the city of Amarah, Iraq, on March 20 to meet with scientific experts and government officials regarding projects to restore portions of Iraq's wetlands.

'If you are going to talk about the marshes, you must talk about the people, the villages there,' said Iraqi Governing Council member Abdul Karim Al Muhammadawi. Al Muhammadawi earned the moniker 'Prince of the Marshes' for his role in leading the resistance against Saddam Hussein's regime within Iraq's southern provinces for 17 years.

The conference provided a forum for marshland residents to discuss numerous issues surrounding proposed plans to re-flood parts of the vast network of wetlands along the Tigris River basin in southern Iraq. These included not only environmental issues but also concerns regarding health, education and agricultural and cultural matters relevant to the historically marginalized Marsh Arab population.

According to the CPA report, conference participants discussed strategies for managing returning refugee populations, the allocation of arable land and the provision of basic utilities, health care and education. In recent testimony before the U.S. Congress, U.S. Agency for International Development (USAID) officials studying the feasibility of marshland restoration observed that the residents 'ask for social services that have never been accessible to them in the past but ought to be expected of any representative civil society in the future.'

The Maysan Conference marked the first opportunity for local marsh residents to articulate these wishes in an official public forum. According to the CPA report, the purpose of the newly founded Marsh Arab Council is 'to provide a voice for the Marsh Arabs of Maysan so their interests and concerns will be factored into national and international plans that affect the marshes.'

The report indicated that this was only the first in a series of meetings aimed at bringing local residents into the dialogue regarding the future of their region. Most of the marshlands were drained by the former regime during the 1990s in order to deprive opposition Shi'a forces of safe havens. Azzam Alwash, manager of the Iraq Foundation's New Eden project, said in recent hearings before the U.S. Congress, 'In a few short years, Saddam drained them to allow access for his tanks to establish control in the area. After they were dried, the marshes were burned and villages were destroyed.'

Alwash estimated that as many as 300,000 residents died or fled their homes during the period."

DOCUMENTATION NEEDS AND CITIZENSHIP

General

Many IDPs unable to access food because of lack of documentation (2007)

- In monitoring among IDPs, IOM found that the biggest challenge for IDPs in terms of documentation was related to ration cards to access food
- Returnees face difficulty in obtaining documentation required upon return despite the existence of legal advice centres coordinated by the authorities in the North
- Returnees may have difficulty to obtain documentation do to costs related to transportation and appliation fees
- Legal services are unable to cope with the large numbers of people returning in the south
- UNHCR monitoring indicates that lack of documentation has created serious problems for returnees, like inability to access food and education
- Foreign spouses may also face problems obtaining documentation
- Newly displaced persons face delays in registering with the public distribution centre as food cards are tied to one location

IOM, 2 February 2007

"Ninety-seven percent hold nationality certificates, 97% have identification cards, 74% of families hold marriage documents, 47% have birth certificates, and 18% have death certificates. Fifteen percent also hold Iraqi passports.

The biggest challenge the displaced faced in 2006 regarding documentation was transferring their PDS ration cards to their new locations. Requirements varied throughout the governorates, but many were required to return to their place of origin to de-register, an impossibility for the majority, who fled from highly unstable areas."

UNHCR, October 2005, p.132-133

"Returnees often face difficulties in obtaining necessary the documentation upon return, though there are regional differences with the authorities in the three Northern Governorates having efficient mechanisms in place, supported by legal advice centres operated by the authorities.

Returnees may face difficulties to afford the costs related to transportation and application fees to obtain necessary documentation, in particular as several visits in a given Directorate may be required. Also in the South, independently-run Legal Aid and Information Centres (LAICs) play a crucial role in facilitating the process of obtaining necessary documentation; however, in view of large numbers of returnees in Southern Iraq, the existing network of LAICs is insufficient. UNHCR Returnee Monitoring showed that lack of documentation is the basis for a series of other problems such as access to food rations, education and employment, thereby seriously hampering the reintegration process of returnees. Foreign spouses of returnees, mainly from Iran, at times face problems obtaining the necessary documentation (e.g. residency permit, food ration card) as it takes considerable time and effort to register the marriage, in particular in the South and Centre. This leaves foreign spouses and children with no access to public services.

Newly displaced persons may face delays in registering with the PDS centre in the place of displacement as the food ration card allows food rations only in a particular location. The transfer of food ration cards is often delayed by bureaucratic procedures, sometimes leaving families without food for months. It has been reported that the Ministry of Trade has now addressed this issue."

IOM, September 2004

"Lack of documentation in terms of IDs, ration cards, marriage certificates and other documentation for IDPs is common, especially in the south. This issue mainly concerns the Marsh Arabs and the returning refugees." (IOM, September 2004)

UN Cluster 8/UNCT, August 2004, p.9

"In recent years, **documentation** in Iraq has been closely linked to the monthly food ration. Many IDPs were excluded from the monthly food ration at their place of displacement because their documentation stated their distribution place was elsewhere. Others were reluctant to hand in their old cards since it serves as evidence of previous residence. While the majority of the registration problems have been solved with the intervention of Cluster 8, there are still cases where IDPs are not registered. Advocacy and consultations to address this are on-going with the relevant ministries."

UNHCR, 12 August 2004

"Documentation in Iraq has been closely linked in recent years to the monthly food ration. Many IDPs were excluded from the monthly food ration at their new locations because their documentation stated that their Public Distribution Centre was elsewhere. UNHCR with the Humanitarian Coordinator intervened and advocated for a system that allowed IDPs to register in their current location and continue to keep their old ration card in case evidence of former residence is required in the future, in particular for property disputes."

Statelessness: many Iraqis stripped of their nationality (2005)

UNHCR, 12 August 2004

"Statelessness is a major issue in Iraq. Up to half a million Iraqis (including Farsi Kurds and Arab Shi'ites) were stripped of their nationality by the previous government and expelled to Iran. Meanwhile, Bidouns (stateless nomads) live on either side of the Iraq/Kuwait border. In addition, children of mixed marriages (particularly in cases where the mother is Iraqi and the father of another nationality) may face problems if they wish to return to Iraq, while women (such as those who have married men of another nationality) may face particular obstacles when they wish to return. In the recent past, nationality issues have not been decided in courts, and nationality laws frequently revised, with the result that indigenous expertise on the subject has declined."

Resolution No. 199 forces ethnic minority members to choose between signing a form correcting their nationality or being expelled (2001)

- In Sept 2001 the Iraqi government passed Resolution No. 199 giving all non-Arab Iraqis over 18 the right to change their ethnic identity to that of Arab
- Iraqi authorities attempting to hide the displacement of Kurds from Kirkuk

- Many Kurds and Turkoman families in Mosul and Kirkuk expelled to northern Iraq for failing to sign form

KTRS, 27 Jan 2000

"On the 6th September 2001, in an unprecedented move, the Iraqi Revolutionary Command Council – which ranks higher than the so-called Iraqi Parliament – passed Resolution No. 199 giving all non-Arab Iraqis over 18 the right to change their ethnic identity to that of Arab. Such a decision is contrary to all the principles of human rights and is politically motivated. Its purpose is to compel all non-Arabs in Iraq to adopt an Arab ethnic identity. This law legalizes the regime's policy of ethnic cleansing directed against all Kurds, Turkmen and Assyro-Chaldeans.

For decades, the Iraqi regime has continued to deport tens of thousands of Kurdish families from that part of Kurdistan still under its control to either the Kurdish controlled area of Kurdistan or to southern Iraq and has confiscated their properties and belongings, including their identity cards. The choice facing these people was deportation or the enforced change of ethnic identity. This law, which legalizes such acts, is in direct violation even of the Iraqi Provisional Constitution of 1970, Article 19/A of which states that all Iraqis are equal, regardless of ethnic language, religion or social class.

Furthermore, Article 5/B of that Constitution states that the people of Iraq is composed of two main ethnic groups, Arabs and Kurds, and recognizes the rights of the Kurds and other minorities. This decision of the Iraqi Revolutionary Command Council effectively divides the population according to ethnicity. It favours one group over the other and gives a higher status to Arabs.

It should also be remembered that this Resolution is in direct contravention of Article 18 of the International Charter of Civil and Political Rights adopted by the UN in February 1966. Just as everyone has the right to their place in a family line, so every person has an inalienable right to his claim of ethnic identity, but Resolution No.199 makes no distinction between ethnic identity and nationality."

RFE/RL, 14 September 2001

"[...] in August 2001, the Ministry of the Interior sent a document to the Department of Statistics demanding that during the expulsion of any family from Kirkuk, false names and numbers should be written on the documents that are usually issued for them by the governorate office to the checkpoints, and that the documents should not be registered in their records.

[The Sulaymaniyah Kurdish newspaper] 'Kurdistani Nuwe' believes that the intention behind these measures is to destroy any evidence that the Iraqi government has expelled Kurdish families from Kirkuk in case of accountability by official sides, particularly the United Nations. In this way, Iraq could easily deny the allegation."

USCR, 2000

"In 1999, Baghdad continued its systematic efforts to 'Arabize' the predominantly Kurdish districts of Kirkuk, Khanaqin, and Sinjar at the edge of government-controlled Iraq near the Kurdish-controlled zone. To solidify control of this strategically and economically vital oil-rich region, the government expelled Kurds, Assyrians, and Turkomans—at times, entire communities—from these cities and surrounding areas. At the same time, the government offered financial and housing incentives to Sunni Arabs to persuade them to move to Kirkuk and other cities targeted for Arabization. New Arab settlements were constructed on expropriated Kurdish land holdings.

In 1999, Baghdad gave a name to its Arabization program: 'nationality correction.' The government began requiring ethnic minority civil servants to sign a form correcting their nationality. Persons refusing to sign the forms—for example, a Kurd refusing to 'correct' his nationality and list himself as an Arab rather than a Kurd—would be subject to expulsion to northern Iraq or the no-fly zone in the south. During the year, Kurds and Turkoman families in Mosul and Kirkuk were reportedly expelled to northern Iraq for failure to sign the forms. Although the Arabization campaign was not publicized, sources in northern Iraq reported that more than 2,000 people were expelled to the northern region between January and November."

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

National Centre for Missing Persons to be established (2006)

- In April 2006, the Iraqi government approves the draft law on the protection of mass graves
- The centre is being set up by the Iraqi Ministry of Human Rights in Baghdad to help relatives find out what has happened to loved ones
- The Centre will examine bones from mass graves as well as establish a list of those missing since 1978
- Around one million Iraqis are believed to have disappeared during the former regime, of which many are believed to be buried in 228 mass graves discovered thus far
- The majority of disappearances occurred during the Gulf war in 1991 and the subsequent Shi'ite uprising in South Iraq
- Hundreds of people also remain unidentified and missing during and after the 2003 conflict
- The Iraqi Red Crescent Society has been approached on a daily basis by families searching for missing loved ones, especially from Fallujah

UNAMI, 23 May 2006

"On 27 April, the Presidency Council of Iraq approved the draft law on the protection of mass graves, one of the legal documents necessary for the strategy of establishing a National Centre for Missing and Disappeared Persons."

UNAMI, February 2005

"On 17 January 2005, the Policy Group adopted the draft resolution proposed by the Working Group, which called upon the Government of Iraq to establish a **National Centre for Missing and Disappeared Persons in Iraq**, for Iraqis and other nationalities, and to take the appropriate measures under the law by enacting the required legislation. The resolution also called upon Iraqi society, institutions and individuals to cooperate fully with the National Centre to ensure that the fate of those who are missing or who have involuntarily disappeared is determined. The resolution also appealed to the international community to extend its support to the National Centre by assisting with the provision of the expertise and resources that it will require for the successful pursuit of its humanitarian objective."

UNAMI, 27 February 2005

"On 20 February, the Interim Government of Iraq issued decree no.18 by which it officially authorized the establishment of the "National Centre for Missing Persons" in Iraq, consistent with the recommendations of the Policy Group meeting convened by UNAMI/HRO for the Ministry of Human Rights, with support from the United Nations Development Programme (UNDP) in mid-January. The decree requires the Ministry of Human Rights to work with UNAMI to follow up on the realization of the project objectives."

IRIN, 7 February 2005

"Iraq's Ministry of Human Rights (MoHR) in Baghdad is setting up a National Centre for Missing and Disappeared Persons (NCMDP) to help relatives find out what has happened to their loved ones.

The new programme being developed by the MoHR, will examine bones samples recovered from mass graves, as well as establishing a register of names of those reported missing since 1978 in Iraq.

Families will be given the opportunity to provide blood for DNA testing to check against samples taken from bodies found in mass graves.

According to the MoHR officials, nearly one million Iraqis are believed to have disappeared during Saddam Hussein's regime and a large number are believed to be buried in the 228 mass graves discovered so far. The majority disappeared during the Gulf war in 1991 and the subsequent Shi'ite uprising in the south of Iraq, officials said.

[...]

But the identification issues are not only centred on mass graves. Hundreds of people remain unidentified and missing during and after the conflict in 2003.

Officials from the Iraqi Red Crescent Society (IRCS) office, responsible for the problem of identification, told IRIN that every day many families come to them searching for their missing loved ones, particularly those from Fallujah, where intense fighting between US forces and insurgents took place.

They added that after the International Committee of the Red Cross (ICRC) closed its office in the capital, because of the lack of security, the search for missing people had become even more difficult and would take even longer than expected."

For further information, see also "[Iraq: State of Evidence](#)" HRW, November 2004 [Internet]

PROPERTY ISSUES

General

Exchanges in property, evictions and a rise in illegal occupation of homes (2007)

- Of displaced families surveyed by IOM, 24 per cent reported that their property was being occupied and 16 per cent that their property had been destroyed, and 5 per cent that it was currently in military use
- Displaced people are occupying abandoned homes (eg case of 479 families from parts of Baghdad and Sadr city who settled into houses in Abou Ghraib)
- In mixed areas, abandoned houses of one sect are being given to newly displaced families of the opposite sect
- There has been an increase in the number of reports on sectarian militias forcibly evicting people from houses and shops in order to rent them to incoming IDPs

IOM, 2 February 2007

"The majority (67%) of families do not know the status of their property or whether they are able to access it. Lack of communication with neighbors in places of origin, lack of reported information, and instability prevented the displaced from obtaining information about their property. For those who did know, 24% reported that their property was occupied by another citizen, 16% of people said their property had been destroyed, 5% said it was currently in military use, and less than 1% said it was occupied by the government. There have also been reports of individuals looting and stealing possessions from abandoned property."

IMC, January 2007

"Because of sectarian tensions and direct threats that have followed the February 2006 Samara mosque bombing, most displaced families now are unable to sell their properties. In the Sunni- or Shi'a-dominated areas where thousands of people are regularly forced to leave their homes within a matter of hours, families are given no time to rent or sell their houses, and they are not allowed to return to make arrangements for disposing of their property and belongings. Those who try to sell their houses in anticipation of fleeing, are stopped by insurgents posting not for sale or wanted signs on their properties.

Even though houses previously valued at around 14 million ID (9,500 USD) had dropped to as low as 2 million ID (1,400USD), there are no interested buyers. Several Sunni families displaced from Shia-dominated areas moved into houses deserted by displaced Shi'a families. This was the case of 479 IDP families from Hurria, Shuala, Hay Al Amel (Baghdad), and Al Shaab and Hay Aur (near Al Sadr City) who settled into houses in Abu Ghraib.

In mixed-sect dominated areas, the abandoned houses of one sects expelled families are being given to newly arrived displaced families fleeing the violence from the opposite sect either for free, or at cheap rental fixed fees usually collected by local mosques.

In several areas of the capital, the controlling militias and religious parties occasionally offer displaced families from the opposite sect the ability to rent their properties - at a reasonable rate,

or free of charge in exchange for maintenance - to an arriving displaced tenant from the militia or religious party's own sect. Although announcing houses for sale is still allowed, poor economic conditions force many displaced families from the sect suddenly a minority in their once evenly mixed neighborhood to enter into agreements to swap houses at no cost through trusted agents or mosque officials.

A few relatively stable areas, like Kadmeia and Karrada in Baghdad, are considered attractive for IDPs to settle, but this relative stability has caused property prices to triple. And wealthy families living in these either predominantly Shia or Sunni areas have no desire to sell or let their houses."

UNAMI, 22 November 2006

"With the intensification of sectarian violence, there has been an increase in the number of reports on sectarian militias forcibly evicting people from houses and shops in order to rent them to incoming IDPs from other areas. In other cases, sectarian militias are forcing people who abandoned their houses in the area to rent them out to IDPs at a very low cost. [...]

Others reported having their houses in the places of origin illegally occupied, further complicating the prospects of their return."

Concerns related to the property restitution process (2006)

- There is concern that the failure to settle property disputes between returning Kurds and Arab settlers may further destabilise the security situation in the North
- Many property restitution cases fall outside the scope of the property commission established in Iraq (IPCC) including claims related to the Anfal campaign in the North and the burning of the villages as part of the drainage programme of the Marshes in the South
- Compensation guidelines and measures to ensure that persons who are must return a property to the original property owner do not become homeless have not yet been put into place
- Stateless persons may have particular difficulties in claiming their property
- In the North, the regional authorities have allocated land without clear guidance

There are some concerns that the property restitution process has been too slow (See for example, IRIN, [Compensation for wartime losses going slow](#), 2006) and that there is a special need to resolve property claims related to Kirkuk in the north, See IRIN, [Increased Violence over Kirkuk land claims](#), 2006

UNHCR, October 2005, pp.137-138

"While it is a major achievement that IPCC offices have been established throughout Iraq and adjudication has commenced, there are still a number of issues that need to be addressed in order to have a fully operational property restitution mechanism, accessible to all, that provides fair and just decisions while ensuring the rights of the legitimate rights holders and secondary occupants.

A comprehensive out-of-country intake process has not yet been put in place. There is concern that many people, particularly claimants living outside Iraq as well as in rural areas, were not informed about the IPCC and procedures for filing claims before the 30 June 2005 deadline. The extension of the deadline to submit claims until 30 June 2007 has been highly welcomed.

In addition, many property restitution cases are outside the scope of the IPCC and need to be addressed by the ordinary courts, for example where property was lost due to actions which cannot be attributed to the former regime. Cases where real property was damaged or destroyed do not fall under the jurisdiction of the IPCC, thereby excluding, for example, claims related to the destruction of villages in Northern Iraq as part of the *Anfal* campaign[...] or the bulldozing, shelling and burning of villages in the marshes as part of the drainage programme throughout the 1990s.[...]

The main purpose of the IPCC is to ensure that persons who were unjustly deprived of property rights by the former regime are reinstated in their property rights. However, in certain circumstances (e.g. if the property is now being used for a public or charitable purpose or if a house was destroyed and a new building has been constructed in its place) it may not always be possible to return property rights to a former owner or right holder and other remedies may be appropriate (e.g. compensation or in-kind compensation such as another plot of land).

While legitimate property rights holders have a right to return to their homes and lands, it is important that this right is implemented in a manner that does not cause additional human rights violations. In cases where the current occupant is forced to return a property to the original rights holder, adequate measures must ensure that fair compensation is paid for accumulated rights and homelessness is avoided; this could be achieved through the provision of temporary alternative accommodation, reconstruction assistance or allocation of land/housing. To date, compensation guidelines and arrangements to avoid homelessness have not been set in place by the national authorities.

There is also concern that the unresolved nationality law complicates the reinstatement of property rights of those who have not yet reacquired their nationality, since only Iraqi nationals (with some exceptions) can own property or have a right of use. Another constraint negatively impacting the restitution and return process is the politicization of property issues, in particular in formerly 'arabized' areas. IDPs returning from Northern Iraq to Kirkuk are allocated a piece of land (200m2) in Kirkuk Governorate by the Kirkuk authorities with the assistance of the Kurdish authorities. In addition, they receive non-food items such as tents, house goods and kitchen appliances. [...] There is a need for clear legal guidance by the Iraqi authorities with regard to land allocation in order to avoid future problems.

The non-resolution of land, housing and property issues presents a serious obstacle to the return of refugees and IDPs and is a major cause for ethnic/religious tensions."

See also "[Restoring Values: Institutional Challenges to Providing Restitution and Compensation for Iraqi Housing and Land Rights Victims](#)", HIC, August 2005

RI, 25 August 2003

"One of the most complex effects of displacement in Iraq is the issue of settling property claims. Whatever the reason for displacement, it resulted in the widespread involuntary abandonment of property that was, ultimately, confiscated by others. Houses built by Kurds on land that they once owned, for example, were destroyed by Iraqi forces. In their place, Arabs built new homes. Who, then, is the rightful owner of the 'new' house? While it is justified for Kurds to return to their former homelands to reclaim what is rightfully theirs, what sort of remuneration should be provided to Arab farmers who built homes and farmed these lands at the behest of the former regime? What sort of compensation should be provided to Arabs who legally purchased the property of Kurds forced to move? These are just a few of the issues that need to be resolved

before people can resettle and begin new lives with the assurance that their efforts will be recognized as both legal and just."

HRW, August 2004

"A crisis of serious proportions is brewing in northern Iraq, and may soon explode into open violence. Since 1975, the former Iraqi government forcibly displaced hundreds of thousands of Kurds, Turkomans, and Assyrians from their homes, and brought in Arab settlers to replace them, under a policy known as 'Arabization.' With the overthrow of that government in April 2003, the Kurds and other non-Arabs began returning to their former homes and farms. Ethnic tensions between returning Kurds and others and the Arab settlers escalated rapidly and have continued to do so, along with tensions between the different returning communities—particularly between Kurds and Turkomans—over control of the oil-rich city of Kirkuk. In the absence of a speedy implementation of plans to address the conflicting land and property claims and the needs of the different communities, ownership disputes may soon be settled through force.

[...][T]he law fails to address the burning issue of what is to become of the so-called Arabization Arabs, in particular whether they will have the right to choose their place of residence following the resolution of property disputes. They, in a real sense, have become the latest victims of internal displacement."

HRW, 3 August 2004

"In northern Iraq, the authorities' failure to resolve property disputes between returning Kurds and Arab settlers threatens to undermine security in the region, Human Rights Watch said today in a new report. Iraq's interim government urgently needs to implement the judicial means to resolve these disputes, which stem from decades of Arabization policies that uprooted hundreds of thousands of Kurds and other non-Arabs.

The 78-page report, 'Claims in Conflict: Reversing Ethnic Cleansing in Northern Iraq,' documents the increasing frustration of thousands of displaced Kurds, as well as Turkomans and Assyrians, who are living in desperate conditions as they await a resolution of their property claims. Human Rights Watch details how the U.S.-led Coalition Provisional Authority failed to act even as the situation grew more volatile.

As well as implementing the judicial means to resolve these claims, the Iraqi interim government must take urgent measures to meet the immediate humanitarian needs of thousands of internally displaced Kurds and other non-Arabs living in dire conditions in and around the northern city of Kirkuk. It should also find durable solutions for Arab families who were in turn forced from their homes after the fall of the former Iraqi government in April 2003.

'If these property disputes are not addressed as a matter of urgency, rising tensions between returning Kurds and Arab settlers could soon explode into open violence,' said Sarah Leah Whitson, executive director of Human Rights Watch's Middle East and North Africa division. 'Justice must be done for the victims of what was effectively an ethnic cleansing campaign to permanently alter the ethnic make-up of northern Iraq.' The report documents the rising anger of returning displaced Kurds and other ethnic minorities who increasingly feel the only resolution may be for them to take matters into their own hands.

[...]

The Coalition Provisional Authority failed to address the rising tensions in northern Iraq and to implement a strategy to resolve the claims and needs of the different communities there, Human Rights Watch said. When the CPA was formally dissolved on June 28, more than a year after the fall of Saddam Hussein, it had yet to implement a mechanism to resolve competing property claims.

Although legislation was formally passed in January establishing an Iraq Property Claims Commission (IPCC), neither it nor its implementing instructions were finalized until June. More than 6,000 claims have reportedly been lodged at IPCC offices in 10 of the country's 18 governorates, but the judicial mechanism put in place for the adjudication of these property disputes has still not been implemented. The commission's statute also failed to adequately address the question of where Arab settler families are to be resettled once they have vacated disputed property. Many of them have lived in Kirkuk and other Arabized areas since the 1970s and have long since severed connections with their area of origin.

'The process of seeking redress for the displaced Kurds and others must not lead to new injustices against Arab settlers,' Whitson said.

Human Rights Watch called on Kurdish political leaders to coordinate efforts to provide humanitarian assistance to internally displaced families who have already returned to reclaim property, and to discourage further returns to former places of residence until property claims are processed.

Background

Arabization first occurred on a massive scale in the second half of the 1970s as the Iraqi government sought to alter the demographic make-up of northern Iraq in order to reduce the political power and presence of ethnic minorities and consolidate control over this oil-rich region. In northern Iraq, probably as many as 250,000 Kurds and other non-Arabs were forcibly expelled from their homes, including an estimated 120,000 among them during the 1990s.

Simultaneously, the Iraqi government brought in landless Arabs from the nearby Al-Jazeera desert and others from central and southern Iraq to settle in their place. Land titles to the rich agricultural lands seized from the Kurds and other non-Arabs were invalidated upon their expulsion, and the land was then leased on annual contracts to Arab farmers. Many of those expelled have since been living in camps for the internally displaced in the northern Kurdish-controlled governorates for over a decade."

See "[Claims in Conflict: Reversing Ethnic Cleansing in Northern Iraq](#)," HRW, August 2004

HRW, 22 October 2003

"The donor community should also support the establishment of a post-conflict property dispute mechanism to provide fair and efficient settlement procedures a top priority. A broad-ranging restitution and property reform process is an urgent necessity for Iraq in order to avoid inter-ethnic violence. Victims of forced displacement-a crime against humanity-have a right to reclaim their former property, but this right must be balanced against the rights and humanitarian needs of the secondary occupants, many of whom have lived in expropriated homes for decades. "

Overview: housing, land and property rights challenges in Iraq (2003)

- There remain a number of housing, land and property challenges in Iraq
- Hundreds of thousands of Iraqis were forcefully evicted from their homes and lands since the 1960s

- Today, attempts by displaced persons and refugees to reclaim their former homes are complicated because they are now occupied by members of other ethnic groups;
- Others are illegally occupying land, housing and property since the end of the 2003 conflict
- IDPs may also face difficulties making their housing, land and property claims by claimants without documentation to prove their claims
- The excerpt below outlines some further disputes that are expected to arise upon the return of displaced and refugee communities

Leckie, 30 July 2003

"Since Saddam captured power in 1968, hundreds of thousands (if not millions) of Iraqis faced forced eviction, the confiscation of their traditional homes and lands, and widespread involuntary displacement designed to socially engineer an Iraq more favorable to the Saddam regime. Throughout the Saddam era, the Arab population was encouraged through financial, land and other incentives to settle in Kurdish areas, with a view to establishing central Government control over the Kurds and diluting the Kurdish demographic majority in the area. Many of the settlers received formal legal title to the lands they acquired during this shift of population. During this process of 'Arabization', hundreds of thousands of Kurds were ethnically cleansed from their traditional homes and lands, and as far as is known, were provided with no legal recourse, compensation or alternative land or housing. Many of the displaced now wish to reclaim their former homes and lands.

Widespread housing, land and property disputes stemming from returning refugees and IDPs seeking to recover their former homes and lands or to reassert rights over these places of habitual residence, the unauthorized occupation of land, housing or property and irregular transactions of these assets have been reported throughout Iraq. These disputes will grow with more than one million refugees and internally displaced persons contemplating returning to their original homes and villages. Some have already done so, and have returned to the ruins of their former homes. Other returnees have sought to reclaim their former homes, despite the fact that these homes are currently occupied by others.

[...]

In Kirkuk and Mosul, for instance, the process was particularly widespread. [...]

The types of disputes that have arisen and are anticipated to arise with the return of greater numbers of IDPs and refugees include:

- Attempts by displaced persons and refugees to reclaim their former homes, which are now occupied by members of other ethnic groups;
- Unauthorized occupation of land, housing and property by secondary occupants since the end of the recent conflict;
- Housing, land and property claims by claimants without documentation to prove their claims;
- Determining rights in instances where current occupants hold 'lawful titles', but where returnees do not;
- Determining rights following the unregistered transfers of property;
- Claims by bona fide purchasers of property after it was initially expropriated;
- Claims for improvements made on homes, lands and property legally owned by returning refugees and IDPs;
- Claims on the determination of boundaries;
- Claims of tenancy rights and cultivation rights;
- Land occupied by various political or military groups; and
- Disputes between tribes and villages.

In addition to these types of disputes, those affected by the various land re-distribution efforts during the past several decades may yield restitution claims and possible disputes. While some of these land reform programs were clearly legal and involved the payment of compensation to those who faced the expropriation of their lands, in instances where this was not the case, legitimate claims may emerge.

Recent Forced Evictions and Displacement

Forced evictions and displacement have continued beyond the end of the Saddam era. Various types of forced evictions have been evident in Iraq since the beginning of the present occupation. These acts do not appear to have been treated sufficiently as a human rights issue thus far, despite the clear human rights implications of the practice and the requirements stemming from Article 27(1) of the Fourth Geneva Convention.

Northern Iraq

In Northern Iraq, an unknown number (but generally thought to be thousands) of Arab Iraqis have faced eviction by formerly displaced Kurds seeking to reclaim their former homes and lands. Kirkuk has been particularly affected. These evictions, carried out without regard for the rule of law or the human rights of those evicted, have resulted in considerable hardship for the Arab families affected, and have created deep-seated animosities among the ethnic groups, threatening security in the area. While historical imperatives may lie behind the current eviction wave throughout the Kurdish areas, it remains vital that the rights of **all** Iraqis are protected and respected. All told, tens (if not hundreds) of thousands of families may eventually be affected by these processes. The US military has been reluctant to intervene in these acts of violence in a concerted manner, and as a result, evictions and resultant displacement of Arabs has been widespread throughout northern Iraq.[1]

Southern Iraq

In Southern Iraq, growing numbers of Iranian refugees have also faced forced eviction from their homes in recent months. These appear to have been carried out by local communities. That only a small number of CPA staff are employed in Southern Iraq indicates the practical difficulties involved in monitoring and preventing such acts in this area of the country. In Basra, over 400 persons are living in a reception center after having been forced to flee their homes in Al Dual by the local population, which in turn confiscated their land and other assets.

Baghdad

In Baghdad, thousands of people have been evicted since the beginning of the US Occupation. Ba'ath party officials, Republican Guards and other favored government bureaucrats under the Saddam regime and large numbers of ordinary poor Iraqis have been evicted in large numbers from their homes. Hundreds of up-market apartments along the Tigris River have been seized by angry mobs, and the occupants evicted. Hundreds, and probably thousands of additional Iraqis have been evicted in recent weeks after falling behind in their rent, or simply because landlords, unconstrained by law or officialdom, believe they can obtain substantially higher rents from new tenants.

Mass forced evictions of Palestinian refugees resident in Baghdad have also been reported. UNHCR has said that some 1,000 Palestinian refugees had been evicted by early May 2003, and that as many as 60-90,000 more refugees may also face forced eviction as private landlords seek to reclaim apartments they were forced to rent to the refugees for very small sums, and to cash in on new arrivals from the international community with considerably larger sums of cash to be spent on rent. [2]

Unless action is taken promptly by the Competent Authorities to halt these forced evictions, it is likely that further violent displacement will ensue once refugees beginning returning in larger numbers. This will only fuel the already insecure and unstable situation in the region. As of July 2003, available information does not indicate that those carrying out these evictions are being held accountable under law, nor that comprehensive measures based on law have been taken to halt such evictions. Equally, it remains unclear under which legal regime these arbitrary evictions are ostensibly justified, if any. It appears that there has been no effort by the Competent Authorities to attempt to confer even informal security of tenure (let alone formal) rights to dwellers in all tenure categories in Iraq (eg. Owner-occupied, private sector tenancies, public sector tenancies, etc) as a concrete means of discouraging and preventing further forced evictions.

[...]

Housing, Land and Property Registration and Titling Systems

Under the present circumstances of unrest, the lack of a functioning and impartial judiciary throughout the country and the slow re-emergence of public institutions, housing, land and property transactions are not generally subject to formal legal or institutional oversight. House sales that take place at present may be based on informal contracts between the parties, but these may neither be formally legal, nor necessarily a form of transaction that will be recognized by future judicial and related institutions. The absence of an official means for such transactions serves to create greater insecurity and fear that people forced to sell or buy a home might not have rights as secure as they would otherwise anticipate. This is a problem common to post-conflict settings, and one that requires the attention of the authorities.

The incomplete nature of registration records and the lack of current capacity in housing, land and property registration institutions now in place also means that people will find it increasingly difficult to prove ownership or tenancy rights over a particular dwelling. This, in turn, will become another major challenge to whatever institution is established to resolve housing, land and property disputes. It is clear that a major effort will need to be made by the Competent Authorities to discern the degree to which the system for registering housing, land and property titles and/or tenancy rights is in place, and how best to re-establish these functions throughout the country. The Competent Authorities will need to rapidly discern what portion of the registration (or cadastre) records are still available for consultation, and to what extent they have access to and control over these vital records.

Unauthorized or Irregular Occupation of Abandoned Private and Public Land, Housing and Property

In the aftermath of conflicts throughout the world, the unauthorized occupation of abandoned public and private housing, land and property is common. Iraq is no different, with numerous reports of land, housing and property being taken over, (sometimes by force), by those seeking either basic housing or to gain economically. The CPA estimates that 65,000-75,000 displaced persons and 55 Palestinian families are occupying public buildings. In the capital, for instance, innumerable private and public buildings have been informally occupied by homeless families, without official authorization, but who have little or no other housing option available to them in the lawless environment of Baghdad. While the CPA has adopted Order No. 6 to enable it to evict persons illegally occupying public buildings, this alone is not a sufficient policy response to this reality. The Competent Authorities will eventually need to find a means of formally recognizing the ownership or tenancy rights over such premises and lands or to find equitable ways to return such properties to the legitimate owners or former tenants. While many of those currently resident in such premises may be doing so purely for humanitarian reasons, with no other possible means available to them, an effort will need to be made to provide some form of security of tenure to persons and families in these groups, and to determine when such unauthorized occupation has

been carried out by large-scale criminal or other groups seeking illegitimate economic gain, as opposed to those who have done so out of economic necessity.

Women's Housing, Land and Property Rights

Although the 1990 Interim Constitution of Iraq in Article 17 provided that 'Inheritance is a guaranteed right, regulated by the law', Iraqi women face difficulties inheriting housing, land or property in the event of the death of their spouse. [3] In Iraq, as in many countries, Sharia law guides the inheritance process, and in turn women receive only half of what a male inheritor receives. This appears to be the major housing, land and property problems facing women in Iraq. Rights to participate in the housing, land and property restitution process and equal rights to ownership, use and control of housing, property and land appear to be guaranteed, though the implementation of these rights leaves much to be desired. Women's rights must pervade all elements of the housing process, and steps should be taken to use such processes as an opportunity for securing such rights in places where discrimination against women obstructs the broader enjoyment of housing, land and property rights.

Housing and Property Damage and Destruction

While the precise scale of housing and property damage and destruction due to the 2003 conflict is not known, it is clear that a large number of civilian homes were damaged or destroyed by US-led Coalition Forces. It will be important for the CPA to develop appropriate policies for repairing and rebuilding these homes, and for the provision of satisfactory compensation to those affected.

Pending Housing Privatization

One of the main challenges facing the Competent Authorities and the people of Iraq will be how to best approach the issue of housing privatization. Areas of the economy currently under State control (in name, at least) will all be likely vetted for possible privatization by the CPA. [...]. While the broader scope of this highly contentious issue is beyond the scope of this document, this issue is of vital importance for the housing sector as a whole. A sizable portion of the Iraqi population reside in what is technically social (public) housing, both in ownership and tenancy arrangements. If past practice is anything to go by, it is likely that the CPA will vigorously pursue the privatization of such housing resources, although in the short-term this is not foreseen to constitute a major policy area of CPA concern. In the medium- and longer-term, however, as the realization of the importance of the housing sector for the economic, social and political stability grows, pressure to shift these housing resources from the State to private hands will also increase. In practice, however, hastily arranged maneuvers designed to shift the ownership of public resources into private hands is an immensely complex process that can create a new series of hardships on those affected, as well as complicating the housing, land and property rights claims process in the shorter-term. The CPA should leave these types of decisions to the Iraqis themselves."

Footnotes

[1] Jason Burke, 'Arabs flee vengeance of the Kurds' in *The Guardian Weekly* (24-30 April 2003).

[2] UNHCR, 'UNHCR sends aid to evicted Palestinian refugees in Baghdad' (9 May 2003).

[3] This point is also recognized in the UNHCR *Voluntary Repatriation Handbook*: "Special attention needs to be paid to the question of access to land for residential and agricultural use by returnee women heads of households. If the local legislation or traditional practice does not grant returnee women the same rights to land as returnee men, UNHCR has to draw the attention of the authorities to this problem and seek to find suitable ways to rectify this situation. If this is not done early enough, there is a danger that returnee women may lose out in the competition for land, either by not getting access or being evicted. This may in turn lead to increased vulnerability

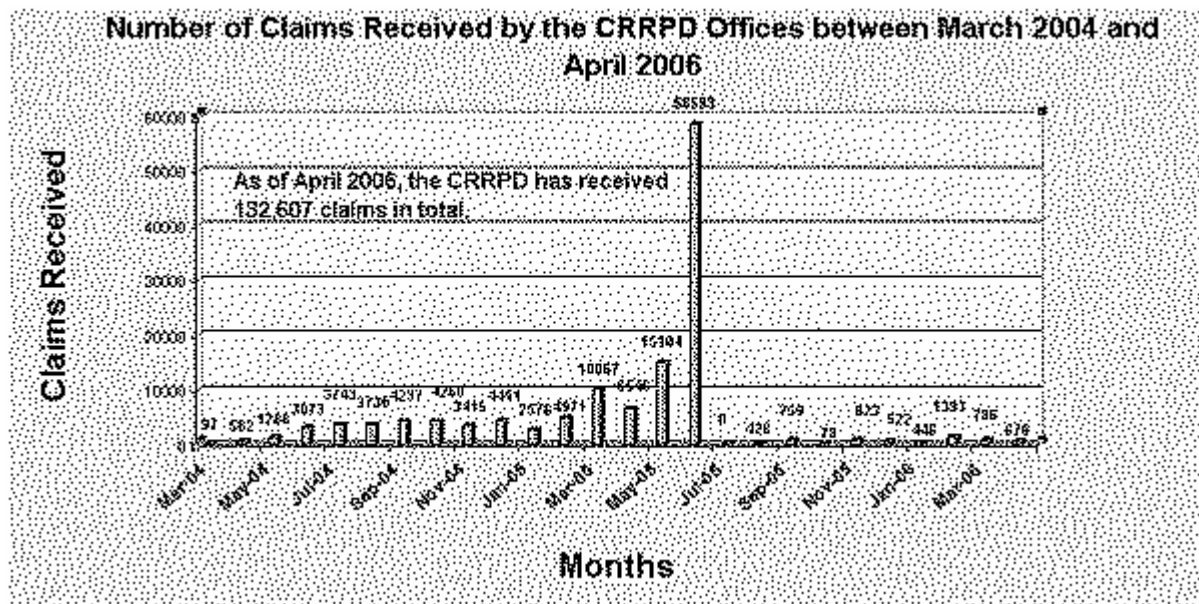
and possible internal displacement. In any case, UNHCR has to closely monitor the handling of returnees' access to land and to ensure, if necessary through intervention, that returnee women have access to land on the same footing as returnee men."

Institutions

More than 132,607 claims received by CRRPD (2006)

- As of April 2006, more than 132,607 claims had been received by CRRPD (formerly IPCC) (April 2006)
- The CRRPD settled 21,730 claims (as of April 2006)

CRRPD, April 2006



UNHCR, October 2005, p. 129

"By the end of July 2005, 126,693 claims had been received. Adjudication of claims started in October 2004 and by 27 July 2005 a total of 8,554 claims had been decided (6,985 claims against the government, 1,569 claims against individuals). A total of 1,851 appeals have been decided with 1,188 claims certified and 663 claims rejected. Decisions have ordered the return of real property and/or compensation to be paid to claimants....]"

UNHCR, September 2004

"[D]espite the establishment of the Iraqi Property Claims Commission (IPCC), this institution is still in its infancy and much remains to be done (including the establishment and equipping of IPCC offices throughout Iraq, nomination and training of IPCC staff as well as the establishment of a compensation mechanism) before the IPCC will be in a position to begin adjudicating property claims and thus enable refugees and displaced persons to regain their previous homes. In this context, recent reports that KDP and PUK authorities have started re-distributing land

located in Kirkuk confiscated during the Arabization process to residents from Erbil and Sulaymaniyah is particularly worrying given the extremely sensitive political implications of such distribution."

AFP, 3 September, 2004

"Iraq's property claims commission for disputed land in oil-rich northern Iraq has failed to process a single claim, despite more than 167,400 Kurds re-settling in dozens of refugee camps since March alone, a US commander said.

Of those tens of thousands of Iraqis tracked by the US military and classified as internally displaced persons (IDPs) in the last six months, more than 153,000 are Kurds. For Major General John Batiste, the brewing crisis is the biggest problem facing the 1st Infantry Division (1st ID), outweighing the threats of foreign fighters and insurgents in Sunni Muslim trouble spots north of Baghdad.

Since early 2004, 77,000 Kurds have re-settled in the province of Tamin, home to northern Iraq's oil capital of Kirkuk, 65,747 in Salaheddin and 10,675 in Sulaymaniyah, based on US statistics.

Aside from the Kurds, 4,757 Turkmen and 2,226 Arabs have resettled in Salaheddin, with another 5,000 Arabs and 2,000 Turkmen classified as IDPs in Tamin, home to the largest oil reserves in the world's second largest producer.

The US military was unable to provide immediate statistics for Diyala, which makes up the fourth province patrolled by the 1st ID, north of Baghdad.

Tens of thousands of Kurds, desperate to return to the northern land from where they were hunted under Saddam Hussein's brutal 'Arabisation' policy, are living in camps dotted around the north, waiting for their claims to be heard.

Forty-four of those camps are in Tamin province, which has a rich ethnic mix of Kurds, Arabs and Turkmen. But as some Kurds have forcibly seized control of their former property, thousands of Arabs have been shunted into similar camps, waiting for their fates and compensation to be resolved with nowhere else to live.

'The Property Claims Commission is not working. 5,399 claims have been filed, but 143,222 IDPs are trying to resettle,' Batiste told AFP.

Based on his statistics, not a single claim has been processed since the Iraqi Property Claims Commission was set up just before Baghdad's interim government took power in June.

[...]

A report released last month by the Human Rights Watch said if the disputes are not dealt with urgently, rising tensions could explode into open violence. The New-York based rights group also blamed the former US-led occupation for not implementing a strategy to resolve the growing crisis."

See also:

"Property commission gives displaced people hope" , 25 May 2004, Integrated Regional Information Network [Internet]

Commission for Resolution of Real Property Disputes (formerly the Iraq Property Claims Commission) overview (2006)

- IPCC was created through the Transitional Administrative Law (TAL) and agreed to by the Iraqi Governing Council
- The Commission was signed into law in January 2004 and the first offices opened at the beginning of March
- The Commission is intended to redress injustices owing to misappropriation and distribution of properties during the former regime
- Property issues are of most concern in Kirkuk and the surrounding areas
- The Commission is composed of a National Secretariat and regional commissions based in each governorate as well as an Appellate division
- The deadline to file claims was extended to 30 June 2007
- In March 2006, a law came into force replacing the IPCC with the Commission for the Resolution of Real Property Disputes

IPCC, April 2006

“On 6 March 2006, a new law came into force replacing the Iraq Property Claims Commission with the Commission for Resolution of Real Property Disputes. The new law includes some significant changes from the previous legislation.”

UNHCR, October 2005, pp.128-129

“The IPCC consists of a National Secretariat which oversees all operational and management activities, Regional Secretariats and local offices in each Governorate of Iraq which receive claims and prepare them for adjudication (currently 30), Regional Commissions in each Governorate which issue first instance decisions (currently 38) and an Appellate Division in Baghdad which issues second instance decisions.

The IPCC process is open to all persons or their heirs who have been wrongfully deprived of real property (e.g. house, apartment or land) or an interest in real property (e.g. right to use land) because of actions taken by or attributed to former Iraqi Governments between 17 July 1968 and 9 April 2003. Claims can also be made by people who lost real property or an interest in real property between 18 March 2003 and 30 June 2005 as a result of their ethnicity, religion or sect, or for purposes of ethnic cleansing, or by individuals who had been previously dispossessed of their property as a result of the former regime’s policy of property confiscation. [...] The deadline to file claims was initially 30 June 2005, but it was subsequently extended to 30 June 2007.

The IPCC Statute envisages that certain persons who lose possession of real property as a consequence of an IPCC decision may also receive compensation, assistance with resettlement and/or new property from the state. [...]

The IPCC *Statute* and *Instructions for Operation* encourage parties to voluntarily settle claims.⁸⁸⁴ If this is not possible or the parties choose not to voluntarily settle, Regional Commissions decide the claim and appropriate remedy by majority vote of their three members.⁸⁸⁵ These decisions can be appealed within 60 days after the date of the decision on the grounds of new evidence or manifest error. [...] Decisions are final and binding on the parties and enforceable by competent authorities either when a first instance decision is not appealed within the applicable deadline or the Appellate Division issues a decision.⁸⁸⁷ Final orders requiring the current occupant to return the property can be enforced after 60 days if the occupant does not leave the property voluntarily. [...] The IPCC *Statute* envisages that certain persons who lose possession of real property as a

consequence of an IPCC decision may receive compensation, assistance with resettlement and/or new property from the state,⁸⁸⁹ but the implementation of these provisions remains uncertain.”

UNHCR, August 2004

“The Iraq Property Claims Commission (IPCC) is the organization set up to reinstate peoples’ property rights that were taken away by widespread property confiscations by the former Iraqi Government. Confiscation was used as a way of punishing political opponents, as a source of resources for rewarding allies, and as a way of changing the demographics in strategic areas. The Iraqi Governing Council (IGC) played a lead role in drafting the Statute that established the IPCC and its boundaries. The Statute came into force on January 15, pursuant to CPA regulation 8, and was amended on June 24, pursuant to CPA regulation 12. These regulations may be consulted on the [CPA website](#) until 30 June 2005 at which time the website will cease to exist.

The IPCC consists of a National Secretariat (responsible for overseeing all operational and management activities of the IPCC), Regional Commissions (first instance) established in each governorate of Iraq and in the Kurdistan Regional Government area, as well as an Appellate Division (second instance) in Baghdad.

The IPCC process is open to all persons, or their heirs, who have been wrongfully deprived of real property (e.g. house, apartment or parcel of land) or an interest in real property (e.g. right to farm the land) because of actions taken by the former governments between July 17, 1968 and April 9, 2003 and or actions which can be attributed to them. The latter includes actions carried out by Ba’ath party members and relatives of senior officials of the government or Ba’ath party.

Claims may also be made by people who lost or lose real property or an interest in real property between March 18, 2003 and June 30, 2005 as a result of their ethnicity, religion, or sect, or for purposes of ethnic cleansing, or by individuals who had been previously dispossessed of their property as a result of the former government’s policy of property confiscation.

The IPCC’s jurisdiction does not include situations where property was lost due to legitimate public land reform or lawfully used eminent domain. Nor does the IPCC consider claims for losses not involving a taking of an interest in real property, such as claims for damage to real property, or takings of personal property, or lost income. It is recognized that landowners whose properties were seized and confiscated for land reform purposes after 1968 might have received inadequate or no compensation. These past injustices, including those who suffered injustices as a result of the agricultural reform before 1968, should be dealt with by the future Iraqi Government.

A claim should be filed in person or through a representative at any IPCC Office, latest by 30 June 2005. Claim forms may be obtained from any IPCC Office. A claimant does not necessarily have to be the owner of the property, but is equally entitled to file a claim if s/he has lost a right to possess or use the property. This includes, for example, a right to farm or use the land in question. In addition, members of a community may make a claim for communal property. If the rights holder cannot, is absent or his whereabouts are not known, other community members are entitled to file a claim. To do so, they must offer proof of the registered person’s absence and of their membership in the community. This applies equally to situations where the rights holder of a family is missing or her/his whereabouts are not known.

In the process, the IPCC will also consider rights of other people who may also claim an interest in the property or who may have a title to the property. The IPCC will normally write, as soon as possible, to any interested parties (i.e. respondents), informing them of a claim. To guard their rights, respondents must file a response within the given deadline.

The IPCC is in the process of establishing offices in each Governorate in Iraq and in the Kurdish Regional Government area. The IPCC offices will collect and register claims and assist people in presenting their evidence to the Regional Commissions that will decide the claims on an impartial basis. The IPCC operates under Instructions for Operation and Guidelines which are intended to ensure the resolution of claims in a fair and consistent manner, regardless of the parties' ethnic background, sect, religion or gender.

The main purpose of the IPCC is to ensure that persons whose property has been wrongly taken are reinstated in their property rights. However, given the need to take individual circumstances into account, it may not always be possible to return property or rights to a former owner, possessor or user, and other forms of compensation may be appropriate, especially as regards persons who may be forced to leave their property as a result of an IPCC decision. The Interim Iraqi Government is currently considering whether it will be able to offer compensation in such cases. In addition, structures still need to be put in place to provide secondary occupants without resources and whose housing needs cannot be met otherwise with temporary alternative accommodation until they can either return to their former home or are provided with a permanent solution (e.g. allocation of land/housing).

The IPCC is also in the process of establishing offices or structures outside Iraq to receive claims, responses and other documents from persons living outside Iraq and relay them to the National Secretariat in Iraq. The creation of such structures is still in the initial stage. At least three to six months are required before these offices are operational. Once those offices and structures are established, public information campaigns will be conducted to advise Iraqis living abroad about how to participate in the IPCC process.

It should be noted that initial plans were to house the IPCC within the Iraqi Ministry of Migration and Displacement (MoDM). Within this context, the MoDM published an article in a local newspaper in April 2004 [...] in order to inform readers about the existence and functions of the IPCC. However, no further public information on the IPCC was forthcoming, and a later decision by the CPA concluded that the IPCC will in fact be an independent entity which reports directly to the Prime Minister. Persons interviewed expressed frustration at not having heard anything about the IPCC since April, and scepticism about its ability to resolve property disputes in a timely manner. They further mentioned un-documented cases where returnees have decided to take matters into their own hands in order to forcibly evict occupants from their properties."

IPCC, 7-9 September 2004

"IPCC was give life through the Transitional Administrative Law (TAL) agreed by the Iraqi Governing Council (IGC). It was signed into law on January 15th 2004. The IPCC was seen as the way to redress injustices created from wrongful appropriation and distribution of properties due to the actions or policies of the former Baathist regime. This national problem is of prime concern in Kirkuk and the surrounding areas due to Baathist policies of ethnic redistribution, which have displaced Kurds.

The first of the IPCC offices were opened at the beginning of March with the sole focus of distributing claims forms. There were offices open in the north, middle and south of Iraq by the end of May. Since the claims hand out the organisation has worked to put systems in place necessary to running a mass claims system such as Regional Commissions to make decisions on claims and the financial ability to pay organizational salaries.

On the 28th of June Prime Minister Alawi and Ambassador Bremer appointed the Head of IPCC, Suhail Al Hashimi to his position. He has continued to work on building the organizational capacity of the organization toward taking decisions on claims filed.

Present Status

All governorates in Iraq have IPCC offices. Kirkuk has the largest number with four offices. Diyala and Saladin have two each governorate.

All have Regional Commissions which have been established with adjudicators trained and appointed to be able to decide claims. The Commission is reviewing cases in order to start making decisions once a compensation plan has been established.

19,000 claims have been filed

The Prime Ministers office has established an inter-ministerial working group to work on the issue of compensation for the displaced. This is headed by IPCC and MODM working with Ministries of Finance, Agriculture, Public Works, Housing and Construction, Planning and others.

IPCC has organized a Public Information Department. They have started running advertisements in newspapers, radio and TV. The department has been working with special emphasis on the north of Iraq and Kirkuk in order to inform IDP's of the IPCC process.

The Head of IPCC Suhail Al-Hashimi has formed a working group to address the special needs of the area of the area and work on providing immediate solutions. These include better communication on the role of the IPCC in assisting IDP's claims, support to the offices, and working to address the immediate areas.

Continued and Future Actions

Claims Adjudication. The first work of the commission will be to make decisions to restore rights to claimants in uncontested cases. This is expected to take place in the next month. The larger work of adjudicating on contested claims is expected to take several more months to begin.

Compensation. The decisions of the commission cannot be applied until a compensation package is decided on. The inter-ministerial working group in charge of working on compensation is expected to render a number of options including monetary grants, property restitution, soft loans and various other options.

Cooperation with international organisations. Given IPCC's newness as an organisation it will continue to need assistance particularly in the areas of:

1. *International Mass Claims Reception and Coordination.* UNHCR and IOM will be working on the intake of property claims regionally and coordinated with Iraqi counterparts for the transfer of claims information.
2. *Public Information.* A vital component of this coordination will be in this area. A coordinated plan needs to be agreed between the IPCC Public Information department and international organizations. Common communication must be agreed to so that the deepest message saturation can reach potential claimants.
3. *Database Assistance.* Mass claims systems have used data bases previously in order to sort, file and make claims decisions. Existing international expertise is necessary to augment IPCC IT capacity and construct a working database model.

Best Practice Recommendations. IPCC needs to continue to draw on the long experience of international organizations who have worked in the area of mass claims and property restitution. Strengthening of communication ties needs to occur so that the organizations decisions are guided by experienced recommendation. Cooperation will encourage an understanding of lessons learned and the international context IPCC operates in with the needs of transparency, efficiency and regard for international standards of human rights norms."

See the IPCC website launched in June 2005 and for background Coalition Provisional Authority Regulation 12

Iraqi Property Claims Commission established with little Iraqi involvement (2004)

- The Coalition Provisional Authority (CPA) established the Iraqi Property Claims Commission with little Iraqi involvement
- The experience of the national property commission of Bosnia and Herzegovina indicates the importance of involving national authorities in the process

FMR, September 2004

“Lessons learned in BiH [Bosnia and Herzegovina] appear not to be heeded in Iraq where it is estimated that up to a million people were displaced as a result of expulsion policies that the former regime used to remove opponents and gain valuable land in the southern marshes and in the north. A worrying start was made when the occupation authorities established the Iraq Property Claims Commission (IPCC) in January 2004 with little Iraqi involvement. Experts working for the Coalition Provisional Authority (CPA) drafted a document and required the Iraqi Governing Council (IGC) to implement its provisions without paying sufficient attention to realistic enforcement mechanisms.

BiH experience shows that national institutions have to be instrumental in reallocating housing to those displaced by a returning owner or rights holder, since they are the ones in control of the municipality housing stock and able to mobilise the police to enforce evictions if necessary. Yet in Iraq national institutions will be hard-pressed to resettle the new ‘displacees’, as they are bound to under the terms of the IPCC. Those likely to be first in line for eviction by returning owners or legal rights holders- mostly Arabs allocated housing by the Baathist regime in areas populated by Kurds and Turkomen – will probably wish to be resettled in areas where they constitute a majority.[1] It is not clear either whether the newly-trained Iraqi police force will have the requisite will or ability to carry out contentious evictions. Had more attention been paid to the Bosnian experience it would have been readily apparent to the architects of the IPCC that national involvement from the start is vital to successful implementation of the scheme.”

[Footnote 1, Human Rights Watch, August 3, 2004]

This is an excerpt of “Restitution of land and property rights”, by Anne Davies. For the full article, see [Forced Migration Review, September 2004 \[Internet\]](#)

See also, “[US advances Bosnian solution to ethnic cleansing in Iraq](#)”, *The Guardian*, " 24 April 2003 [Internet]

Law and policy

Baghdad security plan includes eviction of illegal occupants many of whom are displaced (2007)

UNSC, 7 March 2007

“The Baghdad security plan was formally launched on 13 February 2007 in a live televised address by General Qanbar, Commander of Baghdad security plan operations. General Qanbar announced that the launch of the Baghdad security plans would be accompanied by closure of the borders with the Syrian Arab Republic and the Islamic Republic of Iran for a period of 72 hours and the extension of curfew hours in Baghdad. Illegal occupants of real estate property belonging to displaced persons were given 15 days to vacate and return such properties with their assets to their legal owners. Prime Minister Al-Maliki distinguished the new plan from past efforts by highlighting Iraqi control of security operations with United States troop support, the

decision to confront all armed groups regardless of religious or political affiliation, and the combination of reconciliation and economic measures.”

Habitat International Coalition recommendations on housing and land rights (2005)

HIC, August 2005

Data collection and quantification of losses:

q In the immediate term, victims and their legal representatives are urged to quantify plaintiffs' losses thoroughly, using existing tools and techniques developed in other contexts to the extent that comprise a full inventory of claims and ultimately serve the full restoration of Iraqi victims' housing and land rights, as well as provide policy and financial planners with the data needed to assess future requirements and options for restitution and compensation.

q That method should take account of the entire complement of housing and land rights elements provided in the CESC General Comments Nos. 4 and 7, as well as other congruent and interdependent rights codified in the human rights treaties to which Iraq is a party and elaborated through the jurisprudence of the treaty-monitoring bodies.

q An authoritative Iraqi body, such as the IPCC National Secretariat, in cooperation with the Ministry of Displacement and Migration or the larger interministerial Working Group on Compensation for the Displaced, should develop and provide to IPCC adjudicators ample guidelines for determining remedies based on Iraqi law and prevailing human rights standards.

q Such a mechanism also must improve the current claim forms for new submissions and seek additional information from claimants already on record by issuing detailed instructions to claimants and their representatives on how to present data complete enough so as to determine what compensation is due to the displaced and/or dispossessed owner. These guidelines should allow all categories of loss included and omitted in the current IPCC instruments, but allowable under Iraqi law; value assessments based on current market value of structures, lands and harvest crops; lost revenue from the use of property; relocation and alternative housing costs resulting from the violation and required for resettlement; recurrent costs; values for pain and suffering, etc. (A summary of the “Loss Matrix” from the [HLRN Housing and Land Rights Toolkit](#) is annexed here by way of example.)

Institutional Correction

q It is urgent, necessary and consistent with provisions of the CPA Regulations¹¹⁵ for the IPCC National Secretariat and/or Iraqi National Assembly to restore the applicability of the Iraqi Civil Code in the adjudication of property disputes and related claims arising from housing and land rights violations. That should allow the admissibility of claims arising from forced or coercive contracts for the transfer of real property for less than its full value, including lands taken under the Agricultural Reforms Law No. 117 (1970). Applying neutral law then would replace the ideological focus on claims exclusively against the former Ba`thist leadership and permit claimants to seek remedy, focusing rather on addressing violations, as such, and relief for victims.

q The IPCC National Secretariat and/or National Assembly should determine that cases and claims received under the IPCC statute, and all property disputes, be adjudicated in their proper forum; i.e., courts of law, special courts, or other judicial institution directed by Iraqi

representatives, having judicial effect, and respecting rights and due procedures of appeal. q In the meantime, it is urgent and important for victims and their legal representatives to petition for the application of Iraqi law, which is not limited to the service of selective classes of restrictive time prescriptions set forth in the IPCC statute.

q In the interest of deterring further housing and land rights violations, civil and governmental institutions are needed to complement the IPCC's remedial work by investigating and, where possible, prosecuting housing and land rights violations committed by all parties, in addition to former Iraqi government and Ba`th Party members and institutions, identifying also those acts and omissions committed by the personnel of the CPA, multinational forces occupying the country and other domestic and transnational parties that lead to violations of housing and land rights.

q The Iraqi National Assembly should assert practical sovereignty and the rule of law by repealing CPA Order No. 17 claiming immunity for multinational forces personnel from the jurisdiction of Iraqi courts in matters of liability for housing and land rights violations.[...]

q The Iraqi National Assembly should assert practical sovereignty and the rule of law by repealing CPA Order No. 6 "Eviction of Persons Illegally Occupying Public Buildings" in favor of local law and procedures that incorporate CESCR General Comment No. 7 "the right to housing: forced eviction," in order to ensure that human rights and well-being be upheld in the conduct of any due-process evictions.

q Iraqi law makers and political leaders should publicly encourage civil society participation in the monitoring and documentation of past, present and future housing and land rights violations, and should formulate explicit policy and legislation to protect housing and land rights defenders from retaliation.

q International donors should consider providing aid and technical help to the Iraqi judicial system in tandem with that to the IPCC investigative and mediating functions. This will help mitigate the drain of personnel, funding and prestige from the Iraqi courts arising from the IPCC statute and its implementation, while maintaining the relevance of Iraqi courts for disposing of all IPCC-related claims with judicial effect, not only the potentially great number of valid claims that fall outside the IPCC framework. *Interpretive Options*

q Claims for moveable property losses, immovable property damage, and injury arising from mental anguish or humiliation, and other claims outside the IPCC statutory chronological and subject limits still would fall within the purview of the Iraqi Civil Code and Iraqi courts. Claims for remedy should be raised in Iraqi courts now, based on the argument that domestic Iraqi law and international treaty standards continue to apply.

q Certain plaintiffs mounting their claims in Iraqi courts after the 30 June 2005 IPCC submission deadline will hold an advantage by avoiding the various restrictions of the IPCC statute and availing themselves to the more-complete and inclusive Iraqi Civil Code.

q The IPCC's "General Principles" are not absolute and are subject to revision by the IPCC National Secretariat and under the legislative jurisdiction of the National Assembly. [...] In the meantime, claimants and adjudicators may exercise their option, even under the IPCC statute, to resort to other legal guidance and norms in arguing or disposing claims.[...]

q All adjudicators in Iraq should scrupulously avoid replacing original or replacement land remedies with cash awards, where possible. [...]

q Claimants and their representatives before the IPCC, as well as IPCC adjudicators, should take the initiative of invoking both Iraqi and international law in order to ensure full restitution *and* compensation for victims, not a choice between them.

See full report in sources below

Compensation to Fallujah and Tal Afar residents for property losses (2006)

- Authorities reportedly began to distribute compensation to residents forced to flee from Talafar in November 2005, though some felt the amount was insufficient
- The Iraqi Central Committee for the Compensation of the People of Fallujah (CCCPF) was created by the Iraqi government to ensure the compensation of those whose homes and/or businesses damaged during the US led Coalition Forces offensive on the city in November 2004
- IRIN reports that the CCCPF claims to have made payments of around \$2000 per person to 200 families but many families have found this amount to be insufficient to cover the value and cost of rebuilding their homes
- Officials note that the amount allocated for compensation and reconstruction is insufficient (\$200 million which was raised to \$300 million though officials believe around \$500 million is needed)
- IWPR and BBC noted few signs of reconstruction in April 2005 and a BBC correspondent noted that there is "barely a building without bullet or shell scars"

UNAMI, February 2006, p.1

"In Fallujah, the Mayor expressed concerns for the inhabitants particularly over the issue of compensation for the losses incurred as a result of fighting"

IRIN, 20 November 2005

"Thousands of families from the town of Talafar, some 80 km east of the northern city of Mosul, have begun to receive monetary damages for losses incurred during US-led military operations in September.

City officials last week began to distribute part of a \$3-million compensation package funded by the Iraqi Transitional Government aimed at reimbursing residents of the city whose houses and businesses were destroyed during fighting between insurgents and Coalition forces.

[...]

More than 50,000 families out of Talafar's population of 400,000 left the city during the military operations, many of whom returned to find their homes and businesses devastated.

In an effort to compensate their losses, each family received an initial amount of \$100, with monthly stipends planned for residents and extra reparations for those whose properties were totally destroyed.

Reimbursements were also extended to a number of displaced families living on the outskirts of the city who have not yet returned to the city because their homes remain uninhabitable.

Some residents expressed satisfaction with the payments.

Anuar Kubaissy, 34, a father of two, said: "I was worried about how I was going to feed my family because I had lost everything. Even the shop where I worked was totally destroyed."

Others, however, complained that the amount was insufficient, especially for those with large families.

"They offered the same amount of money to families of two as they did to those with seven members," said Zeid Ahmed, 45, a father of six.

Reconstruction projects have also begun in the city, aimed at repairing the destruction.

"Three schools have been repaired, two clinics improved, a new power installation built and many streets in the most damaged areas of the city repaved," Muhammad said.

More than 400 houses and shops were reported to be seriously damaged during hostilities, not counting schools, clinics and mosques."

IRIN, 24 May 2005

"About 70 percent of buildings, many of them houses, were destroyed during the conflict. [...]

The Iraqi Central Committee for the Compensation of the People of Fallujah (CCCPF) told IRIN that 200 families have been given payments spread over eight months. Each person has received nearly \$2,000 but residents complained that the amount was not enough to rebuild their lives and homes again.

Bill Taylor, director of the US-Iraqi reconstruction management office, told IRIN that insecurity and attacks elsewhere in the country had caused a general delay in contractors work but insisted that reconstruction would not stop and families in Fallujah would soon start to feel a difference in their lives.

Others argued that more funds were needed. Khalid Kubaissy, a senior official from the CCCPF, told IRIN that the \$200 million was not enough to cover compensation and reconstruction costs. According to their evaluation, more than US \$500 million was required for the total reconstruction of Fallujah.

Kubaissy added that 30,000 houses were damaged in the battle and more than 5,000 had been totally destroyed. In addition, around 8,500 shops, 60 mosques and 20 government offices required massive repair work.

'When they [US troops] decided to destroy Fallujah they were so fast but when you talk about rebuilding the city and paying for destruction they are very slow. We lost our house, personal things and traditions but no one cares about that and even in the media, Fallujah has been forgotten,' Abu Athir, a local resident, told IRIN standing next to the rubble where his home once stood." ()

BBC, 7 April 2005

"About half the population of the Iraqi city of Falluja have returned to their homes in the five months since a major US offensive there, officials believe.

Authorities have begun handing out compensation to residents for property damaged during the assault, targeted at insurgents hiding in the city.

But only 20% of each claim is being covered, leading to complaints.

Homes and shops in the centre of town remain badly damaged, although there are some signs of rebuilding.

The signs of the battle for Falluja are still everywhere.

The first building I saw as I drove into the city was missing most of its upper storey.

A blue-tiled mosque nearby was full of holes from what looked like machine-gun fire.

Then came a patch of open ground where all the buildings had been levelled by American bombs.

And all the way in to the centre of Falluja there is barely a building without bullet or shell scars.

Compensation

On the streets there is activity, but what is striking is how little there is for a city of 300,000 people on a weekday.

Many shops and businesses are still shuttered or destroyed.

But in another street, I saw a series of shops with new glass fitted, selling wedding dresses in bright colours.

Iraqi officials here and the US marines based in Falluja estimate that about half the population has now returned.

They have started to hand out compensation payments to people whose homes or businesses were destroyed or badly damaged in the fighting.

At the heavily guarded distribution point, set up in western Falluja, hundreds of people queued to pick up payments ranging from \$500 to \$14,000 (£270 to £7,500).

But these sums only cover 20% of each claim and many people at the centre complained how long it had taken to get this money.

They also asked when they would get the rest."

IWPR, 19 April 2005

"While some compensation has been issued to those who lost their homes in the US attacks, locals say much more remains to be done.

[...]

Residents are still unable to move easily between the city's ten sectors and the city looks semi-deserted. A curfew is still in place for more than ten hours each day, and IWPR noted few signs of reconstruction on its April 13 visit.

[...]

The Central Committee for the Compensation of the People of Falluja last month compiled a list of 200 names of those whose homes had been completely destroyed. Each was paid 2,000 dollars compensation, from a 100 million dollar US military fund slated for recompense and reconstruction in the city.

The committee is continuing to compile names of people whose homes were damaged in the fighting.

'The amount of money that we have received is only ten per cent of the real value of our house, and I'm unable to rebuild it with this amount,' said Abu Rashid al-Mohammedy. 'But still I'm very lucky because there are thousands of people waiting to receive [their compensation].'

The US government has also earmarked a further 100 million dollars for Falluja through its Iraq Relief and Reconstruction Fund, part of the 18.4 billion dollars set aside by Congress for rebuilding Iraq.

But acting industry and minerals minister Mohammed Abudllah, an engineer, told IWPR that local committees in Falluja estimated that the total cost of rebuilding and compensating residents would reach almost 500 million dollars."

Further reports relating to compensation:

"Fallujah's struggle for recovery," BBC, 14 April 2005 [Internet]

"Compensation for Fallujah residents slow-locals", IRIN, 4 April 2005 [Internet]

Concerns regarding property rights for women (2004)

- Iraq's interim constitution fails to grant adequate protection to women's rights, in particular equal rights to marriage, inheritance, and children's citizenship
- The interim constitution (officially: the Temporary Administrative Law) serves as the legal framework pending a new permanent constitution to be put in place by December 31, 2005

HRW, March 5, 2004

"Iraq's proposed interim constitution fails to give adequate protection to women's human rights, Human Rights Watch said today.

[...]

'Equal rights for Iraqi women in marriage, inheritance, and their children's citizenship should not be left in jeopardy," said LaShawn R. Jefferson, executive director of the Women's Rights Division of Human Rights Watch. "The interim constitution should explicitly guarantee these rights."

The Iraqi interim constitution, officially known as the Temporary Administrative Law, will serve as the country's fundamental legal framework until a new permanent constitution is put in place by December 31, 2005. A copy of a draft interim constitution obtained by Human Rights Watch contains a provision prohibiting discrimination based on sex. However, it does not specifically guarantee equality between men and women in at least three critical areas where women in the Middle East have historically suffered discrimination:

- The interim constitution offers no explicit guarantee that women will have equal rights to marry, within marriage, and at its dissolution.
- It does not explicitly guarantee women the right to inherit on an equal basis with men.
- It fails to guarantee Iraqi women married to non-Iraqis the right to confer citizenship to their children.

The interim constitution contains certain equal protection clauses, including the provision granting Iraqi women a substantial number of seats in parliament and explicitly states that any references made in the masculine tense apply to both men and women. However, in the future, Iraq's constitution should explicitly contain provisions that guarantee women's equal rights in the family and in society more broadly, Human Rights Watch said. Throughout the region, equal protection clauses in constitutions have often been circumvented by the imposition of clearly discriminatory family and personal status codes.

'The interim constitution will be the starting point for drafting a permanent Iraqi Constitution,' Jefferson said. 'If a goal is to ensure that women's rights are given equal stature and protection, the constitutional process in Iraq has gotten off to a weak start.'"

UNHCR, 12 August 2004

"Under the Saddam Hussein regime, women had some of the most liberal protections of any Muslim country under Iraqi legislation which prohibited marriage under the age of 18 and denied favouritism to men in inheritance, divorce and child custody. It was even common for Iraqi women to hold political office, and the U.N. ranked Iraq as the Arab country with the highest level of gender equity prior to the 2003 invasion.

"Although CPA Ambassador Bremer refused to endorse the Iraqi Governing Council's Act 137 dated 29/12/2003 (which would have replaced Iraqi civil law concerning family law with Shari'a law) on the grounds that it deprived women of their basic rights, the new Iraqi Interim Constitution nevertheless does not allow women equal rights to marry, equal rights within marriage, nor equal rights to divorce. It does not guarantee them the right to inherit wealth on an equal basis with men and it fails to guarantee Iraqi women married to non-Iraqi men the right to give citizenship to their children. If adopted and ratified in its present form, the constitution will make Islam one source of law, and this could mean that anything contradicting religious codes may not be allowed. For example, Islam allows men to marry many women and does not require a minimum marriage age."

PATTERNS OF RETURN AND RESETTLEMENT

Return movements

Reports of small numbers of people returning following national reconciliation and security measures (2007)

- However, in many cases new attacks have caused people to flee again

IRIN, 21 February 2007

"It is also not clear how many Iraqis trust the government's assurances that they will be protected against militias and sectarian death squads if they do move back. In a press conference on Wednesday, Brigadier Qassim al-Mousawi, spokesman for Operation Imposing Law, said that about 650 families had returned to their homes in Baghdad since the new crackdown began a week ago."

IRIN, 12 September 2006

"Nearly three months have passed since Iraqi Prime Minister Nouri al-Maliki took office and outlined his reconciliation plan to end sectarian violence in the country.

The plan's main objective is to decrease violence in the country by offering political participation to sectarian militant groups.

"The advantage that the reconciliation plan is offering locals is to make them feel more secure to return to their homes and in the mean time show that security is improving countrywide, and that soon sectarian violence will be a thing of the past," said Mehdi al-Haydari, spokesperson for the Ministry of Migration and Displacement.

However, analysts believe that the security situation has not really improved.

Violent deaths have diminished marginally over the past couple of months. On Friday, the Iraqi Health Ministry announced that 1,536 people had been killed violently in August in Baghdad alone, compared to around 2,000 in July.

"People are returning to their homes but with the fear that at any time they can be forced to flee again and this shows clearly that this returning is just a fantasy because democracy is still not present and violence continues affecting all of them psychologically," said Khalid Abdel Aziz, professor at the Political Science College of Baghdad University.

An increased security presence has given many displaced people the confidence to believe that the killings will soon be reduced. Increased patrolling and more checkpoints in sensitive areas are restoring hope to the country's war-weary citizens.

"We know that security is bad in Iraq but the situation has somehow improved. We could see that when we returned without any trouble to our house in a shi'ite neighbourhood from where we were forced to flee three months ago," said Sarmad Omar, 46, a sunni who returned to his home in Baghdad three days ago.

However, two Baghdad neighbourhoods demonstrate that the sectarian problem is far from over. No displaced people have returned to the Sadr City district of the capital, a shi'ite stronghold, and to the Baghdad Ijrida area, a Sunni stronghold.”

Estimated number of IDP returns (April 2006)

- IOM and UNOPS monitoring indicates the return of some 196,000 IDPs during 2005
- By April 2005, more than 470,000 IDPs were estimated to have returned to their places of origin
- Approximately 133,266 IDPs are estimated to have returned (September 2004 figures)
- The largest IDP return movements have taken place to central Iraq

UNHCR, April 2006, p.4

Population of concern ¹	Total persons Dec. 2005	Return ² 2003 -2004 (mainly spontaneous)	Return in 2005
Refugees and asylum-seekers in the region	137,000	253,000	62,000
Other Iraqis in the region ³	1,000,000		
Refugees and asylum-seekers further afield	220,000		
Other Iraqis afield	143,000		
Internally Displaced Persons (IDP)	1,200,000	300,000	196,000
Stateless persons in Iraq ⁴	230,000	-	-
Total	2,930,000	553,000	258,000

[Footnote 1] Data on refugees and asylum-seekers is up to date as per December 2005. These are the numbers of refugees and asylum-seekers as reported to UNHCR by host governments or as registered by UNHCR. Data on “other” Iraqis are estimations made by UNHCR/host governments at different times. Data on IDPs is as provided by IOM and UNOPS, calculated on the assumption that each family has on average six members.

[Footnote 2] The figure of 253,000 includes 19,209 refugees, whose return was facilitated by UNHCR. IDP returnees (estimates) are as reported by IOM in the 15 Governorates (not included the Governorates of Dohuk, Erbil and Sulaymaniyah).

UNHCR, October 2005, pp.29-20

“It is estimated that by April 2005 more than 470,000 IDPs had returned to their places of origin, habitual places of residence or places of choice in the Centre and South as well as the Governorates of Kirkuk and Mosul.”

UNHCR, 1 November 2004

Iraqi returnees (refugees and displaced) (in persons)

Governorate	Returning refugees	UNHCR-Facilitated returns	Returning IDPs
Central Iraq			
Anbar	8	8	0

Ninewa	22	22	3,000
Diyala	45	45	3,870
Baghdad	325	325	0
Salah Al Din	8	8	6,384
Tameem	11,035	7	104,868
Southern Iraq			
Wassit	21,391	71	4,566
Qadissiya	4,477	366	5,562
Hilla	7,788	90	0
Meysin	68,293	7,709	0
Muthanna	24,425	972	1,512
Thi-Qar	16,306	1,961	504
Basra	70,667	6,869	0
Najaf	5,035	1,135	0
Kerbala	19,556	257	0
Northern Iraq			
Suleimaniya	1,180	902	0
Dohuk	344	147	0
Erbil	763	865	3000
Totals	251,668*	21,759	133,266
Estimated total number of returning refugees and IDPs 406,693			

Sources: Iraqi Ministry of Trade, UNHCR Facilitated return statistics, UNHCR returnee monitoring and IOM (IDP Monitoring). *Ministry of Trade statistics includes spontaneous and facilitated returnees. All figures as of September 2004.

Many refugees end up internally displaced upon return (2005)

UNHCR, October 2005, p.29

“UNHCR returnee monitoring confirmed that many refugees end up in internal displacement upon their return to Iraq because of a lack of housing, livelihood or infrastructure, property disputes, the presence of mines and UXO in their return areas and other reasons. Those who are able to return have faced severe problems successfully reintegrating; contributing factors include, *inter alia*, a lack of employment possibilities, difficulties obtaining documentation and accessing education due to the non-recognition of school certificates earned abroad, a lack of adequate language skills in Arabic or Kurdish, inadequate health care facilities and the high cost of essential medicines.”

Spontaneous IDP return movements take place after fall of Government

- Significant returns have taken place to Tameem and Kirkuk
- Subsequently displaced Arabs have moved South
- Estimates that 26,000 returnees unable to move to their villages due to property disputes
- Some IDPs are living in tents pitched next to their destroyed houses or inhabiting abandoned buildings and warehouses

- Others have managed to move back into their former homes, in some cases causing tension and further displacement

UNHCR 12 August 2004

"Since the collapse of the former Government, significant spontaneous return movements of IDPs has taken place to Governorates bordering Kurdish autonomous areas, formerly controlled by the Central Government; primarily to Tameem Kirkuk. In April 2003, as the Peshmerga forces traveled south to Ninewa and Tameem with Coalition forces, non-Kurdish IDPs who had settled in the three northern governorates of Sulimaniyah, Dohuk and Erbil faced harassment including the destruction of their housing, thus forcing them to move south in order to reclaim property and land. With intervention in May/June 2003 from various actors including UNHCR, this overt push ceased. However, various push factors continue to be exerted on the most vulnerable to return to areas south of the green line. It is estimated that 26,000 individuals have returned to Kirkuk city and the surrounding areas but are unable to return to their villages due to property disputes or destroyed shelter."

UNSC, 5 December 2003

"Over the summer and autumn a large proportion of Iraq's hundreds of thousands of internally displaced persons have tried to move back to their original homes. Some are now living in tents pitched next to their destroyed houses, while others have managed to move back into their former homes, in some cases causing tension and further displacement."

UNHCR, 22 October 2003

"A number of displaced people are either relocating or moving back to their home villages in northern Iraq - despite the fact that many of those villages have been damaged or totally destroyed. [...] People have moved when and where they can, many inhabiting abandoned buildings and warehouses."

Reuters, 3 February 2004

"Only days after Saddam's government was overthrown last April, Kurdish families began leaving their exile in the far north of Iraq and moving south towards Kirkuk, spurred on in part by their wealthy and astute political leaders.

The goal was to reassume influence in and around the city, which lies south of the northern no-fly zone enforced by the United States and Britain after the first Gulf war, meaning that during 12 years of sanctions, Saddam still held sway.

Turkmen, less well-off and well-prepared than their Kurdish rivals, moved more slowly, but in recent months have also begun returning in numbers. At the same time, many Arabs who were moved into the region have fled, fearing retribution.

Around the periphery of the city there are now tented encampments of Turkmen and Kurds desperate to return. They have been waiting for months, and some are losing patience, but most expect that they will soon find a home in Kirkuk or nearby.

[...]

Shaukat and others are quick to emphasise that they have no problem with Arabs and no interest in driving them from the city or fighting with Turkmen for dominance, but recent history suggests not everyone is keeping such calm counsel."

Obstacles to return and resettlement

Intentions for return among displaced - most await improvement in security to return (2007)

IOM, 2 February 2007

“According to IOM’s monitoring, 45% of IDPs plan on returning to their place of origin. The majority of these people are waiting for security to improve. However, as time passes and the IDPs become more integrated at their location of displacement, this percentage will likely decrease. The highest numbers of people who wish to return were displaced to the central governorates of Ninewa (95%), Diyala (75%), Baghdad (72%), and Anbar (62%). Surprisingly, Najaf in the south also has a high percentage of displaced who wish to return to their former residences (90%).

Twenty-five percent plan on integrating into their current location. This response occurs most often in the more stable governorates of the south, such as Basrah (91%), Kerbala (82%), and Missan (76%). These governorates also tend to have the most intact infrastructure and employment opportunities.

Twenty-eight percent plan to resettle in a third location. This response was most common in Babylon (77%), Qadissiya (63%), and Wassit (64%). IDPs were not asked to specify their location of choice for resettlement, but most likely they will move to places that are more stable, have better economic opportunities, or where they have family or tribal ties.

When asked about their timeframe for implementing their intentions, an overwhelming majority (81%) responded they will as soon as the security situation improves. Violence and instability in both their current location and their place of origin make it too difficult to confirm when they will return, move elsewhere, or permanently settle. Only 6% said they would implement their intentions in less than six months, 1% said within six to twelve months, and less than 1% will wait longer than a year before implementing their intentions (12% did not respond, possibly because the situation in Iraq is too volatile to make any decision).”

Overall analysis of return environment (2006)

- The general insecurity, lack of law and order presents an obstacle to return and reintegration
- UNHCR returnee monitoring in 2004 and 2005 indicated that 80 per cent of returnees in the North and 35 per cent of returnees in the south ended up internally displaced upon return
- Many returnees face obstacles in exercising their rights to housing, identification, property and freedom of movement
- Others fear renewed military operations and violence
- Many returnees have not returned to their villages of origin because of lack of shelter and services
- Many returnees did not own land or property prior to their displacement
- Some returns have been influenced by political actors
- Lack of housing is particularly a problem in the South, where many Marsh Arabs have returned to impoverished areas
- Returnees often lack documentation which would facilitate their freedom of movement and access to basic services

UNHCR, April 2006, p.10

"During the course of 2004 and 2005, UNHCR's priority under return and reintegration gradually shifted to IDPs, without which return of Iraqi refugees from abroad is not sustainable in the returnee concentration areas. Assistance to returnees includes shelter and infrastructure, income-generation activities, legal aid and information. However, return is complicated by scarce resources and prevailing instability. Returnee monitoring data obtained during 2004 and 2005 showed that about 80% of the returnees in northern Iraq and more than 35% in the lower south of Iraq ended up internally displaced upon return, mainly due to the lack of housing, employment and social services."

UNHCR, October 2005, p.29

"With the fall of the former regime in April 2003, Kurds and Turkmen who were displaced in the Northern Governorates of Erbil and Sulaymaniyah started to return spontaneously to their places of origin in the Governorates of Kirkuk, Diyala, Salah Al-Din and Ninewa. A large number of returnees reside in the main cities in their Governorate or district of origin and have not returned to their villages of origin for a lack of shelter and services. The returnees, who in general did not own land or property prior to their displacement, now live in public buildings, most notably schools and police stations, with little or no basic facilities. Those with land have pitched tents and many are believed to be moving between their original villages and their previous places of displacement. While many of the returns are voluntary, some have been influenced by political actors. The uncoordinated return of IDPs from the North to areas below the former 'green line' has led to the 'secondary displacement' of Arab families that had been resettled by the former regime in traditionally Kurdish areas in the Governorates of Kirkuk, Mosul, Diyala and Salah Al-Din. Many Arab families have fled these areas out of fear of harassment or actual harassment by returning Kurds and Turkmen."

"Most people who have opted for voluntary repatriation from Iran and Saudi Arabia have returned to areas where their ethnic or religious group constitutes a majority. They therefore usually do not suffer from any systemic discrimination.

However, as all other Iraqis, they suffer from the prevailing insecurity as well as lack of law and order. They also remain in dire need of assistance to help them reintegrate in communities whose absorption capacity is limited and where humanitarian and development activities are presently difficult to implement due to the prevailing security situation.

Moreover, Iraqi returnees face a number of problems relating to their rights to housing, identification, freedom of movement and property restitution. Furthermore, housing, a general problem throughout Iraq, affects returnees in particular and specifically in the South. Many of the Marsh Arab families have returned to very impoverished areas. While homeless families have moved into public buildings or schools, others have sought accommodation with extended family members. Some returning families have even moved to partially-destroyed power stations. The need to pursue shelter solutions for these groups is pressing.

Returnees often lack documentation which would facilitate their freedom of movement and access to basic services. For many of those who have returned with UNHCR assistance to Iraq, their only means of identification is the voluntary repatriation form that UNHCR has provided. As for those who have repatriated spontaneously, a significant number of them have no documentation at all, especially those who were previously expelled from Iraq and stripped of their nationalities."

IRIN, 13 Dec 2005

"Hundreds of families remain displaced after the US-led offensives earlier this month against insurgent activity in the cities of Ramadi and al-Qaim in the west of the country, according to the Iraqi Red Crescent Society (IRCS).

'We were astonished when we found hundreds of families refusing to return home because they expect more military operations in the area,' said Maruan Kalif, an IRCS volunteer in Ramadi, capital of Anbar province"

IRIN, 28 June 2005

"Thousands of residents are gradually returning to the town of Karabila, 325 km west of the capital, Baghdad, after fleeing a heavy US-led attack two weeks ago but for many there is little to go back to.

Nearly 7,000 residents were displaced to the desert near the Syrian border during the fighting, according to the Iraq Red Crescent Society (IRCS). The town, which is home to 60,000 people, showed signs of extensive devastation following the battle, a five day operation which ended on 22 June. Nearly 1,000 residents are still displaced and living in the desert.

"I couldn't find anything left of my house. It has been totally destroyed and my family has become homeless and dependent on humanitarian support," said Salua Ibraheem, 42, a Karabila resident who had her home completely destroyed.

"People started to go back trying to get what is left from their destroyed homes. Based on information from our volunteers inside the village, near 40 percent of the village buildings have been partially or totally destroyed," Mazeen Saloon, general secretary of the IRCS, said.

[...]

Utility services have been destroyed and now thousands of families are without power, clean water or sewage according to local officials."

See also:

["Displaced families return to devastated Telafar"](#), IRIN, 21 September 2005

["Families returning to Karabila in need"](#), IRIN, 17 July 2005

Displaced reluctant to return to Tal Afar due to lack of basic services (2005)

- Displaced remain reluctant to return due to lack of services
- Mainly women and children remaining in displacement

UNAMI, November 2005, p.2

"Tal Afar: NGO monitors reported that more than 1,600 families remained displaced and reluctant to return due to insecurity and poor conditions inside the city. IDP figures fluctuated throughout the month and in a number of return cases, only some members of the family returned, leaving mainly women and children still in displacement.

One reason for the overall rise in displacements was attributed to the lack of basic services and job opportunities in Tal Afar. The provision of basic services such as water, electricity, waste disposal, healthcare, schools, and fuel supplies remained disrupted"

See also:

["Displaced families return to devastated Telafar"](#), IRIN, 21 September 2005

IDPs returning to Fallujah subjected to undignified treatment (2005)

- The UN has raised concerns about the conditions imposed on IDPs wishing to return to Fallujah
- IDPs have been subjected to curfews, restrictions on movement, and intensive ID and search systems
- All males of military age are issued biometric ID cards consisting of iris scan and fingerprint details
- Unconfirmed reports indicate that civilians are being denied access at checkpoints due to insufficient identification and that some are being detained
- The documents required for entry by civilians must include at least two of the following three: National ID card, food ration card, or nationality certificate
- Some of these measures contradict commonly accepted principles for UN supported programmes worldwide which promote returns in safety and dignity

UNAMI EWG, 18 January 2005

"Since the end of December 2004, the IIG has encouraged IDPs to return to the city in a phased process whereby selected districts of the city were gradually re-opened as MNF-I/Iraqi forces reportedly cleared areas of UXOs and ensured the neighbourhoods were secure. The IIG has reported that from 14 January onwards, all districts of the city will be open to returnees. A total of five entry checkpoints have been established by the MNF-I to control access into the city by civilians, government officials, contractors, and NGOs, citing concerns about the possible return of insurgents. Those entering must undergo extremely strict inspection and identification procedures, and are subject to curfew after 17:00, thus raising concerns about access and freedom of movement.

[...]

The EWG has raised concerns about the conditions imposed on IDPs wishing to return to Fallujah, including curfews, restrictions on movement, and intensive ID and search systems. All males of military age are reportedly issued biometric ID cards consisting of iris scan and fingerprint details. Unconfirmed reports indicate that civilians are being denied access at checkpoints due to insufficient identification and that some are being detained, all of which further contribute to lengthy and slow queues to enter the city. The documents required for entry by civilians must include at least two of the following three: National ID card, food ration card, or nationality certificate. Some of these measures contradict commonly accepted principles for UN supported programmes worldwide which promote returns in safety and dignity."

Harsh living conditions inside Fallujah remain a major concern for returnees (2005)

- An estimated 80 % of IDPs from Fallujah returned, although it was not sure that they had remained in the city (May 2005)
- Access to city remains very difficult and time consuming (May 2005)
- The US has allocated 200 US million for rehabilitation and compensation yet reconstruction has been very slow
- Three main reconstruction projects are planned: to repair key infrastructure, such as sewage, water and electricity, construction of a new general hospital and reform and repairs related to education

- Entry into Fallujah remains difficult and time consuming due to heavy security and checkpoints
- Security measures have also had a negative impact on the economy for shopkeepers and business people
- There are still no basic facilities, including sewage systems, adequate electricity and water supplies
- According to the director of Fallujah's reconstruction project, although the main hospital had been repaired, only three schools out of 40 and four government buildings out of 20 had been rebuilt
- There are disputes over how much compensation has been distributed so far
- The presence of mines and unexploded ordnances (UXOs) in the north and south parts of the city contributed to delays in reconstruction efforts
- NGOs also expressed fear tht homes and public buildings have not been systematically cleared of mines and unexploded ordnance nor public information campaigns disseminated to returnees
- A number of displaced families have returned only to leave the city again, due to the lack of basic services such as shelter, water, electricity, healthcare and education
- A return assessment undertaken by UNHCR (February 2005) indicated that 95 per cent of the displaced Fallujah population would like to return if international forces present in the city left
- Other concerns expressed by the displaced include a lack of information about planned assistance and compensation, the precense of unexploded mines, fears for personal security and lack of shelter
- An assessment undertaken by UNHCR showed that a number of IDP families from Fallujah purchased property in the current places of displacement indicating that some displaced are considering settling out of the city for an extended period (January 2005)

IRIN, 24 May 2005

"Reconstruction of Fallujah, the city which was the scene of fierce battles between US forces and insurgents between November 2004 and January 2005, has been slow according to local officials.

Little progress has been made despite Washington allocating US \$200 million for rehabilitation efforts and compensation for families.

Nearly 80 percent of the population fled Fallujah, which is 60km west of the Iraqi capital Baghdad and so far only half of them have returned, aid officials have said.

Local people complain that there are still no basic facilities such as sewage systems, adequate electricity and water supplies and there are disputes over how much compensation has been distributed so far.

[...]

According to Bassel Mahmoud, director of Fallujah's reconstruction project, less than \$50 million of the \$200 million for reconstruction had been released so far. He said although the main hospital had been repaired, only three schools out of 40 and four government buildings out of 20 had been rebuilt.

Massive damage was caused by the conflict and repair work could take several years.

[...]

Power, water treatment and sewage systems were badly damaged in the city. Some districts are still dependant on water tankers as the only way to access clean water and most houses with

electricity are connected to private generators. The official said more funds need to be released in order to accelerate reconstruction.

Teachers, who are giving lessons inside tents on the outskirts of the city, said most schools in Fallujah are unsuitable for children to study in and that those some of those that remain intact are being used by US troops as military bases.

[...]

Local contractors complained that tight security restrictions had delayed their work and their movement around Fallujah.

CURRENT PROJECTS

Three main reconstruction projects are underway at present, according to officials. The first is the repair of key infrastructure, such as sewage, water and electricity. The Ministry of Municipality and Works (MoMW) is carrying out a number of projects at a cost of \$800,000, including the repair of eight petrol stations and the rebuilding of the administrative infrastructure of the city.

The second project is the construction of a new general hospital in Fallujah, for which the MoH has allocated \$40 million. A US-Iraqi committee for the city has been formed to supervise the establishment of health facilities in the municipality at a cost of about \$6.2 million. This includes rehabilitating medical facilities and health centres in and around the city. The programme started at the beginning of May.

The third project is in the education sector where nearly \$20 million has been allocated for school repairs. The Iraqi government plans to build one of the biggest centres for education in Fallujah. This scheme could take more than two years to complete.

[...]

ADDITIONAL DIFFICULTIES

As well as the curfew, still in the place for more than 10 hours a day, shopkeepers and business people complained that security measures were affecting their income.

Ibrahim Dawood, a shopkeeper in the city, told IRIN that he was stopped from bringing in supplies from the capital, because of heavy security and checkpoints at the entrance to the city. When he had sold all his stock he would have no choice but to shut down unless there was a drastic change in security.

'You cannot image how awful the checking at the entrance of the city is. You are looked at and checked as if you are a criminal because you are bringing something in from outside the city,' Dawood added.

Sheikh Khaled al-Jumaili, the newly elected head of Falujah's city council, told IRIN that security measures were important to prevent the entrance of weapons in the city, at least for the coming months."

UNAMI, 27 February 2005

"The situation in Fallujah remained tense in April. An estimated 80 % of IDPs from Fallujah returned, although it was not sure that they had remained in the city. Access to the city remained difficult and time-consuming, with residents expected to show their Public Distribution System (PDS) cards, official IDs, as well as badges provided by the MNF-I (Multi-National Forces-Iraq). Similar access restrictions were also reported by aid agency personnel. The water and electricity situation remained precarious, as three districts of Fallujah were solely dependant on water tankering and seven districts were without electricity

Medical access for residents improved to some degree when the MNF-I relocated to two kilometres away from the main hospital in the city. According to the Education Department of Fallujah, of the 104 schools listed within the city, seven school buildings were severely damaged, 53 are in need of rehabilitation to some degree, and 15 schools in the city remained occupied by the MNF-I. It was reported that the presence of mines and unexploded ordinances (UXOs) in the north and south parts of the city contributed to delays in reconstruction efforts. Due to these various constraints, the reconstruction efforts were restricted in scope, but still ongoing. MNF-I has done some substantial reconstruction work in the Fallujah area since the end of the operation, complementing the activities and support of the aid agencies and the Iraqi government.” (UNAMI, 17 May 2005)

“Aid agencies continued to raise concerns about the nearly 14,000 internally displaced families from Fallujah, the majority of which are dispersed across Anbar governorate, while the remainder are located in the Baghdad area. These families represent approximately 84,000 internally displaced persons (IDPs), many of whom are children, who left their homes and livelihoods almost four months ago. A significant rise in the number of IDP families was witnessed during this reporting period, which indicates a reverse movement from the city of Fallujah; mainly due to the harsh living conditions and lack of basic services such as shelter, water, electricity, healthcare, and education. UN monitors continued to report an urgent need for food, cooking sets, bedding material, hygiene kits, and medical care in many of the current places of displacement.”

IRIN, 17 February 2005

“Another problem worrying NGOs is the presence of mines and unexploded ordnance (UXOs), as reports suggest that homes and public buildings have not been systematically cleared and demarcated and that public information campaigns have not been effectively disseminated to returnees.”

UNAMI, 1 March 2005

“[T]he harsh living conditions inside Fallujah remained a major concern as returnees coped with a lack of access to basic needs and services, including shelter, water, electricity, healthcare, and education.”

UNAMI, 1 February 2005

“The UN remains concerned regarding the situation of displaced persons in and around Fallujah and regarding the return process. Despite reports of up to 85,000 residents having cumulatively passed through the checkpoints as of 9 January, it is estimated that only about 3,000-8,000 people are actually remaining overnight inside the city due to the harsh living conditions. These include a lack of adequate shelter, electricity, water, and other basic necessities such as access to health care and education. UN partners continue to assess current conditions, and to provide essential support in the areas of health, water, education, food and non-food items.”

UNAMI, 1 February 2005

“UNHCR through implementing partners have finalized the returns intentions survey for those who have been displaced by the Fallujah crisis. The survey captured over 4,500 families in Al Anbar and Baghdad. Initial results indicate that ninety-five percent of the population would like to return if international forces present in the city left. Other concerns expressed include a lack of information about planned assistance and compensation, the presence of UXOs/mines, health fears associated with use of munitions, and lack of shelter. The vast majority indicated that they

will wait for at least three months to monitor the situation in Fallujah before fully returning families."

UNHCR, 11 January 2005

"UNHCR, through its partners on the ground, has also been talking to displaced people outside the city to assess their needs and intentions to return. Many IDPs [internally displaced persons] said they intend to stay in their current locations until after the elections at the end of January. The reasons they gave for being reluctant to return right now include the tense security situation and the general lack of services, especially schools and hospitals. The general Fallujah hospital is open but it is located outside the areas open for residents, who have to go through checkpoints to reach it. Municipal water is available in the city for only a few hours a day. Although generators are operating, the electricity supply is sporadic.

[...]

The assessment conducted by UNHCR's partner agencies also shows that a number of IDP families have purchased property in their current places of displacement. This may suggest that some IDPs are considering settling out of Fallujah for an extended period."

UNAMI EWG, 18 January 2005

"Joint UNHCR/IOM assessments are ongoing in the areas of displacement through NGO partners to determine the return intentions and protection needs of IDP families. Preliminary results indicate that a significant proportion have purchased property in their current places of displacement, which suggests a long-term strategy of settlement outside of Fallujah. Major reasons reportedly given for their reluctance to return to the city include insecurity, lack of basic services, presence of MNF, and environmental health concerns attributed to the use of heavy munitions and UXOs."

Other resources:

"Fallujah's residents angry at the city's devastation", IRIN, 13 January 2005 [Internet]

"Displaced Fallujah residents unsure of when they can return home", IRIN, 20 December 2004 [Internet]

"Renewed Fallujah fighting hampered return of residents: US", AFP, 16 December 2004 [Internet]

Return for Marsh Arabs difficult due to the destruction of their natural habitat (2005)

- Up to 40,000 persons are estimated to be returning displaced persons in Southern Iraq (mostly Marsh Arabs) (as of August 2004)
- The draining of this area has significantly altered the Marsh Arabs' ability to continue their traditional way of life and farming activities which were based on the cultivation of the marshes
- This group of persons preferred durable solution is to reside in or near their current locations
- The need to ensure complete documentation such as identity documents, marriage and birth certificates, and rations cards is a primary concern for this group
- Twenty per cent of the marshlands have been reflooded since April 2003 (as of August 2005)
- Marsh Arabs have also been unable to return due to poor investment in the marshlands area, insecurity and slow reconstruction work
- Bad roads, transportation and insecurity have meant low attendance rates in schools

FMR (Romano, David), 2005, p. 48

"After the fall of Saddam's regime in April 2003, however, Iraqi engineers working with the Coalition Provisional Authority (CPA) began the process of re-flooding these marshlands and restoring the ecosystem upon which the population depended. Enormous ecological challenges remain but this often ignored story has emerged as one of the few unambiguous successes of post-Saddam Iraq. With little involvement of international organisations, the Marsh Arabs have been returning to their homes and rebuilding their old lives."

IRIN, 22 August 2005

"There are increasing calls for quicker flooding and rehabilitation of Iraq's southern marshlands in Amarah, due to rising unemployment and delays in the return of the marsh Arabs.

[...]

Baroness Emma Nicholson of Winterbourne (MEP), European Parliamentary Rapporteur on Iraq and chairperson for the Assisting Marsh Arabs and Refugees (AMAR) NGO, told a July conference in London that the draining of the southern Iraqi marshes was "a humanitarian and cultural catastrophe as much as an ecological one."

Since July 2003, more than six projects have been developed by AMAR and the United Nations, who are taking the lead role, to assist the marshland people, but much more is required to guarantee a future for some 30,000 local residents.

Local people say their lives have not changed much since the fall of Saddam's oppressive regime, as little has changed in the marshes so far.

"We were persecuted at the time of Saddam Hussein's regime and now we are still suffering economically. We do not have good land and water for farming and most of our cows and buffalos have died. All we have received from the government is empty promises," Hameed Jasim from al-Gindalah marshlands said.

[...]

Approximately 20 percent of the marshes have been re-flooded since April 2003, according to Abdul Kareem Qassim, director of the agriculture directorate in the southern city of Amarah and home to the marshlands said.

"There has been poor investment so far and the increase in our requirements for security has meant that money has been spent on that instead of development in the area," Chasib al-Marsomi, general director of Rehabilitation and Development of the Marshes (RDM) in Amarah said.

About 12 NGOs, four of which are international, have been trying to help people in the marshlands, but corruption has been difficult to tackle, some officials claim.

"There are many NGOs providing help to the area, but they are not effective, because of the corruption. So many projects have failed," he explained.

The help of People in Need (PN) NGO and the International Organization for Migration (IOM) are providing food and non-food supplies for the marsh Arabs, but for 4,000 families only, he added.

[...]

Following the downfall of the regime in 2003, there were signs that people living in the marsh areas would live a much more prosperous life.

However, problems remain due to insecurity and slow reconstruction work. This is having a huge impact on the education system there.

According to official sources in Amarah, there has been a decrease in the number of students attending school, due to insecurity, poor infrastructure, compounded by a lack of qualified teachers.

Many qualified staff has left Iraq due to insurgency and previous conflicts.

Abdul Hakeem Fakher, general director of Amarah education directorate, said that there had, however, been good progress in establishing school buildings. There are 75 primary schools and three intermediate and secondary schools in the marshes of Amarah.

"We already have 65 schools and another 10 schools are being built after the fall of the regime. The percentage of students in primary schools is 80 percent, but for the secondary schools it is 20 percent only," he added.

Bad roads, transportation and insecurity were reasons for poor attendance, according to Fakher.

"Some of our schools were built with mud and have been damaged so it is very difficult for the students to attend lessons. The level of literacy in the children of the marshes under 12 years is 30 percent," Fakher explained.

Most families here prefer not to send children to school, due to financial needs and send them out to work instead, he added.

Kareem Helow, a primary school teacher in al-Wadeah marshes, said that the situation in schools was miserable. "We are only four teachers in a school for 186 pupils."

[...]

Improvements can be seen, however, in the health system in the marshes.

Today, there are five primary health clinics serving the area. Most of the centres were built over the past two years, Mejb al-Mosawi, a senior official in the Amarah health directorate said.

All were constructed by the AMAR NGO, which also provides 12 health professionals.

The Ministry of Health in Baghdad said it had invested in the marshes and hoped by 2006 to be able to cover the needs in that region. A new highly equipped hospital is also planned.

"The marshes were one of the largest economic and historical centres in the country and it is very important that health care needs are met," Mustafa al-A'ani, a senior official at the ministry, said.

[...]

AMAR and the Centre for Marine Studies (CMS) are also focusing on rehabilitating fishing in the area.

"Because of the draining, the marshes faced a severe shortage in Benni fish, the most important kind of fish in the area. We have a project to increase their number through a breeding programme where they are raised until they are the size of a finger and then released into the marshes," Sajid al-Noor, chief researcher for the CMS, said.

Fishermen had been told not to fish in the area until stocks were replenished to guarantee growth – but many are continuing due to financial needs.

"We need money to feed our families and for these reasons we cannot wait for the fish to grow and sometimes we have to fish the new baby fish," Hussein Nuridin, a local marsh resident, said.

Livestock has also been seriously affected. A report issued by the Animal Production Department (APD) of Amarah, on June 2005, said the number of buffalos before the draining was about 26,500 and in 2000 there were 16,850 – a decrease of 38 percent.

"Before the draining each family owned 15-25 buffalos, but now the number is around seven due to the shortage of water," Aloki, a local tribesman, said.

The UN Food and Agriculture organization (FAO) is in the process of implementing programmes to replenish livestock, but help can't come soon enough.

[...]

Slow reconstruction has forced many of them to search for alternative ways to survive. "We do not have jobs to survive and for this reason we have been obliged to ask our children to join the Iraqi Army or local police to get money to help our families," Shabil Hussain, a local marsh Arab said with tears in his eyes.

"No one is taking care of us, we have no services," Hasn Falih, a young marsh man, said. "They only know how to talk about democracy and elections, but talking about these things is useless without essential services for the people."

UNHCR, 12 August 2004

"In the South, the principle group of IDPs remains the Marsh Arabs, who, over the past 15 years, have been subjected to forced migration as a result of an organized Marsh- Drainage campaign undertaken by the former Iraqi regime. The persistent implementation of this campaign led to massive displacement within and outside the country.

The policy of the former Iraqi regime to drain the Marshlands in southern Iraq underwent several stages. A large swathe of the central marshes was drained to facilitate the movement of the military units during the Iraq-Iran war. During the 1990's, the marshes underwent further extensive drainage. As part of the previous government's policy which consisted of resettling Shia populations to the north in order to alter the ethnic balance of the area, many Marsh Arabs were forced to resettle there to replace Kurdish, Turkmen and Assyrians. Although the number of displaced Marsh Arabs is quite difficult to identify due to the protracted nature of displacement and varying levels of integration, it is estimated that between 100,000-200,000 persons remain internally displaced from the marshland areas.

Up to 40,000 persons are estimated to be returning displaced persons, i.e., they were originally from Southern Iraq (mostly Marsh Arabs), were resettled under the Arabization program to Northern Iraq and, following the recent conflict, returned to their ancestral lands in Southern Iraq, although the draining of this area has significantly altered the Marsh Arabs' ability to continue their traditional way of life and farming activities which were based on the cultivation of the marshes. This group of persons is considered returning displaced persons; their preferred durable solution is to reside in or near their current locations.

UNHCR, 12 August 2004

The need to ensure complete documentation such as identity documents, marriage and birth certificates, and rations cards is a primary concern for this group. Property claims, legal assistance, basic reintegration assistance as well as focused assistance for vulnerable groups including female-headed households, the elderly, and physical and mentally disabled persons must also be urgently addressed."

Cohen & Fawcett, 28 Dec 02

"Although it would be difficult to recreate the marshes, consultations should be held with the former inhabitants and a feasibility study done to see whether at least some of the marshes could be reflooded. For those who cannot return, compensation should be paid from oil revenues."

Justice

Addressing past abuses: Mechanisms of justice (2007)

- An Iraqi Special Tribunal was set up to deal with human rights violations committed by the former government
- The tribunal was intended to bring charges against senior members of the former regime for human rights violations committed against various groups in Iraq, including the Kurds, the Shiites and the Marsh Arabs
- However, the tribunal has come under extensive criticism for failing to maintain independence and impartiality
- At the end of December 2006, Saddam Hussein was executed
- His trial was met with widespread criticism human rights observers

UNSC, 7 March 2007

"On 26 December 2006, the Appeals Chamber of the Iraqi High Tribunal unanimously dismissed the appeals of Saddam Hussein and his two co-defendants, Barzan al-Tikriti and Awad al-Bandar, upholding all three death sentences. The Appeals Chamber returned the case of a fourth defendant, Taha Yassin Ramadan, to the Iraqi High Tribunal for re-sentencing, recommending a harsher sentence than the term of life imprisonment that he had received. The Special Rapporteur on the independence of judges and lawyers, in a statement made on 27 December 2006, expressed concern at the failure of the panel to address the grave shortcomings in the trial. He urged the Government not to carry out the death sentences following an allegedly procedurally flawed legal process. The United Nations High Commissioner for Human Rights, Louise Arbour, called for restraint by the Iraqi authorities and reiterated her concerns about the appeal process and fairness of the original trial. Saddam Hussein, however, was executed on 30 December 2006. The other two co-defendants were executed on 15 January 2007.

On 8 February 2007, the United Nations High Commissioner for Human Rights filed a legal brief as *amicus curiae* with the Iraqi High Tribunal, arguing against the imposition of capital punishment in the case of Taha Yassin Ramadan. In her submission, the High Commissioner argued that "The egregious violations of human rights that took place in Iraq over decades have been well documented by the United Nations human rights system ... There is no doubt that the horrors of the past must be effectively addressed and their perpetrators must be brought to justice ... At the same time, experience and history in very different contexts around the world have shown the absolute indispensability of the integrity of such proceedings, both in fact and perception, for true understanding of the past, for national reconciliation and for the construction of a just, durable, and sustainable society founded on the rule of law and respect for human rights of both victims and defendants."

UNAMI, 23 May 2006

“UNAMI continues to follow closely the trial of Saddam Hussein and his co-accused before the Iraqi Higher Tribunal held sessions of the trial of Saddam Hussein and his coaccused. The trial for the Dujail killings entered a new phase with the defendants’ testimonies. Concerns have been expressed by the defence team about the lack of equality of power between the parties and the lack of independence and impartiality of the tribunal. The prosecution called witnesses and the defence produced a list of witnesses with serious concerns regarding their security.

The Iraqi Higher Tribunal announced that the investigation of the Anfal campaign was concluded and that the case had been referred to Trial Chamber II on 3 April. The Anfal campaign took place in Northern Iraq during the late 1980’s and was characterized by a series of savage military attacks on civilians who had remained in or moved back to so-called “prohibited areas” near the Iranian border and where hundreds of thousands of Iraqi Kurds were displaced, arrested, tortured or killed. Saddam Hussein and six other codefendants are charged with war crimes related to an internal armed conflict and with crimes against humanity. Saddam Hussein and Ali-Hassan Al-Majid are also charged with genocide.”

UNAMI, 18 July 2006

“Addressing past crimes, the missing and the disappeared, including effective accountability mechanisms to fight impunity, are the basis for national reconciliation efforts.

It was announced, on 23 June, that a new mass grave containing 31 bodies was reportedly discovered in an area known as Minghshaiya, 120 kilometres north of Baghdad. The grave is said to contain 31 Kurds killed and buried there during the Saddam regime.”

UNHCR, October 2005, p.126-127

“The Statute of the Iraqi Special Tribunal was adopted by the IGC on 10 December 2003.[...] It was established under Iraqi national law to try Iraqi nationals or residents accused of genocide, crimes against humanity, war crimes or other serious crimes committed between 17 July 1968 (the date the Ba’ath Party seized power) and 1 May 2003 (the date the Coalition declared that major combat operations in Iraq were over). The TAL reaffirmed the Tribunal’s Statute.[...] Charges against senior members of the former regime are likely to include atrocities committed against several ethnic groups within Iraq, such as the violent repression of Kurds during the 1988 Anfal campaign. Crimes committed against the Shiites will likely also come to the fore, such as the violent repression that followed the revolt against the former regime in 1991 in which villages were shelled and destroyed and ancient marshes drained, resulting in thousands of deaths, forced displacements and the destruction of communities of Marsh Arabs.

[...]

The IST has declared that it will adhere to standards of international law in compliance with the sovereign law of Iraq. Still, international human rights law groups[...] oppose the IST, questioning whether its statute fully complies with international fair trial standards and recent developments in international criminal law. These groups also worry about the availability of the death penalty, the lack of explicit guarantees against using confessions extracted under torture, a lack of experience in managing complex criminal trials and trials involving serious crimes and the non-admission of international experts to serve as prosecutors.

On 17 July 2005, former President Saddam Hussein, his brother-in-law Barzan Ibrahim Al-Hassan, former Vice-President Taha Yassin Ramadan and former top judge Awad Badar Al-Bender were formally charged with the killings of Shiite Muslims in Dujail, the town in which the former President survived an assassination attempt in 1982. The Iraqi Government said it plans to bring only 12 charges against the former leader out of a possible 500 of which he is accused, saying it would be ‘more than enough to give him the maximum sentence applicable’. The Dujail case is said to have been chosen as it is one in which the investigation has progressed the most and Saddam Hussein’s personal culpability may be easier to prove in a smaller case, thereby leading to a swift conviction and possible death sentence. Critics say that such swift justice would

mean that the larger-scale crimes would never be properly dealt with in court. The first trial is expected to start as early as September 2005.[...] ”

[See the website of the tribunal](#)

Policy

Decision by Kirkuk Commission to relocate "Arabisation" Arabs in Kirkuk area (2007)

UNSC; 7 March 2007

“On 6 February 2007, the High Commission on the Implementation of Article 140, regarding the status of Kirkuk, announced Orders Nos. 3 and 4, which were intended to commence the process of relocating Arab families that moved to Kirkuk during the “Arabization” campaign of Saddam Hussein. The Orders, which require approval by the executive branch, offer compensation to relocated families. The announcement by the Commission was followed by demonstrations in Kirkuk by opponents of the measure, who claimed it was tantamount to forced displacement. In response, Commissioners clarified that the relocation and compensation mechanisms were strictly voluntary and that 7,000 families had reportedly registered for relocation. It is not clear how the cases handled by the High Commission will relate to those processed by the Commission for Resolution of Real Property Disputes, which is responsible for settling claims by people who lost property as a result of actions of the Ba’athist regime during the period from 1968 to April 2003. More than 50,000 Kirkuk-related claims have been filed with the Commission for Resolution of Real Property Disputes to date.”

See also further documents in sources below

UNHCR maintains advisory to host governments against return of Iraqis (December 2006)

- The advisory notes that the security situation has not improved but has deteriorated in many places since UNHCR's Advisory in 2005
- UNHCR advises governments to consider Iraqi asylum seekers from southern and central Iraq as Convention refugees
- At minimum Iraqis from the south and centre of the country should be granted a complementary form of protection
- The agency continues to advise against returns to the northern provinces of people who do not originate from there as well as calls for assessment of Iraqis from the North on convention groups and on an individual basis

UNHCR, 9 January 2007

“We noted in the latest advisory that since the previous one in September 2005, the security situation in Iraq has deteriorated. Today's overall security situation is marked by extreme violence in Central Iraq and significant instability in the south of the country. Sectarian tensions sharply increased after the Samarra bombing last February, leading to targeted killings of thousands of Iraqis and ongoing massive displacement. The advisory notes that the overall situation can be

characterised as one of generalised violence and one in which massive, targeted violations of human rights are prevalent.

In light of this dire security situation, the UNHCR advisory to governments recommends that Iraqi asylum seekers from Southern and Central Iraq should be favourably considered as refugees under the 1951 Refugee Convention given the high prevalence of serious human rights violations. And it notes that if an Iraqi from Southern or Central Iraq is not recognised under Convention grounds, a complementary form of protection be granted. It says no Iraqi from Southern or Central Iraq should be forcibly returned to Iraq until such time as there is substantial improvement in the security and human rights situation in the country.

UNHCR also advises against returns to the three Northern Governorates of persons not originating from there and recommends that asylum claims of Iraqis originating from the north be assessed based on 1951 refugee Convention criteria, taking into account the individual merits of the claim."

Click here for the [full Advisory](#) (December 2006)

See also [Guidelines on the Treatment of Iraqi Asylum Seekers and Refugees in Europe](#) issued by the European Council on Refugees and Exiles (March 2006)

See also "[Advisory Regarding the Return of Iraqis](#)", UNHCR, September 2005

Transitional Administrative law outlines steps for the return of the displaced (2005)

- Kurdish political parties have interpreted the article to mean that a political referendum will be held to decide the status of Kirkuk
- The US government holds that the status of Kirkuk is an internal issue
- Under Article 58(2) of the TAL, newly introduced persons should be resettled and or compensated
- It appears that many secondarily displaced Arabs do not wish to return to their areas of origin in the South yet from the Kurdish side, to allow them to remain in the "arabised" regions would be to "endorse the injustice of Arabization"

UNHCR, October 2005, p.77-78

"The Kurdish Peshmerga has emerged as a main ally of the MNF in the fight against the mainly Sunni Arab insurgents in the region, and in the 30 January 2005 elections the Kurdish alliance won a majority in Kirkuk's Provincial Council. Fears are high among the Turkmen and Arab populations that the Kurdish parties' ultimate aim is for Kirkuk to be attached to their area of control within a federal Iraqi state. As Turkey claims to protect the Turkmen minority in Kirkuk and fears that Kurdish control over the city's oil wealth would give an economic foundation to an independent Kurdish state, the fight over Kirkuk has a dimension going beyond Iraq's borders.[...]

Article 58 TAL outlines a process for reversing the consequences of the former regime's policies, including the return of the displaced, the recovery of their homes and properties, the resettlement and compensation of those that were newly introduced to the disputed areas and remedying the change of administrative boundaries done for political reasons. Only once these steps have been undertaken and a census has been held will the final status of the disputed territories, including Kirkuk, be determined, 'taking into account the will of the people of those territories'.[....]The Kurdish parties interpret this to mean that a provincial referendum will be held to decide the status of Kirkuk while Turkmen and Arabs accuse the Kurds of pushing Kurds to settle in Kirkuk to secure a majority in any popular referendum.[...]

The US Government holds the position that how to undo the former regime's unjust policies in and around Kirkuk is an internal issue to be decided by Iraqis, and supports the implementation of Article 58 TAL.[...] The highly contentious issue regarding Arab families settled by the former regime in Northern Iraq under its *Arabization* policy, particularly in Kirkuk where the majority of such families remained following the 2003 war, has not yet been resolved. Article 58(2) TAL provides that in accordance with Article 10 of the IPCC *Statute* 'newly introduced' persons may either be resettled, receive compensation, new land in their place of origin or compensation for the cost of moving to these areas. While it appears that many 'secondary displaced' Arabs do not wish to return to the areas of origin, in particular those originating from the South,[...] there are strong calls from the Kurdish side not to allow them to remain in the formerly 'Arabized' areas, particularly in view of a popular referendum, as this would endorse the injustice of *Arabization*.[...] This issue, which continues to be a source of tension, must be part of a national policy on displacement and durable solutions that the relevant Iraqi authorities, including the MoDM, must address."

HRW, 14 March 2003

"While the ethnic Kurds, Turkmen, and Assyrians displaced by the 'Arabization' policies have a right to return to their homes in the Kirkuk region and receive compensation for their losses, it is important that this right is implemented in a manner that does not cause additional human rights abuses. The Iraqi government has brought ethnic Arab populations—some also against their will, others with financial incentives—to Kirkuk to advance its 'Arabization' drive, and many of those ethnic Arabs now live in the former homes of displaced persons. The right to repossess private property must be balanced against any rights these secondary occupiers may have in domestic or international law, using impartial and efficient procedural safeguards."

RI, 25 August 2003

"While the horrific policy of Arabization destroyed families, property, and livelihoods while displacing hundreds of thousands of people, reversing this process, by returning those initially displaced to their original homes, will result in many of the same consequences.

Although the return of Kurds to their homes of origin to reclaim their land has been largely non-violent, several deaths have resulted from this process. The more significant issue, however, is the loss of investments made by Arabs who were resettled on Kurdish property. In several instances, Arabs formally purchased lands from departing Kurds. Even those who were provided with these confiscated lands free of charge by the former regime built new homes and improved agricultural land over the many years that they inhabited these lands. These investments are now being lost as Arabs leave these resettled areas and return to their original homes. Moreover, in many cases, Arabs returning to their villages of origin face the problem of insufficient farmland to support their families and a lack of capital with which to rebuild their lives."

HUMANITARIAN ACCESS

General

Prevailing insecurity limits efforts to assist displaced (2007)

- The UN's presence and its ability to operate effectively in Iraq remain severely constrained by the security environment
- Access to some IDP locations have been sporadic and hindered by checkpoints or strict security cordons around towns
- The UN is dependent on the Multinational Force for movement security and threat information
- The security situation has meant that the UN must rely on national staff, often with less guidance than is needed
- The UN also employs NGOs and consultants to monitor and assess activities being undertaken by implementing partners
- One of the critical constraints to responding to humanitarian crisis in Iraq has also been the inability to get quick information which has delayed response

UNSC, 7 March 2007

"The United Nations presence and activities in Iraq continue to be severely limited by the prevailing security situation in the country. However, with significant mitigation measures and proper training of United Nations staff members, the risk level continues to be assessed at the medium level. The threat of indirect fire remains high and the use of false uniforms and identity cards by armed opposition groups pose a serious concern. Additionally, new tactics involving the use of chlorine gas in their weapons systems is worrisome. Of particular concern to the United Nations were the recent successful attacks on eight helicopters in Iraq. Six multinational force and two United States Department of State contractor helicopters have been attacked and destroyed since early January. Although all were involved in supporting combat operations, UNAMI continues to re-evaluate the level of risk posed to United Nations staff using this mode of transportation.

[...]

These security challenges to the integrity of the international zone, and the continuing threat of kidnapping, highlight the risks faced by the United Nations staff in Baghdad. However, extensive mitigation measures are in place within the international zone aimed at reducing the overall risk to United Nations staff. Movement of United Nations staff in the international zone is controlled with a curfew and limitations on travel. Visits to government buildings outside the international zone require armed escorts, and UNAMI has practised procedures for this requirement. National staff working at all locations in Iraq are exposed to high levels of risk, particularly when travelling to and from work. An Iraq-specific package of measures has been designed to reduce their risk.

Frequent revisions and adaptation of security precautions are required to meet emerging threats. The recent commando style raid by militants on the Provincial Joint Coordination Centre in Karbala is one such example. In that case, militants penetrated Iraqi army and police security checkpoints in Karbala on 20 January 2007 by disguising themselves in United States army uniforms and using look-alike vehicles. They succeeded in abducting and later killing five United States officers who were attending a meeting at the base."

See also, "[Delivery of aid still a problem four years after US invasion](#)", IRIN, 21 March 2007

UNSC, 3 March 2006, p.12-17

"Iraq remains a dangerous place and United Nations staff members are at risk of becoming targets of violence.

[...]

The security of the international zone in Baghdad, which is home to UNAMI premises, is of great importance to all occupants, including the United Nations. Accordingly, the situation, which is in the midst of a transition from Multinational Force primacy to that of the Iraqi security forces, is under constant review by UNAMI and the Department of Safety and Security. At the moment, the integrity of the internal zone perimeter and internal checkpoints is being maintained, but the topic is a regular point of discussion with the Multinational Force to ensure that the current level of security is sustained. [...]

The Organization's presence and its ability to operate effectively in Iraq remain severely constrained by the security environment. This high-risk setting greatly restricts freedom of movement, especially by road. To provide United Nations staff members with the best security possible, and therefore ensure that the Organization is able to maintain a presence in Iraq, a number of mitigating and protective measures have been introduced, which are both expensive and timeconsuming. These constraints underline the responsibility of all staff members to adhere strictly to the security measures in place. Moreover, the United Nations is dependent on the Multinational Force for movement security and threat information. To keep pace with the constantly changing security dynamics, the UNAMI security unit requires access to accurate information on a regular and timely basis.

[...]

While UNAMI is seeking to step up its activities following the completion of the transition timetable endorsed in resolution 1546 (2004), in the current political and security environment in Iraq United Nations staff members remain at risk of becoming targets of violence. Staff security therefore remains the Mission's overarching guiding principle. Given the continuously changing environment on the ground, UNAMI must develop flexible plans for its operations and security arrangements. Although the nature of the deployment of the Multinational Force is likely to change, the Mission's need for a dedicated protection force for all its activities in Iraq remains. Operational constraints, such as the lack of dedicated air assets, will also have to be addressed as a matter of priority. "

UNSC, November 2005, pp. 2-3

"Access to some IDP locations remained sporadic and hindered by checkpoints or strict security cordons around towns. The EWG shared these concerns with UNAMI civil-military focal points in order to encourage dialogue with the concerned parties and to develop practical measures to facilitate access of humanitarian convoys to insecure areas. UNAMI facilitated an information exchange between interested NGOs and the military authorities to promote the possibility of humanitarian corridors."

UNAMI, November 2005, p.1 (Anbar province)

"The government's Public Distribution System (PDS) rations were distributed except in certain sensitive areas where Ministry of Trade drivers were either unable or reluctant to travel."

UNAMI, September 2005,p.2

"Tal Afar Update: Access to residents and internally displaced persons (IDPs) in locations near the city was difficult and sporadic due to security constraints.

[...]

"Anbar Update: ...access to the area for humanitarian actors remained sporadic due to insecurity in the area, making accurate assessments of IDP movements difficult. "

UNAMI, July 2005, p.1

"This current insecurity disrupted the delivery of essential humanitarian assistance to these IDPs, host families and resident local communities as some locations became inaccessible and a number of access roads became unsafe to travel."

OHCHR, 9 June 2004, p.22

"The prevailing insecurity in most parts of the country exacerbates the already vulnerable human rights situation of most displaced persons. Following the bombing of the United Nations headquarters in Baghdad on 19 August 2003, most humanitarian agencies have withdrawn, and now only limited assistance reaches the internally displaced and there is no consistent monitoring of and reporting on the human rights situation of displaced persons"

UNSC, 7 June 2005, paras. 64-65

"Despite the efforts of the United Nations, significant obstacles to full implementation of United Nations activities remain. This is largely due to the security situation, which dictates that work be done using national staff with less direction than preferred. Therefore, the United Nations is using the services of third parties such as local non-governmental organizations or consultants to monitor and assess activities being undertaken through implementing partners in Iraq. This triangulation of management, although not ideal, appears to be working reasonably well and will continue for the foreseeable future. However, one of the critical constraints is the inability to quickly gather information, such as in the case of developing a humanitarian response in Al-Qa'im, which resulted in a delayed response. This dependency upon second-hand information and the associated potential for bias continues to be a major constraint in ensuring that the response provided is relevant and appropriate as well as timely.

Similarly, frequent changes in the ministries, combined with the delays in the formation of the Transitional Government, have resulted in the suspension of the Iraqi Strategic Review Board and the approval of projects for implementation. Changes in ministerial incumbents, reformulation of portfolios within ministries and other effects of the creation of the Transitional Government, while not unexpected, nonetheless posed some difficulties for United Nations activities."

Multi-national forces and insurgents hinder provision of assistance/MNF-I occupation of schools and hospitals (2007)

- MNF-I use hospitals and schools as military bases
- Aid agencies report being prevented by US troops access to the city of Samarra in March 2006, people were also prevented from leaving the city
- The security situation in Al Qaim has impeded access to the area to assist IDPs and residents, prompting the UN and its partners to call on the Iraqi authorities and Multinational Force for "humanitarian space and respect for human rights"
- NGOs reported lack of access and security affecting their ability to provide assistance to returnees (Fallujah, January 2005)
- The UN reported insecurity and sporadic access due to roadblocks by MNF and insurgent groups hindered the provision of humanitarian assistance to IDPs (Fallujah, January 2005)

- Many of Fallujah's IDPs did not receive their food rations as a result (January 2005)
- The UN also called on authorities to respect the right for humanitarian space and the human rights of civilians following conflict in Al Qaim
- Initial efforts to assist civilians of Al Qaim were hindered by the lack of access to the area
- The detainment of some Sheikhs accused of 'harbouring resistance groups' has meant that many sheikhs are disengaging from registering and supporting IDPs from Fallujah raising concern among agencies working to meet the needs of IDPs , as assistance is normally facilitated by mosques

UNAMI, 16 January 2007

"In November, HRO submitted an official memorandum to MNF-I Chief of Staff, Major General Thomas L. Moore, Jr., requesting more detailed information on a number of incidents involving MNF-I activities in Ramadi and Fallujah. These included also the use of facilities protected by the Geneva Conventions, such as hospitals and schools, as military bases. HRO would like to stress the importance of MNF-I investigating and reporting on allegations of violations of human rights and humanitarian laws."

See also "[Armed groups occupy hospitals and kidnap doctors](#)", IRIN, 13 February 2007 and "[Delivery of aid is still a problem four years after US invasion](#)", IRIN, 21 March 2007

IRIN, 22 March 2006

"Aid agencies say they have been prevented from entering the city of Samarra, in central Iraq, where a major US and Iraqi military operation is underway.

"Our convoys sent on Sunday and Monday have been prevented from entering the city by US troops and our information from inside is that families are without food, power and potable water, particularly because they cannot leave their homes," noted Abdel Hameed, a spokesperson for the Iraqi Red Crescent Society (IRCS).

This, they say, has left hundreds of families without medical assistance and food supplies.

"Innocent people and especially children are suffering from a lack of supplies in and on the outskirts of Samarra," said Muhammad al-Daraji, Director of the Monitoring Net of Human Rights in Iraq (MHRI).

"US and Iraqi military groups have prevented the entrance of local NGOs as well as the media to show the reality of human rights violation inside it," he added.

According to al-Daraji, no citizens have been allowed to leave the city, some 120 km north of the capital, Baghdad, since the operation began on 16 March. US forces along with Iraqi commandos say the operation is necessary to flush out insurgents in the area.

"We have been informed that they are taking the men for interrogation and leaving women and children alone in their homes afraid and desperate for supplies," al-Daraji added.

Nearly 1,200 families have fled the city to Baghdad and are living in abandoned buildings and makeshift camps, according to local NGOs who are monitoring. Few of them have received assistance so far.

Dr Ibraheem Mahmoud, a clinician at the emergency department of the local hospital in Salahuddine governorate, said that they have received telephone calls from inside the city from residents who spoke of dead bodies in streets and injured people without assistance.."

UNSC, 7 June 2005, para.58

"Military action in the Al-Qaim area had an impact on local residents and on internally displaced persons from Fallujah. As a result, 2,000 internally displaced families from Fallujah were identified to receive assistance, as well as an estimated 2,000 internally displaced families originally from Al-Qaim and its surrounding areas. Food, water, non-food items such as mattresses, tents and water storage containers, and essential medical supplies were distributed to families in need and to local health facilities. The security situation has impeded access and thus assessments of the area's needs. However, the United Nations country team and its partners, working through the emergency working group, are in the process of positioning supplies and are calling on the relevant Iraqi authorities and the Multinational Force for humanitarian space and respect for human rights."

UNAMI EWG, 18 January 2005

[Falluja] "Overall, NGOs report that lack of access and security continues to affect their ability to independently assess conditions inside the city and to directly deliver humanitarian aid to the returning population.

[...]

Insecurity and sporadic access due to roadblocks by MNF and insurgent groups also continue to impact the provision of humanitarian assistance to IDPs at their current places of displacement. Joint IOM/UNHCR distributions in the area of Amiriya were recently suspended due to risks associated with criminal activity. NGO monitors report that many IDPs have still not received their PDS rations. WFP focal points report that between 30% to 40% of IDP families have re-registered with the Ministry of Trade to collect their food rations at new locations based on information received from assessed areas of Anbar, Baghdad, Kerbala, and Salah el Din."

UNAMI, 17 May 2005

"The situation in Fallujah remained tense in April. An estimated 80% of IDPs from Fallujah returned, although it was not sure that they had remained in the city. Access to the city remained difficult and time-consuming, with residents expected to show their Public Distribution System (PDS) cards, official IDs, as well as badges provided by the MNF-I (Multi-National Forces-Iraq). Similar access restrictions were also reported by aid agency personnel. The water and electricity situation remained precarious, as three districts of Fallujah were solely dependant on water tankering and seven districts were without electricity.

[...]

The United Nations Assistance Mission for Iraq (UNAMI) and the UN Humanitarian Coordinator's office convened the Emergency Working Group (EWG) to coordinate the response of humanitarian actors. Working in concert with the EWG in Baghdad, information is being shared and response coordinated to ensure that resources reach those most in need. Of prime concern is to reach the Internally Displaced Persons (IDPs) with basic needs such as water, shelter, food and essential medical care.

Initial efforts were hindered by the lack of access to the area, particularly Al-Qa'im itself, resulting in the inability of the agencies to accurately assess and respond to the needs of the civilian population. Of particular concern are reports that the medical facilities have been severely damaged, and that wounded civilians are unable to access treatment. However, some access is now possible, and agencies are beginning the process of delivering initial assistance while assessing more concretely immediate and longer term needs.

The UN and its partners urge the relevant authorities to respect the right for humanitarian space and the human rights of the civilians, and facilitate the access of humanitarian actors to those in need. Dialogue has been initiated with the Transitional Government of Iraq and the MNF-I to secure access."

UNAMI, February 2005

"Covering over 29,000 IDP families who fled from Fallujah in November 2004, IOM and UNHCR have completed the distribution of items IDP families in Ana, Rawa, Haditha, Heet, Habaniyah and Amiriyah, Karma, Saglawiyah and Neimiyah. This distribution has taken two weeks longer than planned due to the insecurity along the roads leading to some of the locations, most notably Amiriyah, where 3 staff from the NGO partner were kidnapped by resistance groups last week. All staff were released the same day and the items secured to Amiriyah.

[...]

Due to the detainment of some Sheikhs accused of 'harbouring resistance groups', many sheikhs are disengaging from registering and supporting IDPs from Fallujah. More investigation is needed on this topic, as this could lead to serious implications for the IDPs in terms of assistance delivery normally facilitated by many of the mosques."

UN EWG, 19 December 2004

"Lack of security and access continue to impact the delivery of humanitarian assistance to the residents of Falluja and the estimated 200,000 IDPs dispersed to surrounding areas. At best, IOM monitors report there is sporadic access to the various IDP locations due to military activities/checkpoints and insecurity; whereas Falluja itself remains strictly inaccessible due to the ongoing conflict. IOM monitors report that clinics at the IDP areas are experiencing shortages of some drugs and that many IDPs have not received their food rations despite the apparent resumption of PDS distributions by the Ministry of Trade in some of the affected areas. UNAMI continues to raise the issues of access, protection of civilians, and the need for humanitarian corridors with the MNF-I/IIG regarding the IDPs.

On 5 December, due to an MNF-I request for a temporary suspension of Falluja operations, the IRCS withdrew from the city reportedly due to security issues. To date, the IRCS has not returned. The ICRC, however, entered the city on 9 December to meet briefly with Iraqi water and sewage officials. According to the recent ICRC visit, the water, sewage, and electricity systems inside the city are still not functioning in most neighbourhoods of the city and residents are too afraid to access health services despite adequately stocked and functional facilities.

The target date set by the IIG/MNF-I for the phased return of IDPs to Falluja has reportedly been postponed from 15 December until later in the month, thus underscoring the need for humanitarian organisations to safely access the IDP areas."

UN establishes presence in south but otherwise continues to operate mainly by remote (2005)

- With new security and accommodation arrangements in place, the UN has increased international staff to Baghdad and deployed liaisons to Erbil and Basrah
- The liaison deployments are protected and housed by the Multinational Force
- The number of UN personnel in Iraq continues however to be extremely constrained by security conditions which has meant that the UN international presence continues to be confined
- The UN continues to review the possibility re-establishing a sustained presence in Iraq
- Ongoing violence has prevented the UN from implementing its mandate to the full extent
- The UN pulls out last staff in November 2003

UNSC, 7 March 2005, para.80

"With new security and accommodation arrangements recently put in place, we increased the number of international UNAMI staff in Baghdad and deployed United Nations liaison

detachments to Erbil and Basrah, to explore the possible expansion of our reconstruction and humanitarian activities inside Iraq, as circumstances permit."

UNSC, 7 June 2005, para.95

"The United Nations liaison detachments in Basrah and Erbil continue to be housed and protected by the Multinational Force pending the establishment of United Nations facilities and the subsequent deployment of security and support staff."

UNSC, 7 March 2005, para. 63

"The number of United Nations personnel in Iraq continues to be constrained by security conditions necessitating extremely well-protected living and working facilities within heavily guarded areas. Movement outside the Baghdad international zone, or similarly well-protected compounds in other parts of the country, continues to be extremely hazardous and therefore dependent on the protection of the multinational force. Under these conditions, any expansion of the United Nations presence in Iraq has of necessity been confined to the number of persons who can be accommodated in the Baghdad international zone, as well as the small security liaison detachments deployed to multinational force cantonments at Basrah and Erbil."

Establishment of a United Nations presence in Basrah and Erbil

UNSC, 7 March 2005, para.56

"Small United Nations liaison detachments of up to six staff members each were deployed to Erbil and Basrah on 1 and 12 February 2005, respectively. These liaison detachments include military advisers and security and support staff who will work with the multinational force to facilitate periodic visits, prepare United Nations facilities and assess the security conditions required for any expansion of the United Nations presence in Iraq. I am grateful to the Member States of the multinational force for providing support to the United Nations for the deployment of the liaison detachments. Additional arrangements for protection by the multinational force, as well by United Nations security personnel, will have to be put in place if the United Nations is to establish its own facilities in Basrah and Erbil."

UNHCR, September 2004, p.3

"Although the UN continues to review the possibility of re-deploying international staff to Iraq and at the end of August 2004 sent a small team to Baghdad for six weeks, under the auspices of the Special Representative to the Secretary-General, in order to assess the humanitarian situation, it is unlikely, in light of continued security concerns, that any type of sustained international presence will be possible in the near future. UNHCR's ability as well as that of its partners to engage in any type of protection, returnee monitoring, and/or reintegration activities towards sustainable return in Iraq thus remains severely limited. It should furthermore be noted that the Ministry for Displacement and Migration is still in the process of building up its own operational capacity, and is currently in no position to offer any type of accommodation or other assistance to returning Iraqis."

Deutsche Presse Agentur, 7 September 2004

"The U.N. mission in Iraq will not be able to fully implement the mandate given by the Security Council because of continuing insecurity, Secretary General Kofi Annan said Tuesday in assessing the situation in the war-torn nation.

'At this juncture, circumstances do not permit the U.N. to implement to the fullest extend the essential tasks under its mandate pursuant to resolution 1546,' Annan said in a report to the 15-nation council, which adopted the resolution specifying the tasks in Iraq.

[...]

The ongoing insecurity will force the U.N. to confine its role to what is logistically feasible and advisable against the backdrop of the reality on the ground in Iraq, he said.

The core mandate of the U.N. mission will be to assist the Iraqis and the interim government in Baghdad to prepare the elections for a provisional government and a legislature in January. The provisional government will draft the new constitution for Iraq and if all goes well, general elections would be held in December 2005, for full-fledged government."

UN, 22 July 2004

"Emphasizing the importance of security for United Nations activities in Iraq, Secretary-General Kofi Annan and his newly-appointed senior envoy to the country, Ashraf Jehangir Qazi, said today this work will focus on supporting national efforts to achieve the political transition. Security concerns are paramount as the world body prepares to return to the strife-torn nation where last year 22 people were killed in an attack on the UN's Baghdad headquarters."

See "[UN pulls out last of foreign staff from Baghdad](#)", Reuters, 3 November 2003

NATIONAL AND INTERNATIONAL RESPONSES

Overview

Urgent need for creative and flexible response (March 2007)

The Iraqi Ministry of Displacement and Migration bears the responsibility for providing protection and assistance to IDPs but a number of other ministries also do so, including the Ministries of Trade, the Interior and Education (CPA, 8 March 2004). Local authorities at the provincial and district level have also formed IDP committees and deal with registration, shelter and employment of displaced people (Brookings, 18 October 2006). But the government's efforts to provide for the welfare and support of its population have fallen short because of violence and increasingly politicised key line ministries, according to a country study by the Feinstein International Center (FIC).

Despite the worsening situation inside Iraq, the FIC report also found that little attention had been paid to the limited capacity of the international apparatus to respond proportionately to the needs of Iraq's population (FIC, January 2007). The UN's essentially political role in Iraq, its development focus and current structure impair its ability to effectively address the humanitarian needs inside Iraq (FIC, January 2007; UNSC 1546). The ability of the UN mechanism to assist the IDP population has also been seriously impaired by mobility constraints which prompted an almost total reduction of international presence and programmes (FIC, January 2007). The UN Assistance Mission in Iraq (UNAMI) operates from Amman, and has maintained an extremely low profile inside Iraq since the August 2003 bombing of UN headquarters in Baghdad (UNSC, 7 June 2005; UNAMI, 4 April 2005). UNAMI is organised by inter-agency thematic sectors, of which "Cluster F" is responsible for all issues relating to IDPs. Key agencies of Cluster F, such as UNHCR rely on implementing partners – mainly local partners to monitor IDPs and provide assistance.

The international response has furthermore been circumscribed by insufficient funds allocated specifically for humanitarian preparedness and emergency response. The main funding mechanism, the International Reconstruction Trust Fund, lacks flexibility which has meant that despite the increasing humanitarian needs inside Iraq, the mechanism channels the bulk of funds – around \$1.12 billion – to development and reconstruction programmes. Mechanisms within UNAMI to respond to emergencies in Iraq, including an emergency working group and an IDP working group coordinated by the UN, have been constrained by the lack of flexible funding (NCCI, 18 May 2006). Donors are furthermore reluctant to fund projects that are not visible and that cannot be readily monitored (FIC, January 2007).

Local NGOs have been delivering assistance to internally displaced people, often at considerable risk to Iraqi staff, but are unable to meet the overwhelming needs, and face ongoing challenges to access to IDP communities in a diminishing "humanitarian space" (NCCI workshop, February 2007 outlines obstacles and recommendations). NGOs have persistently advocated for the development of a more creative and adaptable operational response to the humanitarian situation in Iraq as well as more flexible funding structures which are a problem for NGOs as well (see eg Turlan and Mofarah, November 2006). For instance, the NGO Coordination Committee in Iraq (NCCI) has for some time urged donors to allocate funds for humanitarian preparedness in order for NGOs to respond more efficiently and called for the creation of an emergency fund, neutral

funding (or funding not linked to one of the parties of the conflict) and improved coordination (NCCI, 18 May 2006, February 2007; NRC/IDMC, 23 May 2006).

Gaps in assistance have meant that many Iraqis are turning to local groups or militias for protection and basic services (UNSC, 7 March 2007; FIC, January 2007). Mosques and Islamic charities, churches and informal community groups have also organised assistance for displaced families (Brookings, 18 October 2006). For example, an assessment by UNHCR in Erbil province found that among the surveyed displaced families, 66 per cent received assistance from religious institutions (UNHCR, 31 January 2007). Assistance to displaced people has also been provided by US-led multi-national and Iraqi forces – sometimes in the aftermath of military operations which caused displacement – as well as by aid agencies accompanied or “embedded” with the multinational forces (See eg MNF, 6 February 2007; US Government, 25 February 2007; UNAMI, 18 January 2005). This blurring of roles between military and humanitarian has had the consequence of creating an enormous challenge for the international community to establish impartiality and independence in any future humanitarian operations (FIC, January 2007). UNAMI's ability to undertake meaningful humanitarian work inside Iraq has also been impaired by a mandate defined under UN Security Council Resolution 1546 which entails full reliance on multi-national forces for mobility and security – thereby limiting the UN's ability to gain the trust of local communities (FIC, January 2007). This reliance on multi-national forces adds to a general lack of credibility for the UN in Iraq (RI, March 2007)

A revision of the international response to the displacement crisis inside Iraq is currently under way and has also been accompanied by greater media attention to the magnitude of the displacement problem. The UN has launched a number of initiatives in order to review, consult and improve operations in Iraq, including an inter-ministerial conference on the displacement situation inside Iraq and the region planned for April 2007. Donors have also started to respond by increasing funds, for example in response to UNHCR's Supplementary Appeal in January 2007.

The conflict inside Iraq is widely viewed as a regional problem – a situation which if left unaddressed could destabilise the region. The ramifications of the conflict for the region are particularly evident in the flow of Iraqi refugees. Donors and many international organisations have turned their attention to the Iraqi refugee problem.

One concern is that efforts to creatively address the situation inside Iraq may be neglected or under-supported since programmes to assist Iraq's refugees in the region will be easier for donors to access and monitor. The European Commission's humanitarian aid department ECHO, for example, has committed €10 million (\$13m) – of which €6 million (\$8m) is for several million Iraqi refugees in the region and only €4 million (\$5m) for needs within the country – a population estimated in June 2006 to be around 26 million people with wide-ranging humanitarian needs including 1.9 internally displaced people. Return for both internally displaced people and refugees is conditional on improvement of the humanitarian and security situation within the country. Solutions to the displacement crisis will be largely dependent on addressing the roots of the conflict. As a report by the International Medical Corps underlines, a relatively small minority of those forced from their homes are expected to leave the country, evidence that places Iraq's growing crisis of displacement squarely within the country (IMC, January 2007).

Further information and links:

[The Ministry of Displacement and Migration \(MoDM\)](#)

[The Commission for the Resolution of Real Property Disputes \(formerly the Iraqi Property Claims Commission - IPCC\)](#)

[The UN Assistance Mission](#)

For the UN's response following the US led intervention in Iraq, see:

[UN OCHA, 28 May 2003, "Update: Flash Appeal for the Iraq Crisis"](#) and

[UN, 28 March 2003, "Flash Appeal for the Humanitarian Requirements of the Iraq Crisis - Six month Response"](#)

Coordination mechanism: UN Cluster F (formerly Cluster 8) brings together key actors working toward durable solutions for IDPs

[See UNAMI Situation Reports for updates on the Cluster's activities.](#)

NGOs

The NGO Coordination Committee in Iraq is the key mechanism bringing together mainly national but also some international NGOs

[For more information, see the website of the NCCI](#)

Donors

[For more information, see the website of the IRFFI](#) (The international trust fund)

Information about donor support in Iraq may be found in the [donor section of the website of UNAMI](#).

Overviews

Harper, Andrew in the Forced Migration Review, [Iraq's neglected humanitarian crisis](#), 2007

Romano, David in the Forced Migration Review, [Displaced Iraqis – caught in the maelstrom](#), 2005

[Consistent and predictable responses to IDPs: A review of UNHCR's decision-making processes.](#)

UNHCR, March 2005

Humanitarian Policy

[Humanitarian action in the new security environment: policy and operational implications in Iraq](#), ODI HPG, September 2006

[Coming to Terms with the Humanitarian Imperative in Iraq Humanitarian Agenda 2015 Briefing Paper](#), FIC, 2007

Legal framework and national policy

Iraq is a state party to several international human rights agreements

UNCHR, 9 June 2004, p.35

"International human rights treaties and applicable constitutional framework

Iraq became a party to the following international human rights instruments, which are therefore binding upon Iraqi institutions:

- The International Covenant on Civil and Political Rights (on 23 March 1976);
- The International Covenant on Economic, Social and Cultural Rights (on 3 January 1976);
- The International Convention for the Elimination of All Forms of Racial

- Discrimination (on 13 February 1970);
- The Convention on the Elimination of All Forms of Discrimination against Women (on 12 September 1986);
- The Convention on the Rights of the Child (on 15 July 1994).

As mentioned earlier in this report, the Iraqi Governing Council had promulgated a constitutional framework and related legislation that took into account certain aspects of international human rights law. The new Interim Iraqi Government will need to bring these national instruments further into conformity with international human rights law."

UNHCR, June 2000, pp.8-9

Iraq has ratified regional instruments including:

- The Arab Charter on Human Rights
- The Cairo Declaration on Human Rights in Islam, Cairo 5 August 1990
- Declaration on the Protection of Refugees and Displaced Persons in the Arab World, 19 November 1992

To view the current state of ratifications by Iraq to the key international human rights treaties, see the [OHCHR's Iraq page](#)

Overview: From Transitional Administrative Law to a new constitution (2005)

- The Transitional Administrative Law (TAL) came into effect in June 2004 and is valid until 31 December 2005
- It outlines two phases: 1) Dissolution of the Coalition Provisional Authority and full sovereignty to an Iraqi Interim Government by 30 June 2004 2) Election of an Iraqi Transitional Government following elections to be held before 31 January 2005
- System of government envisioned in the TAL is republican, federal, democratic and pluralistic
- Islam will be the official religion of the State and will be considered as a source for legislation
- The Transitional Executive Authority is to be composed of a Presidency, a Council of Ministers and a Prime Minister
- The Kurdish Regional Government will be recognised as an official regional government within Iraq
- Iraq's security is to be overseen by the Iraqi Armed Forces which will partner with the Coalition Forces
- The National Assembly will be responsible for drafting the permanent constitution which will be submitted to the public in a referendum vote by 15 October 2005
- If the Constitution is adopted, elections for a new government under the constitution and the entry of the new government into office will be held no later than 31 December 2005

To read the Iraqi constitution: [click here to access the text](#)

IWPR, 2005

"The Transitional Administrative Law will be the Supreme Law of Iraq, during the transitional period. It will expire once a government is elected under a permanent constitution and take office. This will happen no later than December 31, 2005.

The transitional period will consist of two phases:

- Phase I: On 30 June 2004, an Iraqi Interim Government will be vested with full sovereignty, and the Coalition Provisional Authority will dissolve. This Iraqi government will be formed through a process of widespread consultation with the Iraqi people and will govern according to the Transitional Administrative Law and an annex to be issued before the beginning of the transitional period.

- Phase II: The Iraqi Transitional Government will take office after elections for the National Assembly. These elections will take place as soon as possible, but no later than 31 January 2005.

The Fundamental Principles of the Law include the following:

- The system of government in Iraq will be republican, federal, democratic, and pluralistic. Federalism will be based on geography, history, and the separation of powers and not on ethnicity or sect.

- The Iraqi Armed Forces will fall under the control of Iraq's civilian political leadership.

- Islam will be the official religion of the State and will be considered a source of legislation. The Law will respect the Islamic identity of the majority of the Iraqi people and guarantee the freedom of religious belief and practice.

- Arabic and Kurdish will be the official languages of Iraq.

The people of Iraq are sovereign and free. All Iraqis are equal in their rights and without regard to gender, nationality, religion, or ethnic origin and they are equal before the law. Those unjustly deprived of their citizenship by previous Iraqi regimes will have the right to reclaim their citizenship. The government will respect the rights of the people, including the rights:

- To freedom of thought, conscience, and expression;

- To assemble peaceably and to associate and organize freely;

- To justice; to a fair, speedy, and open trial and to the presumption of innocence;

- To vote, according to law, in free, fair, competitive and periodic elections;

- To file grievances against officials when these rights have been violated.

The Transitional Iraqi Government will contain checks, balances, and the separation of powers. The federal government will have the exclusive right to exercise sovereign power in a number of critical areas, including the management and control of the following:

- National security policy; independent militias shall be prohibited,

- Foreign policy, diplomatic representation, and border control,

- National fiscal, monetary and commercial policy,

- National resources; revenues from which must be spent on the needs of all of Iraq's regions in an equitable manner.

The Transitional Legislative Authority will be vested in a National Assembly, which will pass laws and help select and oversee the work of the executive authority. The National Assembly will be freely elected by the people of Iraq, under an electoral system designed to achieve representation of women of at least one-quarter of its members, as well as fair representation of all of Iraq's communities.

The Transitional Executive Authority will consist of the Presidency and the Council of Ministers, including the Prime Minister.

- The Presidency Council will consist of the President and two Deputy Presidents, and will be elected by the National Assembly as a group. The Presidency Council will represent the sovereignty of Iraq, may veto laws, and make appointments. All decisions of the Presidency Council will be taken unanimously.

- The Presidency Council will nominate the Prime Minister and, on the recommendation of the Prime Minister, will also nominate the Council of Ministers. All ministers will need to be confirmed in a vote of confidence by the National Assembly.
- The Prime Minister and the Council of Ministers will oversee the day-to-day management of the government.

The Federal Judicial Authority will be independent. A Federal Supreme Court will be created to hear judicial appeals and to ensure that all laws in Iraq are consistent with the Transitional Administrative Law. It will consist of nine members, who will be appointed by the Presidency Council upon the recommendation of an impartial Higher Juridical Council.

Federalism and local government will ensure a unified Iraq and prevent the concentration of power in the central government that enabled decades of tyranny and oppression. This will encourage the exercise of local authority in which all citizens are able to participate actively in political life.

- The Kurdistan Regional Government will be recognized as an official regional government within a unified Iraq, and will continue to exercise many of the functions it currently exercises. Groups of governorates elsewhere in Iraq will be permitted to form regions, and take on additional authorities.
- The governorates will have Governors and Governorate Councils, in addition to municipal, local, and city councils as appropriate.
- All authorities not reserved to the Federal Government may be exercised as appropriate by the governorates and the Kurdistan Regional Government.
- Elections for Governorate Councils throughout Iraq, and also for the Kurdistan National Assembly will be held at the same time as elections for the National Assembly, no later than 31 January 2005.

Iraq's security will be defended by Iraqi Armed Forces, working together with the Coalition. Consistent with Iraq's sovereign status, the Iraqi Armed Forces will play a leading role as a partner in the multinational force helping to bring security to Iraq in the transitional period. The Iraqi Transitional Government will also have the authority to negotiate a security agreement with Coalition forces.

The National Assembly will be responsible for drafting the permanent constitution. After consulting with the Iraqi people and completing a draft, the proposed constitution will be submitted to the public in a referendum, which will occur no later than 15 October 2005. If the constitution is adopted, elections for a new government under the constitution will be held, and the new government will take office no later than 31 December 2005."

Link to "[Law of Administration for the State of Iraq for the Transitional Period](#)"

Office for Human Rights established within the Deputy Prime Minister's office (2006)

UNAMI, 22 November 2006

"HRO welcomes the establishment of the Office for Human Rights within the Deputy Prime Minister's office and the appointment of a human rights adviser to the President of the Council of Representative (CoR). Both are expected to contribute to the promotion and protection of human rights within Government and State institutions and to assist in overseeing the Government's action on and the Council's oversight over critical human rights concerns, including conditions of detention."

References to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles (as of March 2007)

Reference to the Guiding Principles in the national legislation

UNHCR, October 2005, pp.117-118

"Iraq does not have any particular legislation dealing with the situation of **IDPs** and their rights. Being Iraqi nationals, their rights are guaranteed by the generally applicable laws and regulations. However, and given the extent of the IDP problem in Iraq, MoDM included the full definition contained in the *UN Guiding Principles on Internal Displacement*[...] in the *Draft Law on the Ministry of Migration and Refugee Affairs*. It goes further to state that:

Coordinating, facilitating and supporting the monitoring, protection and assistance of the following categories, and the pursuit of solutions for them, according to the principles of prevailing international laws and practices, including the UN Guiding Principles on Internal Displacement, and taking into account the national interest and internal considerations: a) Iraqi displaced persons.

Therefore, the protection of IDPs is governed by human rights law standards and principles, including the provisions enshrined in the *UN Guiding Principles on Internal Displacement*."

Other References to the Guiding Principles (in chronological order)

None

Availability of the Guiding Principles in local languages

The GP are available in Arabic [[Internet](#)]

On the implementation of the Guiding Principles see also:

[Addressing Internal Displacement: A Framework for National Responsibility \(Arabic\)](#)

[Handbook for Applying the Guiding Principles on Internal Displacement \(Arabic\)](#)

Training on the Guiding Principles

UNHCR/IOM/NRC [Workshop on the UN Guiding Principles on Internal Displacement](#), 7-9 September 2004, Amman

IDP Unit of UN OCHA, [IDP Guiding Principles Training Workshop](#), 3-4 April 2003, Amman

Amman, 10-12 November 2003 Workshop for humanitarian workers in charge of programmes for Internally Displaced Persons (IDPs) in Iraq

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